The American Renewal Agenda

PROJECT ARA

A governing framework in one volume — 112 scored, sourced proposals, 16 draft bills, the implementation sequence, and the fiscal case.

HEALTHCARE. EDUCATION. INFRASTRUCTURE.

112	16	640	14
Proposals	Draft bills	Sources documented	Policy categories

Authored by the Reform Democrats of the New Commonwealth
Published for public adoption by the American Renewal Initiative

About This Document

The American Renewal Agenda (Project ARA) is the single consolidated public edition of a governing framework authored by the Reform Democrats of the New Commonwealth (RDNC), a citizen policy think tank, and published for public adoption by the American Renewal Initiative (ARI). RDNC writes and maintains the agenda; ARI carries it to candidates and the public; Project ARA is the program itself. The framework is open to candidates of any party; RDNC's own electoral strategy is to run reform candidates in Democratic primaries. It collects, in one volume, the ideological framework, the scored and sourced 112-proposal policy framework, the written-out implementation sequence, the sixteen-bill legislative series, the scoring methodology, the fiscal-feasibility analysis, and the complete source register.

It is built as a citable governing roadmap rather than a campaign pamphlet. Project 2025 showed that a detailed, sequenced plan prepared in advance is a powerful political instrument. This agenda takes the same approach in the public interest: scored and sourced so it can be audited, and published in full so it can be adopted, criticized, and improved by anyone.

What is finished, and what is not. The policy framework — the proposals, their scores and sources, the implementation sequence, and the fiscal and constitutional analysis — is complete for this edition. The bills in Part IX are draft legislation: their structure and provisions are written, but the dollar amounts, rates, thresholds, and dates marked [TBD] must be set by legislative counsel, agency technical staff, and the Congressional Budget Office before any bill is introduced. The executive-action texts in Part VIII are model instruments that have not been reviewed by government counsel. Facts, figures, and legal status are current as of October 2026 unless a later date is given; Part VII lists the pending matters to re-check.

How to read this document: The volume has five sections — The Case (Parts I–II), The Platform (Parts III–V), The Analysis (Parts VI–VII), The Texts (Parts VIII–IX), and Reference (Parts X–XII and the glossary). The section name appears in every page header. Parts I–II make the argument and state the principles. Part III is the scored framework at a glance — all 112 proposals. Part IV is the implementation sequence, with the Day-1 cabinet briefing. Part V explains every proposal in depth, with the evidence behind each score. Part VI makes the fiscal-feasibility case. Part VII tests every bill against the Constitution and the Senate's rules. Part VIII supplies model texts for the executive actions. Part IX is the legislative core: a summary card and the draft text of every bill. Part X documents the scoring methodology, Part XI is the source register, and Part XII is a note on method and authorship, followed by a glossary of terms and abbreviations.

Who This Is For, and How to Use It

This is a public document. It is meant to be picked up and carried — by candidates running for office, by campaign staff and advisors building positions, by voters who want to know what is actually possible, by organizers and civic groups, by journalists and scholars auditing the work, and by anyone willing to fight for the ideas in it. **No permission is required. No fee. No application. No institutional relationship. The ideas belong to anyone willing to fight for them.** Part XII describes four levels of adoption — the full framework, the Core Agenda, a pillar, or individual proposals — so that a claim to run on ARA says which.

The Layers — What to Use for What

- **For the thirty-second conversation** — the pitch and the three pillars: Fix the Foundations, Same Rules for Everyone, Build What Lasts. Healthcare, education, infrastructure. Renew. Rebuild. Deliver.
- **For a candidate platform or stump speech** — Parts I–II — the argument, the principles, and the diagnosis.
- **For a first-term agenda** — the Core Agenda at the opening of Part III: twelve priorities, each critical and each with evidence of support across party lines.
- **For policy positions and debate preparation** — Part III at a glance and Part V in depth.
- **For legislative staff and drafting counsel** — Part VII (constitutional and procedural durability), Part VIII (executive action texts), and Part IX: the draft text of all sixteen bills and the standalone vehicles.

- **For journalists, scholars, and auditors** — Part VI (fiscal feasibility), Part VII (legal durability), Part X (methodology), and Part XI (source register). Every claim is traceable.
- **For everyone** — All of it. Read it, share it, adapt it. Disagree with it in public if you disagree — that is what a serious document is for.

If You Are Running on This

What is asked. Fidelity to the policy positions in the framework. Run on what the platform says, not a selective reading of it. If you disagree with a specific proposal, say so openly and explain why — intellectual honesty is part of the brand. Beyond that: nothing.

What is not asked. No fee. No endorsement process. No required relationship with any organization or official. No control over your campaign — your campaign is yours.

How to describe the relationship. "I'm running on the American Renewal Agenda — a detailed governing platform authored by the Reform Democrats of the New Commonwealth. It's publicly available. I didn't invent it, but I believe in it, and I'm committed to delivering it."

> **The window is open. The plan is written, the bills are drafted, and the evidence is published. What is needed now is people willing to carry it forward.**

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THE CASE · PART I

The Argument

What was built, what was taken, and what a serious answer requires.

The Core Thesis

The United States built something remarkable: a governing system, a broad middle class, and public institutions capable of keeping concentrated power in check. That system has been methodically weakened — by corporate interests that found it more profitable to capture government than compete within it, and by an ever-expanding defense economy that continues to consume public resources that could be building the country from within. The result is a country where the cost of living rises every year, the institutions meant to protect ordinary people have been hollowed out, and neither major party has offered a coherent plan to reverse it.

> **Project 2025 showed how much a detailed governing roadmap can accomplish. This is a roadmap for rebuilding — equally specific, equally serious, built around the public interest. Not a reaction. A plan.**

What Was Built, and What Was Taken

The post-war American system was not perfect. But it worked in ways worth understanding, because understanding what worked is the precondition for rebuilding it.

Between roughly 1945 and 1980, the United States maintained a set of institutional arrangements that produced broadly shared economic growth: regulated financial markets, progressive taxation, strong labor protections, public investment in infrastructure and education, and government agencies with genuine enforcement capacity. These were not accidental. They were the result of political choices made after the failures of unregulated markets had become undeniable.

The dismantling of those arrangements began in earnest in the 1980s and accelerated across both parties through the 1990s and 2000s. It was not a conspiracy — it was a sustained ideological and lobbying effort by interests who stood to gain from deregulation, privatization, and the defunding of oversight. The results are now visible everywhere: healthcare costs that consume an ever-larger share of household income, wages that have not kept pace with productivity for five decades, public agencies that lack the staff to enforce the laws they are supposed to administer, and an infrastructure deficit measured in the trillions.

The Three Pillars

The diagnostic question that runs through every proposal in this agenda is the same: what does a functioning advanced society look like, and what specifically stands between us and that? That question — applied consistently — produces a coherent governing model.

Healthcare, education, and infrastructure are not separate issues with separate constituencies. They are the three pillars on which every advanced society's broad prosperity rests — and they are precisely what has been most systematically attacked, corporatized, and neglected over the past several decades. When those pillars are strong, people can absorb economic disruption, take productive risks, and participate fully in civic life. When they are weak — as they currently are in the United States — everything else becomes harder.

Most of the policies in this framework are not experiments. They exist and function in comparable advanced democracies, and where a proposal is genuinely new, its score says so. The question is not whether they work. It is how to build the political path from here to there.

What This Agenda Is — and Is Not

- **It is not a party platform.** It is a governing vision for anyone — of any party or none — who believes government should work for the people it serves. It was authored by reform Democrats; it belongs to whoever will carry it.
- **It is not a collection of wish-list items.** Every proposal is sequenced by feasibility and societal benefit, organized into implementation phases, and accompanied by defense strategies and fallback positions. It is designed to survive contact with political reality.
- **It is not anti-business.** It is pro-competition. The antitrust provisions, the data-ownership framework, the patent reform proposals — these are designed to make markets work better for more people, not to eliminate them.
- **It is not anti-military.** It is pro-national-security-broadly-defined. A nation whose grid is vulnerable, whose semiconductor supply chain depends on adversaries, and whose infrastructure is crumbling is not a secure nation — regardless of how large its defense budget is.

What it is: a governing synthesis. A coherent answer to the question of what government is for, translated into specific policy, sequenced into a realistic implementation roadmap, and defended against the opposition it will inevitably face.

One difference is decisive, and worth stating at the outset. Project 2025 was built to move fast, and much of it rests on executive action that a future administration can undo. This agenda is built to survive contact with power: sequenced for durability, anchored in constituencies that resist rollback, and, across every economic scenario modeled, the more fiscally durable of the two. Speed was their advantage. Endurance is ours.

THE CASE · PART II

Principles & Diagnosis

The philosophical spine, and how the problem is named before the solution is offered.

Three Principles

These three principles are the spine of every position in this framework. Any specific proposal should trace back to at least one of them.

1 · The system was built to work — and can be again. Healthcare, infrastructure, education, and democratic accountability all function in comparable countries right now. The question is not whether these things are possible. It is whether we are willing to fight for them. This is not a call for something radical or untested. It is a call to do what we already know how to do.

2 · Corporate capture is a root cause, not a side effect. The cost of healthcare, the absence of childcare, the stagnation of wages, the decay of public institutions — these are not accidents. They are the predictable result of policy shaped to serve concentrated interests over citizens. This is not a left or right critique: free-market conservatives call it cronyism, progressives call it capture, and both are describing the same thing. Naming it clearly is the first step to changing it. It is not the only cause. Local land-use politics, constitutional veto points, an aging population, thin administrative capacity, and a harder world abroad all play a part, and the proposals address each on its own terms.

3 · A roadmap beats a reaction. Project 2025 succeeded in part because it existed — detailed, sequenced, ready to execute the moment power was available. The American Renewal Agenda is the counter-roadmap: equally specific, equally serious, built around the public interest. Outrage without architecture changes nothing.

Five Diagnostic Arguments

The diagnosis comes before the policy. Once the problem is named in these terms, the solutions follow from it.

1 · The Cost-of-Living Diagnosis Americans are not struggling because of personal failure. They are struggling because healthcare, childcare, housing, and education have been transformed from shared infrastructure into profit centers. The cost of a functional life has been allowed to outpace wages for decades. That is a policy choice, made by people who benefited from it.

2 · The Institutional Decay Diagnosis Federal inspectors, regulators, and oversight bodies were defunded not by accident but by design — because they were effective. Corporations do not fear an EPA stripped of enforcement staff. Politicians do not fear an FEC that has been defanged. Restoring those institutions is not bureaucracy expansion. It is accountability restoration.

3 · The Governing-Vision Diagnosis Both parties have produced good individual policies, and neither has produced a durable governing vision. Without a shared theory of what government is for, elections erase each other's work and nothing compounds. This framework is not a rejection of either party's voters — it is an attempt to give the country the spine its politics are missing: a plan built to outlast any single election.

4 · The Project 2025 Diagnosis Project 2025 correctly understood that a detailed governing roadmap beats improvisation every time, and much of it has been carried out, through executive action and in Public Law 119-21. The lesson is about method, not party: the side with a specific, sequenced, ready plan sets the agenda. This framework applies that method to a different goal, and builds for durability, so that its gains outlast any single election.

5 · The Opportunity Diagnosis The conditions for structural reform rarely align. Public trust in the status quo is low. The failure of trickle-down economics is visible. Voters across the spectrum — many of whom feel neither party speaks for them — are looking for direction. A coherent governing vision — specific, sequenced, and serious — has a better chance of taking hold right now than at almost any point in recent memory. The window is open. The question is whether anyone walks through it.

Questions This Agenda Must Answer

A governing plan should be able to answer its strongest objections in plain terms. These are the ones it will face most often.

Can any of this pass Congress? About a quarter of the agenda can begin by executive action within the first six months (model texts are in Part VIII) — the Pentagon audit, alliance restoration, cyber defense, and detention oversight on Day 1; farm-labor enforcement and food-supply security soon after. The rest moves through Congress in sequence, starting with what has the broadest support. It is written into law deliberately: programs that exist only by executive order can be switched off by the next administration. The agenda accepts a slower path in exchange for one that lasts.

Is it too ambitious? It is not attempted all at once. Three phases over thirty years: a five-year foundation of cost-of-living relief, anti-corruption, infrastructure, and automatic recession protection; then structural expansion of what has proven itself; then systemic change once those gains are secure. Nothing is promised before the conditions for it exist.

Can the country afford it? The fiscal case in Part VI is built line by line to the rules the Congressional Budget Office uses, with every assumption and source shown and a published model anyone can rerun. Where credible estimates disagree, it takes the higher cost and the lower revenue, and it counts the billionaire income tax only at a risk-weighted value because a court could narrow it. On that basis the agenda adds about $1.5 trillion to deficits over ten years, interest included, with a likely range of $1.1 trillion to $1.9 trillion — well under the $4.1 trillion the 2025 tax law adds by CBO's count. Paid leave pays for itself, ending Medicare overbilling pays for the coverage bridge, corporations pay a 23% rate (still below the 35% in force before 2018), and the Phase II family programs may spend only what their revenue brings in. It is not deficit-neutral, and Part VI says so; revenue measures come before new spending. The status quo is not free either: Americans pay far more for healthcare than any comparable country, and hundreds of billions in owed taxes go uncollected each year.

Will it raise taxes on working people? No income-tax rate rises for anyone earning under $400,000. New revenue comes from closing loopholes used by the very wealthy, taxing billionaires' investment gains as income, a levy on the largest digital platforms, a corporate rate of 23% — still well below the 35% in force before 2018 — and enforcement aimed at incomes over $400,000, with a statutory bar on raising audit rates below that line. Workers would see one new contribution, in Phase II: a paid-leave premium of under 1% of wages, split equally with employers and set each year no higher than the program needs, which buys a benefit they can draw on, as in the states that already run such programs. Economists differ on how much of a corporate tax workers ultimately bear; the same households are the ones the agenda's lower health, childcare, and filing costs are aimed at.

Is this socialism? The proposals exist and work in countries such as Germany, Canada, Australia, Japan, Denmark, and the United Kingdom. A public health option alongside private insurance is not a takeover; antitrust enforcement is a tradition as old as Theodore Roosevelt; pre-filled tax returns are standard across most advanced tax systems. The test the agenda applies is evidence, not ideology — and free-market conservatives and progressives alike have long opposed the capture of government by concentrated interests.

Have these ideas been tried? Most have been tried almost everywhere except here, and Part V documents the international record for every proposal. Where a proposal is genuinely new, its Global Precedent score says so.

Does it weaken national defense? It treats national security broadly: a Pentagon that can pass an audit, less dependence on contractors, stronger cyber defenses, and the domestic grid, supply chains, and semiconductor capacity that are themselves security assets.

Will it survive the courts? Part VII tests every bill against current constitutional doctrine and the Senate's reconciliation rules, including the 2025–26 Supreme Court decisions. No design depends on protections the Court has removed, the riskiest provisions are identified by name, and each carries a prepared fallback.

Who decides the scores? The method in Part X is public and applied identically to this agenda, to Project 2025, and to the 2024 Democratic platform — and it does not always favor this agenda. Anyone can apply it and check the work. Independent scoring is invited: any person or organization may apply the published method to all three agendas, and outside scores will be reported beside the agenda's own.

Does it cut Medicare? No. The bill bars any change to Medicare Advantage enrollees' benefits, premium protections, or cost-sharing limits. What changes is how much insurers and hospitals are paid: Medicare Advantage plans can no longer be overpaid for overstated diagnoses, and hospital-owned outpatient departments are paid the same as a doctor's office for the same service, which lowers patients' coinsurance. Rural, critical-access, and sole-community hospitals are exempt, and the same title makes rural health funding permanent. Both changes appear in the Congressional Budget Office's own list of deficit-reduction options.

Does it create a gun registry, or require voter ID? No registry. The firearms bill is shall-issue: anyone who meets objective criteria gets a free certificate, and the bill bars any registry linking a person to a particular firearm, as federal law already does. Voter ID is each State's choice; a State that requires it must provide free IDs and free underlying documents, with a sworn-affidavit alternative, and a two-way firewall keeps voter files and firearm records apart.

Does childcare depend on the billionaire tax surviving in court? The first stage does not. The Phase I childcare credit, capping costs at 7% of income for families up to about three times the poverty line, is paid for within its own bill. The Phase II expansion to nearly every family grows as fast as Phase II revenue allows, and no family's credit is ever reduced.

What about the trillions for universal coverage? Estimates of $32–38 trillion over ten years are federal costs that largely replace what families and employers already pay in premiums and out-of-pocket costs; in the same studies, total national health spending ranges from about $0.7 trillion lower to $0.3 trillion higher in a single year. Universal coverage is Phase III, outside the ten-year window, and opens only after the public option has run for four or more years.

Was this written by AI? It was written by a human author with AI assistance, disclosed in Part XII. The policy choices are the author's, every claim is sourced, and legislation on AI safety is reserved for human drafting.

Politicians have promised this before. Why is this different? Past promises usually failed for lack of a sequenced delivery plan or because everything depended on legislation that never came. This agenda begins delivering on Day 1 regardless of Congress, legislates in order of support, pays for its Phase II family programs as it goes, and sets measurable targets for every Phase I promise (Part IV), reported in an annual public scorecard — so anyone can check what each phase promised against what it delivered.

When Goals Conflict

Good policies collide. Faster housing construction can press against environmental review; lower provider rates against access to care; domestic manufacturing subsidies against consumer prices; agricultural water against city water; federal standards against state and tribal self-government. The agenda does not pretend every conflict dissolves. When two of its own goals pull apart, they are weighed in this order:

1. **Constitutional rights and due process** come first and are not traded away for speed or savings.
2. **Minimum standards of safety and service** — no one is left below a floor of care, safety, or access to resolve a conflict elsewhere.
3. **Measurable public benefit** — the option with stronger evidence of results wins over the option with a better story.
4. **Fiscal sustainability** — a benefit that cannot be paid for over time is not yet a benefit.
5. **Administrative convenience** comes last.

Where tribal nations are concerned, a sixth rule sits beside the first: federal goals do not override treaty rights or tribal self-government.

THE PLATFORM · PART III

The Policy Framework

112 proposals across 14 categories, each scored on three axes. Aggregate Score = (GP + UT + B) ÷ 1.5.

◆ The Core Agenda

The full framework runs thirty years. A first term needs a shorter list. The Core Agenda is that list: twelve priorities built from twenty-two proposals, plus the first-term stage of one more, that meet two tests at once.

- **Critical.** Each scores 4 or 5 for Societal Benefit, or answers a fixed deadline — the Social Security shortfall projected for late 2032.
- **Adoptable now.** Each has documented public support across party lines or a bipartisan legislative record, and each has drafted text in a bill or standalone vehicle scheduled for the first Congress of the term.

Every proposal in this document carries one of three marks, used in the scored table below and on each proposal in Part V.

Mark	What it means	Proposals
◆ **Core**	Critical and adoptable now: the first-term agenda.	22
● **Build**	Sound and scored, but needs a Core win, a later window, or more groundwork first.	80
○ **Long horizon**	Phase III or constitutional-amendment proposals that depend on what earlier phases prove.	10

◆ Clean up Congress

P37, P38 · Bill 3A, Titles I–II and IV

WHY IT MATTERS

Ends trading on nonpublic information and sets one standard for officials — the trust every other reform depends on.

EVIDENCE IT CAN PASS

76% say members should not trade individual stocks, including 80% of Democrats and 77% of Republicans [Source 913].

◆ Free, simple tax filing

P1 · Bill 1, Title I

WHY IT MATTERS

Puts free direct filing and pre-filled returns into law, so no administration can switch them off.

EVIDENCE IT CAN PASS

76% support a free IRS-run filing option [Source 915]; use of Direct File roughly doubled in 2025 before it was suspended [Source 600].

◆ Health costs now

P19 (bridge stage only), P23, P24 · Bill 1, Title IV

WHY IT MATTERS

Restores the premium credits that lapsed at the end of 2025, makes rural health funding permanent, and ends surprise ambulance bills — with the credits paid for by ending Medicare Advantage overbilling.

EVIDENCE IT CAN PASS

78% backed extending the credits, including 59% of Republicans [Source 914]; the rural program already reaches all 50 states [Source 450].

◆ Childcare families can afford

P15 · Bill 1, Title II

WHY IT MATTERS

Caps childcare costs at 7% of income for households up to about three times the poverty line, and funds new slots.

EVIDENCE IT CAN PASS

The 2025 reconciliation law expanded the dependent-care and employer childcare credits — shared ground on the goal [Source 609].

◆ Fair prices, fair credit

P106, P110, P109 · Bill 3A, Titles VI, IX, X

WHY IT MATTERS

All-in prices with no hidden fees, the 36% rate cap that already protects servicemembers, and medical debt off credit reports.

EVIDENCE IT CAN PASS

Capping interest rates, banning junk fees, and debt relief each drew support across parties by more than four to one [Source 916].

◆ Social Security solvency

P21 · S-6

WHY IT MATTERS

Applies the payroll tax to earnings above $250,000 before the late-2032 shortfall, closing 57% of the long-range gap while protecting every current benefit [Source 636].

EVIDENCE IT CAN PASS

Lifting the cap on top earners was the most preferred solvency option in a national survey [Source 917].

◆ A floor that keeps pace

P7, P8 · Bill 16

WHY IT MATTERS

Indexes the wage floor and benefit thresholds, and delivers recession relief by formula instead of negotiation.

EVIDENCE IT CAN PASS

About 19 States already index their minimum wage, and 2024 ballot measures raising it passed in Missouri and Alaska [Sources 469, 919].

◆ Homes people can afford

P41, P102, P103 · Bill 8, Titles I–II

WHY IT MATTERS

More homes legal to build, faster permits, and limits on large investors buying existing homes.

EVIDENCE IT CAN PASS

Congress enacted the bipartisan ROAD to Housing Act on the same incentive model [Source 831].

◆ A fair shot at a first contract

P92 · Bill 13, Title I

WHY IT MATTERS

Workers who vote to organize can reach a first contract through mediation and arbitration.

EVIDENCE IT CAN PASS

Passed the House 230–193 in June 2026 with 20 Republican votes; the Senate companion is led by a Republican [Source 400].

◆ Build it here

P61, P64 · Bill 2, Titles I–II

WHY IT MATTERS

Firm clean power, transmission, and domestic chips and batteries, paid by milestone with recapture.

EVIDENCE IT CAN PASS

Nuclear, geothermal, and storage credits kept support in the 2025 reconciliation law [Source 824].

◆ Checks on every President

P48, P51 · Bill 3B, Titles IV, VI

WHY IT MATTERS

National emergencies expire unless Congress approves them, impoundment law is enforced, and Insurrection Act triggers are defined.

EVIDENCE IT CAN PASS

These rules bind every administration equally; GAO found the 2026 pocket rescission violated the Impoundment Control Act [Source 462].

◆ Second chances

P96, P97 · Bill 14, Titles I–II

WHY IT MATTERS

Automatic sealing of old records and wider earned-time credits, so people who served their sentence can work.

EVIDENCE IT CAN PASS

The First Step Act passed the Senate 87–12 in 2018 [Source 918]; 14 States and the District of Columbia have automatic record clearance [Source 405].

One entry is a stage, not a whole proposal: the coverage bridge is the Phase I stage of P19, whose full universal-coverage program remains Long horizon and is not part of the Core. The Core is a starting point for adoption, not a ranking of worth. Build proposals include some of the agenda's highest scores, and many will move as soon as a Core win opens the way.

The Scored and Sourced Framework

The three pillars — healthcare, education, infrastructure — are the public frame; the fourteen categories below are the full architecture, and each one serves at least one pillar.

Each proposal's tier mark (◆ Core, ● Build, ○ Long horizon) follows its vehicle line. Each proposal carries three axis scores — **Global Precedent (GP)**, **US Transition Difficulty (UT)**, and **Societal Benefit (B)**, each 1–5 — and a Priority Score on a 10-point scale. The anchor line gives the legislative or executive vehicle; an arrow (→) marks a proposal enacted in stages across bills.

Phase	Proposals	Cumulative
Phase I (Years 0–5)	68	68
Phase II (Years 5–15)	33	101
Phase III (Years 15–30)	11	112

A proposal enacted in stages (→) is counted once, under its principal stage; its row and card show both its first and its final phase. Social Security is the clearest case: the solvency bill (S-6) is Phase I work, due before the late-2032 shortfall, while integration with children's investment accounts waits for Phase III.

Average Priority Score: 7.39.

Economy & Tax Reform · 13 proposals

Corporate capture, wage stagnation, tax equity — the cost of living is a policy failure, not a market outcome.

Proposal	GP	UT	B	Score	Phase
P1 · IRS Reform, Statutory Direct File & Pre-Filled Returns — Bill 1 COLT Act, Title I ◆	★★★★★	★★★☆☆	★★★★☆	8.0	Ph I
P2 · Antitrust Enforcement & Corporate Accountability — Bill 3A ACFM Act Part A, Title V ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P3 · Ban Waste Export — Executive (EPA rulemaking) ●	★★★★☆	★★★★☆	★★★☆☆	7.3	Ph I
P4 · Close Wealth Accumulation Loopholes — Bill 5 BWDS Act, Title III ●	★★★★☆	★★☆☆☆	★★★★★	7.3	Ph II
P5 · Billionaire Income Tax & Digital Services Levy — Bill 5 BWDS Act, Title II (billionaire income tax) and Title I (digital services levy) ●	★★★☆☆	★★☆☆☆	★★★★★	6.7	Ph II
P6 · US Sovereign AI & Autonomous Systems Wealth Fund — Bill 10 AIPE Act, Secs. 4–7 ●	★★★☆☆	★★★★☆	★★★★★	8.0	Ph II
P7 · Universal Benefit & Wage Floor Indexing Act — Bill 16 ECFA, Title I ◆	★★★★★	★★★★☆	★★★★★	9.3	Ph I
P8 · Automatic Countercyclical Stabilization Act — Bill 16 ECFA, Title II ◆	★★★☆☆	★★★★☆	★★★★★	8.0	Ph I
P9 · SAFE Banking Act Adoption — Bill 3A ACFM Act Part A, Title VII ●	★★★★☆	★★★★☆	★★★★☆	8.0	Ph I
P10 · Disruptive Technology Incentive Mechanism Design Act — Bill 2 IIC Act, Title II ●	★★★★☆	★★★★☆	★★★★☆	8.0	Ph I
P11 · Debt-Equity Tax Parity Act — Bill 5 BWDS Act, Title IV ●	★★★★☆	★☆☆☆☆	★★★★☆	6.0	Ph II
P12 · Industrial Commons Preservation Act — Bill 2 IIC Act, Title II ●	★★★★☆	★★★★☆	★★★★☆	8.0	Ph I
P13 · National Dual Apprenticeship Pipeline Act — Bill 1 COLT Act, Title V ●	★★★★★	★★★★☆	★★★★☆	8.7	Ph I

Healthcare & Social Programs · 11 proposals

The foundations of a functional life. Universal in comparable democracies. Non-negotiable in a serious governing agenda.

Proposal	GP	UT	B	Score	Phase
P14 · Restore Public Health Infrastructure & Biomedical Accountability — Standalone S-3 ●	★★★★★	★★★☆☆	★★★★★	**8.7**	Ph I
P15 · Affordable, Available Childcare — Bill 1 COLT Act, Title II — Phase I stage → Bill 4 FSW Act, Title I — Phase II stage ◆	★★★★★	★★★☆☆	★★★★★	**8.7**	Ph I → II
P16 · Universal Basic Investment for Children (Trump Account Progressive Top-Up) — Bill 4 FSW Act, Title V ●	★★★☆☆	★★★★☆	★★★★★	**8.0**	Ph II
P17 · Non-Profit Prison System — Executive (DOJ + state incentives) ●	★★★★☆	★★★☆☆	★★★★☆	**7.3**	Ph II
P18 · Drug Rescheduling & Harm Reduction — Executive (DEA/HHS rulemaking) ●	★★★★☆	★★★☆☆	★★★★☆	**7.3**	Ph II
P19 · Universal Government-Funded Healthcare — Bill 1 COLT Act, Title IV — bridge → Bill 6 POHE Act (public option: rural and small-business pools first; statutory expansion trigger) — Phase II stage → Bill 9 UCT Act (universal coverage by age band) ○	★★★★★	★☆☆☆☆	★★★★★	**7.3**	Ph I → III
P20 · Bodily Autonomy Legal Framework — Executive (Constitutional/judicial pathway) ○	★★★★☆	★★☆☆☆	★★★★★	**7.3**	Ph III
P21 · Social Security Modernization — Standalone S-6 Social Security Solvency Act — solvency stage, before the late-2032 depletion date → Phase III integration with Universal Basic Investment ◆	★★★☆☆	★★☆☆☆	★★★★☆	**6.0**	Ph I → III
P22 · Emerging Reproductive Technology Protection & Oversight Act — Standalone S-1 ●	★★★★★	★★★☆☆	★★★☆☆	**7.3**	Ph I
P23 · Rural Health Access Stabilization Act — Bill 1 COLT Act, Title IV ◆	★★★☆☆	★★★★★	★★★★★	**8.7**	Ph I
P24 · Ground Ambulance Billing Protection & EMS Stabilization Act — Bill 1 COLT Act, Title IV ◆	★★★☆☆	★★★☆☆	★★★★☆	**6.7**	Ph I

Democracy & Electoral Reform · 11 proposals

A democracy that can be captured, gerrymandered, or flooded with foreign money is not a functioning democracy.

Proposal	GP	UT	B	Score	Phase
P25 · Address Gerrymandering — Bill 3B ACFM Act Part B, Title I → Bill 11 DIR Act, Sec. 7(a) — state-legislative districts (amendment track) ●	★★★★☆	★★★☆☆	★★★★★	**8.0**	Ph I → III
P26 · National Voting Holiday — Bill 3B ACFM Act Part B, Title II ●	★★★★☆	★★★☆☆	★★★☆☆	**6.7**	Ph I
P27 · Shutdown Accountability for Congress — Executive (House/Senate rules change) ●	★★☆☆☆	★★★☆☆	★★★★☆	**6.0**	Ph I
P28 · Local News Sustainability & Media Ownership Act — Bill 1 COLT Act, Title VI ●	★★★★☆	★★★☆☆	★★★★★	**8.0**	Ph I
P29 · Fraud & Foreign Interference Enforcement Act — Bill 3B ACFM Act Part B, Title VII ●	★★★★☆	★★★☆☆	★★★★☆	**7.3**	Ph II
P30 · National Firearm Standards Framework (Two-Track) — Bill 12 NFSA, Titles I–IV ●	★★★★☆	★★★☆☆	★★★★★	**8.0**	Ph II
P31 · Voter Choice & Majority Support Act — Bill 11 DIR Act, Sec. 7(b) ○	★★★★☆	★☆☆☆☆	★★★★☆	**6.0**	Ph III
P32 · Senate Deliberation & Accountability Standard — Standalone S-2 ●	★☆☆☆☆	★★★★☆	★★★★☆	**6.0**	Ph I

Proposal	GP	UT	B	Score	Phase
P33 · National Popular Vote Compact — Federal Backstop — Bill 11 DIR Act, Sec. 7(c) ○	★★★☆☆	★★★☆☆	★★★★☆	6.7	Ph III
P34 · Small-Donor Empowerment & Anti-Corruption Act — Bill 3B ACFM Act Part B, Title III ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P35 · Voter Roll Accuracy & Registration Modernization Act — Bill 3B ACFM Act Part B, Title II ●	★★★★★	★★★☆☆	★★★★★	8.7	Ph I

Legal & Governance · 18 proposals

The rules that apply to citizens must apply to representatives, corporations, and the wealthiest individuals.

Proposal	GP	UT	B	Score	Phase
P36 · Citizen Data Ownership Laws — Bill 7 DRDO Act, Title I–IV ●	★★★★☆	★★★☆☆	★★★★★	8.0	Ph I
P37 · Ban Congressional Insider Trading — Bill 3A ACFM Act Part A, Title I–II ◆	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P38 · Higher Standards & Accountability for Officials — Bill 3A ACFM Act Part A, Titles I–II and IV ◆	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P39 · Full Financial Transparency for Presidents — Bill 3A ACFM Act Part A, Title I–II ●	★★★☆☆	★★★☆☆	★★★★☆	6.7	Ph I
P40 · Bipartisan Oversight of Detention Facilities — Executive (EO + congressional directive) ●	★★☆☆☆	★★★☆☆	★★★★☆	6.0	Ph I
P41 · Residential Ownership Fairness Act (Institutional & Foreign Acquisition) — Bill 8 HCI Act, Title I ◆	★★★☆☆	★★★★★	★★★★☆	8.0	Ph I
P42 · Stricter Advertising Laws — Bill 7 DRDO Act, Title I–IV ●	★★★★★	★★★☆☆	★★★☆☆	7.3	Ph I
P43 · Age & Term Limits for Officials — Bill 3B ACFM Act Part B, Title VII — statutory part → Bill 11 DIR Act, Sec. 4 — Supreme Court part ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph II → III
P44 · AI Safety & Rights Framework — Standalone S-4 ●	★★☆☆☆	★★★☆☆	★★★★☆	6.0	Ph II
P45 · Patent Law Reform — Executive (Commerce/USPTO rulemaking) ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph II
P46 · Repeal / Reform Citizens United — Bill 11 DIR Act, Secs. 5–6 (statutory and amendment tracks) ○	★★★★☆	★☆☆☆☆	★★★★★	6.7	Ph III
P47 · Supreme Court Reform — Bill 11 DIR Act, Sec. 4 ○	★★★☆☆	★★☆☆☆	★★★★★	6.7	Ph III
P48 · Emergency Powers, Power of the Purse & Rescission Reform Act — Bill 3B ACFM Act Part B, Title IV ◆	★★★★☆	★★★★☆	★★★★☆	8.0	Ph I
P49 · Inspector General Independence & Whistleblower Protection Act — Bill 3B ACFM Act Part B, Title V ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P50 · DOJ Prosecutorial Integrity & Transparency Act — Bill 3B ACFM Act Part B, Title VII ●	★★★★☆	★★☆☆☆	★★★★☆	6.7	Ph II
P51 · Insurrection Act Reform Act — Bill 3B ACFM Act Part B, Title VI ◆	★★★★☆	★★★★☆	★★★★☆	8.0	Ph I
P52 · Judicial Nominating Commission & Supreme Court Ethics Enforcement Act — Bill 3B ACFM Act Part B, Title VII ●	★★★★☆	★★☆☆☆	★★★★☆	6.7	Ph II
P53 · Federal Right to Repair Act — Bill 3A ACFM Act Part A, Title VIII ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I

Education · 7 proposals

Human capital is infrastructure. The workforce of 2040 is the student of 2025.

Proposal	GP	UT	B	Score	Phase
P54 · Reduce Tuition & Expand Adult Education — Bill 4 FSW Act, Title II ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P55 · Digital Minor Protection Standards (Three-Tier) — Bill 7 DRDO Act, Title V ●	★★★★☆	★★★☆☆	★★★★★	8.0	Ph II
P56 · Shift Corporate Role from Healthcare to Training — Bill 4 FSW Act, Title IV ●	★★☆☆☆	★★★☆☆	★★★★☆	6.0	Ph II
P57 · Adopt High-Performing Education Systems Model — Executive (DOE rulemaking + state incentives) ○	★★★★★	★★☆☆☆	★★★★★	8.0	Ph III
P58 · Federal Teacher Minimum Salary & Protection Act — Bill 1 COLT Act, Title V ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P59 · Modernized CIPA & Education Network Security Act — Bill 7 DRDO Act, Title VI ●	★★★★☆	★★☆☆☆	★★★★☆	6.7	Ph II
P60 · Education Functions Restoration & Oversight Act — Standalone S-5 ●	★★★★☆	★★☆☆☆	★★★★★	7.3	Ph II

Infrastructure & Energy · 8 proposals

The country stopped building. The result is visible in every crumbling bridge, every supply chain crisis.

Proposal	GP	UT	B	Score	Phase
P61 · Clean Firm Power, Grid & Energy Investment — Bill 2 IIC Act, Title I ◆	★★★★★	★★★☆☆	★★★★★	8.7	Ph I
P62 · Restore & Expand Federal Inspectors — Bill 2 IIC Act, Title IV ●	★★★★☆	★★★★☆	★★★★☆	8.0	Ph I
P63 · Shoreline & Fishery Protection — Executive (NOAA/EPA rulemaking) ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P64 · Strategic Domestic Technology Investment — Bill 2 IIC Act, Title II ◆	★★★★★	★★★☆☆	★★★★★	8.7	Ph I
P65 · Cooperative Mining with Allied Nations — Executive (State Department) ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P66 · Modernize Airports & Air Traffic Control — Bill 2 IIC Act, Title III ●	★★★★☆	★★★★☆	★★★☆☆	7.3	Ph I
P67 · Electrify & Modernize USPS — Bill 2 IIC Act, Title III ●	★★★★☆	★★★★☆	★★★☆☆	7.3	Ph I
P68 · National High-Speed Rail Network — Executive (Phase III major authorization) ○	★★★★★	★★☆☆☆	★★★★☆	7.3	Ph III

Military & Defense · 7 proposals

National security broadly defined — grid, supply chain, alliances — not just procurement and contractor relationships.

Proposal	GP	UT	B	Score	Phase
P69 · Expand Cyberwarfare Defenses — Executive (DoD/NSA directive) ●	★★★★☆	★★★☆☆	★★★★★	8.0	Ph I
P70 · Expand NASA & Space Force — Executive (NDAA authorization) ●	★★★★☆	★★★★☆	★★★☆☆	7.3	Ph II

Proposal	GP	UT	B	Score	Phase
P71 · Reinforce War Powers Act — Executive (Congressional resolution) ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P72 · Pentagon Budget Audit Accountability — Executive (NDAA + IG directive) ●	★★★☆☆	★★★☆☆	★★★★☆	6.7	Ph I
P73 · Reduce Military Contractor Dependence — Executive (DoD procurement reform) ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P74 · Strategic Military Workforce Pivot to Infrastructure — Bill 4 FSW Act, Title VI ●	★★★☆☆	★★★☆☆	★★★★☆	6.7	Ph II
P75 · Multilateral Peacekeeping Coalition — Executive (State Department) ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph II

Agriculture & Environment · 12 proposals

Food security, water rights, and ecological foundations are national security assets.

Proposal	GP	UT	B	Score	Phase
P76 · Water Rights & Foreign Ownership Ban — Bill 8 HCI Act, Title I ●	★★★★☆	★★★☆☆	★★★★★	8.0	Ph I
P77 · Domestic Food Priority Laws — Executive (USDA rulemaking) ●	★★★☆☆	★★★☆☆	★★★★☆	6.7	Ph I
P78 · Protect Marine Life & Expand Aquaculture — Executive (NOAA rulemaking) ●	★★★★☆	★★★☆☆	★★★★★	8.0	Ph I
P79 · Subsidize Agricultural Electrification — Executive (USDA/DOE grants) ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P80 · Address Farm Labor Abuses — Executive (DOL enforcement) ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P81 · Break Up Agricultural Monopolies — Bill 3A ACFM Act Part A, Title V ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P82 · National Climate Preparedness Corps — Bill 2 IIC Act, Title VI ●	★★★☆☆	★★★☆☆	★★★★★	7.3	Ph I
P84 · FDA Split & Reform — Executive study (E-9), then legislation ●	★★★★★	★★★☆☆	★★★★☆	8.0	Ph II
P85 · Data Center Water & Energy Transparency Standard — Bill 8 HCI Act, Title V ●	★★★☆☆	★★★★☆	★★★☆☆	6.7	Ph I
P86 · Water Utility Anti-Monopoly & Ratepayer Protection Act — Bill 3A ACFM Act Part A, Title XI–XII ●	★★★★☆	★★☆☆☆	★★★☆☆	6.0	Ph II
P87 · Water Infrastructure Modernization Fund — Bill 2 IIC Act, Title V ●	★★★☆☆	★★★★☆	★★★★★	8.0	Ph I
P88 · State Disaster Relief Trust Accounts (Pre-Allocated, Formula-Based Drawdown Act) — Bill 2 IIC Act, Title VI ●	★★★★☆	★★★☆☆	★★★★★	8.0	Ph II

Foreign Affairs & Immigration · 3 proposals

Strategic relationships are asymmetric advantages. Immigration managed intelligently is a net economic positive.

Proposal	GP	UT	B	Score	Phase
P89 · Diplomatic Restoration & Strategic Investment — Executive (State) + statute (MCC/DFC/development charter) ●	★★★★☆	★★★☆☆	★★★★★	8.0	Ph I
P90 · Selective & Streamlined Immigration Policy — Executive (DHS/DOS rulemaking) ●	★★★★☆	★★★☆☆	★★★★☆	7.3	Ph I
P91 · Nuclear Diplomacy via Allied Mediation — Executive (State Department) ●	★★★★☆	★★★☆☆	★★★★★	8.0	Ph II

Workforce Fairness & Security · 4 proposals

Work should pay, and a family emergency shouldn't cost anyone their job.

Proposal	GP	UT	B	Score	Phase
P92 · Workplace Representation Fairness Act — Bill 13 WFA, Title I ◆	★★★★★	★★★☆☆	★★★★☆	8.0	Ph II
P93 · National Paid Family & Medical Leave Standard — Bill 13 WFA, Title II ●	★★★★★	★★★☆☆	★★★★☆	8.0	Ph II
P94 · Federal Paid Sick Leave Standard — Bill 13 WFA, Title III ●	★★★★★	★★★☆☆	★★★☆☆	7.3	Ph I
P95 · Worker Mobility & Fair Competition Act — Bill 13 WFA, Title IV ●	★★★☆☆	★★★☆☆	★★★☆☆	6.0	Ph I

Second Chance & Public Safety · 5 proposals

Fewer repeat offenders, safer streets, and a real second chance for people who have paid their debt.

Proposal	GP	UT	B	Score	Phase
P96 · Fresh Start & Workforce Reentry Act — Bill 14 SCPS Act, Title I ◆	★★★★☆	★★★★☆	★★★★☆	8.0	Ph I
P97 · Expand First Step Act Nationwide — Bill 14 SCPS Act, Title II ◆	★★★★☆	★★★★☆	★★★★☆	8.0	Ph I
P98 · Recidivism Reduction & Correctional Standards Act — Bill 14 SCPS Act, Title III ●	★★★★☆	★★☆☆☆	★★★★☆	6.7	Ph II
P99 · Pretrial Risk-Based Release Act — Bill 14 SCPS Act, Title IV ●	★★★★★	★★☆☆☆	★★★☆☆	6.7	Ph II
P100 · National Public Safety & Officer Standards Act — Bill 14 SCPS Act, Title V ○	★★★★☆	★★☆☆☆	★★★★☆	6.7	Ph III

Housing & Land Use · 5 proposals

The country stopped building homes too. Permission to build is a policy choice.

Proposal	GP	UT	B	Score	Phase
P101 · National Baseline Zoning Standard — Bill 8 HCI Act, Title II ●	★★★★☆	★★★★☆	★★★★★	8.7	Ph II
P102 · Federal Permitting Shot Clock — Bill 8 HCI Act, Title II ◆	★★★☆☆	★★★★☆	★★★★☆	7.3	Ph I
P103 · End Single-Family-Only Zoning Nationwide — Bill 8 HCI Act, Title II ◆	★★★★☆	★★★★☆	★★★★☆	8.0	Ph I
P104 · NEPA Categorical Exclusion for Infill Housing — Bill 8 HCI Act, Title II ●	★★★☆☆	★★★★★	★★☆☆☆	6.7	Ph I
P105 · Modular & Manufactured Housing Code Harmonization — Bill 8 HCI Act, Title II ●	★★★★☆	★★★★★	★★★☆☆	8.0	Ph I

Fair Dealing & Marketplace Transparency · 5 proposals

Honest prices, real access to court, and fair credit — markets work when the rules are clear.

Proposal	GP	UT	B	Score	Phase
P106 · All-In Pricing & Fee Transparency Act — Bill 3A ACFM Act Part A, Title IX ◆	★★★★★	★★★☆☆	★★★★★	8.7	Ph I
P107 · Court Access Restoration Act — Bill 3A ACFM Act Part A, Title XI–XII ○	★★☆☆☆	★★☆☆☆	★★★★☆	5.3	Ph III
P108 · Underbanked Access Pilot Program — Bill 7 DRDO Act, Title VII ●	★★★★★	★★★☆☆	★★★☆☆	7.3	Ph II
P109 · Medical Debt Fairness & Credit Accuracy Act — Bill 3A ACFM Act Part A, Title X ◆	★★★☆☆	★★★☆☆	★★★★☆	6.7	Ph I
P110 · Servicemember-Standard Lending Protection Act — Bill 3A ACFM Act Part A, Title VI ◆	★★★★☆	★★★★☆	★★★☆☆	7.3	Ph I

Tribal Sovereignty & Trust Responsibility · 3 proposals

Keeping the promises the United States already made — offered as an invitation, shaped by tribal nations.

Proposal	GP	UT	B	Score	Phase
P111 · IHS Mandatory Funding & Trust Fund Act — Bill 15 TSTR Act, Title I ●	★★★☆☆	★★★★☆	★★★★☆	7.3	Ph I
P112 · Truth and Healing Commission on Indian Boarding School Policies — Bill 15 TSTR Act, Title II ●	★★★★☆	★★★★★	★★★☆☆	8.0	Ph I
P113 · MMIW Jurisdictional Restoration & Cold Case Office — Bill 15 TSTR Act, Title III ●	★★★☆☆	★★★☆☆	★★★★☆	6.7	Ph II

THE PLATFORM · PART IV

The Implementation Sequence

Phase 0 through Phase III: how power is won, what moves on Day 1, and why the order is what it is.

The Sequencing Logic

Every proposal carries a phase assignment and an implementation route. The phasing reflects a deliberate theory of how durable structural reform happens: fast, visible, hard-to-reverse wins first, and the structural changes those wins make politically survivable later. The principles are fixed. The order is not.

The Agenda in Motion

Phase 0	Phase I	Phase II	Phase III
Before power	Years 0–5	Years 5–15	Years 15–30
Primary wins · coalition · personnel pipeline	COLT Act · IIC Act · ACFM Act — Part A · ECFA · WFA · TSTR Act · ACFM Act — Part B · SCPS Act · HCI Act · S-6 Social Security solvency (before late 2032)	BWDS Act · FSW Act · POHE Act · DRDO Act · NFSA · AIPE Act	UCT Act · DIR Act — after preconditions
0 enacted	68 proposals	+33 (101)	+11 (112)

Bill abbreviations are defined in Part IX.

Eight System-Level Principles

1. **Use reconciliation aggressively but selectively.** Front-load direct benefits; keep non-budget provisions out of reconciliation.
2. **Sequence by political capital.** Popular and simple, then popular and complex, then controversial and necessary. Never lead with constitutional fights.
3. **Build policy stickiness.** Every bill creates constituencies who benefit and resist rollback.
4. **Design for partial passage.** Every bill must still deliver if cut in half.
5. **Expect counterattack.** Every bill carries an attack surface and a defense.
6. **Name policies for survivability.** Frame every policy around what it delivers, not what it restricts.
7. **Revenue first.** Revenue and savings titles are enacted before or alongside the spending they finance — enforcement revenue opens Phase I; the wealth and digital-services tax bill opens Phase II in the same reconciliation window as the family and workforce bill.
8. **Durability through statute.** The 2025–26 period showed that administrative programs can be switched off by the next administration. Where a goal matters long-term, this agenda writes it into statute, the tax code, or a vehicle the other party built.

Phase 0 — Winning Power, Before Legislation Begins

No sequence matters without power. The authoring organization is not a third party; its own strategy is to run reform candidates in Democratic primaries. The platform itself is open to any candidate, of any party, willing to run on it as written. The Phase I coalition is deliberately broad across party lines and narrow in focus — working-class voters responding to cost-of-living relief, small businesses responding to anti-monopoly framing, and moderates responding to anti-corruption positioning — and expands in Phase II.

The single largest remaining gap is organizational, not intellectual: the database of vetted personnel ready to staff an administration on Day 1 does not yet exist. Building it must begin years before power is sought.

The Day-1 Cadence — What Can Begin Without Waiting for Congress

Of the 112 proposals, **25 are executive-led and 87 require legislation.** Several programs are deliberately written into statute rather than left to executive action, so that the next administration cannot simply switch them off. **Without waiting for a single Senate vote, a reform administration can begin work on about a quarter of this agenda — nine actions on Day 1 and nine more within six months — and the rest is written into law so it lasts.** These actions are of three kinds: orders and directives carried out under authority the executive already has; preparations, reviews, and rulemakings that take six to eighteen months to complete; and proposals sent to Congress on Day 1, which only Congress can enact. Two of the nine Day-1 actions are of the third kind: the War Powers memorandum carries a legislative request (E-3), and the shutdown-accountability rules are transmitted to Congress for adoption (E-7).

- **Day 1 (E-1 to E-9).** Alliance and development restoration; Pentagon audit accountability; War Powers compliance; national cyber defense; allied critical-minerals cooperation; bipartisan detention oversight; proposed shutdown-accountability rules; restoration of public-health capacity; launch of the FDA reorganization plan.
- **Month 1–6 (E-10 to E-18).** Waste-export restrictions and domestic recycling; shoreline and fishery protection; marine protection and sustainable aquaculture; domestic food-supply security; agricultural electrification grants; farm-labor enforcement; reduced dependence on military contractors; immigration processing and selection rules; drug-scheduling review and harm reduction.
- **Held until conditions exist (E-19 to E-26).** Private-prison phase-out; patent reform within existing authority; space exploration and defense; multilateral peacekeeping; nuclear risk reduction through allied mediation; high-performing education systems; high-speed rail planning; bodily-autonomy protections under existing law.

Model texts for every action listed here — executive orders, presidential memoranda, and secretarial directives — appear in Part VIII.

The Day-1 Cabinet Briefing

Agency	Day 1	Months 1–6	Prepared for later phases
State	Alliance and development review (E-1); allied critical-minerals agreements (E-5)	—	Multilateral peacekeeping (E-22); nuclear risk reduction through allied mediation (E-23)
Defense	Audit remediation plans and public scorecard (E-2); cyber support to civilian infrastructure (E-4); Defense Production Act support for critical minerals (E-5)	Contractor-dependence review and insourcing (E-16)	Space exploration and defense, with NASA (E-21)
Justice	Proposed legislation on war authorizations, with Defense (E-3)	Scheduling rulemaking on HHS recommendations (E-18)	Private-prison contract phase-out (E-19)
Homeland Security	CISA staffing restoration plan (E-4); congressional access and bipartisan detention oversight (E-6)	Backlog reduction and immigration rules (E-17)	Immigration-detention transition plan (E-19)
Health and Human Services	Public-health grants, research awards, and vaccine programs restored (E-8); FDA Reorganization Task Force (E-9)	Scheduling evaluation and overdose-prevention access (E-18)	—
Commerce (NOAA, USPTO)	—	Waste-export restrictions, with EPA (E-10); shoreline, fishery, and aquaculture protection (E-11, E-12)	Patent reform through the USPTO (E-20)
EPA	—	Waste-export restrictions and domestic recycling (E-10)	—

Agency	Day 1	Months 1–6	Prepared for later phases
Agriculture	—	Food-supply security (E-13); agricultural electrification grants restored by rulemaking (E-14); farm-labor coordination (E-15)	—
Labor	—	Farm-labor enforcement (E-15); employer accountability, with DHS (E-17)	—
Energy and Interior	—	Electrification technical assistance (E-14)	—
Education and Transportation	—	—	High-performing education systems (E-24); high-speed rail planning (E-25)
White House	Shutdown-accountability rules transmitted to Congress (E-7)	—	Bodily-autonomy legal pathway (E-26)

Day-1 directives are the announcement and initiation layer. Full implementation of most executive actions requires six to eighteen months of rulemaking.

Before January 2029: The 120th Congress

The phases below begin with a new term in January 2029. The work can begin sooner. From January 2027 one party holds both chambers of Congress while the President holds the veto, so reconciliation bills, which need a presidential signature, wait for 2029. Standalone bills with records of support across party lines do not have to.

Move now	Vehicle in this agenda	Why now
Ban congressional stock trading	Bill 3A, Title I (P37)	Supported by large majorities in both parties [Source 913].
All-in pricing and medical debt off credit reports	Bill 3A, Titles IX–X (P106, P109)	Fee and debt protections drew support across parties by more than four to one [Source 916].
First-contract mediation and arbitration	WFA, Title I (P92)	Has already passed the House once with votes from both parties [Source 400].
Earned-time credits for state systems	SCPS, Title II (P97)	Builds on the First Step Act, which passed the Senate 87–12 [Source 918].
Emergency-power expiry and impoundment enforcement	Bill 3B, Title IV (P48)	Binds every administration equally; GAO found the 2026 pocket rescission unlawful [Source 462].
Medicare payment accuracy	COLT Act, Secs. 405–406	Both changes are in CBO's own deficit-reduction options [Sources 944, 945].

Three things are gained. A bill that is signed delivers early. A bill that is vetoed gives voters a clear choice in 2028. And hearings, committee reports, and formal CBO scores of the Phase I bills, requested in 2027 and 2028, build the record that courts, the Senate Parliamentarian, and voters will look for, so that January 2029 begins with official numbers rather than this agenda's own.

The Three Phases

Years are counted from the start of a new term in January 2029.

When	What happens
January 2029	The term begins (Year 0). Day-1 executive actions start.
2029	Phase I bills are enacted; their programs take effect in fiscal year 2030.
2031–2032	Second reconciliation window: the Phase II revenue and family bills are enacted.
Before late 2032	Social Security solvency (S-6) is in force.
Fiscal year 2033	Phase II programs take effect, in the term's fifth year. Part VI counts them from here.
Years 5–15	Phase II expands and matures.
Years 15–30	Phase III, once its preconditions are met.

Phase I — Foundation (Years 0–5). The anchor is the COLT Act (Months 1–18): statutory free tax filing, a childcare credit capping costs at 7% of income, and a coverage bridge restoring the premium tax credits that expired in January 2026. The infrastructure bill and the first part of the anti-corruption bill follow, then automatic recession protections, sick leave and worker-mobility protections, reentry and recidivism reforms, housing supply and ownership reforms, the trust-responsibility bill once tribal consultation is complete, and — after its recorded vote — the anti-corruption bill's second part covering redistricting, emergency powers, and election integrity. The Social Security solvency bill (S-6) must also be law in this phase, before the retirement trust fund runs short in late 2032.

Phase II — Structural Expansion (Years 5–15). Opens with revenue: the billionaire income and digital-services tax bill and the family and workforce bill share the second reconciliation window, which the bills' titles date to 2031–2032; Part VI uses those dates and tests a two-year slip. The public option, digital rights, firearm-standards, and public-investment fund bills follow, each expanding a system already proven popular.

Phase III — Systemic Transformation (Years 15–30). Universal coverage by age band once the public option has operated four or more years; constitutional and structural reforms of the courts and campaign finance once durable conditions exist.

When the Sequence Adapts

- **A severe economic recession** — automatic stabilizers (already in place from Phase I) carry the first response; may accelerate Phase II spending or force Phase I contraction.
- **A reform-aligned Senate supermajority** — may allow Phase II or III proposals earlier.
- **A hostile Supreme Court ruling** — may require rerouting; proposals affected by the 2026 rulings have already been rerouted.
- **A political crisis or wave election** — may open a window for landmark legislation.
- **Public-option success faster than projected** — may permit Phase III healthcare earlier.
- **Coalition collapse or a midterm loss** — defensive consolidation: protect Phase I gains, pause Phase II.
- **Sustained high interest rates** — enforce the revenue-first principle strictly.

> **The Phase III condition.** *These reforms are attempted only after Phases I and II have created durable political conditions. Patience here is not weakness — it is strategy.*

Dependency Gates — What Must Be True First

The phases are not a calendar. A program advances when its preconditions are met and certified, not because a year has arrived. The gates below are written into the bill texts in Part IX.

Program	Gate before it advances	Who certifies	Where in the text
Universal coverage (UCT Act)	Public option operating 4+ years and dominant where first offered (private share below 40%); Phase I cost reforms entrenched; personnel pipeline in place; precedent review complete; Congress may disapprove within 90 days	Secretary of HHS, subject to congressional disapproval	UCT Act Sec. 401
Military budget reallocation to healthcare	No reallocation in any year without a readiness certification; the NDAA controls in any conflict	Joint Chiefs of Staff, annually	UCT Act Sec. 302
Near-universal childcare credit	Licensed childcare capacity has grown by a set percentage since the COLT Act; provider grants carry a worker pay floor	Secretary of HHS	FSW Act Sec. 101(e)–(f)
Wealth-tax revenue as a funding source	Counts toward programs only once enacted and in force; the Treasury keeps a prepared fallback ready if a court narrows it	Secretary of the Treasury	BWDS Act Secs. 204, 503

Program	Gate before it advances	Who certifies	Where in the text
AIPE Fund distributions	Rates and thresholds set by an Independent Calibration Panel with limits on industry ties; distributions only from realized returns	Independent Calibration Panel	AIPE Act Secs. 7, 9
Housing continuation grants	Paid on homes permitted, started, and completed, by income band — not on code changes alone	Secretaries of Transportation and HUD	HCI Act Sec. 201(c)
Social Security solvency	In force before the projected 2032 depletion of the retirement trust fund	SSA Chief Actuary certifies the effect	S-6 Secs. 6–7
Tribal titles	Government-to-government consultation completed and the record appended	Tribal governments, through consultation	TSTR Act Sec. 401

Implementation Readiness — The Highest-Consequence Proposals

The Priority Score compares proposals on their merits. This table answers a different question for the proposals where an error would cost the most: how much is at stake, what must happen first, and how firmly the delivery mechanism can be relied on. Ratings are derived from the fiscal ledger (Part VI), the gates above, and each proposal's US Transition score; they are not additional scores.

Proposal	Fiscal exposure (10-yr central)	Gated?	Instrument	Delivery confidence (from UT)
P19 · Universal healthcare	High — $421B bridge, fully offset by $438B in Medicare payment accuracy; full system outside the window	Yes — UCT Sec. 401	Statute	Low (UT 1)
P5 · Billionaire tax	High — $364B central (risk-weighted); the bill's fallback keeps part if the annual inclusion is struck down	Yes — counts only when in force	Statute	Low (UT 2)
P21 · Social Security	High — $1.8T in its own trust fund	Yes — before 2032	Statute	Low (UT 2)
P15 · Childcare	High — $628B across two stages	Yes — capacity check	Statute	Medium (UT 3)
P111 · IHS mandatory funding	High — $556B	Yes — consultation	Statute	High (UT 4)
P16 · Children's investment accounts	High — $578B	No	Statute	High (UT 4)
P6 · AI public wealth fund	Unscored	Yes — calibration panel	Statute	High (UT 4)
P93 · Paid family and medical leave	Medium — $148B net	No	Statute	Medium (UT 3)
P1 · Direct File and IRS enforcement	Medium — $124B revenue	No	Statute	Medium (UT 3)
P101 · Baseline zoning	Unscored	Yes — production results	Statute (incentive)	High (UT 4)
P64 · Domestic technology	Unscored	Yes — milestones and recapture	Statute	Medium (UT 3)
P47 · Supreme Court term limits	Low	No — requires an OLC opinion before introduction	Statute or amendment	Low (UT 2)

Fiscal exposure: High at $300 billion or more, Medium at $50–300 billion, Low under $50 billion. Delivery confidence: High at UT 4–5, Medium at UT 3, Low at UT 1–2.

How You'll Know It's Working — Phase I Targets

A plan that asks to be held accountable should say in advance what success looks like. The indicators below translate the Phase I bills and the main executive actions into measurable results, each tied to an official data series that already exists, so that no one — supporters or critics — has to take progress on faith.

How the targets work. Each indicator has a baseline from the most recent authoritative data, a checkpoint two years after the relevant bill or action takes effect, and a target at five years. Where a bill sets its own standard — the 7% childcare cap, zero medical debt on credit reports, universal access to paid sick leave — that standard is the target. Elsewhere, targets extend current trends by the margin the policy is designed to add. All targets are proposed and will be confirmed as each bill is finalized.

The Annual Renewal Scorecard. Every Phase I bill already requires agency reporting to Congress. The administration will compile those reports, and will ask the Government Accountability Office to verify them, in a single public scorecard each year. When an indicator misses its checkpoint, the scorecard states why and what will change.

Health and the Cost of Living

Indicator	Baseline	Year 2	Year 5 target	Data series	Delivered by
Uninsured rate, all ages	8.3% (28.0 million), 2025	At or below 8.0%	At or below 7.0%	CDC National Health Interview Survey	COLT Title IV
Childcare cost for eligible families	8.9%–16.0% of median family income for full-day care for one child (2022)	Credit operating for all eligible filers	No eligible family pays more than 7% of income after the credit	DOL National Database of Childcare Prices; IRS credit data	COLT Title II
Free, pre-filled tax filing	No federal free filing option (Direct File discontinued in 2025)	Free filing available in every state for simple returns	Pre-filled returns offered to at least half of individual filers	IRS Data Book	COLT Title I
Medical debt on credit reports	About 15 million people with $49 billion reported (2024)	No new medical debt reported after the effective date	Zero	CFPB and credit-bureau data	ACFM Part A, Title X
Rural hospitals vulnerable to closure	417 vulnerable; 41% with negative operating margins (2026)	No net rural hospital closures	Vulnerable hospitals cut by half; no further loss of rural obstetric units	Chartis rural health index; Sheps Center closure data	COLT Title IV
Drug overdose deaths	67,798 in the 12 months ending March 2026	At or below 60,000	At or below 50,000	CDC provisional overdose death counts	E-18; S-3

Work and Wages

Indicator	Baseline	Year 2	Year 5 target	Data series	Delivered by
Access to paid sick leave	80% of private-industry workers; 65% in service occupations (2025)	Federal standard in effect	At least 95% of private-industry workers, including service occupations	BLS National Compensation Survey	WFA Title III
Federal minimum wage	$7.25, unchanged since 2009	Annual indexing in effect	Indexed every year; first Wage Advisory Commission recommendation voted on	Department of Labor	ECFA Title I
Active registered apprentices	About 703,000; 46.5% completion rate (FY2025)	900,000	1.25 million active; completion rate of at least 55%	DOL Office of Apprenticeship	COLT Title V
Recession readiness	No automatic federal response	Trigger certified by statute; payment systems tested	Annual tests show payments can reach households within the statutory window	Treasury and Labor readiness reports	ECFA Title II

Housing and Infrastructure

Indicator	Baseline	Year 2	Year 5 target	Data series	Delivered by
Housing starts	1.36 million (2025), against a supply gap of about 4 million homes	1.5 million per year	At least 1.7 million per year, averaged over years 3–5	Census Bureau New Residential Construction	HCI Act; ROAD to Housing Act
Lead service lines	About 4 million remaining	Replacement on pace for completion	At least half replaced	EPA service line inventories	IIC Title V
Time to connect new power to the grid	About 55 months from request to operation; 2,061 GW waiting (2025)	Median at or below 45 months	Median at or below 36 months	Lawrence Berkeley National Laboratory, *Queued Up*	IIC Title I
Local news coverage	213 counties with no local news source; 1,524 with only one (2025)	No further growth in news deserts	At or below 150 news-desert counties	Medill State of Local News report	COLT Title VI

Accountability and Security

Indicator	Baseline	Year 2	Year 5 target	Data series	Delivered by
Congressional stock trading	Trading permitted, subject to disclosure	Ban in effect; full divestiture compliance	No individual stock trades by Members; every violation referred	House and Senate disclosure filings	ACFM Part A, Title I
Pentagon financial audit	No clean department-wide opinion since full audits began in 2018	Remediation plan for every material weakness; quarterly public scorecard	Clean opinions for a majority of components	Department of Defense audit reports	E-2
National emergencies	Declarations continue until terminated	30-day expiry rule in effect	Every declaration lasting more than 30 days approved by Congress	Federal Register; congressional record	ACFM Part B, Title IV
Civilian cyber defense capacity	CISA staffing reduced from about 3,400 to about 2,400	Staffing restored to at least 3,400	Critical-infrastructure protection plan in force for every sector	Department of Homeland Security	E-4

Fairness and Trust

Indicator	Baseline	Year 2	Year 5 target	Data series	Delivered by
Indian Health Service spending per user	$4,078 per user, against $13,493 national health spending per person (FY2023)	Phase-in schedule set through tribal consultation	At least half of national per-person spending, on a path to parity	IHS budget justifications	TSTR Title I
Automatic sealing of federal records	No automatic sealing	System operational	All eligible records sealed automatically	Department of Justice reporting	SCPS Title I
First Step Act programming	Program capacity short of the eligible population	Capacity plan funded	Every eligible person able to earn time credits	Bureau of Prisons; DOJ Inspector General	SCPS Title II

The Fiscal Test

Indicator	Baseline	Year 2	Year 5 target	Data series	Delivered by
Revenue first	Enforcement funding rescinded and IRS workforce reduced since 2025	Enforcement collections on pace with CBO's estimate	Net enforcement revenue at or above CBO's central estimate	Treasury; CBO	COLT Title I
Net fiscal effect	Central case +$1.5 trillion with interest, FY2030–2039; likely range +$1.1T to +$1.9T (Part VI)	Independent re-estimate published	Cumulative effect within the likely range	CBO; independent scorekeepers	All Phase I bills

Baselines are drawn from the CDC (2026), the Department of Labor (2024–2026), the Bureau of Labor Statistics (2025), the Census Bureau (2026), the CFPB (2024), the Chartis Center for Rural Health (2026), Lawrence Berkeley National Laboratory (2025–2026), Northwestern Medill (2025), the Indian Health Service (2024), and Realtor.com (2026); full citations are in Part XI, Section 21.

THE PLATFORM · PART V

The Proposals in Depth

Every proposal, with the evidence behind each axis score. Source numbers key to Part XI. Each entry gives the proposal's vehicle, phase, and Priority Score, the rationale for each of the three axes, and — where relevant — its current legislative, legal, or administrative status as of October 2026.

Economy & Tax Reform

P1 · IRS Reform, Statutory Direct File & Pre-Filled Returns

Pre-calculate citizen tax liability; end the need to pay a private company to meet a basic filing obligation.

Vehicle: Bill 1 COLT Act, Title I · **Phase I** · **Score 8.0** (GP 5 / UT 3 / B 4) · ◆ **Core**

Global Precedent. Pre-filled returns standard in 85%+ of OECD administrations; 10+ Tier 1 nations with documented high-compliance, high-satisfaction outcomes; IRS Direct File pilot (296,531 users, 94% satisfaction) validates US feasibility. Sources: 1, 2, 8.

US Transition. IRS Direct File suspended for Filing Season 2026 (Treasury report, Nov 2025), despite 2025 usage roughly doubling to 296,531 returns. COLT Act Title I statutorily creates free direct e-filing and pre-populated returns rather than relying on an administrative program a future Treasury can cancel. Sources: 600, 601, 602, 603.

Societal Benefit. ~150M filing households benefit; a large share of the $31.7B/yr spent on commercial preparation avoided for simple returns, with paid help remaining available for complex ones; burden relief most progressive for lower-income filers (highest share of income spent on tax prep); enforcement ROI $3.18–$12 per $1 invested. Sources: 3, 5, 6, 7, 37.

P2 · Antitrust Enforcement & Corporate Accountability

Extend antitrust law to duopolies and captured markets; escalating criminal consequences for repeat violations.

Vehicle: Bill 3A ACFM Act Part A, Title V · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. Over 75% of US industries increased concentration over 20 years; EU DMA (2022) and German GWB §19a demonstrate structural remedy frameworks with documented deterrence; criminal executive liability for repeat violators has documented behavioral-change effect in European enforcement. Sources: 64, 65, 66, 67.

US Transition. 60-vote Senate threshold applies to statutory criminal liability; executive enforcement posture (FTC/DOJ) can begin immediately; American Innovation and Choice Online Act (2022) stalled in Senate demonstrating political headwinds; 5–8 year timeline to structural market change. Sources: 66, 196.

Societal Benefit. Anticompetitive markups cost workers $1.4T annually in suppressed wages; consumers bear $1.4T+ in excess rents across concentrated sectors (the two estimates overlap and should not be added together); distributional impact progressive (lower-income households spend higher share of income in concentrated markets). Sources: 67, 68, 69.

How liability works. Concentration triggers scrutiny, not liability: Title V targets exclusionary conduct without a procompetitive justification and leaves structural remedies to the courts where conduct remedies fail. Individual criminal exposure arises only under the graduated tiers of Title III — a misdemeanor requires a prior repeat adjudication and knowledge or reasonable notice, and a felony requires a further repeat with knowledge and specific intent.

Current status. Trump v. Slaughter (June 29, 2026) ends for-cause protection for FTC commissioners. Enforcement of the structural and repeat-violator provisions routes through DOJ's Antitrust Division and Article III courts. Sources: 604, 605, 606.

P3 · Ban Waste Export

Restrict exports of hazardous waste and of plastic and mixed recyclables lacking verified environmentally sound management; build domestic processing capacity first.

Vehicle: Executive (EPA rulemaking) · **Phase I** · **Score 7.3** (GP 4 / UT 4 / B 3) · ● **Build**

Global Precedent. Basel Convention Amendment (2019, 187 parties) prohibits OECD-to-non-OECD hazardous waste export; EU, UK, and Canada enforce domestic processing mandates; China's National Sword policy (2018) documented global market impact. Sources: 196.

US Transition. EPA statutory authority under RCRA provides implementation vehicle without new legislation; export restrictions on hazardous waste already in force; 3–5 year domestic infrastructure buildout is primary constraint; synergy with Bill 2/IIC capital investment. Sources: 195.

Societal Benefit. Environmental benefit primarily accrues to export-destination nations (Indonesia, Malaysia, Vietnam); domestic geographic concentration of benefit near processing facilities; domestic job creation in waste processing sectors documented. Sources: 162.

P4 · Close Wealth Accumulation Loopholes

Eliminate offshore accounts, shell corporations, and investment-account loopholes that enable indefinite tax-deferred wealth accumulation.

Vehicle: Bill 5 BWDS Act, Title III · **Phase II** · **Score 7.3** (GP 4 / UT 2 / B 5) · ● **Build**

Global Precedent. OECD FATF enforcement frameworks documented across Tier 1 nations; Tax Justice Network estimates $427B in annual global tax revenue lost to offshore evasion; EU's ATAD I/II and FATF standards establish international compliance architecture. Sources: 19, 194.

US Transition. Requires 60-vote Senate threshold; offshore enforcement requires multilateral cooperation with IRS data-sharing agreements; estimated 4–7 year implementation to meaningful offshore enforcement at scale; Moore v. United States (2024) constrains property-tax framing — income-inclusion approach more durable. Sources: 3, 4, 20.

Societal Benefit. $160B+ annually in taxes top 1% choose not to pay; PWBM mark-to-market approach projected $2.0–3.0T over 10 years; enforcement directly progressive — captures income that currently bypasses taxation at highest-wealth levels. Sources: 3, 4, 15, 19.

Recent sources. 609, 610, 611.

P5 · Billionaire Income Tax & Digital Services Levy

Tax billionaires' investment gains as income each year, as wages already are, with a deferral charge and tax at death for assets without a market price; a targeted levy on large digital services platforms.

Vehicle: Bill 5 BWDS Act, Title II (billionaire income tax) and Title I (digital services levy) · **Phase II** · **Score 6.7** (GP 3 / UT 2 / B 5) · ● **Build**

Global Precedent. For taxing billionaires' wealth or unrealized gains, comparable-country precedent is mixed: most European countries that once taxed net worth have repealed it, while Norway, Spain, and Switzerland retain versions — hence GP 3. For the digital services levy, the OECD side-by-side package (Jan. 5, 2026, 147 jurisdictions) exempts US-parented groups from the Pillar Two IIR and UTPR, removing the multilateral precedent once cited for it; the levy is therefore structured as a separate title within Bill 5. Sources: 614, 615, 616.

US Transition. Moore v. United States (2024) constrains net-worth property-tax framing; income-inclusion approach more constitutionally durable; 60-vote Senate threshold; billionaire lobbying and constitutional litigation risk are

primary barriers; 5–8 year implementation even under favorable conditions. Sources: 15, 20.

Societal Benefit. Top 1% pay estimated $160B less annually than legally owed; mark-to-market taxation corrects the realization asymmetry that enables indefinite tax-deferred compounding; revenue directly finances healthcare, childcare, and infrastructure with documented progressive benefit. Sources: 3, 4, 14, 15.

P6 · US Sovereign AI & Autonomous Systems Wealth Fund

Federally managed wealth fund capitalized through AI/autonomous systems licensing, taxation, and equity stakes.

Vehicle: Bill 10 AIPE Act, Secs. 4–7 · **Phase II** · **Score 8.0** (GP 3 / UT 4 / B 5) · ● **Build**

Global Precedent. Norway Government Pension Fund Global (NBIM, $1.78T as of 2024, authorized 1990) is the canonical model; 6.64% long-term average return at 0.04% management cost; governance: Ministry of Finance → Norges Bank mandate → NBIM execution. Sources: 286.

US Transition. Trump Accounts launched July 4, 2026 with a $1,000 Treasury seed: a functioning federal vehicle for broad public asset ownership. Fund dividends can distribute through the same rails as the P16 accounts. Sources: 617, 618.

Societal Benefit. Fund returns projected to finance healthcare, Social Security, Universal Basic Investment, and infrastructure; automation displacement creates long-term distributional pressure that sovereign fund returns can offset; universal distribution of AI productivity gains. Sources: 286, 131.

P7 · Universal Benefit & Wage Floor Indexing Act

Index minimum wage, benefit-eligibility thresholds, and program income caps to CPI automatically.

Vehicle: Bill 16 ECFA, Title I · **Phase I** · **Score 9.3** (GP 5 / UT 4 / B 5) · ◆ **Core**

Assessment. GP=5 — automatic wage/benefit indexing to inflation is close to a universal norm among Tier 1 comparators (France's SMIC, Belgium's wage indexation). Sources: 469, 470, 471, 472, 473, 474, 475.

Current status. Includes an independent wage advisory commission (UK Low Pay Commission model) recommending real increases above the indexed floor.

P8 · Automatic Countercyclical Stabilization Act

Codified Sahm Rule direct payments.

Vehicle: Bill 16 ECFA, Title II · **Phase I** · **Score 8.0** (GP 3 / UT 4 / B 5) · ◆ **Core**

Assessment. Codifies the recession trigger economist Claudia Sahm proposed in 2019: automatic payments once the three-month average unemployment rate rises 0.5 points above its low of the prior 12 months, capped near 0.7% of GDP in the first year, and administered by formula rather than by discretionary declaration. A confirming second indicator guards against false signals like the one in August 2024. Sources: 469, 470, 471, 472, 473, 474, 475.

P9 · SAFE Banking Act Adoption

Cannabis banking access.

Vehicle: Bill 3A ACFM Act Part A, Title VII · **Phase I** · **Score 8.0** (GP 4 / UT 4 / B 4) · ● **Build**

Assessment. SAFE Banking has passed the House **seven separate times since 2013** and never once received a Senate floor vote, reintroduced yet again in June 2026 with bipartisan sponsors (Merkley, Warren, Murkowski, Daines). The inconsistency: any other state-legal business gets ordinary banking access; cannabis businesses in the same states are forced into cash-only operation, creating a well-documented public-safety problem (robbery risk, money laundering exposure) that banking access would directly solve. The 2026 move of medical marijuana to Schedule III did not fix this — it is a banking-regulation gap, not a scheduling gap. Sources: 476, 477, 478, 479, 480, 481, 482, 483, 484, 485, 486.

Current status. DOJ final order (April 2026) moved FDA-approved and state-licensed medical marijuana to Schedule III, removing §280E for those businesses; broader rescheduling hearing concluded with briefs filed Aug. 17, 2026. Banking still requires statute.

P10 · Disruptive Technology Incentive Mechanism Design Act

Advance market commitments, milestone payments, prizes, and other pay-for-results tools in one federal framework, paid only when results are delivered.

Vehicle: Bill 2 IIC Act, Title II · **Phase I** · **Score 8.0** (GP 4 / UT 4 / B 4) · ● **Build**

Assessment. Four already-proven mechanisms, standardized into one framework rather than left to ad hoc program design: advance market commitments — fixed-price purchases paid only on delivery against a defined performance bar (Gavi's pneumococcal vaccine commitment; Operation Warp Speed); milestone prizes paid only for objectively verified technical results (the $10 million Ansari X Prize drew more than $100 million in private investment); fixed-price milestone contracting as the default over cost-plus, modeled on NASA's commercial cargo program; and production-linked tax credits tied to verified output rather than spending (the 45X and 45Y credits). The common principle: pay for delivered results, never for promises or announcements. Sources: 502, 503, 504, 505, 506, 507.

P11 · Debt-Equity Tax Parity Act

Notional deduction for equity-financed investment.

Vehicle: Bill 5 BWDS Act, Title IV · **Phase II** · **Score 6.0** (GP 4 / UT 1 / B 4) · ● **Build**

Assessment. Corrects a real tilt in the tax code: interest on debt is deductible while the return to equity is not, which favors financial engineering over productive investment. The existing 1% stock-buyback excise tax (2022) does not fix the imbalance — analysts across the spectrum (Tax Foundation, AEI) note it can worsen it, because it raises the cost of equity distributions without touching interest deductibility. The proposal pairs a notional deduction for equity-financed investment with limits on interest deductions, designed to be revenue-neutral. Sources: 514, 515, 516, 517, 518, 519, 520.

Current status. The 2025 reconciliation law (P.L. 119-21) restored the EBITDA base for §163(j), moving federal policy toward greater interest deductibility, the opposite direction from this proposal.

P12 · Industrial Commons Preservation Act

Weights R&D incentives toward domestic co-location of manufacturing and research.

Vehicle: Bill 2 IIC Act, Title II · **Phase I** · **Score 8.0** (GP 4 / UT 4 / B 4) · ● **Build**

Assessment. Formalizes Pisano and Shih's "industrial commons" thesis within the mechanism-design framework of P10: manufacturing and research capability are not separable in the way policy often assumes. Losing the factory floor eventually costs the ability to invent in that field, because innovation depends on feedback between builders and designers working in the same place, so research incentives are weighted toward domestic co-location of manufacturing and research. Sources: 514, 515, 516, 517, 518, 519, 520.

P13 · National Dual Apprenticeship Pipeline Act

German-model apprenticeships run through production employers.

Vehicle: Bill 1 COLT Act, Title V · **Phase I** · **Score 8.7** (GP 5 / UT 4 / B 4) · ● **Build**

Assessment. German- and Swiss-model dual apprenticeships run through production employers. Part of the shift toward a service economy is genuine "cost disease" common to every mature economy and not fully reversible by policy, but part reflects a US tax-code tilt toward financial engineering over productive investment, which is fixable; US manufacturing fell from about 28% of GDP in the 1950s to roughly 10% today. This proposal builds the workforce half of the production-and-research chain, complementing the capital-allocation focus of P11 and P12. Sources: 514,

515, 516, 517, 518, 519, 520.

Healthcare & Social Programs

P14 · Restore Public Health Infrastructure & Biomedical Accountability

Restore ACIP statutory independence; return CDC/NIH funding to an inflation-adjusted 2019 baseline; rebuild public health infrastructure.

Vehicle: Standalone S-3 · **Phase I** · **Score 8.7** (GP 5 / UT 3 / B 5) · ● **Build**

Global Precedent. UK NICE, Germany RKI, France Santé Publique France, Australia ATAGI all operate with statutory independence and multi-year funding stability; OECD documents consistent correlation between infrastructure investment and population outcomes; US CDC was global leader through mid-2010s. Sources: 39, 192.

US Transition. Day 1 executive component (funding restoration, ACIP independence) requires no congressional action; legislative components (vaccine advisory committee standards) require Phase I legislation; 1–3 year timeline to operational restoration; Yale Budget Lab documents $600B deficit impact of IRS defunding — same root cause documented for CDC. Sources: 5, 54, 195.

Societal Benefit. COVID-19 demonstrated the population-wide cost of infrastructure deterioration: CDC test failure (Feb 2020) attributable to budget cuts contributed to pandemic spread costing hundreds of thousands of lives; measles outbreak (4,000+ cases since Jan 2025, three deaths; CDC, 2026) is the current consequence of ACIP authority erosion; public health workforce shortfall ~80,000. Sources: 39, 40, 54, 192.

Current status. The CDC's January 2026 schedule change was stayed in March 2026 because ACIP is named in statute, showing statutory codification is the effective safeguard. Codify ACIP membership qualifications, conflict-of-interest rules and the evidence-to-recommendation process, and tie insurer coverage obligations to that codified process. Sources: 619, 620, 621.

P15 · Affordable, Available Childcare

Childcare made affordable through a refundable federal credit reaching households up to 300% of the poverty line, with provider supply grants that raise capacity and workforce pay; Nordic public systems are the long-run model.

Vehicle: Bill 1 COLT Act, Title II — Phase I stage → Bill 4 FSW Act, Title I — Phase II stage · **Phase I → II** · **Score 8.7** (GP 5 / UT 3 / B 5) · ◆ **Core**

Global Precedent. 41 high-income OECD and EU countries provide subsidized childcare; Germany and Estonia: net cost 0–1% of household wages; Quebec natural experiment (Baker-Gruber-Milligan, JPE 2008) is Tier A evidence; US has highest childcare costs as percentage of wages among OECD nations. Sources: 42, 43, 44, 46.

US Transition. Reconciliation vehicle via Bill 4/FSW (IRC §21 structure); CBO BBB childcare score ($381.5B gross over 6 years) establishes scoring precedent; 3–5 year to meaningful implementation; Connecticut, Vermont, and DC programs demonstrate state-level feasibility. Sources: 44, 47.

Societal Benefit. Quebec: every $1 invested returned $1.49 to government; ~70,000 additional mothers employed, $5.1B Quebec GDP impact (Fortin-Godbout-St-Cerny, 2013); affects 70%+ of families with children; strongly progressive burden relief — childcare costs represent highest share of income for lower-income working families. Sources: 42, 44, 45, 46, 47.

Financing. The first stage (COLT Act, Phase I) is paid for within that bill and does not depend on any Phase II revenue. The near-universal expansion (FSW Act) phases in as fast as Phase II revenue allows (FSW Sec. 5); no family's credit is ever reduced. Sources: 814, 925.

P16 · Universal Basic Investment for Children (Trump Account Progressive Top-Up)

Annual progressive contributions to the investment account of every child in a low- or middle-income household from age 1 to 16, invested in index funds or Treasury securities and available at 18.

Vehicle: Bill 4 FSW Act, Title V · **Phase II** · **Score 8.0** (GP 3 / UT 4 / B 5) · ● **Build**

Global Precedent. Connecticut CT Baby Bonds (launched July 2023, ~13,300 enrolled in first 9 months at $3,200/Medicaid birth) is the US analog; UK Child Trust Fund (2002–2011) and Singapore Baby Bonus demonstrate Tier 1 precedent for government-initiated child investment accounts. Sources: 44, 287.

US Transition. Trump Accounts (P.L. 119-21) are live with 60M+ children auto-enrolled (Treasury, Sept–Oct 2026). Designed to deliver the ARA's progressive, income-tested deposits through Trump Account rails, auto-claim the $1,000 seed, and cap account fees, building on the existing vehicle rather than creating a parallel one. Sources: 617, 624, 625.

Societal Benefit. Expanded Child Tax Credit (2021) reduced child poverty 40%, lifting 3.7M children from poverty in first full month; universal baby bonds directly address intergenerational wealth gap; distributional impact maximally progressive — highest benefit to children born into lowest-wealth households. Sources: 44, 48, 287.

P17 · Non-Profit Prison System

Eliminate private prisons; nonprofit management of all facilities; expand mental and behavioral health programs.

Vehicle: Executive (DOJ + state incentives) · **Phase II** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. US incarceration rate: 608 per 100,000 vs. OECD average ~120 per 100,000; all major Tier 1 comparators operate predominantly public, non-profit prison systems; DOJ rulemaking and contracting authority allow transition from private to non-profit management without new legislation. Sources: 60, 61.

US Transition. Federal facilities (BOP): executive authority sufficient for contract non-renewal; state facilities require DOJ incentive grants and cooperative agreements; private prison contracts associated with higher incarceration rates per Vera Institute (2022); full transition 5–10 years. Sources: 60, 61.

Societal Benefit. Private prisons have no documented cost savings after quality adjustment per Vera Institute; non-profit model with expanded mental/behavioral health programs reduces recidivism (documented in DOJ treatment program evaluations); distributional impact progressive — incarceration falls disproportionately on lower-income and minority populations. Sources: 60, 61.

P18 · Drug Rescheduling & Harm Reduction

Regulated recreational/social drug schedule; enforce quality testing, taxation, and safe delivery research.

Vehicle: Executive (DEA/HHS rulemaking) · **Phase II** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. Portugal decriminalization (2001) with harm reduction services documented 75% reduction in drug-related deaths; Netherlands, Switzerland, Canada supervised consumption sites; DEA partial final order (April 23, 2026) moved FDA-approved and state-medical marijuana to Schedule III — first US executive step. Sources: 289.

US Transition. DOJ final order (April 2026) moved state-licensed medical and FDA-approved marijuana to Schedule III; broader rescheduling hearing under way. Sources: 628, 629, 630.

Societal Benefit. Regulated recreational drug schedule with quality testing and taxation reduces overdose deaths, reduces incarceration for non-violent drug offenses, and generates state/federal tax revenue; harm reduction interventions have Tier A evidence for reducing HIV transmission and overdose mortality. Sources: 289.

P19 · Universal Government-Funded Healthcare

Universal public coverage for all ages, phased in by age band; existing private and employer plans may continue, and employers may move workers in voluntarily; funded by a dedicated payroll contribution, new revenue, and a certified military budget reallocation.

Vehicle: Bill 1 COLT Act, Title IV — bridge → Bill 6 POHE Act (public option: rural and small-business pools first; statutory expansion trigger) — Phase II stage → Bill 9 UCT Act (universal coverage by age band) · **Phase I → III** · **Score 7.3** (GP 5 / UT 1 / B 5) · ○ **Long horizon**

Global Precedent. Implemented at national scale in all 16 Tier 1 comparators; US spends $14,885/capita (17.2% of GDP) vs. OECD average $5,967 (9.3%); every peer nation provides universal coverage at lower cost; Commonwealth Fund: US ranks last on equity, access, and efficiency. Sources: 39, 40, 41, 55, 192.

US Transition. Structural barrier: ERISA §502 coordination, provider rate-setting, displacement of private insurance as enrollment shifts ($1.1T annual premiums), 60-vote Senate threshold, and organized industry opposition combine to make transition genuinely structural rather than merely political; German multi-payer model is most feasible path; 7+ year phased implementation minimum; CBO single-payer: +$1.5–3.0T federal subsidies in 2030 alone. Sources: 55, 56, 57, 58.

Societal Benefit. Medical debt contributes to ~500,000 annual bankruptcies (Himmelstein et al., AJPH 2019); Sommers-Gawande-Baicker (NEJM 2012): Medicaid expansion reduced mortality 6.1%; universal coverage eliminates the coverage gaps, network inadequacy, and cost-sharing barriers that disproportionately burden lower-income Americans. Sources: 39, 40, 41, 55.

Design note. The UCT Act guarantees universal eligibility, not compulsory enrollment: it compels no one to leave an existing plan, and its fallback is a permanent hybrid system. Whether public coverage becomes the single payer depends on enrollment, not mandate. The single-payer cost figures in Part VI are therefore the upper bound, reached only if enrollment becomes universal.

Current status. Includes a Phase I bridge: restore the enhanced premium tax credits that expired Dec 31, 2025, and replace Medicaid work-requirement paperwork with automatic data verification. Responds to CBO's estimate of +10.0M uninsured by 2034 under P.L. 119-21. Sources: 631, 632, 633.

Financing. The coverage bridge is paid for within the same title: Medicare Advantage coding accuracy and site-neutral outpatient payment (COLT Act Secs. 405–406) save about $438 billion over ten years, more than the bridge's $421 billion cost, with rural hospitals exempt and beneficiaries' benefits unchanged. Sources: 944, 945.

P20 · Bodily Autonomy Legal Framework

Federal bodily autonomy standard protecting abortion, contraception, gender-affirming care, and IVF from state compulsion.

Vehicle: Executive (Constitutional/judicial pathway) · **Phase III** · **Score 7.3** (GP 4 / UT 2 / B 5) · ○ **Long horizon**

Global Precedent. France amended constitution to protect abortion rights (March 2024); Canada Morgentaler (1988) constitutional protection; Germany §218 StGB parliamentary protection; most of Western Europe provides statutory or constitutional protection; WHO documents restrictions increase unsafe abortion rates. Sources: 49, 50, 51, 52.

US Transition. Post-Dobbs constitutional landscape: federal statutory protection faces immediate challenge; interstate travel and commerce clause architecture requires doctrinal development; 60-vote Senate threshold; most durable protection requires constitutional amendment or significant Court composition change; UT=2 reflects statutory track feasibility under favorable conditions. Sources: 49, 51, 53.

Societal Benefit. ACOG documents abortion restrictions increase maternal mortality, complicate miscarriage and ectopic pregnancy care, and delay cancer treatment; IVF restrictions would eliminate ~75,000 births annually; Turnaway Study (Foster et al.): women denied abortions show worse economic, health, and child welfare outcomes across 5-year follow-up; gender-affirming care (Endocrine Society 2023) associated with significant mental health

improvements. Sources: 49, 50, 51, 52, 53.

Recent sources. 634, 633, 635.

P21 · Social Security Modernization

Restore solvency by applying the payroll tax to earnings above $250,000; add a special minimum benefit for long-career low earners; protect every current beneficiary's benefit; later integrate with Universal Basic Investment.

Vehicle: Standalone S-6 Social Security Solvency Act — solvency stage, before the late-2032 depletion date → Phase III integration with Universal Basic Investment · **Phase I → III** · **Score 6.0** (GP 3 / UT 2 / B 4) · ◆ **Core**

Global Precedent. Australia's superannuation system (mandatory employer contributions, government supplements) and Nordic multi-pillar pension systems demonstrate structural reform models; US-specific challenge — preserving earned-benefit covenant while integrating Universal Basic Investment — has limited direct peer analog. Sources: 62, 288.

US Transition. SSA Trustees Report (2026): retirement (OASI) trust fund depletion in late 2032; combined OASDI in 2034; after depletion, incoming revenue covers roughly three-quarters of scheduled benefits; Social Security Fairness Act (2025) worsened the trajectory by $195.7B/10yr; the 60-vote threshold, AARP political mobilization, and cross-partisan constituent attachment make reform extremely politically constrained; 10+ year implementation. Sources: 62, 288, 808.

Societal Benefit. CBO: 75-year actuarial imbalance 4.3% of taxable payroll; solvency requires payroll tax increase from 12.4% to 16.2% or 24% benefit cut absent reform; reorientation toward greatest need would increase replacement rate for lowest-income retirees who currently receive smallest share of pre-retirement income; integration with Universal Basic Investment creates two-pillar retirement system. Sources: 62, 288.

Current status. Current projections show the retirement trust fund running short in late 2032 and a 75-year gap of 4.42% of payroll; applying the payroll tax to earnings above $250,000 would close 57% of it, in a separate trust-fund ledger (Part VI). Sources: 636, 637, 638.

P22 · Emerging Reproductive Technology Protection & Oversight Act

Gamete bank licensing & family limits; donor-conceived person rights; artificial womb/ectogenesis FDA trial pathway + novel consent framework.

Vehicle: Standalone S-1 · **Phase I** · **Score 7.3** (GP 5 / UT 3 / B 3) · ● **Build**

Assessment. Combines licensing and family-size limits for gamete banks, rights for donor-conceived people, and an FDA trial pathway for artificial-womb technology. Its third component, a joint-authorization consent framework for ex-utero gestation, answers a question current law does not: who may make medical decisions for a pregnancy that neither gamete contributor physically carries. It addresses that new question directly without taking a position on abortion law itself. Sources: 421, 422, 423, 424, 425, 426, 427.

P23 · Rural Health Access Stabilization Act

Permanent Rural Health Transformation funding, prioritizing hospitals at risk of closure, rural obstetric care, and the rural health workforce; rural hospitals exempt from site-neutral payment changes.

Vehicle: Bill 1 COLT Act, Title IV · **Phase I** · **Score 8.7** (GP 3 / UT 5 / B 5) · ◆ **Core**

Assessment. 417 rural hospitals are currently rated "vulnerable to closure" (41.2% of all rural hospitals operate in the red), and more than half of US counties now lack any hospital with labor and delivery services — roughly 140 rural hospitals have stopped delivering babies since 2020, affecting about 370,000 births a year. Each closure is largely irreversible (staff scatter, equipment is sold, the facility does not reopen), so the proposal is a Phase I bridge that works regardless of whether or how universal coverage eventually arrives. Congress's 2025 response, a $50 billion Rural Health Transformation Program in that year's reconciliation law, has been called "too little, too late" by the

leading independent tracker (Chartis), given the pace of closures. Sources: 450, 451, 452, 453, 454.

Current status. The $50B Rural Health Transformation Program (FY2026–2030) is operating, with first-year awards to all 50 states; the proposal extends and makes permanent a running program, against an estimated $137B–$155B in offsetting rural Medicaid losses.

P24 · Ground Ambulance Billing Protection & EMS Stabilization Act

Close the No Surprises Act carve-out.

Vehicle: Bill 1 COLT Act, Title IV · **Phase I** · **Score 6.7** (GP 3 / UT 3 / B 4) · ◆ **Core**

Assessment. Ground ambulances are the one emergency service left outside the No Surprises Act's balance-billing protections. The proposal closes that carve-out and pairs it with an essential-service designation and workforce stabilization for emergency medical services. Sources: 476, 477, 478, 479, 480, 481, 482, 483, 484, 485, 486.

Current status. Includes EMS essential-service designation and workforce stabilization.

Democracy & Electoral Reform

P25 · Address Gerrymandering

Federal districting standards for congressional elections; require uniformity in ranked-choice voting rules.

Vehicle: Bill 3B ACFM Act Part B, Title I → Bill 11 DIR Act, Sec. 7(a) — state-legislative districts (amendment track) · **Phase I → III** · **Score 8.0** (GP 4 / UT 3 / B 5) · ● **Build**

Global Precedent. Australia Electoral Commission, Canada provincial boundary commissions, UK Boundary Commissions, and New Zealand Representation Commission all remove partisan control from districting; Arizona AIRC and California IIRC demonstrate US state-level feasibility; AIRC upheld in Arizona State Legislature v. AIRC (2015). Sources: 197.

US Transition. Federal authority under Elections Clause (Art. I §4) for congressional elections is constitutionally established; Callais (U.S. Supreme Court, April 29, 2026) reinterpreted VRA §2 to require intentional discrimination proof, complicating enforcement but not Elections Clause authority; 30+ state transition requires either legislative compliance or federal enforcement; one redistricting cycle (2–3 years) for meaningful impact. Sources: 196, 197.

Societal Benefit. Competitive districts structurally increase constituent responsiveness; local newspaper closure studies (Rubado-Jennings 2020) document lower turnout and higher corruption in uncompetitive districts; every other ARA proposal's durability depends on Congress that faces real electoral accountability; distributional impact universal. Sources: 197.

Current status. The proposal already rested on the Elections Clause, which Callais does not reach. Rely solely on the Elections Clause for congressional districts (independent commissions, neutral criteria, partisan-fairness metrics) and add a ban on mid-decade redistricting in response to the 2025–26 redistricting wars. Sources: 639, 640, 641.

P26 · National Voting Holiday

Establish Election Day as a federal holiday; consolidate minor federal holidays to maintain work-schedule neutrality.

Vehicle: Bill 3B ACFM Act Part B, Title II · **Phase I** · **Score 6.7** (GP 4 / UT 3 / B 3) · ● **Build**

Global Precedent. France, New Zealand, Australia designate election days as public holidays or hold elections on Sundays; OECD turnout data shows higher baseline participation in nations with weekend or holiday voting; 10+ Tier 1 comparators with documented structure. Sources: 196, 197.

US Transition. Achievable via simple majority legislation or executive proclamation — no structural barrier to enactment; but the evidence suggests that federal holiday designation alone does not reach the 60–90% population

affected threshold within 10 years because workers in retail, service, and healthcare (highest-turnout-suppression sectors) are least likely to observe the holiday. Sources: 196.

Societal Benefit. Farber (2009, Princeton) found approximately zero statistically significant effect on voter turnout from Election Day federal holiday designation; policy retains real value as civic signal and marginal scheduling improvement for some workers, but the primary claimed mechanism (turnout increase) is not supported by Tier A evidence. Sources: 196.

P27 · Shutdown Accountability for Congress

Strip congressional salaries during shutdowns; require members to remain in DC until resolved.

Vehicle: Executive (House/Senate rules change) · **Phase I** · **Score 6.0** (GP 2 / UT 3 / B 4) · ● **Build**

Global Precedent. No Tier 1 comparator experiences government shutdowns as a routine legislative mechanism; parliamentary systems resolve budget standoffs through confidence votes, mandatory continuing resolutions (Germany, Australia), or automatic temporary spending authority; principle (legislators bear cost of failure) is universal but mechanism is US-specific structural outlier. Sources: 196, 197.

US Transition. 27th Amendment constraints on pay reduction require prospective compensation forfeiture rather than retroactive reduction; House and Senate rules changes achievable by majority vote without presidential signature; primary political difficulty: the majority that changes the rules benefits from shutdown threats. Sources: 196.

Societal Benefit. 2018–2019 35-day shutdown: $11B direct economic cost (OMB); 800,000+ workers affected; federal contractor harm and long-term recruitment damage documented; shutdown normalization degrades federal workforce capacity and public trust in government functioning. Sources: 195.

Recent sources. 643.

P28 · Local News Sustainability & Media Ownership Act

Restore public funding for local news; reinstate FCC ownership caps; mandatory local news production minimums; editorial independence from ownership.

Vehicle: Bill 1 COLT Act, Title VI · **Phase I** · **Score 8.0** (GP 4 / UT 3 / B 5) · ● **Build**

Global Precedent. BBC (UK), CBC (Canada), ABC (Australia), ARD/ZDF (Germany), NRK (Norway) demonstrate well-documented public media models; EU Media Freedom Act (2024) establishes ownership concentration limits; FCC broadcast ownership caps (1975–2003) represent prior US domestic standard — restoration is reversion, not novelty. Sources: 196, 197.

US Transition. FCC rulemaking to reinstate ownership caps is within existing statutory authority; CPB funding restoration (~$500M/yr) achievable through reconciliation; structural editorial separation requirements face First Amendment challenge but commercial speech and broadcast licensing frameworks provide footing; 3–5 year timeline for market structural change. Sources: 195, 196.

Societal Benefit. Northwestern Local News Initiative: 2,500+ newspapers closed since 2005; Rubado-Jennings (Political Research Quarterly, 2020): local newspaper closure associated with lower voter turnout, higher corruption; Gao et al. (Journal of Finance, 2020): municipal borrowing costs increase after local newspaper closure; democratic accountability infrastructure is at stake. Sources: 196.

Current status. CPB was defunded by the Rescissions Act of 2025 and shut down in January 2026; post-Slaughter, FCC commissioners are removable at will. A Local News Sustainability Fund through refundable tax credits for local journalism employment (bipartisan Local Journalism Sustainability Act model) plus state block grants modeled on New Jersey's Civic Information Consortium. FCC ownership caps remain a secondary track. Sources: 644, 645, 646.

P29 · Fraud & Foreign Interference Enforcement Act

Legal definitions and criminal penalties for coordinated domestic fraud and foreign-linked disinformation, narrowly scoped to protect lawful speech.

Vehicle: Bill 3B ACFM Act Part B, Title VII · **Phase II** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. EU Digital Services Act (2022) establishes platform accountability for disinformation; Germany NetzDG (2017) criminalizes coordinated inauthentic behavior at scale; UK Online Safety Act (2023) creates platform liability for coordinated harms; US DOJ has existing authority under FARA and computer fraud statutes. Sources: 131, 138.

US Transition. DOJ and FBI enforcement under existing FARA, computer fraud, and election interference statutes can begin immediately; new statutory criminal penalties for coordinated domestic fraud require legislation; First Amendment constraints require narrow scoping to avoid overbreadth; 3–5 year timeline for full statutory and enforcement infrastructure. Sources: 196.

Societal Benefit. Foreign-linked disinformation campaigns (documented in 2016, 2018, 2020, 2022, 2024 election cycles) impose welfare costs on democratic decision-making; domestic coordinated fraud causes direct economic harm; enforcement deters future interference with democratic institutions. Sources: 196, 197.

Current status. The FBI Foreign Influence Task Force was disbanded in 2025. Create the task force in statute with a mandate limited to foreign actors, public transparency reports, and First Amendment guardrails after Murthy v. Missouri (no undisclosed content requests to platforms). Sources: 647, 648.

P30 · National Firearm Standards Framework (Two-Track)

Track A: existing state hunting and sporting licenses for manual-action long guns. Track B: a shall-issue Federal Civilian Ownership Certificate based on objective criteria.

Vehicle: Bill 12 NFSA, Titles I–IV · **Phase II** · **Score 8.0** (GP 4 / UT 3 / B 5) · ● **Build**

Global Precedent. Maryland Firearm Safety Act (2013): Crifasi (2017) 82% reduction in firearm diversion indicators in Baltimore; Doucette (2024): 32.3% reduction in firearm injury hospitalization rates; NFA eForms system achieves 4–10 day processing turnaround, demonstrating federal firearms processing feasibility. Sources: 294, 295.

US Transition. Track B (FCOC) is constitutionally achievable post-Bruen — history and tradition of licensing for dangerous activities supports certification framework; ATF eForms demonstrates 65,000–80,000 applications/month processing capacity; Maryland HQL implementation: 3–4 years from enactment to measured outcome; 5–8 year timeline to full FCOC compliance. Sources: 294, 295, 296.

Societal Benefit. RAND Gun Policy in America (2024): Tier A evidence for licensing requirements reducing firearm homicide and suicide in states with licensing vs. non-licensing; FCOC compliance reaches ~65M annual acquisition events; Track A preserves existing state-administered hunting/sporting licenses — no disruption to existing lawful users. Sources: 294, 295, 296.

One standard for two rights. The certificate is free, shall-issue, and is accepted as voter identification in any State that requires it under Bill 3B, with a firewall that keeps voter files and firearm records apart: the agenda asks the same of the right to vote and the right to bear arms. Sources: 920.

Recent sources. 649, 650, 651.

P31 · Voter Choice & Majority Support Act

Ranked-choice voting for House and Senate elections, unless a State adopts an alternative the Election Assistance Commission certifies as achieving comparable results.

Vehicle: Bill 11 DIR Act, Sec. 7(b) · **Phase III** · **Score 6.0** (GP 4 / UT 1 / B 4) · ○ **Long horizon**

Assessment. Ranked-choice and preferential voting have more than a century of national use in Australia and Ireland — genuine precedent among comparable democracies. The US terrain cuts the other way: about 20 states

now ban ranked-choice voting outright, and Alaska's 2024 repeal initiative failed by about 0.2%. Precedent and feasibility pulling in opposite directions is what places this proposal in Phase III. Sources: 416, 417, 418, 419, 420.

Current status. About 20 states ban ranked-choice voting, most recently Indiana (Feb. 2026) and Ohio (Mar. 2026); Maine's high court blocked general-election expansion (Apr. 2026); Alaska's second repeal measure was trailing in early returns after the November 3, 2026 election, with late ballots still being counted [source](https://alaskapublic.org/news/politics/elections/2026-11-03/early-results-show-alaskans-rejecting-ranked-choice-voting-repeal).

P32 · Senate Deliberation & Accountability Standard

Talking filibuster; carve-outs for voting rights & appropriations.

Vehicle: Standalone S-2 · **Phase I** · **Score 6.0** (GP 1 / UT 4 / B 4) · ● **Build**

Assessment. GP=1 is not a mark against the policy; it reflects the structure of the axis, since filibusters largely do not exist in parliamentary systems and there is no meaningful comparator pool. The standard restores the talking filibuster, exempts voting-rights and appropriations measures from the three-fifths cloture threshold, and records and publishes each senator's opposition to cloture. Sources: 416, 417, 418, 419, 420.

P33 · National Popular Vote Compact — Federal Backstop

Congressional consent to the interstate compact, effective once states holding a majority of electoral votes join, with expedited three-judge review of disputes.

Vehicle: Bill 11 DIR Act, Sec. 7(c) · **Phase III** · **Score 6.7** (GP 3 / UT 3 / B 4) · ○ **Long horizon**

Assessment. The compact mechanism would likely draw a constitutional challenge the moment it reaches 270 electoral votes, and a federal "backstop" role invites its own separation-of-powers fight — which is why it is sequenced for Phase III. Sources: 416, 417, 418, 419, 420.

Current status. Virginia joined the compact in April 2026, bringing it to 18 states + DC and 222 of 270 electoral votes.

P34 · Small-Donor Empowerment & Anti-Corruption Act

Matching-funds, House/Senate.

Vehicle: Bill 3B ACFM Act Part B, Title III · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Assessment. Small-donor matching for House and Senate candidates, designed around the Supreme Court's decision in Arizona Free Enterprise Club v. Bennett (2011): payments never vary with an opponent's spending, and the program is funded by a surcharge on corporate fines and penalties rather than general taxpayer funds. Sources: 416, 417, 418, 419, 420.

P35 · Voter Roll Accuracy & Registration Modernization Act

Automatic voter registration with roll-accuracy rules; States choose whether to require voter ID, and any State that does must provide free IDs and free documents.

Vehicle: Bill 3B ACFM Act Part B, Title II · **Phase I** · **Score 8.7** (GP 5 / UT 3 / B 5) · ● **Build**

Assessment. Automatic registration is near-universal among Tier 1 comparators, most of which register citizens by default through civil registries. More than 20 US states already run a version (Oregon since 2015), and the reach approaches foundational; pairing registration with roll-accuracy standards answers both access and integrity concerns. Bill 3B adds a version of the trade the bipartisan Carter–Baker Commission recommended in 2005: each State decides whether to require identification, and any State that does must provide free IDs and free underlying documents and accept a sworn affidavit, and a firewall between voter files and firearm records — the same free, objective standard the agenda applies to firearm certification (P30). Voters in several States approved identification requirements in 2026. Sources: 416, 417, 418, 419, 420, 920, 921.

Legal & Governance

P36 · Citizen Data Ownership Laws

Data fiduciary standard: companies hold user data in trust, with duties of care, loyalty, and confidentiality, and users hold consent and portability rights.

Vehicle: Bill 7 DRDO Act, Title I–IV · **Phase I** · **Score 8.0** (GP 4 / UT 3 / B 5) · ● **Build**

Global Precedent. EU GDPR (2018) establishes fiduciary-standard data protection with documented compliance effects: documented reduction in data broker activity, behavioral changes in platform consent architecture; California CCPA/CPRA, UK GDPR, Canada PIPEDA, Japan APPI, South Korea PIPA all provide national frameworks. Sources: 131, 138.

US Transition. Federal data privacy legislation stalled 10+ years; but bipartisan agreement on need for federal standard increased post-Loper Bright (2024) given weakened Chevron deference making rulemaking less reliable; Bill 7/DRDO provides statutory framework with FTC enforcement; 60-vote threshold; 3–5 year compliance infrastructure buildout. Sources: 131, 138, 293.

Societal Benefit. Data extraction harms documented: manipulative advertising targeting vulnerable populations, discriminatory algorithmic decision-making in housing and credit, surveillance enabling IPV; harm concentration in lower-income, lower-education, and minority populations; baseline consent and fiduciary protection is foundational to digital participation. Sources: 131, 138.

P37 · Ban Congressional Insider Trading

Prohibit members of Congress from trading individual securities while in office; mandatory blind trusts; criminal penalties and disgorgement for violations.

Vehicle: Bill 3A ACFM Act Part A, Title I–II · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ◆ **Core**

Global Precedent. UK Parliamentary Standards Act, Canadian MP conflict rules, Australian Ministerial Standards, EU institutional integrity frameworks all restrict official trading and require disclosure; STOCK Act (2012) provides US statutory basis — gap is enforcement, not authority. Sources: 197.

US Transition. Constitutional framework sound (Brewster 1972, Gravel 1972 establish Speech or Debate Clause does not protect securities trading); Bill 3/ACFM strengthens penalties and establishes blind trust requirements beyond STOCK Act; 60-vote threshold; 2022 House-passed bill stalled in Senate demonstrating political headwinds. Sources: 196, 197.

Societal Benefit. Members with personal investment in regulated sectors have documented structural conflict of interest; mandatory blind trusts eliminate ongoing conflict; disgorgement and criminal penalties provide deterrence; democratic legitimacy benefit from eliminating appearance of self-dealing. Sources: 196, 197.

Recent sources. 654, 655, 656.

P38 · Higher Standards & Accountability for Officials

One standard for senior officials in Congress and the executive branch: real-time disclosure, blind trusts, two-year revolving-door limits, and criminal penalties for trading on nonpublic information.

Vehicle: Bill 3A ACFM Act Part A, Titles I–II and IV · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ◆ **Core**

Global Precedent. UK Bribery Act (2010) strict liability for official corruption; Germany StGB Amtsmissbrauch mandatory penalties; France HATVP mandatory personal asset disclosure; Transparency International Corruption Perceptions Index documents strong correlation between accountability frameworks and lower corruption. Sources: 197.

US Transition. Enhanced criminal penalties for official misconduct require legislation (Bill 3/ACFM); Brewster establishes criminal prosecution does not implicate Speech or Debate Clause for trading conduct; broader constituent and public support than insider trading ban makes political passage more achievable. Sources: 196, 197.

Societal Benefit. World Bank Governance Indicators document correlation between rule of law (including official accountability) and economic development, public service delivery quality, and investment; adverse selection reduction (self-interested actors less likely to seek office when consequences are high). Sources: 197.

P39 · Full Financial Transparency for Presidents

Real-time disclosure of the President's and Vice President's financial transactions, annual release of their tax returns, a blind-trust-or-full-disclosure rule for their holdings, and an annual public report on fitness for office.

Vehicle: Bill 3A ACFM Act Part A, Title I–II · **Phase I** · **Score 6.7** (GP 3 / UT 3 / B 4) · ● **Build**

Global Precedent. France HATVP requires full asset disclosure for presidential candidates; Canada ethics commissioner has Prime Ministerial jurisdiction; Germany ministerial disclosure; no peer nation has faced the specific US situation of a president with large, publicly visible private business empire managed while in office. Sources: 197.

US Transition. Trump v. Mazars (2020) established four-factor balancing test; statutory mandatory disclosure as condition of public office is constitutionally distinguishable from subpoena power; Duplantier v. United States (5th Cir. 1979) upheld mandatory disclosure for federal officials; novel Article II questions counsel external legal review before introduction. Sources: 196.

Societal Benefit. Documented conflicts in Trump administrations (tariffs, regulatory enforcement, foreign engagement decisions proximate to presidential financial interests); transparency enables Congressional, judicial, and public accountability for apparent conflicts; mechanism is accountability-enabling. Sources: 197.

P40 · Bipartisan Oversight of Detention Facilities

Migrant facilities managed by balanced party committee; mandatory rotating congressional inspections.

Vehicle: Executive (EO + congressional directive) · **Phase I** · **Score 6.0** (GP 2 / UT 3 / B 4) · ● **Build**

Global Precedent. EU Reception Conditions Directive standards and independent monitoring bodies across member states provide accountability precedent; bipartisan committee structure for detention oversight is structurally novel among Tier 1 comparators whose parliamentary systems provide oversight through different mechanisms. Sources: 132.

US Transition. Partial implementation via executive order (mandatory inspection schedules, reporting requirements for privately managed facilities); full statutory bipartisan committee structure requires legislation; DHS rulemaking can establish facility standards within existing authority. Sources: 132, 195.

Societal Benefit. DHS OIG (2019–2024) documented inadequate medical care, overcrowding, and in-custody deaths (41 in 2022, highest recorded); ~40,000 individuals in daily detention; facility conditions affect detainee capacity to participate in immigration proceedings with documented case outcome effects. Sources: 132.

P41 · Residential Ownership Fairness Act (Institutional & Foreign Acquisition)

Federal incentives for states that restrict large corporate owners from buying existing single-family homes or holding them vacant, with new construction and build-to-rent exempt; a model progressive tax on residential holdings beyond two homes; a national ownership registry.

Vehicle: Bill 8 HCI Act, Title I · **Phase I** · **Score 8.0** (GP 3 / UT 5 / B 4) · ◆ **Core**

Global Precedent. Canada Prohibition on Purchase by Non-Canadians Act (2023); Australia planning approval requirements; New Zealand Overseas Investment Act (2018 amendments); EU member states emerging restrictions; domestic corporate (vs. foreign) single-family acquisition restrictions are more novel. Sources: 133, 134.

US Transition. The 21st Century ROAD to Housing Act (law July 11, 2026) bars investors holding 350+ single-family homes from further purchases, effective ~Jan 2027. Structured as 'enforce and tighten': close affiliate-splitting via the tiered designation architecture, add vacancy rules and a beneficial-ownership registry, and phase the threshold down after an evaluation. Includes international property ownership framework, as a second title. Sources: 660, 661, 662.

Societal Benefit. Harvard JCHS (2024): 12.1 million renter households severely cost-burdened; institutional investors own up to 40% of single-family rental homes in some submarkets; NLIHC: 7.3M affordable home shortage; corporate ownership displaces first-time buyers from primary wealth-building mechanism. Sources: 133, 134.

P42 · Stricter Advertising Laws

Truth-in-advertising standards modeled on Japanese law; strict limits on advertising targeting children under 16.

Vehicle: Bill 7 DRDO Act, Title I–IV · **Phase I** · **Score 7.3** (GP 5 / UT 3 / B 3) · ● **Build**

Global Precedent. Japan JFTC truth-in-advertising enforcement with documented compliance effects is direct model; UK HFSS ad ban (9pm watershed + 24hr online: enforcement January 2026, estimated 20,000 fewer childhood obesity cases); EU Unfair Commercial Practices Directive; Quebec consumer protection advertising ban (1978, 45+ years of evidence). Sources: 143, 144, 145.

US Transition. FTC rulemaking averages 5+ years ANPR-to-final; Click-to-Cancel rule (Oct 2024) was vacated by 8th Circuit (July 8, 2025); Commercial Surveillance ANPR stalled 3.7+ years; statutory authority via Bill 7/DRDO is more durable path; 60-vote threshold; Central Hudson framework permits reasonable restrictions on false/misleading commercial speech. Sources: 293.

Societal Benefit. Children's advertising restrictions have documented welfare effects (Quebec ban: Dhar-Baylis reduced fast-food purchase propensity 13%/week; Boyland meta-analysis: 96 studies confirm food marketing increases caloric intake); adult truth-in-advertising provides real but diffuse consumer welfare protection; below Moderate because primary mechanism affects a subset of advertising. Sources: 143, 144, 145.

P43 · Age & Term Limits for Officials

Maximum age caps for all three branches; term limits for Supreme Court justices via senior status model.

Vehicle: Bill 3B ACFM Act Part B, Title VII — statutory part → Bill 11 DIR Act, Sec. 4 — Supreme Court part · **Phase II → III** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. Germany Constitutional Court: single 12-year terms; Spain Constitutional Court: single 9-year terms; France Constitutional Council: single 9-year terms; no Tier 1 comparator with similar constitutional review function uses life tenure. Sources: 197.

US Transition. Term limits for Article III judges face 'good behaviour' clause challenge; senior status model (active→senior after 18 years) is most constitutionally defensible statutory path; age caps for legislators require constitutional amendment for Congress but are achievable via party rule for caucus membership; litigation will follow any statutory implementation. Sources: 196, 197.

Societal Benefit. Life tenure creates judicial accountability deficit; no other Tier 1 comparator with judicial review uses life tenure; polling consistently shows 70%+ public support for age limits; senior status model maintains expertise while introducing democratic renewal. Sources: 197.

P44 · AI Safety & Rights Framework

Laws governing AI safety standards, liability, and the legal status of AI systems and the companies that build and operate them. Includes human rights to AI access as a corollary commitment.

Vehicle: Standalone S-4 · **Phase II** · **Score 6.0** (GP 2 / UT 3 / B 4) · ● **Build**

Reserved for human drafting. *This proposal is held as a policy commitment without accompanying bill text. The reservation is deliberate: AI safety, AI liability, AI legal status, and human rights to AI access warrant direct human authorship rather than AI-assisted drafting. Legislation governing the relationship between AI systems and the people they affect should be developed by human policymakers — drawing on public consultation, lived-experience perspectives, AI-skeptical and AI-critical voices, and licensed legislative counsel — without an AI system shaping its premises during drafting. The proposal therefore appears as a reserved commitment: visible in the platform, with bill text to be built by human policymakers. This is a structural decision, not a lower priority; AI safety and rights legislation remains a primary commitment of the platform. Its score and phase position it for sequencing. The related disclosure on AI-assisted drafting of the AIPE Act (Bill 10, Part IX) addresses an adjacent but distinct question.*

P45 · Patent Law Reform

Reduce effective patent exclusivity periods; clearer compulsory licensing pathways; address evergreening practices.

Vehicle: Executive (Commerce/USPTO rulemaking) · **Phase II** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. EU pharmaceutical patent compulsory licensing under TRIPS Article 31; Australia Pharmaceutical Benefits Scheme reference pricing; Canada Patented Medicine Prices Review Board; UK NICE cost-effectiveness thresholds — all constrain evergreening and reduce effective monopoly periods. Sources: 196.

US Transition. USPTO rulemaking authority for patent claim construction and continuation practice reform is within existing statutory authority; compulsory licensing pathway expansion requires legislation; evergreening restrictions face TRIPS compliance requirements; pharmaceutical industry opposition significant. Sources: 196.

Societal Benefit. I-MAK (2022): top 12 drugs by revenue cost $96B/year in excess pricing from evergreening; shorter effective patent periods reduce drug costs for consumers and government programs; compulsory licensing for high-public-value patents directly reduces cost of medications bearing the highest burden on lower-income patients. Sources: 196.

P46 · Repeal / Reform Citizens United

Limit corporate money in politics via legislation or constitutional amendment; regulate lobbying.

Vehicle: Bill 11 DIR Act, Secs. 5–6 (statutory and amendment tracks) · **Phase III** · **Score 6.7** (GP 4 / UT 1 / B 5) · ○ **Long horizon**

Global Precedent. UK Electoral Commission: strict third-party spending limits; Germany Parteiengesetz: contribution limits and transparency requirements; Canada Elections Act: strict third-party advertising expenditure limits; France: corporate campaign contributions prohibited entirely; US is structural outlier after Citizens United + McCutcheon. Sources: 197.

US Transition. Citizens United is a First Amendment constitutional decision; overturning via legislation requires Supreme Court reversal or constitutional amendment (two-thirds of Congress + 38 states); current Court composition shows no appetite for reconsideration; Track A (enhanced disclosure, foreign corporation prohibitions) is achievable by statute but does not fully address Citizens United holding. Sources: 196, 197.

Societal Benefit. Corporate campaign expenditure is the primary mechanism by which private economic power translates into legislative outcomes; documented correlation between corporate PAC activity and legislative voting records on taxation, regulation, pharmaceutical pricing; unlimited expenditure concentrates political influence in proportion to wealth, directly inverting democratic equality principle. Sources: 197.

Current status. NRSC v. FEC (June 30, 2026) struck party coordinated-expenditure limits, further narrowing statutory routes. Track A is disclosure (upheld 8–1 in Citizens United), foreign-money prohibitions and lobbying regulation; Track B is the constitutional amendment; small-donor financing is cross-referenced to P34. Sources: 668, 669, 670.

P47 · Supreme Court Reform

Eighteen-year active terms for future Justices through the senior-status model, so that every President makes appointments on the same regular schedule; sitting Justices unaffected.

Vehicle: Bill 11 DIR Act, Sec. 4 · **Phase III** · **Score 6.7** (GP 3 / UT 2 / B 5) · ○ **Long horizon**

Global Precedent. Germany Constitutional Court: single 12-year terms mandatory retirement at 68; Spain Constitutional Court: single 9-year terms; France Constitutional Council: single 9-year terms; no Tier 1 comparator with constitutional review function uses life tenure — US is a structural outlier. Sources: 197.

US Transition. 'Good behaviour' clause (Art. III §1) creates constitutional challenge for statutory term limits; senior status model (active→senior at 18 years) is most constitutionally defensible path and may be achievable by statute; court expansion requires only legislation but faces strong political norm against 'court-packing'; UT=2 because senior status model may be achievable in favorable conditions. Sources: 196, 197.

Societal Benefit. Justices now serve far longer than in earlier eras, so the Court's composition turns on the timing of deaths and retirements rather than on elections; no comparable democracy gives its constitutional court life tenure; regular 18-year terms give every President the same number of appointments and let the Court change gradually with the country, whichever party holds power; and the Court's composition shapes the legal space for every other proposal in this agenda. Sources: 196, 197.

P48 · Emergency Powers, Power of the Purse & Rescission Reform Act

National Emergencies Act reform + strengthened Impoundment Control Act enforcement.

Vehicle: Bill 3B ACFM Act Part B, Title IV · **Phase I** · **Score 8.0** (GP 4 / UT 4 / B 4) · ◆ **Core**

Assessment. Flips the National Emergencies Act's default. Today a declared emergency continues until Congress votes to end it — effectively requiring a veto-proof majority against a sitting president. Under this proposal declarations expire after 30 days unless Congress extends them, alongside stronger Impoundment Control Act enforcement and a congressionally controlled rescission procedure. Germany's Basic Law (Articles 115a–115l) and France's Article 16 both build time limits and legislative involvement into emergency powers. Sources: 462, 463, 464, 465, 466, 467, 468.

Current status. Learning Resources v. Trump (Feb. 20, 2026) held IEEPA does not authorize tariffs; GAO found the 2026 pocket rescission violated the Impoundment Control Act (Sept. 29, 2026). Congress gains a statutory expedited-rescission procedure it controls, and pocket rescissions are prohibited.

P49 · Inspector General Independence & Whistleblower Protection Act

Thirty days' notice with case-specific reasons before an inspector general is removed, career acting succession, and stronger protection for whistleblowers.

Vehicle: Bill 3B ACFM Act Part B, Title V · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Assessment. Protects inspectors general through 30 days' advance notice with case-specific reasons before removal or reassignment, career acting succession, and continued pay status during the notice period. The UK's National Audit Office and Germany's Bundesrechnungshof are statutorily insulated from executive interference. Sources: 462, 463, 464, 465, 466, 467, 468.

Current status. Trump v. Slaughter (June 29, 2026) leaves for-cause removal protection constitutionally exposed, so the design relies on protections that do not depend on removal limits: mandatory back pay and reinstatement-eligibility, statutory acting-IG succession, appropriations-rider protections, and an option to house IG functions in the legislative branch.

P50 · DOJ Prosecutorial Integrity & Transparency Act

Codify White House–DOJ contact restrictions into statute.

Vehicle: Bill 3B ACFM Act Part B, Title VII · **Phase II** · **Score 6.7** (GP 4 / UT 2 / B 4) · ● **Build**

Assessment. Writes limits on White House–Justice Department contacts about specific cases — currently an internal policy memo any Attorney General can rescind — into statute, with logging and Inspector General review. It constrains presidential control of the Department regardless of who holds either office, which is why it is sequenced for Phase II; the UK's Crown Prosecution Service operates with comparable structural independence. Sources: 462, 463, 464, 465, 466, 467, 468.

Current status. Post-Slaughter, statutory insulation of prosecutors from removal is not viable. Built around documented-communication rules between the White House and DOJ, mandatory recusal standards, and public reporting of politically sensitive case interventions.

P51 · Insurrection Act Reform Act

Narrow deployment criteria, bar habeas suspension/martial law/private militia deputization, require Congressional consultation.

Vehicle: Bill 3B ACFM Act Part B, Title VI · **Phase I** · **Score 8.0** (GP 4 / UT 4 / B 4) · ◆ **Core**

Assessment. Narrows the conditions for domestic military deployment, bars suspension of habeas corpus, martial law, and the deputizing of private militias, and requires consultation with congressional leadership and a short expiry absent congressional approval. Like its companion reforms, it binds whichever party holds the presidency — the feature that makes a structural check durable. Sources: 462, 463, 464, 465, 466, 467, 468.

Current status. Trump v. Illinois (Dec. 23, 2025) rejected the claimed authority under 10 U.S.C. § 12406(3), making the Insurrection Act the remaining statutory route and sharpening the case for defining its triggers.

P52 · Judicial Nominating Commission & Supreme Court Ethics Enforcement Act

A merit-based commission to recommend federal judicial nominees, and an enforceable ethics code for the Supreme Court.

Vehicle: Bill 3B ACFM Act Part B, Title VII · **Phase II** · **Score 6.7** (GP 4 / UT 2 / B 4) · ● **Build**

Assessment. Bundles two related but distinct fixes: a merit-based judicial nominating commission (modeled on the UK's Judicial Appointments Commission, running since 2005, and the "Missouri Plan" already used by roughly 35 US states for their own courts) to reduce partisan capture of the nomination pipeline, plus a binding, independently-enforced ethics code specifically for the Supreme Court — which currently polices its own ethics with no external enforcement mechanism, unlike every other federal court. Sources: 462, 463, 464, 465, 466, 467, 468.

P53 · Federal Right to Repair Act

Extend the auto-industry model to electronics, medical devices, agricultural equipment.

Vehicle: Bill 3A ACFM Act Part A, Title VIII · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Assessment. The auto industry already operates under a national right-to-repair framework (a 2014 Massachusetts law plus a subsequent industry-wide agreement). Consumer electronics, medical devices, and farm equipment (the John Deere fight specifically) have no federal equivalent, only a five-state patchwork (NY, CO, MN, CA, OR). Cars solved this over a decade ago; nothing else has caught up. Sources: 476, 477, 478, 479, 480, 481, 482, 483, 484, 485, 486.

Education

P54 · Reduce Tuition & Expand Adult Education

Cap and reduce college tuition; tie unemployment benefits to free vocational or behavioral health enrollment.

Vehicle: Bill 4 FSW Act, Title II · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. Germany's dual apprenticeship system (50%+ of students, longitudinal employment outcome data: Tier A); Denmark, Finland, Sweden: universal adult vocational retraining programs tied to employment transitions; Germany eliminated university tuition nationally (2014); OECD Education at a Glance documents per-student outcomes. Sources: 135, 290.

US Transition. Title IV funding conditions (South Dakota v. Dole constitutional authority) allow federal tuition cap leverage; Tennessee Promise (150,000+ enrolled, $4,537/student/yr community college, all-time high 83.8% first-to-second semester success in 2024) is strongest US analog; 28 state promise programs confirm scaling model; 5–10 year federal scaling timeline. Sources: 135, 290, 291.

Societal Benefit. $1.7T outstanding student debt; average $37,000 per graduate; adult vocational retraining directly addresses workforce displacement; Tennessee Promise data: scalable at ~$4,500/student/yr; burden relief most progressive for graduates from lower-income families with highest debt-to-income ratios. Sources: 135, 136, 290.

Current status. Grad PLUS ended for new borrowers and RAP began July 1, 2026. Keep tuition-cap leverage through Title IV conditions; add earnings-based institutional accountability; build on Workforce Pell and state promise programs. Sources: 673, 674.

P55 · Digital Minor Protection Standards (Three-Tier)

Platform-level accountability: no access under 13 without verified parental consent; chronological feeds only for ages 13–15; protective defaults, changeable by the user, for ages 16–17.

Vehicle: Bill 7 DRDO Act, Title V · **Phase II** · **Score 8.0** (GP 4 / UT 3 / B 5) · ● **Build**

Global Precedent. UK Children's Code (2021) restricts behavioral profiling, targeted advertising, and nudge techniques for users under 18; EU Digital Services Act (2022) minor protection provisions; three-tier structure in DRDO Act Title V modeled directly on UK Children's Code with demonstrated architecture. Sources: 138.

US Transition. FTC enforcement authority via Bill 7/DRDO provides statutory vehicle; COPPA established that Congress can regulate children's online activity; platform technical compliance (age verification, algorithmic feed architecture) is the primary 3–5 year implementation challenge; 60-vote threshold applies. Sources: 138, 293.

Societal Benefit. Haidt (The Anxious Generation, 2024) documents causal link between social media use and adolescent mental health decline; Boyland meta-analysis: 96 studies confirm food marketing increases caloric intake for minors; algorithmic exploitation of developmental vulnerability is documented at scale; three-tier architecture protects under-13 absolutely while preserving older teen agency with defaults. Sources: 138, 143, 144.

P56 · Shift Corporate Role from Healthcare to Training

A tax credit for employer-funded worker training, so that as universal coverage phases in, employers' role shifts from health benefits to skills.

Vehicle: Bill 4 FSW Act, Title IV · **Phase II** · **Score 6.0** (GP 2 / UT 3 / B 4) · ● **Build**

Global Precedent. OECD Getting Skills Right (2019): firms in countries where healthcare is publicly provided invest more in worker training; German employer training investment substantially exceeds US average; but specific policy mechanism (removing healthcare obligation to reallocate to training) has no direct Tier 1 analog — most comparators operate both systems simultaneously. Sources: 81, 82.

US Transition. JCT: employer health insurance exclusion is 3rd-largest federal tax expenditure at $252.4B; WOTC authorization expired Dec 31, 2025, pending reauthorization; Registered Apprenticeship +114% in 10 years is realistic US workforce scaling benchmark; 60-vote threshold; healthcare industry resistance significant; 5–10 year transition. Sources: 21, 80, 81, 291.

Societal Benefit. US employers spend avg $20,143/worker on family health insurance vs. $1,054–1,254/worker on training — a 12–16× disparity; Registered Apprenticeship: average entry wage $18/hr, exit $32/hr (+77%), lifetime earnings premium >$240K; workforce retraining reduces displacement harm for workers in declining industries. Sources: 80, 81, 82, 291.

P57 · Adopt High-Performing Education Systems Model

Overhaul K–12 toward Nordic best practices; hands-on learning; reduce screen time under-16; teacher professionalization.

Vehicle: Executive (DOE rulemaking + state incentives) · **Phase III** · **Score 8.0** (GP 5 / UT 2 / B 5) · ○ **Long horizon**

Global Precedent. Finland: consistent top-tier PISA performance with near-zero achievement gap; US ranks 28th reading, 35th mathematics among OECD; McKinsey (2009): closing US achievement gap would add 3–5% GDP annually; all Nordic nations document superior outcomes relative to US per-student spending. Sources: 135, 136, 137.

US Transition. K–12 is constitutionally state function; federal lever (Title I, IDEA, ESSA) is incentive-based and constitutionally constrained post-NFIB v. Sebelius; teacher professionalization to Scandinavian level (graduate-degree entry, high salary, high social status) requires 15–20 year pipeline; 300,000 unfilled teaching positions nationally is starting-point deficit; 50-state adoption required. Sources: 135, 136.

Societal Benefit. Educational outcomes are highest-leverage determinants of lifetime welfare: Chetty et al. Opportunity Insights documents causal relationship between teacher quality and lifetime earnings; Goldin-Katz documents education as primary driver of productivity growth; Finland's documented success closing achievement gaps across income levels is the welfare case — replication at US scale would be generational. Sources: 135, 136, 137.

Current status. Finland's PISA results have declined since 2012, so the proposal draws on an evidence-based 'high-performing systems' model that includes Estonia and domestic results such as Mississippi's literacy gains. GP held because the multi-country evidence base remains strong. Sources: 677.

P58 · Federal Teacher Minimum Salary & Protection Act

$60K floor w/ COLA indexing, high-need district matching funds, classroom-management liability protection, violence-reporting standards, due-process protection against politically motivated termination.

Vehicle: Bill 1 COLT Act, Title V · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Assessment. US teachers earn about 64% of what similarly educated professionals make (OECD). The proposal uses federal incentives for a state salary floor with cost-of-living indexing, matching funds for high-need districts, classroom-management liability protection, violence-reporting standards, and due-process protection against politically motivated termination. Curriculum and licensing remain with the states. Sources: 493, 494, 495, 496, 497, 498, 499, 500, 501.

Current status. Evidence rated Tier C at the federal level (no federal vehicle or momentum), though Republican-led state precedents exist (Arkansas $50K floor). Structured as a Spending Clause incentive rather than a federal mandate.

P59 · Modernized CIPA & Education Network Security Act

Extends filtering law to explicitly cover social media/AI services, joint FCC-primary/DoE-coordinating technical standard-setting body, extends consistent protection to public libraries.

Vehicle: Bill 7 DRDO Act, Title VI · **Phase II** · **Score 6.7** (GP 4 / UT 2 / B 4) · ● **Build**

Assessment. CIPA, the existing federal school/library internet filtering law, was written in 2000 — before smartphones, social media, or AI chatbots existed — and the FCC itself opened a 2026 public comment docket asking whether it's still adequate. P55 (Digital Minor Protection Standards, Three-Tier, DRDO Act) covers platform-side obligations; P59 is distinct in targeting school and library network infrastructure, and the two are drafted with explicit cross-references to each other. Sources: 493, 494, 495, 496, 497, 498, 499, 500, 501.

P60 · Education Functions Restoration & Oversight Act

Restore the Department of Education's statutory functions and congressional oversight of the programs moved to other agencies.

Vehicle: Standalone S-5 · **Phase II** · **Score 7.3** (GP 4 / UT 2 / B 5) · ● **Build**

Assessment. Restores the Department of Education's statutory functions and congressional oversight after its programs were distributed to other agencies — 118 programs through 14 interagency agreements as of June 2026. It complements P57: P57 addresses how high-performing school systems teach; this proposal addresses the institutional capacity to deliver. Sources: 508, 509, 510, 511, 512, 513.

Current status. The Department's functions have been distributed through 14 interagency agreements (as of June 2026). Focused on restoring statutory functions and congressional oversight of transferred programs.

Infrastructure & Energy

P61 · Clean Firm Power, Grid & Energy Investment

Major public investment in solar, wind, hydroelectric, and advanced nuclear, including thorium; infrastructure standards resilient to extreme weather.

Vehicle: Bill 2 IIC Act, Title I · **Phase I** · **Score 8.7** (GP 5 / UT 3 / B 5) · ◆ **Core**

Global Precedent. EU Green Deal (€600B, 2021–2030), Germany Energiewende (80% renewable target by 2030), France nuclear fleet (70%+ of electricity), Denmark (50%+ wind generation), Japan Green Transformation; IEA (2024): renewables = 90% of new global electricity capacity additions; solar LCOE declined 90% (2010–2023). Sources: 26, 34, 35.

US Transition. Reconciliation vehicle (no 60-vote threshold); IRA (2022) established investment framework — this proposal extends and scales; physical grid constraint: US permitting for major transmission projects averages 7+ years; thorium nuclear carries additional technical uncertainty (no commercial scale deployment in Tier 1 comparators). Sources: 26, 34, 35.

Societal Benefit. Lawrence Berkeley National Laboratory (2024): IRA-driven solar/wind now lowest-cost new electricity in most US regions; DOE (2024): 80% clean electricity by 2035 reduces consumer costs up to $500/household/yr; IRA manufacturing credits support 279,000 jobs by 2030; IPCC AR6: clean energy transition is the single highest-impact climate mitigation pathway. Sources: 26, 34, 35.

Current status. P.L. 119-21 phases out wind and solar credits (begin construction by July 4, 2026 or placed in service by end-2027), which would drop the original design's UT to 2. Designed to lead with technologies that kept bipartisan support and credits (nuclear, geothermal, storage), transmission and permitting reform, and federal loan authority; restoring wind/solar credits moves to Phase II. Sources: 678, 679, 680.

P62 · Restore & Expand Federal Inspectors

Dramatically increase federal auditors and inspectors to restore corporate and governmental accountability.

Vehicle: Bill 2 IIC Act, Title IV · **Phase I** · **Score 8.0** (GP 4 / UT 4 / B 4) · ● **Build**

Global Precedent. UK HSE, Germany Bundesbehörden, France inspection régimes maintain inspector-to-regulated-entity ratios substantially exceeding current US levels; OECD Regulatory Policy Outlook documents peer nations maintain consistent enforcement staffing as core public administration function. Sources: 5, 195.

US Transition. Within executive authority and Bill 2/IIC appropriations authorization; OPM hiring averages 101 days job-announcement to hire; OSHA inspector training ~5 years; pipeline can be launched immediately but operational capacity builds over 3–5 years; Yale Budget Lab: reducing IRS staffing 28,000 increases deficit ~$600B/10yr — same root cause for inspection capacity erosion. Sources: 5, 195, 276.

Societal Benefit. Haviland-Burns-Gray (NBER, 2010): OSHA inspections reduce injuries 9.4% and workers' compensation costs 26% over 4+ years with no employment effect; GAO High Risk List documents inspection capacity gaps across food safety, workplace safety, and environmental enforcement; distributional impact progressive — lower-wage workers in agriculture/construction/food processing bear highest enforcement gap burden. Sources: 5, 195, 276.

P63 · Shoreline & Fishery Protection

Protected shorelines, sustainable fisheries, and aquaculture investment; moratorium on mass seafloor mining pending completed environmental studies.

Vehicle: Executive (NOAA/EPA rulemaking) · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. Norway ITQ fishery management system is the international reference for sustainable catch management; EU Common Fisheries Policy with documented stock recovery outcomes; Australia GBRMPA integrated marine protection model; Marine Protected Areas with adequate enforcement show documented biodiversity and catch recovery in adjacent areas. Sources: 163.

US Transition. NOAA Status of Stocks (2023): ~2 stock rebuilds/yr since 2000; rebuilding plans typically exceed 10 years for depleted stocks; no NOAA implementation trajectory evidence for reaching 60–90% population within 10 years; seafloor mining moratorium requires executive order (vulnerable to reversal) or legislation; ecological recovery timeline is the binding UT constraint. Sources: 163.

Societal Benefit. NOAA: ocean-based industries $373B to US GDP annually; 46 stocks subject to overfishing or overfished; shoreline ecosystem services (storm surge mitigation, carbon sequestration, wildlife habitat) have documented monetized value; coastal fishing communities bear concentrated economic harm from stock depletion. Sources: 163.

P64 · Strategic Domestic Technology Investment

Substantially expand federal investment in domestic semiconductor fabrication and next-generation battery technology.

Vehicle: Bill 2 IIC Act, Title II · **Phase I** · **Score 8.7** (GP 5 / UT 3 / B 5) · ◆ **Core**

Global Precedent. Taiwan TSMC (government-linked public-private semiconductor dominance); South Korea Samsung/SK Hynix state-directed investment; EU Chips Act (2023, €43B); Japan semiconductor reinvestment program; SIA (2021): concentration of advanced semiconductor production in Taiwan is documented supply chain vulnerability. Sources: 278.

US Transition. Reconciliation vehicle (extends CHIPS Act framework); primary constraint is physical — semiconductor fab construction takes 5–7 years groundbreaking to production; CHIPS R&D; workforce development requires specialized training pipelines; timeline to meaningful domestic production capacity is at outer edge of Phase

I window. Sources: 278.

Societal Benefit. 2021–2022 chip shortage: ~$240B in lost US manufacturing output (Chicago Fed estimate); contributed to inflation across multiple consumer sectors; battery technology cost reduction accelerates clean energy deployment (P61 compounding effect); domestic capacity reduces adversarial supply chain leverage over defense and consumer technology systems. Sources: 278.

P65 · Cooperative Mining with Allied Nations

Joint mineral extraction agreements with allies to reduce adversary supply chain dependence.

Vehicle: Executive (State Department) · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. US-Australia Critical Minerals Partnership, EU Critical Raw Materials Act (2023), Japan-Australia critical minerals cooperation, G7 Partnership for Global Infrastructure and Investment all represent documented allied-nation supply chain collaboration frameworks with active implementation. Sources: 196.

US Transition. Bilateral cooperation agreements within State Department executive authority; major extraction treaty frameworks require Senate two-thirds ratification; partner-nation extraction capacity expansion requires private investment alongside government frameworks; meaningful supply chain diversification takes 7+ years. Sources: 196.

Societal Benefit. China dominates processing of cobalt, lithium, and rare earths — strategic leverage over electric vehicles, clean energy systems, and defense electronics; supply chain diversification reduces cost volatility and adversarial leverage; secondary benefit: environmental and labor standard conditions in allied-nation agreements. Sources: 196.

Recent sources. 681, 682.

P66 · Modernize Airports & Air Traffic Control

Capital investment in airports; hire and train more air traffic controllers; restructure TSA.

Vehicle: Bill 2 IIC Act, Title III · **Phase I** · **Score 7.3** (GP 4 / UT 4 / B 3) · ● **Build**

Global Precedent. Germany Fraport, France ADP, Singapore Changi, Japan NARITA demonstrate government-led airport infrastructure excellence; EU SESAR mandates member-state ATC modernization; peer nations maintain lower delay rates and higher efficiency metrics than current US system. Sources: 146, 195.

US Transition. Bill 2/IIC appropriations authorization; FAA statutory authority established; but FAA NextGen program: $15B+ spent, ~16% of projected benefits delivered as of 2025, completion projected 2030+; UT=4 maintained because legislative/funding mechanism is achievable — implementation constraint is managerial not structural. Sources: 272, 195.

Societal Benefit. Primary beneficiaries are frequent air travelers (disproportionately higher-income) and cargo efficiency; FAA documented implementation efficiency problem (16% of NextGen projected benefits delivered) moderates near-term benefit confidence; infrastructure maintenance value is real but welfare distribution is less progressive than most Phase I proposals. Sources: 272, 195.

Recent sources. 683, 684.

P67 · Electrify & Modernize USPS

Convert USPS fleet to electric; prepare for next-generation delivery; restore operating budget.

Vehicle: Bill 2 IIC Act, Title III · **Phase I** · **Score 7.3** (GP 4 / UT 4 / B 3) · ● **Build**

Global Precedent. Germany Deutsche Post DHL, France La Poste, UK Royal Mail all pursuing or achieving partial fleet electrification; Biden EO requiring 100% EV federal vehicle purchases by 2035 established policy direction; USPS NGDV contract with Oshkosh Defense provides implementation framework. Sources: 273.

US Transition. Bill 2/IIC provides appropriations authorization; USPS has statutory authority and began NGDV execution; but USPS NGDV: ~9 years from program initiation to ~2,500 vehicles (Nov 2025, ~3% of fleet), 3× cost estimate; UT=4 maintained because legislative mechanism is clear — pace requires acceleration to achieve meaningful fleet transition within term. Sources: 273.

Societal Benefit. USPS fleet electrification reduces long-term operating costs contributing to USPS financial instability; service reliability improvement for rural/elderly/lower-income populations most dependent on USPS for medication, financial correspondence, and package services; emissions reduction and domestic manufacturing employment (NGDV production) are secondary benefits. Sources: 273.

P68 · National High-Speed Rail Network

Cross-continental HSR serving as backbone for new power grid and internet infrastructure corridors.

Vehicle: Executive (Phase III major authorization) · **Phase III** · **Score 7.3** (GP 5 / UT 2 / B 4) · ○ **Long horizon**

Global Precedent. Japan Shinkansen (3,000+ km since 1964), France TGV (2,800+ km since 1981), Germany ICE, China HSR (45,000+ km), Spain AVE, South Korea KTX — all demonstrate HSR viability at national scale with Tier A ridership, energy efficiency, and corridor revenue data; IEA: HSR substantially more energy-efficient per passenger-km than aviation. Sources: 26, 274.

US Transition. California HSR: 3–4× cost escalation (CHSRA 2025: $126B from $33B in 2008); FRA withdrew $4B grant (2025); right-of-way acquisition costs 3–5× European equivalents in US litigated property system; no dedicated HSR corridor outside Northeast; interstate commerce framework requires federal authorization; aviation and auto industries benefit from passenger rail underdevelopment. Sources: 26, 274.

Societal Benefit. Mode shift from aviation on 200–500 mile corridors with documented cost advantages; HSR rights-of-way provide infrastructure corridors for new power grid and internet infrastructure; reduced highway congestion costs; access to intercity transportation for populations currently served only by private automobile; primary early beneficiaries are higher-income travelers (limits B=5). Sources: 26, 274.

Military & Defense

P69 · Expand Cyberwarfare Defenses

Invest heavily in domestic cyber defense; treat foreign cyberattacks on critical infrastructure as hostile acts; respond with graduated options up to military pressure and sanctions.

Vehicle: Executive (DoD/NSA directive) · **Phase I** · **Score 8.0** (GP 4 / UT 3 / B 5) · ● **Build**

Global Precedent. UK NCSC (est. 2016), France ANSSI, Germany BSI, Israel Unit 8200 ecosystem, NATO CCDCOE all represent institutional models with documented offensive and defensive capacity; US CYBERCOM elevated to Unified Combatant Command (2018) provides organizational framework. Sources: 282.

US Transition. Expanding CYBERCOM within executive authority; bipartisan NDAA support for cyber provisions; DoD Cyberspace Workforce Strategy 2023–2027: original CMF reached FOC at 133 teams (2018), NDAA FY2022 approved expansion to 147 teams — 12 of 14 new teams established by May 2025; cybersecurity talent gap 750,000+ unfilled positions is the binding UT constraint. Sources: 282.

Societal Benefit. SolarWinds (2020), Colonial Pipeline (2021), multiple healthcare ransomware events demonstrate cyber vulnerability translates directly to population welfare harm: fuel shortages, medication delivery failures, financial disruptions; all Americans depend on resilient power, water, financial, and healthcare systems; marginal resilience improvement at scale is uniquely high-value. Sources: 282.

P70 · Expand NASA & Space Force

Increase funding for space exploration and defensive space capabilities.

Vehicle: Executive (NDAA authorization) · **Phase II** · **Score 7.3** (GP 4 / UT 4 / B 3) · ● **Build**

Global Precedent. All major peer nations have active space programs with increasing national security components; ESA, JAXA, CSA, UK Space Agency all represent documented investment; Space Force mission has no direct international analog but space-based military capability development is universal among peer powers. Sources: 277.

US Transition. NDAA authorization provides legislative vehicle; NASA authorization-to-output timeline: 9–16 years for crewed vehicles; JWST: 25 years from concept to first light; UT=4 maintained because legislative authority is clear — timeline to meaningful output is long but Phase II (5–15 year) is the appropriate window. Sources: 277.

Societal Benefit. Space exploration generates documented technology spillovers; defensive space capabilities protect GPS, communications, and satellite infrastructure on which all US economic and military activity depends; primary beneficiaries (technology spillovers, national security) are diffuse; B=3 appropriate given indirect welfare mechanism. Sources: 277.

P71 · Reinforce War Powers Act

Require full congressional approval for any military conflict; annual re-authorization of active conflicts.

Vehicle: Executive (Congressional resolution) · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. UK Parliament Vote on Iraq (2003); Germany Bundeswehr Parlamentsbeteiligungsgesetz (2005) requires Bundestag approval for foreign deployments; Netherlands, Denmark, Finland have comparable parliamentary authorization requirements; Watson Institute: $8T+ post-9/11 operations, none with formal declarations of war. Sources: 156, 157.

US Transition. Congressional resolution within Article I authority; Chadha (1983) invalidated legislative veto mechanism; appropriations-conditional authorization is most constitutionally durable path; bipartisan executive resistance consistent across administrations since 1973 is the primary UT barrier. Sources: 157, 196.

Societal Benefit. $8T+ spent on unauthorized military engagements with documented humanitarian consequences; military service falls disproportionately on lower-income Americans — accountability for deployment is a distributionally progressive reform; WPR 48-year non-enforcement track record is itself the evidence for legislative reform. Sources: 156, 157.

Recent sources. 685.

P72 · Pentagon Budget Audit Accountability

Consequences for repeated failed audits that discourage waste without gutting military readiness.

Vehicle: Executive (NDAA + IG directive) · **Phase I** · **Score 6.7** (GP 3 / UT 3 / B 4) · ● **Build**

Global Precedent. UK MOD, German Bundeswehr, French DGA complete annual audits; US DoD is the only major agency of any Tier 1 government to fail annual audits for seven consecutive years (FY2018–FY2024 all disclaimers of opinion, per GAO-25-107427); no direct model for consequences-for-failure because no peer faces this situation. Sources: 158, 283.

US Transition. NDAA provisions establishing IG directives and audit performance requirements achievable through regular authorization; GAO-25-107427 (Sept 2025): 28 material weaknesses persist DoD-wide; Financial Management Systems Modernization remediation slipped from FY2028 to FY2031; statutory mandate: clean audit by December 31, 2028 — trajectory not currently on track. Sources: 158, 283.

Societal Benefit. DoD IG (2023): $247.5M duplicate payments, $6.8B accounting adjustments without documentation, $1.9T in assets 'cannot be verified'; consequences-for-failure framework creates incentives for system modernization; fiscal waste captured is directly available for either enhanced defense capacity or domestic investment. Sources: 158, 283.

P73 · Reduce Military Contractor Dependence

Directly hire civilians into non-combat roles; eliminate contractor middlemen inflating defense costs.

Vehicle: Executive (DoD procurement reform) · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. UK MOD, German Bundeswehr, French Armée all maintain significantly higher ratios of direct government employment to contractors for non-combat functions; RAND defense studies document 1.3–1.5× cost premium for contractor provision of comparable non-combat functions; Quincy/Brown: contractors received 54% of $4.4T Pentagon budget 2020–2024. Sources: 148, 149.

US Transition. DoD procurement reform within executive authority for most contracting and employment decisions; major LOGCAP framework changes require NDAA action; defense contractor industry lobby (Lockheed, Raytheon, General Dynamics, KBR) significant; 3–5 year transition timeline for structured conversion programs. Sources: 148, 149, 150.

Societal Benefit. Commission on Wartime Contracting (2011): $31–60B lost to contractor fraud and waste in Iraq and Afghanistan alone; contractor premium 1.3–1.5× over direct employment for non-combat functions represents recoverable fiscal waste; direct government employment provides better benefits and career paths for equivalent roles. Sources: 148, 149.

P74 · Strategic Military Workforce Pivot to Infrastructure

National Infrastructure Corps offering voluntary transition pathways for separating military personnel into energy-grid, transportation, and water-infrastructure work.

Vehicle: Bill 4 FSW Act, Title VI · **Phase II** · **Score 6.7** (GP 3 / UT 3 / B 4) · ● **Build**

Global Precedent. ASCE Infrastructure Report Card (2021): C- grade, $2.6T investment gap; AmeriCorps (75,000 full-time members/yr) demonstrates federal corps scaling; ACC (launched Sept 2023): claimed 15,000 members by Sept 2024 but mostly relabeled existing positions; BLS: construction workforce gap ~430,000 workers. Sources: 146, 147, 285.

US Transition. Bill 4/FSW provides National Infrastructure Corps provisions; ASCE: $3.3T economic benefit from closing infrastructure gap; ACC termination by EO (January 20, 2025) demonstrates rapid reversal risk for executive-only programs — statutory protection through Bill 4/FSW is essential; veteran transition pipeline requires 3–5 year ramp. Sources: 146, 147, 285.

Societal Benefit. Infrastructure investment multiplier 1.5–1.6 (NBER, non-recession); ASCE: closing infrastructure gap saves each household $3,300/yr in avoided costs; veteran employment in infrastructure trades addresses both workforce gap (~430,000) and veteran underemployment; distributional impact progressive — infrastructure jobs concentrated in areas with displaced industrial workforces. Sources: 146, 147.

P75 · Multilateral Peacekeeping Coalition

Work with allied nations to form a standing peacekeeping force; reduce burden of unilateral US military deployments.

Vehicle: Executive (State Department) · **Phase II** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. NATO collective defense framework, UN peacekeeping system, EU Common Security and Defence Policy (CSDP) all represent documented allied peacekeeping burden-sharing models; US participation in UN peacekeeping under assessed rate frameworks is established practice. Sources: 284.

US Transition. State Department executive authority for bilateral/multilateral coalition-building; UN peacekeeping budget declining ($6.1B FY2023–24 → $5.4B FY2025–26); US statutory 25% cap creates arrears >$1.5B (as of April 2025); multilateral coalition building is a 5–10 year diplomatic effort; China now second largest assessed contributor at 23.785%. Sources: 284.

Societal Benefit. Multilateral peacekeeping reduces unilateral US burden for global stability operations; documented reduction in US casualties and equipment wear in shared deployments vs. unilateral; allied cooperation

builds interoperability that increases collective security value; US arrears ($1.5B) are a documented constraint on influence in peacekeeping governance. Sources: 284.

Agriculture & Environment

P76 · Water Rights & Foreign Ownership Ban

National water ownership laws; prohibit foreign investment in domestic water and groundwater rights.

Vehicle: Bill 8 HCI Act, Title I · **Phase I** · **Score 8.0** (GP 4 / UT 3 / B 5) · ● **Build**

Global Precedent. Australia FIRB evaluates all significant foreign water rights acquisitions; EU Water Framework Directive establishes water as public good; Chile Constitutional debate (2022) centered on water rights reallocation; GAO (2024): 43.4 million acres of US agricultural land under foreign ownership, up 66% over a decade. Sources: 160.

US Transition. CFIUS authority exists for national security review of water-adjacent agricultural land; primary gap is state-level framework consistency and national ownership registry; Bill 8/HCI provides federal model legislation; 60-vote threshold for statutory registry; water rights law is primarily state-administered requiring model legislation adoption pathway. Sources: 160, 196.

Societal Benefit. Water access is foundational to agricultural production, municipal supply, and regional economic viability; water is a non-reproducible resource in water-scarce regions; foreign acquisition permanently reduces US strategic flexibility; GAO: foreign ownership of agricultural land up 66% in a decade; distributional impact universal — water security is foundational physical welfare. Sources: 160.

P77 · Domestic Food Priority Laws

Require minimum percentage of produce sold domestically before export.

Vehicle: Executive (USDA rulemaking) · **Phase I** · **Score 6.7** (GP 3 / UT 3 / B 4) · ● **Build**

Global Precedent. EU export restriction powers exist for crisis situations (food security emergency provisions); some middle-income agricultural exporters use domestic supply priority requirements as standard regulation; direct Tier 1 comparator precedent at US agricultural scale is limited — GP=3 reflects partial comparability. Sources: 162, 63.

US Transition. USDA rulemaking under Agricultural Marketing Act provides primary vehicle; but USDA REAP frozen by executive order (2025), demonstrating executive vulnerability of USDA programmatic food policy; no US implementation study found for food supply chain intervention at required scale; WTO Agricultural Agreement constraints on domestic supply priority requirements add legal complexity. Sources: 63, 280.

Societal Benefit. USDA ERS (2024): 12.8% of US households (17M) experienced food insecurity in 2023; US is world's largest food exporter despite this rate; FAO: countries with domestic food security buffers have 23% lower acute food insecurity during commodity price shocks; food price stabilization is most progressive in distributional impact (lower-income households spend higher income share on food). Sources: 63, 162.

P78 · Protect Marine Life & Expand Aquaculture

Invest in sustainable aquaculture and marine protection; ban seafloor mining until environmental studies complete.

Vehicle: Executive (NOAA rulemaking) · **Phase I** · **Score 8.0** (GP 4 / UT 3 / B 5) · ● **Build**

Global Precedent. Norway is global leader in sustainable salmon aquaculture (government investment, research partnerships, regulatory frameworks); Australia GBRMPA integrated marine protection model; Japan and South Korea government-supported aquaculture scaling; NOAA: ocean-based industries contribute $373B to US GDP annually. Sources: 162, 163.

US Transition. NOAA rulemaking authority under Magnuson-Stevens is the primary vehicle; but NOAA Aquaculture Strategic Plan 2023–2028 contains NO quantitative production target; US ranks 17th–18th globally in aquaculture

production with <1% of global output; 2016–2020 +50% target was missed and abandoned; seafloor mining moratorium is reversible without statutory protection. Sources: 163.

Societal Benefit. Aquaculture now accounts for 57% of seafood for human consumption globally (FAO); marine protection provides ecosystem services (storm surge mitigation, carbon sequestration); coastal fishing communities bear concentrated economic harm from stock depletion; benefit is high, though NOAA's demonstrated implementation gap adds uncertainty to the trajectory. Sources: 162, 163.

P79 · Subsidize Agricultural Electrification

Federal subsidies for farm electrification; tax incentives for transitioning agricultural equipment and processing away from fossil fuels.

Vehicle: Executive (USDA/DOE grants) · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. EU Common Agricultural Policy includes green investment requirements; Germany and Netherlands agricultural electrification programs; IRA (2022) USDA REAP established US framework; OECD documents peer nations investing in agricultural energy transition as standard practice. Sources: 280.

US Transition. USDA/DOE grant authority provides implementation vehicle; REAP freeze (2025) demonstrates statutory protection needed for durability; farm equipment replacement cycle (10–15 years per machine) limits electrification pace regardless of subsidy availability; rural EV charging infrastructure is nascent; 5–10 year meaningful fleet transition. Sources: 280.

Societal Benefit. Electric agricultural equipment operating costs lower than diesel equivalents long-term; rural agricultural communities bear disproportionate air quality costs from diesel equipment; USDA/DOE modeling documents emissions and cost-reduction trajectory; distributional benefit most progressive for family farms (less access to capital for equipment transitions). Sources: 280.

P80 · Address Farm Labor Abuses

Enforce laws against underage and undocumented labor on farms; strengthen worker protections.

Vehicle: Executive (DOL enforcement) · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. EU Seasonal Workers Directive (2014) and member-state enforcement; Canada SAWP with federal oversight; Australia Fair Work Act agricultural coverage — all provide documented frameworks with enforcement outcomes; US FLSA and MSPA (1983) provide statutory authority — gap is enforcement capacity. Sources: 169.

US Transition. DOL Wage and Hour Division (WHD) enforcement capacity expansion within executive authority; WHD inspector staffing at historically low levels relative to regulated workforce; H-2A agricultural guest worker program creates parallel channel complicating enforcement; 1–3 year timeline for meaningfully expanded agricultural enforcement presence. Sources: 169, 195.

Societal Benefit. ~2.4M agricultural workers including ~70% undocumented status (least able to report violations); EPI (2022): systematic wage theft estimated at billions annually; documented physical risks (heat illness, pesticide exposure, housing deficiency); enforcement directly transfers income from violating employers to workers — strongly progressive distributional impact. Sources: 169.

P81 · Break Up Agricultural Monopolies

Apply antitrust law to equipment monopolies; prevent market capture in agriculture.

Vehicle: Bill 3A ACFM Act Part A, Title V · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. EU blocking of Bayer-Monsanto (2018) with structural remedy conditions; Packers and Stockyards Act authority for DOJ/USDA enforcement; Biden DOJ agriculture-specific antitrust enforcement increase (2021–2024); documented correlation between agricultural consolidation and input price increases. Sources: 66, 163.

US Transition. Bill 3/ACFM applies repeat-violator criminal liability to agricultural sector; Packers and Stockyards Act enforcement within executive priority directive; ADM, Cargill, Tyson, JBS, Deere have significant Congressional relationships particularly in Senate agricultural states; multi-year enforcement timeline for structural market change. Sources: 66, 196.

Societal Benefit. Agricultural consolidation imposes welfare costs on both sides: farmers face monopsony (fewer buyers, lower prices), consumers face oligopoly (fewer sellers, higher food costs); AAI documents price-cost margin expansion following consolidation; distributional impact progressive — family farmers and lower-income food consumers bear highest burden. Sources: 66, 68.

P82 · National Climate Preparedness Corps

Consolidate FEMA and EPA preparedness functions under a unified climate-response mandate — environmental monitoring, disaster mitigation, and response.

Vehicle: Bill 2 IIC Act, Title VI · **Phase I** · **Score 7.3** (GP 3 / UT 3 / B 5) · ● **Build**

Global Precedent. Germany Technisches Hilfswerk (THW), Japan Cabinet Office Disaster Management, Netherlands Delta Programme for proactive climate infrastructure hardening; EU Civil Protection Mechanism; but integrated proactive-reactive climate response under unified mandate is novel design. Sources: 285.

US Transition. A statutory preparedness mandate aligned with the FEMA Review Council's May 2026 direction, a statutory pre-disaster mitigation fund (replacing the cancelled BRIC program), and a preparedness corps component built on AmeriCorps and state corps.

Societal Benefit. NOAA documents weather/climate disasters ($1B+ damage) increased from 7.9/yr (1980–2022 avg) to 18/yr (recent 5-year period); climate welfare burden falls disproportionately on lower-income communities with less adaptive capacity; proactive preparedness (environmental monitoring, infrastructure hardening, coordinated response) reduces both frequency and severity of welfare harm; population affected is universal. Sources: 285.

P84 · FDA Split & Reform

Give food safety and drug regulation the separate focus each needs — through separate leadership and budgets, separate agencies within HHS, or full statutory separation, chosen on the findings of an independent study; benchmark food-additive and contaminant review to EU standards.

Vehicle: Executive study (E-9), then legislation — the Task Force compares the three options and reviews legal authority; separate agencies or full separation require a statute · **Phase II** · **Score 8.0** (GP 5 / UT 3 / B 4) · ● **Build**

Global Precedent. EFSA (EU Food Safety Authority) separated from EMA (European Medicines Agency) since 2002; Health Canada operates separate Drug and Food Directorates; UK MHRA/FSA separation; separation of food safety from drug regulation is the international standard — US FDA's combined structure is the outlier. Sources: 292.

US Transition. HHS can realign leadership and budgets within existing authority, but separate agencies require legislation because executive reorganization authority lapsed in 1984; KFF historical analysis: major HHS sub-agency restructurings require 18–36 month minimum; HHS 2025 restructuring (partially enjoined in D. Rhode Island and N.D. California) demonstrates judicial challenge risk; FDA center-level changes typically take 2–3 years to operationalize. Sources: 292.

Societal Benefit. FDA food safety oversight covers 77%+ of the food supply; supplement oversight failures documented; drug approval timelines are the primary PDUFA metric — separating into dedicated agencies allows each to optimize independently; EU food and agricultural safety standards provide the baseline for the new food agency. Sources: 292.

P85 · Data Center Water & Energy Transparency Standard

Mandatory disclosure, consumption caps in stressed watersheds, closed-loop requirements for new builds.

Vehicle: Bill 8 HCI Act, Title V · **Phase I** · **Score 6.7** (GP 3 / UT 4 / B 3) · ● **Build**

Assessment. UT=4 despite low GP because more than 20 states are already legislating and — per ITIF's July 2026 policy brief — industry itself increasingly wants a federal floor to escape a fragmenting 50-state patchwork. Sources: 455, 456, 457, 458, 459, 460, 461.

Current status. Designed to begin as a water-and-energy reporting standard, which has direct EU precedent (Energy Efficiency Directive reporting), rather than a usage cap.

P86 · Water Utility Anti-Monopoly & Ratepayer Protection Act

Ban acquisition-cost pass-through, cap rate-of-return, mandatory public-benefit test before private acquisition, recurring municipal buy-back right.

Vehicle: Bill 3A ACFM Act Part A, Title XI–XII · **Phase II** · **Score 6.0** (GP 4 / UT 2 / B 3) · ● **Build**

Assessment. GP=4 from the fact that most Tier 1 comparators keep water utilities public specifically to avoid this failure mode, with England's fully privatized system as a widely-cited cautionary counterexample of high bills and chronic underinvestment. UT=2 reflects real entrenched opposition — American Water alone posted $1.1B net income in 2024 and is actively lobbying state legislatures for more privatization-enabling laws. Sources: 455, 456, 457, 458, 459, 460, 461.

P87 · Water Infrastructure Modernization Fund

Accelerated lead pipe replacement + PFAS remediation, expanding existing EPA/BIL funding.

Vehicle: Bill 2 IIC Act, Title V · **Phase I** · **Score 8.0** (GP 3 / UT 4 / B 5) · ● **Build**

Assessment. P87 and P86 address the same root cause from opposite ends: P87 closes the infrastructure funding gap that utilities cite to justify privatization deals, while P86 caps the profiteering mechanism directly. P87 is the stronger scorer and the more achievable of the two — it expands existing EPA and Bipartisan Infrastructure Law funding streams rather than building new authority, and B=5 reflects that it reaches the roughly 90% of Americans served by public water systems. Sources: 455, 456, 457, 458, 459, 460, 461.

P88 · State Disaster Relief Trust Accounts (Pre-Allocated, Formula-Based Drawdown Act)

Pre-allocated state trust accounts with formula-based drawdown, removing political discretion from disaster aid.

Vehicle: Bill 2 IIC Act, Title VI · **Phase II** · **Score 8.0** (GP 4 / UT 3 / B 5) · ● **Build**

Assessment. Disaster aid should not depend on how a state voted, and current data shows that it increasingly does. As of mid-2026, the sitting administration has approved 80% of disaster requests from Republican-led states but only about 60% from Democratic-led states; measured by 2024 electoral vote, over three-fourths of requests from states that voted for the President were approved, against less than half from states that did not. An Associated Press analysis calls it the largest partisan disparity in FEMA's history. Four Northeastern states (Massachusetts, New Jersey, New York, and Rhode Island) were denied aid for a February 2026 winter storm although FEMA's own damage assessments showed all four exceeded the qualifying threshold — New Jersey's documented damage was more than four times the required minimum. Pre-allocated, formula-based trust accounts remove that discretion. Sources: 487, 488, 489, 490, 491, 492.

Current status. FEMA Review Council final report (May 2026) and the FEMA Act (H.R. 4669, reported 57–3) both move toward upfront, formula-based state disaster funding.

Foreign Affairs & Immigration

P89 · Diplomatic Restoration & Strategic Investment

Systematic effort to repair damaged alliances; restore US credibility; continue support for nations under active external aggression.

Vehicle: Executive (State) + statute (MCC/DFC/development charter) · **Phase I** · **Score 8.0** (GP 4 / UT 3 / B 5) · ● **Build**

Global Precedent. Post-Cold War German reunification diplomacy, post-Vietnam US diplomatic repair (1970s), Obama-era JCPOA negotiation — all document structured diplomatic restoration with measurable economic and security outcome improvements; G7 Partnership for Global Infrastructure and Investment provides current allied development partnership model. Sources: 196.

US Transition. Alliance re-engagement within executive authority — Day 1 executable; rejoining multilateral frameworks (Paris Agreement re-accession procedurally available) is near-immediate; but substantive relationships require sustained institutional behavior over multiple years; adversarial normalization (China, Russia) requires sustained engagement not reducible to Day 1 action; 1–3 year timeline for allied repair, longer for adversarial normalization. Sources: 196.

Societal Benefit. US diplomatic relationships underpin multilateral frameworks governing trade, security, technology, and climate; documented allied relationship disruption imposed costs on export market access, security cooperation, pandemic preparedness, and international rules-based order; effective diplomacy is the infrastructure for every dimension of international welfare that affects American living standards and security. Sources: 196.

Current status. USAID was absorbed into State (2025) and the Rescissions Act cut ~$7.9B in foreign aid. Rebuild development capacity through Millennium Challenge Corporation expansion and DFC reauthorization (both with conservative support), and charter a statutory development agency so restoration cannot be reversed by executive action alone.

P90 · Selective & Streamlined Immigration Policy

Tighter admissions criteria paired with cleaner, faster citizenship pathway. Asylum and refugee protections maintained.

Vehicle: Executive (DHS/DOS rulemaking) · **Phase I** · **Score 7.3** (GP 4 / UT 3 / B 4) · ● **Build**

Global Precedent. Canada Express Entry (points-based with fast processing), Australia skilled migration framework, Germany Fachkräfteeinwanderungsgesetz (2020) — all combine tighter admissions criteria with cleaner, faster citizenship pathways and documented economic integration outcomes. Sources: 196, 197.

US Transition. DHS and DOS have significant regulatory authority within INA statutory framework; processing efficiency improvements (digitization, adjudicator staffing, asylum court capacity) within executive authority; structural visa system reform requires 60-vote threshold; USCIS backlogs exceeded 10M applications (2024); 3–5 year administrative modernization timeline. Sources: 196, 197.

Societal Benefit. USCIS backlog >10M applications creates legal limbo harm for immigrants and employer productivity loss; cleaner citizenship pathways reduce social exclusion and improve long-term integration outcomes; Canada and Australia demonstrate that structured systems produce superior economic integration outcomes relative to US current system; points-based selection improves labor market match quality. Sources: 196, 197.

Recent sources. 686, 687.

P91 · Nuclear Diplomacy via Allied Mediation

Broker nuclear non-proliferation agreements through allied nations whose diplomatic standing exceeds current US leverage with the parties involved.

Vehicle: Executive (State Department) · **Phase II** · **Score 8.0** (GP 4 / UT 3 / B 5) · ● **Build**

Global Precedent. Norway, Finland, Switzerland: documented successful mediation traditions; Oslo Accords (Norway), Iran nuclear deal (Switzerland/EU); Bulletin of Atomic Scientists Doomsday Clock (2024): 90 seconds to midnight, closest ever; Arms Control Association: US and Russia account for ~90% of global warheads. Sources: 153a, 154, 155.

US Transition. State Department executive authority for multilateral mediation engagement; US direct leverage with adversarial nuclear powers is currently limited — allied-mediation model specifically addresses this gap; sustained diplomatic engagement is multi-year; Russia-Ukraine conflict and US-China tensions create challenging entry conditions. Sources: 153a, 154.

Societal Benefit. The welfare benefit of reducing existential nuclear risk is maximal; Doomsday Clock at closest ever position; US-Russia strategic stability dialogue suspended; allied mediators (Norway, Finland, Switzerland) have documented credibility that US currently lacks in key bilateral relationships; B=5 reflects the magnitude of existential risk being addressed. Sources: 154, 155.

Recent sources. 688, 689, 690, 691.

Workforce Fairness & Security

P92 · Workplace Representation Fairness Act

Card check, first-contract arbitration, ban on captive-audience meetings.

Vehicle: Bill 13 WFA, Title I · **Phase II** · **Score 8.0** (GP 5 / UT 3 / B 4) · ◆ **Core**

Assessment. GP=5 reflects that a legal right to organize is an ILO core-convention norm (Conventions 87/98) and near-universal among Tier 1 comparators. Sources: 400, 401, 402, 403, 404.

Current status. First-contract mediation/arbitration (Faster Labor Contracts Act, H.R. 5408) passed the House 230–193 on June 9, 2026 with 20 Republican votes; Senate companion S. 844 led by Sen. Hawley (R). First-contract arbitration is the lead title; card-check recognition and the captive-audience ban are held for a later title, since Brown-Forman (6th Cir., Mar. 2026), the new NLRB majority, and Cal. Chamber v. Bonta make the administrative and state routes for those components weaker.

P93 · National Paid Family & Medical Leave Standard

Paid family and medical leave through a self-financing social insurance program, funded by a small contribution split equally between workers and employers.

Vehicle: Bill 13 WFA, Title II · **Phase II** · **Score 8.0** (GP 5 / UT 3 / B 4) · ● **Build**

Assessment. The US is the only Tier 1 comparator without a national paid leave system (GP=5), and unlike organizing rights, this is a budget-authority program plausibly routable through reconciliation (UT=3) — the same vehicle logic as the FSW Act. Sources: 400, 401, 402, 403, 404.

Financing. The program pays for itself: WFA Sec. 203 sets the dedicated contribution each year at the rate the Social Security Chief Actuary certifies will cover benefits, as Social Security's own financing works. Sources: 815.

P94 · Federal Paid Sick Leave Standard

Workers earn paid sick time as they work, phased in for small employers, without overriding stronger State laws.

Vehicle: Bill 13 WFA, Title III · **Phase I** · **Score 7.3** (GP 5 / UT 3 / B 3) · ● **Build**

Assessment. Most Tier 1 comparators mandate paid sick leave, and 17 states + DC already run versions, giving real US transition precedent (UT=3). B was kept at 3 rather than higher because the *direct* beneficiary population is workers currently lacking coverage — roughly a quarter of the private-sector workforce — not the whole workforce. Sources: 400, 401, 402, 403, 404.

P95 · Worker Mobility & Fair Competition Act

Limits on non-compete agreements for workers below the executive tier.

Vehicle: Bill 13 WFA, Title IV · **Phase I** · **Score 6.0** (GP 3 / UT 3 / B 3) · ● **Build**

Assessment. The FTC already built a rulemaking record in 2024 (blocked by the 5th Circuit), so a drafted playbook and litigation history exist to route around. GP capped at moderate since full bans aren't the global norm — most comparators restrict rather than outright ban. Sources: 400, 401, 402, 403, 404.

Current status. Statutory route: the FTC acceded to vacatur of its non-compete rule (Sept. 5, 2025), so a statutory ban (Workforce Mobility Act model) is the only remaining federal route.

Second Chance & Public Safety

P96 · Fresh Start & Workforce Reentry Act

Automatic record sealing + job training/housing grants.

Vehicle: Bill 14 SCPS Act, Title I · **Phase I** · **Score 8.0** (GP 4 / UT 4 / B 4) · ◆ **Core**

Assessment. Automatic sealing of eligible federal records, paired with job-training and housing grants for people leaving incarceration — with P97, the most achievable of the second-chance reforms. Norway's reconviction rate fell from roughly 70% to around 20% after its 1990s reforms, and Germany's comparable model reports recidivism below 40%. Critics note that US and Norwegian figures are not measured identically (different follow-up windows and definitions of reoffending), so the true gap is real but smaller than the headline, which is why GP is held at 4. Sources: 405, 406, 407, 408, 409, 410.

P97 · Expand First Step Act Nationwide

Earned-time credit + PATTERN-style risk assessment for state systems, via DOJ grant conditions.

Vehicle: Bill 14 SCPS Act, Title II · **Phase I** · **Score 8.0** (GP 4 / UT 4 / B 4) · ◆ **Core**

Assessment. Extends the First Step Act's earned-time credits and risk-and-needs assessment to state systems through Justice Department grant conditions, building on a bipartisan federal law already in operation. With P96, it is the most achievable of the second-chance reforms. The international evidence (Norway, Germany) supports programming-centered corrections, though cross-national recidivism figures are not measured identically, so GP is held at 4. Sources: 405, 406, 407, 408, 409, 410.

P98 · Recidivism Reduction & Correctional Standards Act

Small community-based facilities, vocational/education mandate, "normality principle".

Vehicle: Bill 14 SCPS Act, Title III · **Phase II** · **Score 6.7** (GP 4 / UT 2 / B 4) · ● **Build**

Assessment. The direct import of the Norwegian and German model: small community-based facilities, education and vocational mandates, and the "principle of normality," which treats incarceration as the loss of liberty rather than of normal life. UT is capped at 2 because rebuilding correctional infrastructure for more than 1.2 million incarcerated people is a generational undertaking, not a first-term one. Sources: 405, 406, 407, 408, 409, 410.

P99 · Pretrial Risk-Based Release Act

Risk-based pretrial release, end wealth-based detention.

Vehicle: Bill 14 SCPS Act, Title IV · **Phase II** · **Score 6.7** (GP 5 / UT 2 / B 3) · ● **Build**

Assessment. GP=5 because most Tier 1 comparators simply don't use wealth-based pretrial detention. UT capped at 2 because bail is primarily a *state* matter (federal leverage limited to funding conditions), and state-level reform attempts (New Jersey, Illinois) have drawn real political backlash after high-profile cases. Sources: 405, 406, 407, 408, 409, 410.

P100 · National Public Safety & Officer Standards Act

Federal decertification registry, use-of-force reporting mandate, qualified immunity reform.

Vehicle: Bill 14 SCPS Act, Title V · **Phase III** · **Score 6.7** (GP 4 / UT 2 / B 4) · ○ **Long horizon**

Assessment. UT=2 reflects genuine structural friction (qualified immunity is judicially constructed doctrine; policing is a local/state function), not just political difficulty. B=4 uses the same "foundational infrastructure" logic the rubric applies to P14 (public health). Sources: 405, 406, 407, 408, 409, 410.

Housing & Land Use

P101 · National Baseline Zoning Standard

As-of-right multifamily in all residential zones, cap on local zoning-category proliferation, tied to transportation/CDBG funding.

Vehicle: Bill 8 HCI Act, Title II · **Phase II** · **Score 8.7** (GP 4 / UT 4 / B 5) · ● **Build**

Assessment. The foundational housing reform: B=5 applies the same infrastructure-enabling logic as P14 and P64, because most other housing policy works better once supply constraints ease. The key comparator is Japan, which zones nationally through 12 broad as-of-right categories — a code-compliant project is approved with no discretionary hearing and no neighbor veto. Tokyo has run a persistent housing surplus for 30 years without prices outpacing population growth, in contrast to supply-constrained peers such as London, San Francisco, and New York. Sources: 411, 412, 413, 414, 415.

Current status. The 21st Century ROAD to Housing Act became law July 11, 2026 (final votes Senate 85–5, House 358–32), establishing an incentive-based federal housing-supply framework. Designed to build on that law as an incentive/grant-condition standard rather than a federal mandate (anti-commandeering).

P102 · Federal Permitting Shot Clock

A completeness check, then category-based review deadlines; deemed approval only for by-right, code-compliant projects, with health, safety, environmental, and utility-capacity exceptions.

Vehicle: Bill 8 HCI Act, Title II · **Phase I** · **Score 7.3** (GP 3 / UT 4 / B 4) · ◆ **Core**

Assessment. Targets the procedural veto points rather than zoning categories: a completeness check, then a review deadline by project category, with deemed approval only for by-right, code-compliant projects and exceptions for health, safety, environmental review, and utility capacity. This is the "how" behind Japan's as-of-right system, complementing the "what" of zoning categories in P101. Sources: 411, 412, 413, 414, 415.

Current status. ROAD to Housing Act enacted; permitting-timeline criteria have a federal vehicle to attach to.

P103 · End Single-Family-Only Zoning Nationwide

Legalize duplex/triplex/ADU as-of-right.

Vehicle: Bill 8 HCI Act, Title II · **Phase I** · **Score 8.0** (GP 4 / UT 4 / B 4) · ◆ **Core**

Assessment. Legalizes duplexes, triplexes, and accessory dwelling units as of right — a narrower ask of localities than P101, resting on the same evidence. New Zealand's 2016 Auckland upzoning provides a peer-reviewed (Tier A) data point: studies found lower rents in upzoned areas relative to the counterfactual, among the strongest international precedents in the framework. Sources: 411, 412, 413, 414, 415.

Current status. Structured as a grant-condition standard (South Dakota v. Dole; anti-commandeering), consistent with the ROAD to Housing Act's incentive model.

P104 · NEPA Categorical Exclusion for Infill Housing

Streamlined federal environmental review below a size/impact threshold.

Vehicle: Bill 8 HCI Act, Title II · **Phase I** · **Score 6.7** (GP 3 / UT 5 / B 2) · ● **Build**

Assessment. Targets a procedural veto point: a NEPA categorical exclusion for federally assisted infill housing below a size and impact threshold. B is held at 2 because NEPA review accounts for only a modest share of infill delay. Sources: 411, 412, 413, 414, 415.

Current status. Seven County Infrastructure Coalition v. Eagle County (2025) and the Fiscal Responsibility Act's NEPA amendments put streamlining on a strong legal trajectory; NEPA is a modest share of infill delay, so benefit is narrower than first scored.

P105 · Modular & Manufactured Housing Code Harmonization

Uniform national code recognition across state lines.

Vehicle: Bill 8 HCI Act, Title II · **Phase I** · **Score 8.0** (GP 4 / UT 5 / B 3) · ● **Build**

Assessment. The lowest political-heat item among the housing reforms — technical rather than ideological — and the modular housing industry is already lobbying for it, which brings support from outside the usual coalition. Sources: 411, 412, 413, 414, 415.

Current status. The enacted ROAD to Housing Act includes a manufactured-housing title.

Fair Dealing & Marketplace Transparency

P106 · All-In Pricing & Fee Transparency Act

All-in pricing across banking, ticketing, hotels, telecom.

Vehicle: Bill 3A ACFM Act Part A, Title IX · **Phase I** · **Score 8.7** (GP 5 / UT 3 / B 5) · ◆ **Core**

Assessment. GP=5 from the EU's mandatory all-in price disclosure regime. UT is capped at 3 despite an existing FTC template (the December 2024 rule on hidden fees in ticketing and lodging) because consumer-fee rules adopted by regulation were repealed under the Congressional Review Act in 2025; statute is the durable route. Sources: 428, 429, 430, 431, 432, 433, 434, 435.

P107 · Court Access Restoration Act

Restore class-action and court access for consumers and workers.

Vehicle: Bill 3A ACFM Act Part A, Title XI–XII · **Phase III** · **Score 5.3** (GP 2 / UT 2 / B 4) · ○ **Long horizon**

Assessment. The hardest, most US-specific problem. GP=2 because forced arbitration at this scale is largely an American phenomenon, rooted in *AT&T Mobility v. Concepcion* (2011). The fix (the FAIR Act) has passed the House twice (2019, 2022) and died in the Senate both times — real legislative history, consistently blocked. Sources: 428, 429, 430, 431, 432, 433, 434, 435.

P108 · Underbanked Access Pilot Program

Basic banking/check-cashing/small-dollar loans via USPS in underbanked ZIP codes.

Vehicle: Bill 7 DRDO Act, Title VII · **Phase II** · **Score 7.3** (GP 5 / UT 3 / B 3) · ● **Build**

Assessment. France, Japan, and Italy all run postal banks today; USPS itself piloted basic check-cashing in 2021–2022 but stalled amid banking-lobby opposition and its own financial distress. Sources: 428, 429, 430, 431, 432, 433, 434, 435.

P109 · Medical Debt Fairness & Credit Accuracy Act

Remove medical debt from credit reports, cap collection practices.

Vehicle: Bill 3A ACFM Act Part A, Title X · **Phase I** · **Score 6.7** (GP 3 / UT 3 / B 4) · ◆ **Core**

Assessment. Building on a CFPB rule that already existed and was vacated in court; the statutory route is the more durable fix. Sources: 428, 429, 430, 431, 432, 433, 434, 435.

P110 · Servicemember-Standard Lending Protection Act

36% APR, extending the Military Lending Act model to all consumers.

Vehicle: Bill 3A ACFM Act Part A, Title VI · **Phase I** · **Score 7.3** (GP 4 / UT 4 / B 3) · ◆ **Core**

Assessment. Cleanest existing US precedent: the Military Lending Act already caps rates at 36% for servicemembers nationally, and roughly 20 states cap payday rates in some form. Sources: 428, 429, 430, 431, 432, 433, 434, 435.

Tribal Sovereignty & Trust Responsibility

P111 · IHS Mandatory Funding & Trust Fund Act

Shift IHS from discretionary to mandatory funding, following the VA/Medicare model.

Vehicle: Bill 15 TSTR Act, Title I · **Phase I** · **Score 7.3** (GP 3 / UT 4 / B 4) · ● **Build**

Assessment. IHS per-person federal spending (about $4,100) is lower than federal prisoner health spending (about $8,300), Medicaid (about $8,900), the VA (about $12,200), and Medicare (about $15,100) — the government spends less per person on Native health than on incarcerated people, a comparison tribal officials have raised directly. American Indian and Alaska Native life expectancy is 67.9 years, roughly 11 years below the national average. GP=3 reflects limited but real international precedent (Canada's First Nations and Inuit health programs). IHS moved to advance appropriations in 2020, and the Supreme Court's 2024 decision in *Becerra v. San Carlos Apache Tribe* increases pressure for full contract-support-cost funding — real momentum, though conversion to mandatory funding remains a genuine appropriations fight. Sources: 442, 443, 444, 445, 446, 447, 448, 449.

Current status. IHS advance appropriations enacted again for FY2027 ($5.31B) and kept IHS open during the Oct. 2025 shutdown.

P112 · Truth and Healing Commission on Indian Boarding School Policies

Vehicle: Bill 15 TSTR Act, Title II · **Phase I** · **Score 8.0** (GP 4 / UT 5 / B 3) · ● **Build**

Assessment. The most achievable item in the tribal set — close to adopting an existing bipartisan bill rather than drafting from scratch. Sources: 442, 443, 444, 445, 446, 447, 448, 449.

Current status. Bipartisan bills in both chambers: S. 761 (Murkowski) reported unanimously and on the Senate calendar; H.R. 7325 (Cole/Davids) introduced Feb. 2026; CBO estimate $70M (2026–2030).

P113 · MMIW Jurisdictional Restoration & Cold Case Office

Close the Oliphant jurisdictional gap; fund implementation of the Not Invisible Act and Savanna's Act.

Vehicle: Bill 15 TSTR Act, Title III · **Phase II** · **Score 6.7** (GP 3 / UT 3 / B 4) · ● **Build**

Assessment. Targets the jurisdictional mechanism behind the crisis of missing and murdered Indigenous people rather than only its symptoms. *Oliphant v. Suquamish Indian Tribe* (1978) removed tribal criminal jurisdiction over non-Indians; the Violence Against Women Act reauthorizations of 2013 and 2022 restored partial jurisdiction for tribes that opt in. P113 closes the remaining gap and funds the cold-case backlog under Savanna's Act and the Not Invisible Act, both chronically underfunded since enactment in 2020. Sources: 442, 443, 444, 445, 446, 447, 448, 449.

THE ANALYSIS · PART VI

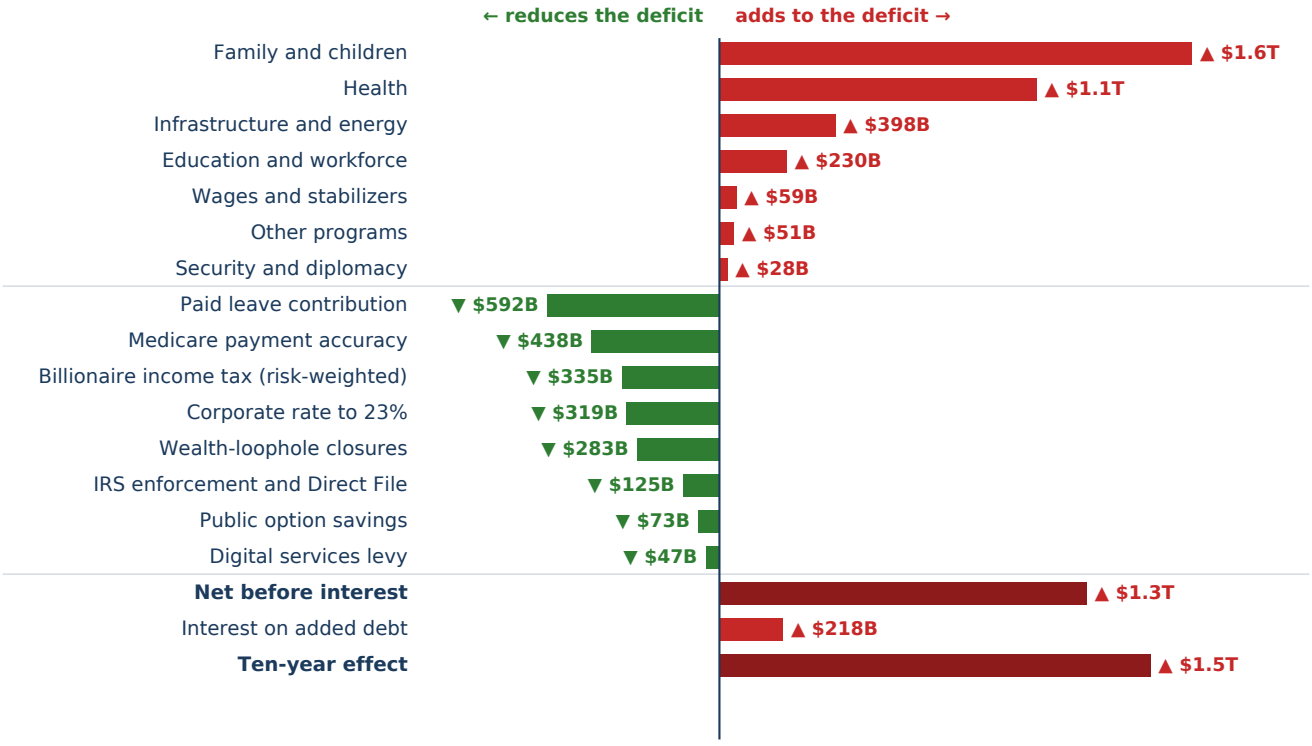
Economic Feasibility

The second test: the agenda must not only score well on its merits — it must be fiscally feasible and structurally durable.

The Fiscal Case in Brief

Colors and arrows used in this Part. ▲ *Red marks a cost: it adds to the deficit.* ▼ *Green marks revenue or savings: it reduces the deficit. Amounts are in billions of dollars over the ten fiscal years 2030–2039 unless stated otherwise.*

Figure: the ten-year central case, FY2030–2039. Bars to the right add to the deficit; bars to the left reduce it. Costs are grouped by area; revenue lines are shown one by one.



- **The answer.** The agenda adds about $1.5 trillion to federal deficits over ten years, interest included (**▲ $1.5T**). Costs actually paid, after the pay-as-you-go limit, total $3.47 trillion; revenue and savings $2.21 trillion, leaving $1.26 trillion before interest; interest on the added debt adds $218 billion.
- **How sure.** A simulation that varies every line at once puts the likely range at **▲ $1.1T** to **▲ $1.9T** (80 percent of outcomes). Adding together every line's worst case gives **▲ $3.5T**; every line's best case gives **▼ $1.0T**.
- **Against recent choices.** The 2025 tax law (Public Law 119-21) adds $4.1 trillion with interest, by CBO's count. Every one of the 20,000 simulated outcomes for this agenda falls below that, and even if every uncertain revenue line failed, the agenda would add $1.7 trillion, because Phase II family spending slows when its revenue falls short.

- **How it is paid for without cutting benefits.** The paid-leave contribution is set each year to cover the program, as Social Security's is. Ending Medicare Advantage overbilling and paying the same price for the same outpatient service save $438 billion, with rural hospitals exempt. A corporate rate of 23%, still well below the 35% in force before 2018, raises $319 billion. And the Phase II childcare expansion and children's accounts may spend only what the billionaire tax, loophole closures, and digital levy bring in each year; in the central case that delays about $180 billion of their cost past 2039 rather than borrowing it.
- **Not deficit-neutral, and said so.** The yearly effect grows to about $247 billion by 2039, about 0.5% of GDP, because family and health programs grow faster than the revenue that pays for them. Debt in 2039 would be about 2.9 points of GDP higher than under current law. The pay-as-you-go rule keeps the Phase II family programs from widening it; AIPE Fund returns and added Phase II revenue are the remaining levers.
- **Social Security is separate.** The payroll tax on earnings above $250,000 raises about $1.8 trillion over the same years for the Social Security trust funds alone; it is not used to pay for anything in this ledger.

What This Review Is, and Is Not

This is not an official score. Only the Congressional Budget Office (CBO) and the Joint Committee on Taxation (JCT) produce those, and they score bills, not platforms. This review follows their rules wherever a platform allows it, adds the disclosure practices of the leading independent fiscal institutions abroad, and shows every step, so that CBO — or any reader — can check it. Where a bill leaves an amount open, the review says what it assumed. When CBO or JCT score a bill in this agenda, their number replaces the one here.

The Fiscal Picture in November 2026

- The federal deficit for FY2026 was **$1.99 trillion**, up $217 billion from FY2025, after $145 billion in tariff refunds that followed the Supreme Court's ruling on emergency tariffs [Source 923].
- CBO projects federal debt held by the public rising from 100.6% of GDP in 2026 to **120.2% in 2036** under current law; tariff policy after the ruling adds $0.9 trillion to 2027–2036 deficits [Sources 800, 803, 922].
- The 10-year Treasury yield reached about 5.2% in early October and was about **4.9%** after the November election, against the 4.3% average CBO assumes for 2026–2036 [Sources 829, 924, 922]. CBO estimates that rates 0.5 point higher than its path would add **$1.9 trillion** to deficits through 2036 and raise debt to 124.4% of GDP; 1.5 points higher would add $6.0 trillion [Source 922]. Interest rates are the largest single fiscal risk for any government in this period.
- Social Security's 75-year gap grew to **4.42% of taxable payroll**; the retirement trust fund is projected to run short in late 2032 [Source 808].

How the Numbers Are Built

Each rule below is the one an official or leading independent scorekeeper uses. The right-hand column names who.

Rule	What this review does	Who does it this way
Baseline	Measures every proposal against current law as CBO projects it: the February 2026 outlook, updated for tariffs in August 2026. The 2025 tax law counts as enacted, with its temporary provisions expiring on schedule.	CBO and JCT [Sources 800, 803]
Ten-year window	FY2030–2039: the ten fiscal years after the Phase I bills, dated 2029, are enacted. That is the window CBO would use to score them. A FY2027–2036 view, matching CBO's current baseline, is also shown.	CBO; CRFB starts a platform's window when its policies take effect [Source 929]
Timing	Year by year, never by fraction. Phase I takes effect in FY2030 and Phase II in FY2033, the dates written into its bills, with a half-year first year. Hiring, take-up, and construction ramp up. Phase III falls outside the window and is reported separately.	CBO; Australia's Parliamentary Budget Office [Source 934]
What is counted	Conventional scoring: people's responses are counted (take-up, avoidance, state participation), but effects on the whole economy are not. Those are discussed separately.	CBO and JCT

Rule	What this review does	Who does it this way
Budget category	Each line is labeled mandatory spending, revenue, or spending subject to appropriation. Appropriations are counted as if the authorized amount is provided.	CBO
Older estimates	An older estimate is turned into a yearly amount at the middle of its own window, grown with the thing that drives it (wages, health costs, childcare costs, or capital income), and stripped of parts this agenda does not propose. The formula is printed at the end of this Part.	CBO practice; formula published here
Overlapping revenue	Revenue lines are scored in a fixed order — enforcement, then loophole closures, then the billionaire income tax — each after the ones before it, so no dollar is counted twice.	JCT; CRFB
Legal risk	Revenue with a real chance of being struck down is counted at a stated, probability-weighted value in the central case; the low case keeps only what the bill's own fallback would collect.	Rated as uncertainty, as the UK Office for Budget Responsibility does [Source 933]
Pay-as-you-go	The Phase II childcare expansion and children's accounts are counted only up to the revenue the billionaire tax, loophole closures, and digital levy bring in each year, as FSW Act Sec. 5 requires.	CBO scores spending at the amount the law allows it to reach
Interest	Computed year by year on the added debt at an assumed 3.9%, with half a year of interest on each year's change. Rates 0.5 point higher and lower are tested.	CBO [Sources 805, 806, 922]
Proposals without a score	Matched to the closest scored proposal and labeled as an analog. Small items are grouped in a stated allowance. Nothing with a known cost is left at zero.	CRFB [Source 929]
Uncertainty	Every line is rated Low to Very high for its data, its model, and how people will respond, and a 20,000-draw simulation produces a likely range for the total.	UK Office for Budget Responsibility [Source 933]; CBO
Disclosure	Every line carries its own costing note in the tables below. The model, its inputs, and a workbook are published with this document, so one command rebuilds every number.	Australia's PBO; OECD principles; Netherlands Bureau for Economic Policy Analysis [Sources 932, 934, 935]

Where credible estimates disagree, the central case takes the higher cost and the lower revenue. No single scorekeeper publishes all of these elements for a platform; this review combines them and publishes its working.

The Ledger

Ten-year totals for FY2030–2039, in billions of dollars, before interest. *Low* and *High* bound the plausible range for each line; they are not confidence intervals. Sources are numbered as in Part XI. Uncertainty is rated Low, Medium, High, or Very high; the letters after it rate the data, the model, and how people will respond (L low, M medium, H high).

Costs with an Official or Independent Estimate

What it costs	Starts · type	Low	Central	High	How it is estimated	Sources	Uncertainty
P15 · Childcare credit, first stage (COLT Act Title II)	FY2030 · Mandatory	**271**	**361**	**487**	CBO: $752B for a permanent BBB child care and pre-K title, 2022–2031 [926]. Child care alone is 71% of that title [925]. The first stage is assumed to cost half of a near-universal design. Grown 4.5% a year to the ARA window. Ramp: 40% in FY2030 (supply grants first), 90% in FY2031. Low: CBO-style limited state participation. High: full participation and higher take-up.	814, 925, 926	High (Data M · Model M · Behavior H)

What it costs	Starts · type	Low	Central	High	How it is estimated	Sources	Uncertainty
P15 · Childcare expansion to near-universal (FSW Act Title I)	FY2033 · Mandatory	**201**	**267**	**361**	The remaining half of the same CBO-based cost, effective for tax years after 2031 (FY2033), half-year first year. The bill's capacity check may delay it; see the timing sensitivity. Pay-as-you-go: this line and the children's accounts may spend only what the billionaire tax, loophole closures, and digital levy bring in that year (FSW Act Sec. 5); any shortfall delays the phase-in rather than adding to the deficit.	814, 925, 926	High (Data M · Model M · Behavior H)
P16 · Children's investment accounts, progressive top-up (FSW Act Title V)	FY2033 · Mandatory	**231**	**578**	**780**	Amounts are not yet set in the bill, so the line is sized to the Booker baby-bond design, which CRFB estimated at about $60B a year in 2019 [942], scaled to deposits for ages 1–16 and grown 3% a year. Low: newborn deposits only. High: larger deposits than the Booker design. Subject to the same pay-as-you-go limit as the childcare expansion (FSW Act Sec. 5).	942	Very high (Data H · Model M · Behavior M)
P93 · Paid family and medical leave benefits (WFA Title II)	FY2033 · Mandatory	**503**	**592**	**680**	CBO: FAMILY Act benefits of $547B over 2020–2030, paid over about nine benefit years [815]. Grown with average wages (4%). Shown gross; the dedicated contribution is a separate revenue line below.	815	Medium (Data L · Model M · Behavior M)
P19 · Coverage bridge: restore enhanced premium tax credits (COLT Act Title IV)	FY2030 · Mandatory	**387**	**421**	**455**	CBO/JCT: $349.8B over 2026–2035 for permanent extension [813]. Shifted to the ARA window with health-cost growth (5%). FY2030 counts three quarters (credits restart in January 2030).	813, 320	Medium (Data L · Model M · Behavior M)
P23 · Rural Health Transformation Program, made permanent (COLT Act Title IV)	FY2031 · Mandatory	**90**	**90**	**102**	$10B a year, the current-law level, for each year after current funding ends in FY2030 [454]. High: indexed at 3%.	454	Low (Data L · Model L · Behavior L)
P111 · Indian Health Service full funding, phased (TSTR Act Title I)	FY2030 · Mandatory	**278**	**556**	**943**	Gap between the tribal workgroup's FY2028 recommendation ($76.1B) and FY2026 enacted funding ($8.05B), about $68B a year [827], grown 5%. Central phases in evenly to full funding in FY2039. Low: phase to half the gap. High: full funding from FY2030. The source is a consultation output (tier C); the final figure is set in consultation.	827	High (Data H · Model M · Behavior L)
P14 · Public health infrastructure (S-3)	FY2030 · Appropriation	**5**	**15**	**25**	Restoring CDC and vaccine programs, about $0.5–2.5B a year, subject to appropriation.	—	Medium (Data M · Model L · Behavior L)
P112 · Truth and Healing Commission (TSTR Act Title II)	FY2030 · Appropriation	**0.1**	**0.1**	**0.1**	CBO estimate for S.761, about $90M in total [446].	446	Low (Data L · Model L · Behavior L)

What it costs	Starts · type	Low	Central	High	How it is estimated	Sources	Uncertainty
P7 · Wage floor indexing (ECFA Title I)	FY2030 · Mandatory	6	59	76	The starting wage is not yet set in the bill. Central assumes a start near $17, the level CBO scored in the Raise the Wage Act of 2023: +$46B conventional over 2024–2033 [816], shifted to the window at 4%. Low: indexing only. CBO's dynamic estimate is not included here.	816	High (Data L · Model M · Behavior H)
P61 · Restore wind and solar credits (IIC Act, Phase II stage)	FY2033 · Revenue loss	136	210	336	JCT: the 2025 law's cuts to the 45Y and 48E clean electricity credits save about $152B over FY2026–2033 [927]. Restoration is costed at that rate, growing 8% a year with the build-out. High: Resources for the Future's larger estimate [825].	927, 825	High (Data M · Model M · Behavior H)
P66 · Finish air traffic control modernization (IIC Act Title III)	FY2030 · Appropriation	19	30	30	DOT's stated remaining need, $19B (July 2025) to $30B (September 2026 request), spread over five years.	—	Medium (Data M · Model L · Behavior L)
P87 · Water infrastructure fund (IIC Act Title V)	FY2030 · Appropriation	82	98	108	Continues FY2026 infrastructure-law levels: about $8.2B a year for the state revolving funds and lead lines, plus $1.6B a year to replace earmarked funds [823]. High adds emerging contaminants.	823	Medium (Data L · Model L · Behavior L)
P28 · Local news sustainability (COLT Act Title VI)	FY2030 · Appropriation	5	11	17	Analog: the former public broadcasting appropriation, about $1.1B a year. The journalism credit itself is unscored.	—	Medium (Data M · Model M · Behavior M)
P69 · Cyber defense: restore CISA staffing	FY2030 · Appropriation	3	5	8	Reverses the proposed FY2027 cut of about $0.5B a year.	—	Medium (Data L · Model L · Behavior L)
P75 · UN peacekeeping: clear arrears and pay assessments	FY2033 · Appropriation	6	13	19	US arrears of $4.3B ($2.04B regular, $2.25B peacekeeping, April 2026) paid in the first year, then about $1.3B a year in assessments.	—	Medium (Data L · Model L · Behavior M)
P82 · Climate preparedness and pre-disaster mitigation (IIC Act Title VI)	FY2030 · Appropriation	5	10	15	Analog: the BRIC pre-disaster mitigation program, about $1B a year.	—	Medium (Data L · Model M · Behavior L)
Total		2,229	3,315	4,442			

Costs Benchmarked to the Closest Scored Proposal

These proposals have no official score, so each is matched to the closest proposal that has one. They are included in the totals.

What it costs	Starts · type	Low	Central	High	How it is estimated	Sources	Uncertainty
P58 · Teacher minimum salary grants (COLT Act Title V)	FY2030 · Appropriation	45	135	446	The amount is not yet set and no CBO score exists. Grants pay only the gap to the floor in districts that cannot meet it, so the central case assumes about $15B a year at full operation. High: about $50B a year, the size of an across-the-board federal raise proposed in 2023 [940].	940	Very high (Data H · Model H · Behavior M)

What it costs	Starts · type	Low	Central	High	How it is estimated	Sources	Uncertainty
P54 · Tuition reduction and adult education (FSW Act Title II)	FY2030 · Appropriation	57	86	107	Analog: the 2023 federal free community college proposal, about $90B over ten years [939].	939	High (Data M · Model M · Behavior M)
P13 · National dual apprenticeship pipeline (COLT Act Title V)	FY2030 · Appropriation	6	9	20	Analog: CBO's estimate for the National Apprenticeship Act of 2020, about $0.6–0.8B a year assuming appropriation [941], plus the apprentice wage credit. High allows a larger credit.	941	Medium (Data M · Model L · Behavior M)
P94 · Federal paid sick leave standard (WFA Title III)	FY2030 · Appropriation	0.5	1	3	CBO: the Healthy Families Act costs the federal budget about $0.1B a year (federal employees and enforcement) [928]. Its main cost falls on employers as a mandate, not on the budget.	928	Medium (Data L · Model L · Behavior M)
P64 · Strategic domestic technology investment (IIC Act Title II)	FY2030 · Appropriation	20	50	100	Analog: the CHIPS Act appropriated about $52.7B over five years [938]; the central case assumes half that pace, set by appropriation.	938	High (Data M · Model M · Behavior M)
P89 · Diplomatic restoration and development finance	FY2030 · Appropriation	5	10	20	Analog: restoring Millennium Challenge Corporation and development finance levels, about $1B a year.	—	Medium (Data M · Model L · Behavior L)
P24 · EMS stabilization grants (COLT Act Title IV)	FY2030 · Appropriation	2	5	15	The grant amount is not yet set; the central case assumes $0.5B a year. Ambulance billing protections mainly regulate private charges.	—	High (Data H · Model M · Behavior L)
Small items · allowance (itemized below)	FY2030 · Appropriation	20	40	120	A placeholder of $4B a year for items each likely under $1B a year: voting holiday, free voter IDs and state grants, free firearm certificates, federal inspectors, USPS electrification, agricultural electrification, Pentagon audit, FDA reform, the MMIW office, and the S-1, S-2, S-3 and S-5 vehicles. High allows for a larger NASA and Space Force expansion.	—	High (Data H · Model M · Behavior L)
Total		155	336	830			

Revenue and Savings

What pays for it	Starts · type	Low	Central	High	How it is estimated	Sources	Uncertainty
P1 · IRS enforcement and statutory Direct File, net of cost (COLT Act Title I)	FY2030 · Revenue	60	125	450	Central uses CBO's net return on enforcement funding, about $125B a decade [308, 309], with a hiring ramp because the IRS lost much of its workforce in 2025–26 [311]. CBO counts only direct enforcement revenue. Low: capacity rebuilds slowly. High: estimates that include deterrence, as Treasury's do [4].	308, 309, 311, 4	High (Data M · Model M · Behavior H)

What pays for it	Starts · type	Low	Central	High	How it is estimated	Sources	Uncertainty
P4 · Close wealth-accumulation loopholes (BWDS Act Title III)	FY2033 · Revenue	**184**	**283**	**326**	Treasury Greenbook: capital income reform about $289B, estate, gift and trust reforms $97.2B, carried interest $6.6B; $392.8B over 2025–2034 [821]. Reduced 15% for the changed baseline and grown 4%. Scored before the billionaire income tax (stacking order).	821	High (Data M · Model M · Behavior H)
P5 · Billionaire income tax (BWDS Act Title II)	FY2033 · Revenue	**191**	**335**	**622**	The bill taxes billionaires' gains each year as income (mark-to-market on traded assets, a deferral charge on other assets, and tax at death), the design JCT scored at $557B over 2022–2031 [930]; Penn Wharton found $507B [931]. Reduced 10% for overlap with the loophole closures, grown 4% a year, and weighted for legal risk at even odds, since four Justices in Moore signaled that realization is required: if a court strikes the annual inclusion, Sec. 204(f) keeps the deferral charge and tax at death, assumed to keep 40% of revenue within the window. Low: fallback only. High: upheld, with a rate above the capital gains rate.	930, 931, 316	Very high (Data M · Model H · Behavior H · Legal M)
P93 · Paid leave dedicated contribution, set to cover the program (WFA Title II Sec. 203)	FY2033 · Revenue	**533**	**592**	**609**	Sec. 203 sets the contribution each year at the rate the Social Security Chief Actuary certifies will cover projected benefits and administration, so the program pays for itself, as Social Security does. Shown equal to the benefit line above. Low: a year's lag in adjusting the rate.	815	Low (Data L · Model L · Behavior M)
P5 · Digital services levy (BWDS Act Title I)	FY2033 · Revenue	**24**	**47**	**95**	The rate is not yet set. The UK's 2% levy was projected to raise about £0.4B a year and France's about €0.5B [943]; scaled to a U.S. digital market roughly ten times larger, a 2–3% levy raises about $6B a year, growing 6%. High: a 3% rate on a broader base. Low: avoidance and narrow thresholds.	943	High (Data H · Model M · Behavior M)
P19 · Medicare Advantage coding accuracy: minimum adjustment raised from 5.9% to 7% in 2030 and 8% from 2031 (COLT Act Sec. 405)	FY2030 · Mandatory savings	**193**	**258**	**297**	CBO option: raising the coding-intensity adjustment to 8% saves about $200B over 2026–2035 [944, 945]. Phased in: about half the full saving in 2030 (7%), full from 2031 (8%). Grown 7% a year with Medicare Advantage spending. Insurers' overstated diagnoses pay for the coverage bridge; beneficiaries' benefits and premiums are unchanged by law, though plans may trim extras.	944, 945	Medium (Data L · Model M · Behavior M)

What pays for it	Starts · type	Low	Central	High	How it is estimated	Sources	Uncertainty
P23 · Site-neutral Medicare payment for off-campus outpatient services, rural hospitals exempt (COLT Act Sec. 406)	FY2030 · Mandatory savings	**126**	**180**	**198**	CBO option: paying the same rate for most services whether delivered in a hospital outpatient department or a physician's office saves about $180B over 2026–2035 [944, 945]. Reduced 15% for the rural exemption, grown 5%, half-year first year. Patients' coinsurance falls with the payment.	944, 945	Medium (Data L · Model M · Behavior M)
COLT · Corporate income tax rate from 21% to 23% (COLT Act Sec. 304)	FY2030 · Revenue	**255**	**319**	**335**	CBO option: each percentage point on the corporate rate raises about $140B over 2026–2035 [944, 946], so two points raise about $280B. Grown with GDP; 60% in FY2030 because the rate starts with tax years after 2029. Low: more profit shifting and interaction with the 2025 law's international rules, which CBO's estimate predates. Fallback at 22%: about half.	944, 946	Medium (Data L · Model M · Behavior M)
P19 · Public option savings (POHE Act)	FY2033 · Mandatory savings	**0**	**73**	**243**	CBO (2013): a public plan saves $158B over ten years [57]. Grown with health costs and cut by 70% because the estimate is old and later CBO work ties savings to payment rates [319]. High: the full updated estimate.	57, 319	Very high (Data H · Model H · Behavior M)
P73 · Military contractor savings (executive)	Not counted	**0**	**0**	**100**	No mechanism is specified and no scorekeeper has estimated it, so nothing is counted. The high case shows $100B to mark the potential.	—	Very high
Total		**1,566**	**2,213**	**3,274**			

The Bottom Line

Ten-year effect, FY2030–2039	Favorable case	Central case	Conservative case
Costs	▲ **$2.4T**	▲ **$3.7T**	▲ **$5.3T**
Revenue and savings	▼ **$3.3T**	▼ **$2.2T**	▼ **$1.6T**
Pay-as-you-go limit on Phase II family programs	Not binding	▼ **$180B**	▼ **$742B**
Effect before interest	▼ **$890B**	▲ **$1.3T**	▲ **$3.0T**
Interest on the change in debt	▼ **$120B**	▲ **$218B**	▲ **$566B**
Ten-year effect on the deficit	▼ **$1.0T**	▲ **$1.5T**	▲ **$3.5T**
Same, FY2027–2036 (CBO's current window)	▼ **$504B**	▲ **$816B**	▲ **$2.1T**

The favorable case takes every cost at its low end and every revenue line at its high end; the conservative case does the reverse. Both are extremes: they require every line to land at the same edge at once. The likely range comes from the simulation below. Counting only the lines with an official or independent estimate, the central case is ▲ **$1.1T**.

Year by Year

Fiscal year	Costs	Revenue and savings	Before interest	Interest	Effect on the deficit
2030	▲ **$91B**	▼ **$38B**	▲ **$54B**	▲ **$1B**	▲ **$55B**
2031	▲ **$146B**	▼ **$71B**	▲ **$75B**	▲ **$4B**	▲ **$79B**

Fiscal year	Costs	Revenue and savings	Before interest	Interest	Effect on the deficit
2032	▲ $167B	▼ $77B	▲ $90B	▲ $7B	▲ $97B
2033	▲ $283B	▼ $173B	▲ $110B	▲ $11B	▲ $121B
2034	▲ $400B	▼ $276B	▲ $124B	▲ $16B	▲ $140B
2035	▲ $419B	▼ $289B	▲ $131B	▲ $22B	▲ $152B
2036	▲ $446B	▼ $301B	▲ $145B	▲ $28B	▲ $173B
2037	▲ $475B	▼ $315B	▲ $160B	▲ $35B	▲ $195B
2038	▲ $505B	▼ $329B	▲ $177B	▲ $43B	▲ $220B
2039	▲ $538B	▼ $343B	▲ $195B	▲ $52B	▲ $247B
Total	▲ $3.5T	▼ $2.2T	▲ $1.3T	▲ $218B	▲ $1.5T

Costs are shown after the pay-as-you-go limit. Phase II begins in FY2033, which is why costs and revenue both step up that year. Revenue grows more slowly than the family and health programs it pays for, so the yearly effect widens through the decade.

How Sure Are These Numbers?

Each line has a low, central, and high value. The simulation draws every line at once, 20,000 times, from a triangular distribution over those three values. Lines that tend to succeed or fail together move together: the four revenue lines that depend on enforcement and the courts (correlation 0.6), and the family programs whose cost depends on how many families sign up (0.5).

Simulated ten-year effect, with interest	Amount
5th percentile — better than 95 of 100 outcomes	▲ $991B
10th percentile	▲ $1.1T
Median	▲ $1.5T
Average	▲ $1.5T
90th percentile	▲ $1.9T
95th percentile — worse than 95 of 100 outcomes	▲ $2.0T

The median (▲ **$1.5T**) sits slightly above the central case (▲ **$1.5T**) because several lines have more room to cost more than to cost less. Uncertainty ratings follow the UK Office for Budget Responsibility: *Low* means a recent official estimate of nearly the same policy; *Very high* means the design is still open or the line depends on a court or on behavior with little precedent.

What Could Change the Answer

Each row changes one thing and holds everything else at the central case of ▲ **$1.5T**.

If…	Ten-year effect, with interest	Change
Interest rates 0.5 point higher than assumed	▲ $1.5T	▲ $31B
Interest rates 0.5 point lower than assumed	▲ $1.4T	▼ $30B
Interest at today's 10-year Treasury yield (4.9%) throughout	▲ $1.5T	▲ $63B
Billionaire tax: annual mark-to-market struck down, fallback applies	▲ $1.5T	About the same
Billionaire tax: upheld in full at a higher rate	▲ $1.4T	▼ $121B
Every uncertain revenue line fails (IRS, loopholes, billionaire tax, digital levy, public option)	▲ $1.7T	▲ $230B
Medicare offsets not enacted	▲ $2.0T	▲ $520B

If…	Ten-year effect, with interest	Change
Corporate rate set at 22% instead of 23%	▲ **$1.7T**	▲ **$190B**
Phase II takes effect two years later (FY2035)	▲ **$1.4T**	▼ **$45B**
Phase II is never enacted	▲ **$1.3T**	▼ **$168B**
Family-program take-up 25% higher	▲ **$1.8T**	▲ **$274B**
Family-program take-up 25% lower	▲ **$1.2T**	▼ **$310B**
IRS enforcement at the high (deterrence-inclusive) estimate	▲ **$1.1T**	▼ **$381B**

Three results stand out. The Medicare offsets are the largest single protection: without them the agenda would add $2.0 trillion. Family take-up is the largest cost uncertainty. And because the Phase II family programs are paced by Phase II revenue, a court loss on the billionaire income tax mostly slows those programs instead of adding to the deficit; the bill also keeps its deferral charge and tax at death if the annual inclusion is struck down (BWDS Sec. 204(f)), and with only that fallback the ten-year effect is $1.5 trillion. Interest rates matter more for the baseline than for this agenda: 0.5 point higher adds $31 billion to the agenda's own interest cost, but $1.9 trillion to the nation's, which is why revenue comes first in the sequence.

Social Security in Its Own Ledger

S-6 applies the payroll tax to earnings above $250,000. CBO estimates a policy of this kind at $1,426.8 billion over 2025–2034 [Source 811]; shifted to the agenda's window, it raises about **$1.8 trillion** over FY2030–2039. The Social Security Chief Actuary estimates it closes about 57% of the program's 75-year gap [Source 810]. CRFB's estimate for the same policy — 70% of the 2025 gap — equals about 60% of the larger 2026 gap, which agrees [Source 936].

The money goes only to the Social Security trust funds and is never used to offset other spending (S-6 Sec. 3). CBO reports trust-fund revenue in the unified budget, so for comparison: counting S-6 there, the agenda's ten-year effect would be ▼ **$677B** instead of ▲ **$1.5T**.

Comparison with Other Agendas

Agenda	Who estimated it	Window	Effect with interest	Range
This agenda	This review	FY2030–2039	▲ **$1.5T**	▲ **$1.1T** to ▲ **$1.9T** likely; ▼ **$1.0T** to ▲ **$3.5T** at the extremes
This agenda, CBO's current window	This review	FY2027–2036	▲ **$816B**	—
Public Law 119-21 (enacted 2025)	CBO	FY2025–2034	▲ **$4.1T**	▲ **$3.4T** before interest; ▲ **$5.0T** if its temporary provisions are extended [Sources 804, 805]
2024 Democratic campaign plan (Harris–Walz)	CRFB	FY2026–2035	▲ **$3.95T**	▲ **$0.3T** to ▲ **$8.3T** [Source 929]

This agenda's window starts later, so its dollar figures are larger for the same policy, since the economy and prices grow about 4% a year. That makes the comparison stricter on this agenda, not easier. CRFB scored the 2024 Democratic campaign plan, not the party's written platform; the platform itself was not scored. Tariffs and the 2025 law's effects on the wider economy are additional to the CBO figures shown.

Where the Money Goes — Revenue Allocation

Several bills name the same revenue as a funding source. The rule is simple: within the ten-year ledger, every revenue line offsets the ledger as a whole and is counted once. Dedications written into the bills take effect only when their shares are set, and each stream's shares must total 100 percent.

Revenue stream	Bill	Central estimate	Destination as written	Allocation status
High-income enforcement	COLT Act Sec. 301	▼ **$125B**	Offsets COLT Titles I–II	Fixed
Billionaire income tax	BWDS Act Title II	▼ **$335B** (risk-weighted)	General revenue; counted toward the FSW Act Sec. 5 limit; named as a source for the Federal Healthcare Fund (UCT Sec. 301(b)(3))	Share not yet set
Digital services levy	BWDS Act Sec. 101(f)	▼ **$47B**	Children's investment accounts and the Federal Healthcare Transition Reserve; counted toward the FSW Act Sec. 5 limit	Shares not yet set
Loophole closures and offshore enforcement	BWDS Act Title III	▼ **$283B**	General revenue; counted toward the FSW Act Sec. 5 limit	Fixed
Corporate income tax, 21% to 23%	COLT Act Sec. 304	▼ **$319B**	Offsets COLT Titles II and V	Fixed
Medicare payment accuracy	COLT Act Secs. 405–406	▼ **$438B**	Offsets COLT Title IV (Sec. 303); no transfer out of the Medicare trust funds	Fixed
Debt-equity parity	BWDS Act Title IV	Revenue-neutral by design	None	Fixed
Paid leave contribution	WFA Sec. 203	▼ **$592B**	Paid Family and Medical Leave Trust Fund	Rate set each year to cover benefits
Payroll tax above $250,000	S-6 Sec. 4	▼ **$1.8T**	Social Security trust funds only	Fixed — never offsets other spending
AIPE Fund returns	AIPE Act Sec. 7	Unscored (Phase II onward)	Healthcare transition, Social Security Solvency Reserve, children's accounts	Percentages set by statute and must total 100 percent
Healthcare payroll contribution	UCT Act Sec. 301(b)(1)	Outside the window	Federal Healthcare Fund	Fixed
Military base-budget reallocation	UCT Act Sec. 302	Outside the window	Federal Healthcare Fund, only with readiness certification	Fixed
Military-contractor savings	Executive (E-16)	Not counted	General revenue	Fixed

What the Small-Items Allowance Covers

These items are too small or too open to estimate one by one. Each is likely under $1 billion a year; together they are carried as an allowance of $4 billion a year (range $2–12 billion). The figures are orders of magnitude, not estimates.

Item	Proposal or vehicle	Likely size
National voting holiday (federal workforce, election years)	P26 · Bill 3B	Under $1B a year
Free voter IDs, free documents, and state grants	P35 · Bill 3B Sec. 204	$0.1–0.5B a year
Free firearm certificates and training (Phase II)	P30 · NFSA	$0.5–2B a year
Restore and expand federal inspectors	P62 · IIC Title IV	$0.5–1B a year
USPS electrification	P67 · IIC Title III	$0.3–1B a year
Agricultural electrification grants	P79 · executive	$0.2–0.5B a year
Pentagon audit, FDA reform study, MMIW cold-case office	P72, P84, P113	Under $0.3B a year together
Standalone vehicles S-1, S-2, S-3 (beyond P14), S-5	P22, P32, P14, P60	Under $0.3B a year together
NASA and Space Force expansion (Phase II)	P70 · NDAA	Open; drives the high end of the range

Proposals Not Yet Scored

These proposals have budget effects but cannot yet be estimated responsibly, usually because the bill leaves a key amount open. They are outside the totals, so the totals may move in either direction as they are scored.

Proposal	Phase	Direction	What would score it
P90 · Selective & streamlined immigration	I	▼ Likely reduces deficits	CBO has found that higher immigration lowers federal deficits [Source 937]; the size depends on admission levels.
P8 · Automatic stabilizers (ECFA Title II)	I	Zero without a recession	A recession scenario; the payment cap in Sec. 202 is not yet set.
P6 · AI sovereign wealth fund (AIPE Act)	II	Open	A scoring convention for equity holdings (cash or fair-value basis); returns are credited under AIPE Sec. 7.
P11 · Debt-equity tax parity	II	Neutral by design	The parameters that make it revenue-neutral (BWDS Sec. 403).
P7 · Benefit-threshold indexing (ECFA Sec. 103)	I	▲ Small to moderate cost	OMB's list of unindexed thresholds; most large programs are already indexed.
P61 · Transmission and loan authority	I	▲ Cost	Loan volumes, scored on a credit-reform basis.
P10, P12 · Technology prizes and industrial commons	I	▲ Cost, set by appropriation	The appropriated amounts.
P88 · State disaster trust accounts	II	Restructures existing aid	FEMA reform estimates.
P108 · Underbanked access pilot	II	▲ Small	Postal Service Inspector General analyses.
P9 · SAFE Banking	I	Small	Effect of bank access on reported income.

Proposals that work mainly as rules rather than spending — antitrust, fair pricing, lending, data rights, zoning, permitting, workforce, second-chance, and governance titles — carry administrative costs (likely under $5 billion per decade each) or costs that fall on the regulated parties, not the budget. CBO counts those separately as mandates; the paid sick leave standard is an example, costing employers tens of billions of dollars a year but the budget about $0.1 billion [Source 928].

Long-Run Commitments Outside the Ten-Year Window

Proposal	Long-run fiscal profile	Source
P19 · Universal coverage (Phase III)	Upper bound if enrollment becomes universal: federal cost of $32.6–38.0 trillion over a ten-year period in 2020-era estimates, largely replacing private premiums and out-of-pocket spending; national health expenditure ranges from $0.7 trillion lower to $0.3 trillion higher in 2030 depending on provider payment rates. To be re-estimated before the UCT Act's gate opens.	CBO (2020); Urban Institute (2019); Mercatus Center (2018) [Sources 817, 818, 819]
P21 · Social Security Modernization (solvency stage in S-6, before 2032)	Financed in its own trust-fund ledger: about $1.8 trillion over FY2030–2039, closing about 57% of the 75-year gap.	CBO Budget Option 60955; Social Security Chief Actuary (Sept. 2026) [Sources 811, 810]
P68 · National High-Speed Rail Network (Phase III)	Not yet estimated; to be scored against corridor-level engineering estimates before Phase III.	—
The agenda as a whole	The yearly effect reaches about $247 billion in 2039 (about 0.5% of GDP) and would keep growing after the window unless Phase II revenue is raised. The pay-as-you-go rule holds the Phase II family programs to their revenue; AIPE Fund returns and any added Phase II revenue are the remaining levers.	This review

Effects on the Economy and on Households

The ledger uses conventional scoring, as CBO's cost estimates do: it does not add any boost or drag from the agenda's effect on the wider economy. Those effects are real and run both ways.

- **Borrowing.** Added debt raises interest costs and can crowd out private investment. CBO's dynamic analysis found the 2025 tax law's effects on the economy *increased* its cost [Source 337]. This agenda's smaller deficit and revenue-first sequence limit that drag, but do not remove it.
- **Work and investment.** CBO found that expanding subsidized child care would raise parents' participation in the labor force [Source 814]; paid leave keeps workers attached to jobs; infrastructure spending has measurable short-run effects [Source 28]. Higher taxes on top wealth and capital income lower saving at the top.
- **Who pays and who gains.** The revenue lines fall on the highest-income and highest-wealth households; the largest costs are credits and benefits aimed at families below about three times the poverty line. The direction is clearly progressive. Quantified distribution tables, by income group and household type in the style of CBO, the Tax Policy Center, and the Netherlands Bureau for Economic Policy Analysis [Sources 330, 334, 935], require a microsimulation model and are the next step before any bill is introduced.

Five Conclusions

1. **The agenda costs less than recent choices.** Its central effect is ▲ **$1.5T** over ten years with interest. The 2025 tax law adds $4.1 trillion by CBO's count, over an earlier window. All 20,000 simulated outcomes for this agenda fall below that.
2. **It is not deficit-neutral, and the gap grows.** The yearly effect reaches about $247 billion by 2039. Four provisions keep it in check without cutting a benefit — a self-financing paid-leave contribution, two Medicare payment-accuracy offsets, a 23% corporate rate, and a pay-as-you-go limit on the Phase II family programs — and AIPE Fund returns are the next lever.
3. **The revenue side is the largest uncertainty, stated rather than hidden.** The billionaire income tax is counted at a risk-weighted value; if its annual inclusion is struck down and only the bill's fallback survives, the agenda adds $1.5 trillion. If every uncertain revenue line fails, it adds $1.7 trillion.
4. **Interest rates now matter more than any single proposal.** Rates 0.5 point above CBO's path add $1.9 trillion to the nation's deficits through 2036. That makes the revenue-first sequence a fiscal requirement, not a preference.
5. **Social Security is financed in its own ledger.** Applying the payroll tax to earnings above $250,000 closes about 57% of the long-range gap [Source 810]; it is never used to offset general spending.

The Durability Contrast

Dimension	This Agenda	Project 2025	Why
Legislative development	Advanced drafts; not introduction-ready	High	Sixteen bills and five drafted standalone vehicles with one aligned sequencing map; 325 amounts, rates, thresholds, and dates remain marked [TBD] for legislative counsel and CBO.
Executive readiness	Developing	High	Methodology and position profiles complete; the vetted-personnel database is the remaining gap, stated plainly.
Political durability	High	Low	Policy stickiness by design; vulnerable executive programs are written into statute.
Fiscal credibility	High	Low	Line-item ledger built to scorekeeper rules, with a published model anyone can rerun; every simulated outcome falls below the comparator's enacted cost.

Ratings are this agenda's own assessment, based on the evidence presented in Parts VI and VII; readers can test them against the sources in Part XI.

Working Values for Amounts the Bills Leave Open

The bills mark 325 amounts, rates, thresholds, and dates as [TBD] for legislative counsel and CBO. About fifteen of them drive the numbers in this Part. The values below are the ones this review assumes, so the bills and the ledger describe the same policy. Counsel and CBO may change any of them; if they do, the inputs file changes and every table is rebuilt.

Bill and section	Open amount	Working value used in this Part	Basis
COLT Act Secs. 201–202	Childcare credit and supply grants	Costs capped at 7% of income for households up to about 300% of the poverty line; supply grants at the scale of the 2021 design	Half the child care cost CBO scored for that design [Sources 925, 926]
COLT Act Sec. 401	Effective date of restored premium credits	Tax years beginning after December 31, 2029	First plan year after enactment
COLT Act Sec. 403	Rural Health Transformation funding	$10 billion a year	Current-law level [Source 454]
COLT Act Sec. 404(c)	EMS stabilization grants	$0.5 billion a year	Assumption
COLT Act Sec. 501	Apprenticeship grants and credit	About $0.9 billion a year in total	National Apprenticeship Act analog [Source 941]
COLT Act Sec. 502	Teacher salary floor and grants	$60,000 floor; grants reaching $15 billion a year by FY2032	Gap-filling grants only; see the ledger note
ECFA Sec. 101	Starting wage floor	$17 an hour, reached over four years, then indexed	The level CBO scored in 2023 [Source 816]
FSW Act Sec. 101	Near-universal childcare expansion	7% cap extended to nearly all families, as in the 2021 design	The other half of the CBO-based cost
FSW Act Sec. 501	Children's account contributions	Up to $2,000 a year at or below the poverty line, phasing to zero at 500% of poverty	Booker-scale design [Source 942]
WFA Sec. 202	Paid leave weeks and benefit	12 weeks; replacement rate and weekly cap set so total benefits match the FAMILY Act design (two-thirds of wages up to about $1,000 a week)	CBO's FAMILY Act estimate [Source 815]
WFA Sec. 203	Reserve and rate ceiling	Six months of benefits in reserve; contribution ceiling of 1% of wages	Covers the program with a margin
BWDS Act Sec. 101	Digital services levy	3% on U.S. digital revenue of companies with more than $1 billion in global revenue and $50 million in U.S. digital revenue	Scaled from the UK and French levies [Source 943]
BWDS Act Sec. 201(e)	Rate above the capital gains rate	None in the central case; up to the ordinary income rate in the high case	The design JCT scored [Source 930]
IIC Act Titles III, V, VI	Air traffic control, water, and preparedness funding	$30 billion over five years; $9.8 billion a year; $1 billion a year	See the ledger notes [Source 823]
TSTR Act Title I	Indian Health Service funding	Set in tribal consultation; the ledger's even phase-in to the workgroup's figure is illustrative only	[Source 827]

Reproducing These Numbers

Every figure in this Part is produced by the ARA Fiscal Model. Its files are attached to the PDF edition of this document (open the attachments panel in a PDF reader) and travel with it as a companion file set: a short Python program (fiscal_model.py), a single inputs file (ara_fiscal_inputs.json) holding every amount, factor, and source number, and a workbook of the results (ARA_FiscalModel_2026.xlsx). With Python and the numpy, scipy, and openpyxl packages installed, running python3 fiscal_model.py and then python3 gen_part6.py rebuilds every table and figure in this Part from the inputs.

Element	Rule or value
Adjusting an older estimate	Yearly amount = (source total ÷ years in the source window) × adjustment factors × (1 + growth rate) ^ (year − middle of the source window) × ramp-up share for that year

Element	Rule or value
Growth rates	GDP 4.0% · wages 4.0% · health costs 5.0% · childcare costs 4.5% · capital income and wealth 4.0% · clean-energy build-out 8.0% a year
Interest	Interest in year t = r × (added debt through year t − 1 + ½ × change in the deficit in year t); added debt includes earlier interest. r = 3.9%, a blend of CBO's projected 4.3% 10-year rate and lower short-term rates [Sources 800, 922]
Revenue stacking order	IRS enforcement → loophole closures → billionaire income tax (×0.9 for overlap) → public option savings
Legal-risk weight	Billionaire income tax: an even (0.5) chance the annual inclusion is upheld; if not, the Sec. 204(f) fallback keeps 40% of revenue in the window (central factor 0.70; low case 0.4, fallback only; high case 1.3, upheld at a higher rate)
Pay-as-you-go limit	In each year, gated cost = the lesser of (childcare expansion + children's accounts) and (billionaire income tax + loophole closures + digital levy)
Simulation	Triangular distribution per line over (low, central, high); revenue lines that depend on enforcement and courts correlated at 0.6, family take-up lines at 0.5; 20,000 draws, fixed seed 2028
GDP for debt ratios	About $45 trillion in 2036, implied by CBO's higher-rate scenario ($1.9 trillion of added debt equals 4.2 points of GDP) [Source 922], grown 4% a year after 2036
Data vintages	CBO outlook, February 2026 · CBO tariff update, August 20, 2026 · CBO rules of thumb, April 2026 · CBO higher-rate scenarios, October 8, 2026 · Social Security and Medicare Trustees, 2026 · FY2026 Treasury results, October 16, 2026 · Treasury yields, early November 2026
Update rule	When CBO issues a new baseline, or CBO or JCT scores any bill in this agenda, the inputs file is updated and every table is rebuilt; an official score replaces any analog. Published versions are kept with a record of what changed.

THE ANALYSIS · PART VII

Constitutional and Procedural Durability

The third test: an agenda must score well on its merits, be fiscally feasible, and survive the courts and the Senate's rules.

Why Durability Is Tested Separately

Part III asks whether each proposal is worth doing. Part VI asks whether the country can afford it. This Part asks the question a serious opponent will ask next: will it hold? A bill that passes and is then struck down, or a reconciliation title that the Senate Parliamentarian removes before the vote, delivers nothing. Durability is this agenda's central claim against its principal comparator, so it is tested here on its own terms.

The analysis draws on constitutional research completed in April 2026 across seven doctrinal areas, updated for the Supreme Court decisions issued through the end of the October 2025 Term. It is planning analysis, not a legal opinion: it has not been reviewed by licensed counsel, and every bill requires review by the Office of Legislative Counsel before introduction.

The Decisions That Reshaped the Field

Decision	What it held	What it means for this agenda
NYSRPA v. Bruen (2022); *United States v. Rahimi* (2024)	Firearms rules must fit the nation's historical tradition; *Rahimi* asks whether a law fits the principles of that tradition, not whether it has a historical twin. *Bruen* footnote 9 endorses shall-issue licensing with objective criteria.	The firearms bill is built as shall-issue certification with objective criteria only — the structure every circuit to reach the merits has upheld.
Moore v. United States (2024)	Upheld a tax on undistributed foreign earnings through attribution, while expressly reserving whether unrealized gains may be taxed; four Justices signaled that realization is required.	The billionaire income tax leans on its most settled components — deemed realization at death and an interest charge collected only at realization — with a prepared fallback.
Moody v. NetChoice (2024); *Free Speech Coalition v. Paxton* (2025)	Content curation by platforms is protected editorial judgment; age verification survives only within the obscenity-as-to-minors category.	The digital rights bill regulates data handling through generally applicable fiduciary duties, not content, and uses opt-in defaults rather than categorical bans for teenagers.
FCC v. Consumers' Research (2025)	Reaffirmed the "intelligible principle" test for delegation, 6–3.	The public option's automatic expansion trigger — a formula Congress writes itself — is on stable ground.
Trump v. Illinois (2025)	Rejected the claimed authority to federalize state Guard forces for domestic deployment.	Supports the Insurrection Act reforms in the anti-corruption package's second part.
Learning Resources v. Trump (Feb. 2026)	Struck down tariffs imposed under emergency economic powers.	Illustrates the stakes of emergency-power limits; the 30-day expiry rule rests on Congress's control of its own statutes.
Louisiana v. Callais (Apr. 2026)	Reinterpreted Section 2 of the Voting Rights Act to require proof of intentional discrimination.	Redistricting reform relies on the Elections Clause for congressional districts — which *Callais* does not reach — and moves state-legislative districts to the constitutional-amendment track.

Decision	What it held	What it means for this agenda
Trump v. Slaughter (June 2026)	Overruled *Humphrey's Executor* as applied to the Federal Trade Commission: the President may remove its commissioners at will.	No design in this agenda depends on for-cause removal protection. Antitrust enforcement runs through the Justice Department and Article III courts; inspector-general independence rests on notice, career succession, and pay status rather than removal limits.
Trump v. Cook (2026)	Upheld for-cause protection for Federal Reserve governors.	The Federal Reserve's independence remains intact; wage-floor indexing is placed in statute and an advisory commission, not delegated to the Fed.
NRSC v. FEC (June 2026)	Struck limits on party coordinated spending.	Confirms that statutory campaign-finance limits depending on a narrower *Citizens United* are not a near-term path; the agenda relies on disclosure, small-donor matching, and the amendment track.

Four Design Principles

The research converges on three principles that apply across every bill; the 2026 decisions add a fourth.

1. **Avoid content- and speaker-based distinctions.** Treating identical conduct differently based on who the speaker is or what they say is the common thread in the cases that strike laws down — from data-use rules (*Sorrell v. IMS Health*) to digital advertising taxes (*Chamber of Commerce v. Lierman*).
2. **Anchor each provision in a long-standing federal tradition with surviving precedent.** The tax provisions build on decades-old mark-to-market and interest-charge rules; the data provisions on professional fiduciary regulation; the ethics provisions on the Ethics in Government Act and revolving-door law; the firearms bill on shall-issue licensing and the National Firearms Act registration tradition.
3. **Build legislative records that meet today's evidentiary standards.** Courts now require causation rather than correlation for protections aimed at minors, and the quality of the record built before a challenge matters as much as the statutory text.
4. **Do not depend on removal protection; prefer statute and the tax code to administrative discretion.** After *Slaughter*, independence is protected by process and transparency, and programs meant to last are written into law rather than left to executive action.

The Senate's Rules: Reconciliation Exposure

Budget reconciliation lets the Senate pass budget legislation by simple majority, but the Byrd rule (2 U.S.C. §644) allows any senator to strike provisions that are "extraneous" — most often, provisions whose budgetary effect is "merely incidental" to their policy effect. The test is applied by the Parliamentarian, and dollar size alone does not save a provision: in 2021, immigration provisions scored at $140 billion were struck as primarily policy. The 2025 reconciliation law is the controlling recent precedent. Tax credits, direct appropriations, and Medicare and Medicaid spending adjustments survived; new regulatory architecture did not — including a workforce Pell expansion to unaccredited providers, the closest analog to this agenda's workforce titles.

Bill and title	Structure	Exposure	Design response
COLT, Title I — free filing	Appropriation plus statutory permanence	Moderate	The appropriation is low-risk; the free-standing permanence mandate is the higher-risk element. Fallback: fund operations in reconciliation and enact permanence in standalone legislation.
COLT, Title II — childcare credit	Refundable tax credit	Low	The tax-credit form is the most Byrd-compliant structure for the 7% cap.
COLT, Title III — revenue and offsets	Corporate rate change; offset-scoring rules	Low	A rate change in section 11(b) is the clearest reconciliation provision there is; the scoring-direction sections are incidental and severable.

Bill and title	Structure	Exposure	Design response
COLT, Title IV — coverage bridge and Medicare offsets	Tax credit restoration; matching-rate change; appropriation; Medicare payment changes	Low (credits, funding, Medicare payment); moderate (ambulance billing)	Medicare Advantage and outpatient payment changes are direct spending of the kind the Parliamentarian has routinely allowed. Ground-ambulance billing protections affect premiums but are largely regulatory; Parliamentarian determination required, with standalone health legislation as the fallback.
COLT, Title V — workforce and teachers	New pipeline grants; employer tax credit; incentive grants	Moderate–High	The employer apprenticeship credit is low-risk. The grant pipeline should be structured as supplements to existing registered-apprenticeship and workforce accounts rather than new program architecture.
COLT, Title VI — local journalism	Tax credit; block grants	Low	Content-neutral tax credit and formula grants.
IIC — energy and manufacturing	Grants, loans, loan authority; domestic-content and wage conditions	Low (funding); moderate–high (conditions)	Domestic-content and prevailing-wage conditions on grants face strike risk; the prepared fallback converts them into bonus-credit conditions on tax credits, which survived in 2022.
ECFA, Title II — recession stabilizers	Direct-spending triggers	Low	Automatic payments and matching-rate increases are direct budget effects.
WFA, Title II — paid leave insurance	New social-insurance program with dedicated contribution	Moderate–High	Budgetary in substance, but a new program architecture; job-protection provisions are already separated into a standalone title.
FSW — family and workforce	Credits; supplements; children's accounts; infrastructure corps	Low (credits, accounts); high (new training architecture)	Training provisions follow the 2025 lesson: supplement existing accounts; avoid new eligibility and governance structures and wage-parity conditions.
BWDS — revenue	Tax code amendments	Low (procedurally)	Tax provisions are budgetary by nature; the risk here is constitutional, not procedural.
S-6 — Social Security solvency	Payroll tax and benefit provisions	Not available	Section 310(g) of the Congressional Budget Act bars Social Security changes in reconciliation, so the solvency title is a standalone bill that needs 60 Senate votes and is kept out of every reconciliation package.

Bill-by-Bill Constitutional Profile

The table summarizes each bill. Provision-level analysis, prepared fallbacks, and open drafting questions are in the notes for counsel at the end of each bill in Part IX.

Bill	Constitutional basis	Settled ground	Contested ground
1 · COLT	Taxing and Spending Powers	Refundable credits; IRS appropriations	Statutory permanence in a reconciliation vehicle (procedural)
2 · IIC	Spending, Commerce Clause	Grants, loans, tax credits; water and disaster funds	Grant conditions on domestic content and wages (procedural)
3 · ACFM Part A	Art. I §5, Commerce Clause, Fourteenth Amendment §5	Real-time financial disclosure (*Duplantier*); 1–2 year revolving-door limits; stock trading is not a legislative act (*Brewster*)	Evidence drawn from committee briefings (*Helstoski*; the *Rayburn*/*Renzi* split) — handled by Ethics Committee primary enforcement and segregation of privileged evidence; graduated officer liability scaled to the *Park*, *DeCoster*, and *Staples* standards
3 · ACFM Part B	Elections Clause; Congress's powers over appropriations and the armed forces	Congressional redistricting commissions (*AIRC*, *Moore v. Harper*); automatic registration; standards for State voter-identification rules, with free ID (*Crawford*); disclosure	Insurrection Act limits (untested against Commander-in-Chief claims); a statutory foreign-interference offense must stay confined to knowing falsehoods coordinated with foreign principals

Bill	Constitutional basis	Settled ground	Contested ground
4 · FSW	Taxing and Spending Powers	Credits and account deposits	Training architecture (procedural)
5 · BWDS	Sixteenth Amendment; excise power	Deemed realization at death (exit-tax analog); interest charge collected at realization; digital levy as a uniform excise	Annual mark-to-market on individuals' unrealized gains (*Moore* reserved; four Justices skeptical)
6 · POHE	Spending; Necessary and Proper	Self-executing expansion formula (nondelegation stable)	Coordination with ERISA's remedy provisions (drafting precision, not preemption)
7 · DRDO	Commerce, Spending	Generally applicable fiduciary duties; portability of user-provided data; under-13 protections anchored in existing law	Teen feed protections (opt-in defaults are more defensible than bans; no federal court has upheld a categorical algorithmic-feed ban for minors)
8 · HCI	Spending; Commerce Clause	Grant preferences well below the coercion threshold (*NFIB*, *Dole*); ownership registry (stronger than the Corporate Transparency Act, upheld in 2025)	Induced state ownership limits must be prospective; foreign-adversary acquisition limits (state analogs remain in litigation)
9 · UCT	Taxing and Spending Powers	Tax-funded coverage with no individual mandate	Provider rate-setting (must not be confiscatory); ERISA remedy coordination for migrated coverage
10 · AIPE	Spending; Necessary and Proper	Public investment fund	Co-investment terms (contract design)
11 · DIR	Article V; Article III	Supreme Court senior-status model has the strongest statutory footing of the term-limit options	Statutory term limits are untested; campaign-finance reform depends on the amendment track
12 · NFSA	Commerce Clause, with Taxing Power support	Shall-issue certification with objective criteria (*Bruen* fn. 9; *MSI v. Moore*); NFA registration analog (*Peterson*); voluntary state cooperation (*Printz*)	The assault-category definition — the bill's largest single vulnerability, mitigated by a two-feature test, "dangerous and unusual" findings, grandfathering, and certification rather than prohibition
13 · WFA	Commerce Clause	Paid leave, sick leave, noncompete limits	Binding first-contract arbitration (not yet the subject of dedicated research; counsel priority)
14 · SCPS	Federal criminal law; Spending Clause	Federal record sealing; grant conditions	—
15 · TSTR	Indian Commerce Clause; trust responsibility	IHS funding; Truth and Healing Commission	Extending tribal criminal jurisdiction (builds on the 2022 VAWA framework; scope determined with tribal legal counsel)
16 · ECFA	Commerce; Spending	Indexing; automatic stabilizers; advisory commission	—

Where the Risk Concentrates — and the Prepared Fallbacks

The billionaire income tax. If the Court holds that unrealized gains are not income, annual mark-to-market for individuals would face apportionment, which is functionally fatal. The bill is structured so its strongest components stand alone: deemed realization at death, and an interest charge on deferral collected only when assets are sold, given, or bequeathed. The fallback is a billionaire minimum income tax on realized income.

Teen protections in the digital rights bill. Every categorical restriction on algorithmic feeds for minors litigated to date has been enjoined. The bill uses default-chronological feeds with opt-in for ages 13–17 and anchors under-13 protections in existing children's privacy law; a strong legislative record on causation is required.

The firearms bill's assault-category definition. Every circuit has upheld assault-weapon laws since *Bruen*, but the Supreme Court has signaled interest in the question. Certification rather than prohibition is the bill's main protection; Track A stands independently if Track B is narrowed.

Campaign finance and redistricting. Statutory limits that depend on a narrower *Citizens United* are not realistic under the current Court, and *NRSC* points the same way. The agenda relies on disclosure, small-donor matching designed around *Arizona Free Enterprise*, congressional redistricting under the Elections Clause, and the amendment

track for the rest.

Congressional stock-trading enforcement. Prosecutions that depend on information learned in committee face the Speech or Debate Clause. The bill makes the Ethics Committees the primary civil enforcers and requires privileged material to be segregated before any criminal referral.

First-contract arbitration. The workforce bill's binding arbitration panels have not yet received dedicated constitutional research and are flagged as a counsel priority before introduction.

What to Watch

At the time of the research, several pending matters could move the law during the bills' pendency, and each must be re-checked before introduction: further Supreme Court action on assault-weapon laws and the Third Circuit's en banc decisions in New Jersey firearms cases; the First Circuit's ruling on Maine's limit on super PAC contributions; lower-court application of *Callais*; and continued litigation over state minor-protection social media laws. Any of them would prompt a review of the affected bill.

THE TEXTS · PART VIII

The Executive Actions

Model texts for the 25 executive-led proposals, plus one companion directive — what a reform administration can begin on Day 1, and how each is made to last.

How to Read This Part

Of the agenda's proposals, 26 can be carried out primarily through executive authority. Part IV sets their timing; this Part supplies a model text for each — 27 texts in all, because E-8 is a companion directive to the Public Health Integrity Act (S-3) rather than a stand-alone executive proposal — so that the executive layer of the agenda is as concrete as the legislative series that follows.

Each text identifies its instrument, its legal authority, and its tier — **Day 1**, **Month 1–6**, or **Held until conditions exist**. Three instruments are used:

- **Executive orders** for government-wide policy that binds multiple agencies.
- **Presidential memoranda** for directing specific departments.
- **Secretarial directives** for actions within a single department's existing authority, usually carried out through rulemaking or enforcement.

Durability. Executive action is fast, but the next administration can reverse it. Every text therefore closes with a durability section naming what makes the action hard to undo: notice-and-comment rulemaking, contract terms, interagency agreements, or the bill that writes it into law. Where an action cannot be completed without Congress, the text says so.

Three actions are not executive in the strict sense, and are presented honestly. Shutdown accountability (E-7) is a change to congressional rules, offered as proposed rules text. War Powers compliance (E-3) is a presidential commitment paired with a legislative request. The bodily-autonomy pathway (E-26) is a legal and litigation strategy under existing federal law, preparing the ground for the Phase III standard.

General provisions. Each executive order and memorandum below incorporates the following standard provisions, stated once here: *(a) Nothing in this order shall be construed to impair or otherwise affect the authority granted by law to an executive department or agency, or the functions of the Director of the Office of Management and Budget relating to budgetary, administrative, or legislative proposals. (b) This order shall be implemented consistent with applicable law and subject to the availability of appropriations. (c) This order is not intended to, and does not, create any right or benefit, substantive or procedural, enforceable at law or in equity by any party against the United States, its departments, agencies, or entities, its officers, employees, or agents, or any other person.*

> **About these texts.** *These are model instruments for planning purposes. They have not been reviewed by the Office of Legal Counsel or agency general counsel, and statutory citations are to be verified before use.*

Day 1

E-1 · Restoring Alliances and Strategic Development Investment

Executive Order · Day 1 · Implements P89 (with statutory components in legislation)

Authority: The Constitution and laws of the United States, including the Foreign Assistance Act of 1961, the State Department Basic Authorities Act of 1956, the Millennium Challenge Act of 2003, and the BUILD Act of 2018.

Section 1. Purpose. Durable alliances are the largest strategic advantage the United States holds. Recent withdrawals from international organizations and the absorption of development capacity into the Department of State have weakened that advantage at the moment strategic competitors are expanding their own.

Sec. 2. Policy. It is the policy of the United States to restore the credibility of its commitments, to rebuild development capacity on durable foundations, and to sustain support for partners facing external aggression.

Sec. 3. Directives. (a) Within 60 days, the Secretary of State shall review each withdrawal from an international organization undertaken since January 2025 and recommend whether rejoining serves the national interest. (b) The Secretary shall convene consultations with treaty allies on shared security and economic priorities within 90 days. (c) The Chief Executive Officer of the Millennium Challenge Corporation shall present an expanded compact pipeline, and the Chief Executive Officer of the U.S. International Development Finance Corporation shall prioritize investments that reduce partner dependence on strategic competitors. (d) The Secretary shall transmit to Congress a proposed statutory charter for development assistance.

Sec. 4. Reporting. The Secretary shall report to the President within 120 days and annually thereafter.

Sec. 5. Durability. Rejoined organizations and concluded compacts carry treaty and contract obligations; the development charter is proposed for enactment so that development capacity cannot be dissolved by executive action alone.

E-2 · Pentagon Audit Accountability

Secretarial Directive (Secretary of Defense) · Day 1 · Implements P72

Authority: 10 U.S.C. §113; the Chief Financial Officers Act of 1990; the Inspector General Act of 1978.

Section 1. Purpose. The Department of Defense has never passed a full financial audit. Taxpayers are owed an accounting of the largest discretionary budget in government.

Sec. 2. Directives. (a) Each military department and defense agency shall submit, within 90 days, a remediation plan for every material weakness identified in its most recent audit, with milestones and accountable officials. (b) Progress against remediation milestones shall be a critical element in the performance plans of senior executives and general and flag officers with financial-management responsibility. (c) The Under Secretary of Defense (Comptroller) shall publish a quarterly public scorecard of remediation progress by component. (d) The Department's Inspector General is requested to report semiannually on the accuracy of component self-reporting.

Sec. 3. Readiness safeguard. No measure under this directive shall reduce funding for operational readiness; accountability attaches to management performance, not to the warfighter.

Sec. 4. Durability. Performance-plan elements and the public scorecard create an evaluative record that persists across leadership changes; the Department will support statutory consequences for repeated audit failure in the annual defense authorization.

E-3 · War Powers Compliance

Presidential Memorandum · Day 1 · Implements P71 (legislative request included)

Authority: Article II of the Constitution; the War Powers Resolution, 50 U.S.C. §§1541–1548.

Section 1. Purpose. The Constitution assigns to Congress the power to declare war. Durable national-security policy requires the consent of the people's representatives.

Sec. 2. Commitments. (a) Except in response to an attack or the imminent threat of attack on the United States, its territories, or its armed forces, the Administration will seek specific statutory authorization before introducing United States armed forces into hostilities. (b) The Administration will submit every report required by the War Powers Resolution within its statutory deadlines and will provide classified briefings to congressional leadership of both parties. (c) For every ongoing deployment involving hostilities, the Administration will request annual reauthorization from Congress.

Sec. 3. Legislative request. The Attorney General and the Secretary of Defense shall transmit to Congress, within 90 days, proposed legislation to repeal or sunset outdated authorizations for the use of military force and to establish an annual reauthorization requirement.

Sec. 4. Durability. A presidential commitment binds only this Administration; the legislative request is the durable instrument, and is the operative goal.

E-4 · National Cyber Defense and Response

Executive Order · Day 1 · Implements P69

Authority: The Constitution and laws of the United States, including 6 U.S.C. §652 (Cybersecurity and Infrastructure Security Agency) and 10 U.S.C. §394 (military cyber operations).

Section 1. Purpose. Foreign cyberattacks on the electric grid, water systems, hospitals, and elections are attacks on the American people. Defense capacity has been reduced at the moment threats have grown.

Sec. 2. Directives. (a) The Secretary of Homeland Security shall present, within 60 days, a plan to restore the Cybersecurity and Infrastructure Security Agency's operational staffing and to prioritize protection of critical infrastructure operators with limited security resources. (b) The National Security Advisor shall establish, within 90 days, a response framework for state-sponsored cyberattacks that provides graduated options — attribution, sanctions, indictment, offensive cyber operations, and, where warranted, other military responses — consistent with the War Powers Resolution and international law. (c) The Secretary of Defense and the Director of the National Security Agency shall expand defensive support to civilian infrastructure under existing authorities.

Sec. 3. Information sharing. The Administration supports long-term reauthorization of the Cybersecurity Information Sharing Act of 2015, whose current extension expires December 11, 2026.

Sec. 4. Durability. Staffing restored through appropriations and a published response framework set expectations for adversaries and successors alike; the infrastructure investments are funded through the Infrastructure and Industrial Capacity Act.

E-5 · Allied Critical Minerals Cooperation

Presidential Memorandum · Day 1 · Implements P65

Authority: Title III of the Defense Production Act of 1950; the Strategic and Critical Materials Stock Piling Act; the BUILD Act of 2018.

Section 1. Purpose. Supply chains for critical minerals are concentrated in strategic competitors. Joint extraction and processing with allies reduces that dependence faster than any nation can alone.

Sec. 2. Directives. (a) The Secretary of State shall negotiate joint extraction, processing, and offtake agreements with allied producer nations, prioritizing minerals essential to defense, energy, and semiconductor supply chains. (b)

The Secretary of Defense shall use Defense Production Act Title III authority to support allied and domestic processing capacity. (c) The U.S. International Development Finance Corporation shall prioritize financing for allied critical-minerals projects meeting labor and environmental standards. (d) The Secretary of Defense shall review National Defense Stockpile targets for critical minerals.

Sec. 3. Durability. Bilateral agreements and long-term offtake contracts carry binding commitments; domestic processing investment is funded through the Infrastructure and Industrial Capacity Act.

E-6 · Bipartisan Oversight of Detention Facilities

Executive Order · Day 1 · Implements P40

Authority: The Constitution and laws of the United States, including the Immigration and Nationality Act and the oversight-access provisions enacted in Department of Homeland Security appropriations acts.

Section 1. Purpose. Conditions in detention depend on who is watching. Transparent, bipartisan oversight protects detained persons, the officers who staff facilities, and public confidence in the law.

Sec. 2. Directives. (a) The Secretary of Homeland Security shall ensure that Members of Congress, and their staff where permitted by law, may visit any facility holding persons in immigration custody without prior notice. (b) The Secretary shall establish a Detention Oversight Advisory Board with equal membership designated in consultation with the leaders of both parties in each House, authorized to conduct rotating, unannounced inspections and to publish findings. (c) Every detention contract and intergovernmental agreement shall incorporate enforceable detention standards, with remedies for noncompliance. (d) The Inspector General of the Department is requested to publish inspection results on a regular schedule.

Sec. 3. Durability. Detention standards written into contracts are enforceable for the life of each contract; the Administration will support codifying congressional access and the oversight board in statute.

E-7 · Shutdown Accountability (Proposed Rules)

Proposed Rules of the House and Senate, transmitted with a presidential message · Day 1 · Implements P27

Why this is not an executive order. The President cannot set the rules or pay of Congress. This action is a public request, accompanied by model rules text, that each chamber adopt shutdown-accountability rules. Under the Twenty-Seventh Amendment, a change in congressional compensation cannot take effect until after the next House election; pay provisions are therefore proposed as statute for a future Congress.

Model House rule. *During any lapse in appropriations for any part of the Federal Government, the House shall convene each day except Sunday, and no resolution providing for adjournment of more than three days shall be in order until appropriations are enacted.*

Model Senate standing order. *During any lapse in appropriations for any part of the Federal Government, the Senate shall convene each day except Sunday, and no motion to adjourn for more than three days shall be in order until appropriations are enacted.*

Model statutory provision (prospective). *Beginning with the [TBD] Congress, the pay of each Member of Congress for any period during which appropriations have lapsed shall be held in escrow and released only upon enactment of appropriations for the remainder of the fiscal year.*

Durability. Chamber rules last for a Congress unless readopted; the escrow provision, once enacted, is permanent law.

E-8 · Restoring Public Health Capacity

Secretarial Directive (Secretary of Health and Human Services) · Day 1 · Companion to S-3 (P14)

Authority: Sections 301, 317, and 319 of the Public Health Service Act; section 1928 of the Social Security Act.

Section 1. Purpose. Public health capacity — disease surveillance, vaccine programs, and biomedical research — protects every community and cannot be rebuilt quickly once lost.

Sec. 2. Directives. (a) The Director of the Centers for Disease Control and Prevention shall restore State, local, tribal, and territorial public health grants to their full appropriated levels within 60 days, to the extent appropriations remain available for obligation; where funds have lapsed or been rescinded, the Secretary shall transmit a supplemental appropriations request to Congress. (b) The Director of the National Institutes of Health shall review grant terminations and indirect-cost policies adopted since January 2025 and reinstate awards terminated without scientific or legal justification. (c) No Vaccines for Children funds shall be withheld or conditioned on criteria other than those in section 1928 of the Social Security Act. (d) Membership of the Advisory Committee on Immunization Practices shall meet the qualification, conflict-of-interest, and evidence standards of the Public Health Integrity Act pending its enactment.

Sec. 3. Durability. Restored awards are obligations under existing appropriations; the Public Health Integrity Act (S-3) writes the advisory committee's standards into law, the step that protected the immunization schedule in court in 2026.

E-9 · Planning the Separation of Food and Drug Regulation

Executive Order · Day 1 study; reorganization in Phase II · Implements P84

Authority: The Constitution and laws of the United States, including the Federal Food, Drug, and Cosmetic Act.

Section 1. Purpose. Food safety and drug regulation are distinct missions with distinct science, and both suffer when they compete for the same leadership attention and resources.

Sec. 2. Directives. (a) There is established an FDA Reorganization Task Force, chaired by the Secretary of Health and Human Services, to compare three options — separate leadership and budgets within the FDA, distinct food and drug agencies within the Department, and full statutory separation — on cost, inspection capacity, time to action, scientific quality, and accountability, and to recommend one. (b) Pending reorganization, the Secretary shall elevate the leadership of food safety programs and adopt a risk-based review of food additives and contaminants, using comparable European standards as benchmarks. (c) The Task Force shall report within 180 days with proposed legislation. (c) Before recommending an option, the Task Force, with the General Counsel of the Department, shall identify which elements can be carried out under existing authority and which require legislation, and shall transmit any required legislative proposal to Congress with its recommendation.

Sec. 3. Durability. Executive reorganization authority lapsed in 1984, so the separation requires legislation; the Task Force plan and proposed bill are the path to a permanent structure.

Month 1–6

E-10 · Restricting Waste Exports and Building Domestic Recycling

Secretarial Directive (EPA Administrator, with the Secretary of Commerce) · Month 1–6 · Implements P3

Authority: Section 3017 of the Resource Conservation and Recovery Act; the Save Our Seas 2.0 Act; recycling infrastructure grant programs under the Infrastructure Investment and Jobs Act.

Section 1. Purpose. Exporting waste to countries without adequate management capacity shifts pollution abroad and starves domestic recycling of feedstock and investment.

Sec. 2. Directives. (a) The Administrator shall propose rules strengthening export controls on hazardous waste and requiring prior informed consent for exports of plastic waste to countries outside the Organisation for Economic Co-operation and Development, to the extent of existing authority. (b) The Administrator shall prioritize recycling infrastructure and market-development grants that expand domestic processing capacity. (c) The Administrator and the Secretary of Commerce shall transmit to Congress proposed legislation to prohibit exports of mixed plastic and other recyclable waste lacking verified environmentally sound management.

Sec. 3. Durability. Final rules adopted through notice and comment require a new rulemaking to reverse; the prohibition is proposed for enactment.

E-11 · Shoreline and Fishery Protection

Secretarial Directive (Secretary of Commerce, through NOAA) · Month 1–6 · Implements P63

Authority: The Magnuson-Stevens Fishery Conservation and Management Act; the Coastal Zone Management Act; the National Marine Sanctuaries Act; the Deep Seabed Hard Mineral Resources Act.

Section 1. Purpose. Healthy fisheries and protected shorelines sustain coastal economies and communities.

Sec. 2. Directives. (a) The Administrator of NOAA shall prioritize enforcement of rebuilding plans for overfished stocks. (b) The Administrator shall expand coastal resilience and shoreline protection grants under existing programs. (c) The Administrator shall not issue new exploration licenses or commercial recovery permits for deep-seabed mining until a programmatic environmental impact statement is completed and its findings published.

Sec. 3. Durability. Licensing decisions and the environmental record become part of the administrative record that any future change must address.

E-12 · Marine Protection and Sustainable Aquaculture

Secretarial Directive (Secretary of Commerce, through NOAA) · Month 1–6 · Implements P78

Authority: The National Aquaculture Act of 1980; the Marine Mammal Protection Act; the Endangered Species Act; the National Marine Sanctuaries Act.

Section 1. Purpose. The United States imports most of the seafood it eats. Sustainable domestic aquaculture can reduce that dependence while protecting marine ecosystems.

Sec. 2. Directives. (a) The Administrator of NOAA shall complete the designation of aquaculture opportunity areas with environmental review and stakeholder consultation. (b) The Administrator shall establish permitting timelines for aquaculture operations that meet environmental standards. (c) The Administrator shall expand marine protected area management and monitoring. (d) The deep-seabed mining pause in E-11 applies.

Sec. 3. Durability. Designated areas and permit standards adopted through rulemaking persist until changed by a new rulemaking.

E-13 · Domestic Food Supply Security

Secretarial Directive (Secretary of Agriculture, with the Secretary of Commerce) · Month 1–6 · Implements P77

Authority: Section 32 of the Act of August 24, 1935; the Commodity Credit Corporation Charter Act; the short-supply authority of the Export Control Reform Act of 2018.

Section 1. Purpose. Food security is national security. Domestic supply should not be exposed to shortages while produce is exported.

Sec. 2. Directives. (a) The Secretary of Agriculture shall establish a domestic supply monitoring system for fresh produce and staple commodities, with defined shortage indicators. (b) When indicators show a domestic shortage, the Secretary shall recommend to the Secretary of Commerce the use of short-supply export controls for the affected commodity, and shall use Section 32 purchases to stabilize supply. (c) The Secretary shall report to Congress on whether a standing minimum-domestic-supply requirement would require new legislation.

Sec. 3. Durability. The monitoring system and trigger rules are published standards; a standing domestic-supply requirement is proposed for enactment if analysis supports it.

E-14 · Restoring Agricultural Electrification Grants

Secretarial Directive (Secretary of Agriculture, with the Secretary of Energy) · Month 1–6 · Implements P79

Authority: Section 9007 of the Farm Security and Rural Investment Act of 2002 (Rural Energy for America Program), 7 U.S.C. §8107.

Section 1. Purpose. Farm electrification and efficiency lower operating costs for producers and rural businesses. Program grants were halted in March 2026 and restricted by a final rule in October 2026.

Sec. 2. Directives. (a) The Secretary of Agriculture shall propose rules rescinding the restrictions adopted in October 2026 and restoring eligibility for electrification, efficiency, and renewable-energy projects. (b) The Secretary shall reopen application windows for pending and new applicants. (c) The Secretary of Energy shall provide technical assistance for electrifying agricultural equipment and processing.

Sec. 3. Durability. A rule restored through notice and comment can be reversed only by another rulemaking; the agenda proposes statutory eligibility language to settle the question.

E-15 · Farm Labor Enforcement

Secretarial Directive (Secretary of Labor, with the Secretary of Agriculture) · Month 1–6 · Implements P80

Authority: The Fair Labor Standards Act, including 29 U.S.C. §212 (child labor); the Migrant and Seasonal Agricultural Worker Protection Act; the H-2A program regulations.

Section 1. Purpose. Agricultural workers have long had weaker protection than other workers, and abuses — including child labor and wage theft — persist.

Sec. 2. Directives. (a) The Wage and Hour Division shall launch a national agricultural enforcement initiative focused on child labor, wage theft, housing, and transportation safety. (b) The Department shall strengthen protections against retaliation for workers who report violations, regardless of the worker's employer. (c) The Secretary of Agriculture shall share relevant program information to target enforcement. (d) Employers found to have committed serious violations shall be referred for debarment from federal contracts and H-2A participation.

Sec. 3. Durability. Enforcement findings, debarments, and settlements create binding obligations; the agenda proposes closing statutory agricultural exemptions.

E-16 · Reducing Military Contractor Dependence

Secretarial Directive (Secretary of Defense) · Month 1–6 · Implements P73

Authority: 10 U.S.C. §2463 (guidelines for insourcing); the inventory-of-contracts-for-services requirements of title 10; the Federal Acquisition Regulation.

Section 1. Purpose. Contracting out work that civilian employees can perform at lower cost inflates defense spending and weakens institutional knowledge.

Sec. 2. Directives. (a) Each component shall review its inventory of contracted services within 120 days and identify functions that are inherently governmental, closely associated with inherently governmental functions, or performable at lower cost by civilian employees. (b) Identified functions shall be insourced on a published schedule. (c) The Under Secretary for Acquisition and Sustainment shall limit pass-through arrangements in which prime contractors add cost without adding value. (d) Procurement-fraud referrals to the Department of Justice shall be tracked and reported quarterly.

Sec. 3. Durability. Insourced positions are funded and filled through the regular personnel system; reversal requires affirmative action and cost justification.

E-17 · Selective and Streamlined Immigration

Presidential Memorandum · Month 1–6 · Implements P90

Authority: The Immigration and Nationality Act.

Section 1. Purpose. Managed intelligently, immigration strengthens the economy. That requires admissions criteria that serve national needs, processing that works, and protection for those fleeing persecution.

Sec. 2. Directives. (a) The Secretary of Homeland Security shall present, within 90 days, a plan to reduce application backlogs and publish processing-time targets for each benefit category. (b) The Secretary shall propose rules, within existing authority, that weight employment-based selection toward skills and wages. (c) The Secretary shall streamline naturalization for eligible permanent residents, including fee-waiver access. (d) Asylum and refugee protections shall be administered in accordance with law and treaty obligations, with adjudication capacity sufficient to decide claims promptly. (e) The Secretaries of Homeland Security and Labor shall strengthen employer accountability for unlawful employment.

Sec. 3. Durability. Rules adopted through notice and comment persist until a new rulemaking; comprehensive reform requires legislation, which the Administration will propose.

E-18 · Drug Policy Review and Harm Reduction

Presidential Memorandum · Month 1–6 · Implements P18

Authority: The Controlled Substances Act, 21 U.S.C. §811; the Public Health Service Act.

Section 1. Purpose. Drug policy should follow evidence. Overdose prevention saves lives, and scheduling decisions should reflect current science.

Sec. 2. Directives. (a) The Secretary of Health and Human Services shall complete a scientific and medical evaluation of marijuana's further scheduling status following its 2026 placement in Schedule III for medical use, and of other substances with documented therapeutic promise. (b) The Attorney General shall act on the Secretary's recommendations through rulemaking under 21 U.S.C. §811. (c) The Secretary shall expand access to overdose-reversal medication and support drug-checking tools and research. (d) The Secretary of the Treasury shall report on the regulatory and tax framework that adult-use legalization would require, which is a matter for legislation.

Sec. 3. Durability. Scheduling decisions made through formal rulemaking require a new rulemaking to reverse.

Held Until Conditions Exist

E-19 · Phasing Out Private Prisons

Executive Order · Phase II · Implements P17

Authority: The Constitution and laws of the United States, including the procurement authorities of the Department of Justice and the Department of Homeland Security.

Section 1. Purpose. Incarceration and detention should be governed by public accountability and rehabilitation, not by the incentives of private contracts.

Sec. 2. Directives. (a) The Attorney General shall not renew contracts with privately operated criminal detention facilities, and shall transition affected populations to public or nonprofit management on a published schedule. (b) The Secretary of Homeland Security shall present a transition plan for immigration detention that reduces reliance on private operators while maintaining required capacity and standards. (c) The Attorney General shall prioritize grants supporting States that adopt public or nonprofit correctional management and expand mental and behavioral health programming.

Sec. 3. Durability. Expired contracts are not automatically renewed by a successor; the transition is reinforced by the correctional standards in the Second Chance and Public Safety Act.

E-20 · Patent Reform Within Existing Authority

Secretarial Directive (Secretary of Commerce, through the USPTO) · Phase II · Implements P45

Authority: 35 U.S.C. §2(b)(2) (USPTO rulemaking); 35 U.S.C. §203 (march-in rights); 28 U.S.C. §1498.

Section 1. Purpose. Patents reward genuine invention. Stacking patents on unchanged products to extend monopolies raises prices without advancing science.

Sec. 2. Directives. (a) The Director of the USPTO shall review examination and terminal-disclaimer practices that permit patent thickets, and propose rules to curb them. (b) The Director shall coordinate with the Commissioner of Food and Drugs to scrutinize patents listed for approved drugs and biologics. (c) The Secretary shall publish a framework for exercising march-in rights on federally funded inventions not made available on reasonable terms. (d) The Secretary shall transmit proposed legislation addressing evergreening and exclusivity periods.

Sec. 3. Durability. Final rules persist until changed through rulemaking; exclusivity periods are set by statute and require legislation.

E-21 · Space Exploration and Defense Capabilities

Presidential Memorandum · Phase II · Implements P70

Authority: The National Aeronautics and Space Act; title 10, United States Code.

Section 1. Purpose. Space capability underpins navigation, communications, science, and national defense.

Sec. 2. Directives. (a) The Director of the Office of Management and Budget shall include in the President's budget a multiyear plan for NASA exploration and science and for defensive space capabilities. (b) The Secretary of Defense shall propose space-resilience priorities for the annual defense authorization. (c) The Administrator of NASA shall report on commercial partnerships that reduce cost to taxpayers.

Sec. 3. Durability. Funding is set by appropriations and authorization acts; the memorandum frames the request.

E-22 · Multilateral Peacekeeping

Presidential Memorandum · Phase II · Implements P75

Authority: The United Nations Participation Act of 1945; the Foreign Assistance Act of 1961.

Section 1. Purpose. Shared peacekeeping reduces the burden of unilateral American deployments and strengthens allied capacity.

Sec. 2. Directives. (a) The Secretary of State shall consult with allies on a standing multinational peacekeeping arrangement with clear mandates, command structures, and burden-sharing. (b) The Director of the Office of Management and Budget shall include in the President's budget a plan to clear United States arrears to United Nations peacekeeping assessments. (c) The Secretary of Defense shall support allied peacekeeping training through existing programs.

Sec. 3. Durability. Arrangements concluded with allies carry diplomatic commitments; arrears clearance requires appropriations.

E-23 · Nuclear Risk Reduction Through Allied Mediation

Presidential Memorandum · Phase II · Implements P91

Authority: Article II of the Constitution.

Section 1. Purpose. With the expiration of the last U.S.–Russia arms control treaty in February 2026, nuclear forces are unconstrained by verifiable limits for the first time in decades.

Sec. 2. Directives. (a) The Secretary of State shall pursue risk-reduction measures — crisis communication channels, transparency, and launch-notification arrangements — with nuclear-armed states. (b) Where direct dialogue is blocked, the Secretary shall work through allied and partner governments with standing to mediate. (c) The Secretary shall report on a framework for successor arms control limits.

Sec. 3. Durability. Agreements reached would be submitted to the Senate as treaties or to Congress for approval, as appropriate.

E-24 · High-Performing Education Systems

Secretarial Directive (Secretary of Education) · Phase III · Implements P57

Authority: The Elementary and Secondary Education Act of 1965, including title II.

Section 1. Purpose. The highest-performing school systems — including Estonia's, and domestic gains such as Mississippi's in early literacy — share evidence-based instruction, professionalized teaching, and attention to student well-being.

Sec. 2. Directives. (a) The Secretary shall issue guidance on evidence-based early literacy instruction. (b) The Secretary shall prioritize teacher-professionalization uses of existing title II funds, including residencies and mentoring. (c) The Secretary shall publish guidance for States on limiting recreational screen use during the school day for students under 16. (d) The Secretary shall establish competitive priorities in discretionary grants for States adopting these practices. Curriculum decisions remain with States and local educational agencies.

Sec. 3. Durability. Guidance and grant priorities shape practice through funded programs; the Education Functions Restoration and Oversight Act (S-5) protects the Department's capacity to administer them.

E-25 · National High-Speed Rail Planning

Secretarial Directive (Secretary of Transportation) · Phase III · Implements P68

Authority: The Federal Railroad Administration's corridor identification and development program under title 49, United States Code.

Section 1. Purpose. A national high-speed rail network can serve as a backbone for passenger travel and for co-located power transmission and broadband.

Sec. 2. Directives. (a) The Administrator of the Federal Railroad Administration shall identify priority high-speed corridors connecting major metropolitan areas and advance them through corridor development. (b) The Secretary shall coordinate with the Secretary of Energy on co-locating transmission lines within rail rights-of-way. (c) The Secretary shall report on the authorization and financing a national network would require.

Sec. 3. Durability. Corridor plans and environmental reviews are prerequisites that endure across administrations; construction requires the Phase III authorization.

E-26 · Protecting Bodily Autonomy Under Existing Law

Presidential Memorandum · Phase III pathway · Implements P20

Why this is a legal pathway. A federal standard protecting bodily autonomy requires legislation or constitutional change, which the agenda sequences for Phase III. Until then, this memorandum directs the use of existing federal law.

Authority: The Federal Food, Drug, and Cosmetic Act; the Emergency Medical Treatment and Labor Act; title X of the Public Health Service Act; the Constitution's protection of interstate travel.

Sec. 1. Directives. (a) The Attorney General shall defend the authority of the Food and Drug Administration over the approval and labeling of medications, including against state laws that conflict with federal approval decisions. (b) The Secretary of Health and Human Services shall issue guidance on hospitals' obligations under the Emergency Medical Treatment and Labor Act to provide stabilizing care. (c) The Secretary shall ensure access to contraception through federal programs, and shall support access to in vitro fertilization within existing authorities. (d) The Attorney General shall protect the right to travel across state lines to obtain lawful care.

Sec. 2. Durability. Litigation positions and guidance can change with an administration; the durable instrument is the Phase III federal standard, and the Emerging Reproductive Technology Protection and Oversight Act (S-1) protects IVF access in statute.

THE TEXTS · PART IX

The Legislative Series

Sixteen bills and six standalone vehicles — a summary card and the draft legislative text for each. Five standalones are drafted; S-4 is reserved for human drafting.

The Sixteen Bills at a Glance

#	Bill	Vehicle	Phase	Core Message
1	**COLT Act** — Cost of Living Reduction & Tax Simplification Act of 2029	A — Budget Reconciliation	I	Making taxes easier, not higher.
2	**IIC Act** — Infrastructure & Industrial Capacity Act of 2029	A — Budget Reconciliation	I	Building what America needs. Jobs that can't be offshored.
3A	**ACFM Act — Part A** — Anti-Corruption & Fair Markets Act of 2029 — Part A: Fair Markets & Official Integrity	C — High-Salience Standalone	I	Same rules for everyone.
16	**ECFA** — Economic Cycle Fairness Act of 2029	Split — Title I standalone; Title II may ride Bill 1 reconciliation	I	When the economy turns, help arrives automatically.
13	**WFA** — Workforce Fairness Act of 2031	Split — Title II reconciliation; others standalone	I / II	Work should pay, and a family emergency shouldn't cost you your job.
15	**TSTR Act** — Tribal Sovereignty & Trust Responsibility Act — Consultation Draft	Standalone after government-to-government consultation	I / II	Keeping the promises the United States already made.
3B	**ACFM Act — Part B** — Anti-Corruption & Fair Markets Act — Part B: Accountability & Elections Act of 2030	C — Standalone (introduce after the Part A vote)	I	Same rules apply to how we draw the districts, fund campaigns, and use emergency power.
14	**SCPS Act** — Second Chance & Public Safety Act of 2031	C — Standalone; state titles via grant conditions	I / II / III	Fewer repeat offenders, safer streets, and a real second chance.
8	**HCI Act** — Housing & Community Investment Act of 2031	C — Federal-State Partnership	I / II	Homes for Americans. Not investment portfolios.
5	**BWDS Act** — Billionaire Wealth Gains & Digital Services Tax Act of 2032	A — Second Reconciliation Window (paired with FSW)	II	Fair contribution from those who benefited most.
4	**FSW Act** — Family Stability & Workforce Investment Act of 2031	A — Second Reconciliation Window (paired with BWDS)	II	We did what we said. It worked. Now we expand it.
6	**POHE Act** — Public Option Healthcare Expansion Act of 2032	B — Sectoral Legislation	II	If you like your plan, keep it. If you want a better option, one exists.
7	**DRDO Act** — Digital Rights & Data Fiduciary Act of 2031	B — Sectoral Legislation	I / II	Your data is yours. And your kids' brains are not a product.
12	**NFSA** — National Firearm Standards Act of 2032	B — Sectoral Legislation	II	The military will train you for free. The right is preserved. Accountability comes with it.
10	**AIPE Act** — American Innovation & Public Equity Act	B — AI & Capital Framework	II–III	AI was built on American research and American data. Americans share in what it builds.
9	**UCT Act** — Universal Coverage Transition Act	A — Healthcare Full Transition	III	The public option worked. This is what working looks like at scale.
11	**DIR Act** — Democratic Institutions Reform Act	C — Constitutional amendment or statute	III	Protecting the gains we made.

Standalone vehicles: S-1 Emerging Reproductive Technology Protection & Oversight Act (P22); S-2 Senate Deliberation & Accountability Standard (P32); S-3 Public Health Integrity Act (P14); S-4 AI Safety & Rights Framework (P44); S-5 Education Functions Restoration & Oversight Act (P60); S-6 Social Security Solvency Act (P21).

How the Bills Hold Together

Each bill ends with notes for counsel, set apart from its text: the constitutional basis, exposure under the Senate's reconciliation rules, prepared fallbacks, and the drafting questions to resolve before introduction. Each bill is written so that a partial win still does something. The table shows what stands if only part of a bill passes, what it depends on, and its legislative route. Reconciliation titles carry only provisions with a direct budgetary effect; the rest of each bill moves by ordinary order.

Bill	If only part passes, this stands	Depends on	Route
1 · COLT	Pre-filled returns and the childcare credit; Titles IV–VI can move in a second reconciliation bill	— (anchor bill)	Reconciliation
2 · IIC	Semiconductors and the inspector workforce; grid and Postal Service titles separable	Bill 1 momentum	Reconciliation
3A · ACFM Part A	Disclosure with delayed trading windows; each consumer title stands alone	Political capital from Bills 1–2	Ordinary order
16 · ECFA	Title II (automatic stabilizers) alone	—	Title I ordinary; Title II may ride Bill 1
13 · WFA	Sick leave and non-compete titles alone	COLT Act operating	Title II reconciliation; others ordinary
15 · TSTR	Title II (Truth and Healing Commission) alone	Tribal consultation completed	Ordinary order
3B · ACFM Part B	Emergency-powers and inspector-general titles; redistricting through state adoption	Part A recorded vote	Ordinary order
14 · SCPS	Titles I–II (record sealing, First Step expansion)	ACFM Part A	Ordinary order; state titles by grant condition
8 · HCI	Each title severable (Sec. 3(f)); voluntary state models if grants fail	ROAD to Housing Act implementation	Ordinary order
5 · BWDS	Capital-income reform and offshore enforcement without the billionaire tax	Phase I coalition	Second reconciliation window
4 · FSW	Targeted credits if full expansion fails	COLT childcare; BWDS in the same window	Second reconciliation window
6 · POHE	A stronger ACA-style expansion	COLT coverage bridge	Ordinary order
7 · DRDO	Portability, consent, and the minors title	FTC enforcement capacity	Ordinary order
12 · NFSA	Track A (hunting and sporting licenses) alone	Bruen and Rahimi review	Ordinary order
10 · AIPE	The tax-based fallback (Sec. 8)	AI sector maturity; Phase II revenue base	Ordinary order
9 · UCT	A permanent hybrid system	Public option operating 4+ years; Sec. 401 certification	Ordinary order
11 · DIR	Statutory disclosure and Supreme Court senior-status reform	Supermajority for amendment tracks	Statute and Article V

Bill 1 · COLT Act

Cost of Living Reduction & Tax Simplification Act of 2029 · A — Budget Reconciliation · Months 1–18

- I · Tax administration: statutory Direct File, pre-filled returns, high-income enforcement — P1
- II · Childcare affordability credit (7% of income cap, ≤~300% FPL) — P15 (Phase I stage)
- III · Revenue and funding provisions: enforcement offsets; corporate income tax rate from 21% to 23%; Medicare payment accuracy offsets
- IV · Health coverage bridge: restore enhanced premium tax credits; automatic Medicaid data verification; rural health program permanence; ground ambulance billing protection & EMS stabilization; Medicare Advantage coding accuracy and site-neutral payment as offsets — P19 (bridge), P23, P24
- V · Workforce & teacher investment: national dual apprenticeship pipeline; teacher minimum salary incentive — P13, P58
- VI · Local journalism employment credit and state civic-information block grants — P28
- VII · Implementation and oversight

Depends on: None — anchor bill. *Attack:* IRS expansion; government doing your taxes; childcare spending. *Fallback:* Pre-filled returns and childcare credit are the core; Titles IV–VI can move to the second reconciliation window.

What this bill does. Requires the IRS to offer free pre-filled returns and a permanent Direct File option, and funds enforcement aimed at incomes over $400,000. Creates a refundable childcare credit capping costs at 7% of income for households up to about 300% of the poverty line, with provider supply grants; restores the enhanced ACA premium credits, paid for by ending Medicare Advantage overbilling and paying hospital outpatient departments the same as doctors' offices for the same service, with rural hospitals exempt; makes the rural health program permanent; and funds apprenticeships, teacher-salary incentive grants, and local-news credits. Raises the corporate income tax rate from 21% to 23%, still well below the 35% rate in force before 2018. Voluntary: using Direct File, and state or school participation in grant programs. Does not: abolish paid tax preparation, create universal childcare (the FSW Act's later stage), or create a public option.

FULL LEGISLATIVE TEXT

121ST CONGRESS
1ST SESSION
H. R. ____

To provide for reconciliation pursuant to the concurrent resolution on the budget; to reduce the cost of living for American households; to increase tax compliance and simplify filing; to expand access to affordable childcare; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Cost of Living Reduction and Tax Simplification Act of 2029" or the "COLT Act of 2029".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) The United States tax compliance burden falls disproportionately on middle-income wage earners who have limited ability to shelter income.

(2) Thirty-six advanced economies currently operate government-prepared or pre-filled tax return systems with documented reductions in taxpayer compliance costs.

(3) The IRS estimates that the annual tax gap exceeds $600 billion, with the highest concentration of noncompliance among high-income individuals and complex pass-through entities.

(4) The IRS piloted a free government direct-filing program in 2024, expanded it in 2025, and the program was discontinued by executive action in November 2025. This demonstrates that a free filing option requires a permanent

statutory mandate.

(5) The commercial tax preparation industry has spent over $100 million lobbying to prevent a free government filing option, while the average American family spends approximately $300 on tax preparation annually.

(6) Childcare costs currently consume between 10 and 25 percent of household income for millions of American families, representing a primary barrier to workforce participation.

(7) Expanding affordable childcare access produces measurable increases in labor force participation and generates positive returns to Federal revenue.

(b) PURPOSE.—The purposes of this Act are to—

(1) codify a permanent, free government tax filing system that cannot be discontinued by executive action;

(2) reduce individual tax filing costs and complexity;

(3) increase tax compliance among high-income noncompliers without increasing rates on middle-income households;

(4) expand access to affordable childcare for working families; and

(5) improve Federal revenue efficiency within a budget-neutral framework.

TITLE I — TAX ADMINISTRATION AND SIMPLIFICATION

SEC. 101. PRE-FILLED TAX RETURN SYSTEM.

(a) IN GENERAL.—Chapter 77 of the Internal Revenue Code of 1986 is amended by adding at the end the following new section:

"SEC. 7529. PRE-FILLED RETURNS.

"(a) ESTABLISHMENT.—The Secretary shall establish a program to provide pre-filled Federal income tax returns to eligible taxpayers using information returns described in sections 6041, 6051, and related provisions of this title.

"(b) ELIGIBILITY.—An eligible taxpayer is any individual who—

"(1) receives income subject to third-party information reporting;

"(2) claims the standard deduction; and

"(3) has no income from self-employment, complex partnership interests, or foreign financial accounts.

"(c) PHASED IMPLEMENTATION.—Voluntary phase: taxable years 2030–2031. Default enrollment: taxable years beginning after December 31, 2031.

"(d) TAXPAYER RIGHTS.—An eligible taxpayer may review and correct any pre-filled return before submission; opt out at any time; and file independently using any lawful method.

"(e) PRIVACY PROTECTIONS.—Information used to prepare pre-filled returns shall not be used for any purpose other than Federal tax administration."

SEC. 102. DIRECT FILE PROGRAM — PERMANENT STATUTORY MANDATE.

Chapter 77 of the Internal Revenue Code of 1986, as amended by section 101, is further amended by adding at the end the following new section:

"SEC. 7530A. DIRECT FILE PROGRAM.

"(a) IN GENERAL.—The Secretary of the Treasury shall operate and maintain a free, IRS-administered electronic filing system ("Direct File") available to all individual taxpayers without charge. Operation and availability of Direct File shall not be discontinued, suspended, or limited by any executive action, agency directive, or administrative determination.

"(b) MINIMUM FUNCTIONALITY.—The Direct File system shall, at minimum—

"(1) accept federal individual income tax returns for all taxpayers eligible to file Form 1040;

"(2) pre-populate available fields from information returns filed with the Secretary; and

"(3) support filing in the Spanish language and any other language in which the Secretary offers substantial filing assistance.

"(c) PROHIBITION ON CONTRACTING.—No function of the Direct File program that is directly used by taxpayers shall be contracted to any private entity that provides competing commercial tax preparation services.

"(d) APPROPRIATION.—$[TBD] appropriated for each of fiscal years 2030 through 2039."

SEC. 103. HIGH-INCOME ENFORCEMENT INITIATIVE.

(a) APPROPRIATION.—$[TBD] appropriated to the IRS for each of fiscal years 2030–2039.

(b) TARGETING LIMITATION.—Funds shall be used exclusively for enforcement targeting—

(1) individuals with adjusted gross income exceeding $400,000;

(2) complex pass-through entities and partnerships; and

(3) offshore financial accounts subject to FBAR and FATCA requirements.

(c) MIDDLE-INCOME AUDIT PROTECTION.—No funds may be used to increase audit rates for taxpayers with AGI below $400,000 relative to fiscal year 2022 baseline rates.

SEC. 104. ENHANCED COMPLIANCE PENALTIES.

(a) SUBSTANTIAL UNDERSTATEMENT.—Section 6662(d) of the Internal Revenue Code of 1986 is amended to increase the substantial understatement threshold penalty for high-income taxpayers with repeated violations.

(b) EXECUTIVE LIABILITY.—[Reserved: officer liability for willful corporate tax-evasion schemes.]

(c) EFFECTIVE DATE.—Amendments apply to returns filed for taxable years beginning after December 31, 2029.

TITLE II — CHILDCARE COST REDUCTION

SEC. 201. CHILDCARE AFFORDABILITY CREDIT.

"SEC. 36C. CHILDCARE AFFORDABILITY CREDIT.

"(a) ALLOWANCE OF CREDIT.—A credit shall be allowed equal to the excess of—

"(1) the taxpayer's qualified childcare expenditures for the taxable year, over

"(2) 7 percent of the taxpayer's modified adjusted gross income for the taxable year.

"(b) ELIGIBLE TAXPAYER.—A taxpayer who—

"(1) has one or more qualifying children under age 13;

"(2) has modified adjusted gross income not exceeding $[TBD] (phased out above $[TBD]);

"(3) incurs qualified childcare expenditures during the taxable year; and

"(4) is not a dependent of another taxpayer.

"(c) QUALIFIED CHILDCARE EXPENDITURES.—The term 'qualified childcare expenditures' means amounts paid for care of a qualifying child by a licensed childcare provider, not to exceed $[TBD] per child per year.

"(d) REFUNDABILITY.—The credit under this section shall be fully refundable."

SEC. 202. CHILDCARE PROVIDER SUPPLY GRANTS.

(a) The Secretary of HHS shall establish a grant program to expand childcare provider capacity.

(b) APPROPRIATION.—$[TBD] for each of fiscal years 2030 through 2034.

(c) PRIORITY.—Grants prioritized to childcare deserts and areas with highest cost burden.

TITLE III — REVENUE AND FUNDING PROVISIONS

SEC. 301. ENFORCEMENT-BASED REVENUE. Revenue generated through enforcement activities under section 103 shall be scored by CBO as a budget offset and applied to the cost of Titles I and II of this Act.

SEC. 302. IMPROPER PAYMENT REDUCTION OFFSET.

(a) IN GENERAL.—Federal agencies shall implement measures to identify and reduce improper payments, with savings contributing to overall Act budget neutrality.

(b) REPORTING.—The Office of Management and Budget shall publish annual improper payment reduction totals attributed to measures under this section.

SEC. 303. MEDICARE PAYMENT ACCURACY OFFSETS.

(a) OFFSET.—Reductions in direct spending under sections 405 and 406 shall be scored as offsets to the cost of title IV of this Act.

(b) TRUST FUND PROTECTION.—No amount shall be transferred from the Federal Hospital Insurance Trust Fund or the Federal Supplementary Medical Insurance Trust Fund to carry out any other provision of this Act.

SEC. 304. CORPORATE INCOME TAX RATE.

(a) IN GENERAL.—Section 11(b) of the Internal Revenue Code of 1986 is amended by striking "21 percent" and inserting "23 percent".

(b) EFFECTIVE DATE.—The amendment made by subsection (a) applies to taxable years beginning after December 31, 2029. Section 15 of such Code applies to taxable years that include that date.

(c) USE OF REVENUE.—Revenue from the amendment made by subsection (a) shall be scored as an offset to the cost of titles II and V of this Act.

TITLE IV — HEALTH COVERAGE BRIDGE AND MEDICARE PAYMENT ACCURACY

SEC. 401. RESTORATION OF ENHANCED PREMIUM TAX CREDITS.

(a) IN GENERAL.—Section 36B(b)(3)(A) of the Internal Revenue Code of 1986 is amended to restore, for taxable years beginning after December 31, [TBD], the applicable percentage schedule in effect for taxable years 2021 through 2025, including the elimination of the 400-percent-of-poverty-line limitation on eligibility.

(b) PERMANENCE.—The amendments made by subsection (a) shall apply without a terminal date.

(c) COORDINATION.—The Secretary of the Treasury shall coordinate the effective date with the annual open enrollment period to permit premium recalculation before the plan year to which the amendments first apply.

SEC. 402. AUTOMATIC ELIGIBILITY VERIFICATION FOR MEDICAID AND CHIP.

(a) ENHANCED MATCHING.—For calendar quarters beginning on or after [TBD], the Federal medical assistance percentage applicable to a State's expenditures for the design, development, and operation of an automated ex parte eligibility renewal system shall be [TBD] percent.

(b) CONDITIONS.—As a condition of receiving the enhanced matching rate under subsection (a), a State shall—

(1) renew eligibility on the basis of reliable electronic data sources available to the State, including Federal data services hub data, before requesting information from an enrollee;

(2) not terminate eligibility for failure to return a renewal form where electronic data establish continued eligibility; and

(3) report quarterly to the Secretary of Health and Human Services the number of renewals completed on an ex parte basis and the number of procedural terminations.

SEC. 403. RURAL HEALTH TRANSFORMATION PROGRAM — PERMANENT FUNDING.

(a) EXTENSION.—Section 2221 of the Social Security Act, as added by Public Law 119-21, is amended by appropriating, out of any money in the Treasury not otherwise appropriated, $[TBD] for fiscal year 2031 and each fiscal year thereafter for allotments to States under that section.

(b) PRIORITY USES.—Of amounts made available under subsection (a), States shall prioritize—

(1) stabilization payments to rural hospitals rated financially vulnerable to closure under criteria established by the Secretary;

(2) maintenance or restoration of labor and delivery services in rural counties without obstetric care; and

(3) workforce recruitment and retention, including workforce housing and broadband connectivity for telehealth.

SEC. 404. GROUND AMBULANCE BILLING PROTECTION AND EMS STABILIZATION.

(a) BALANCE BILLING PROTECTION.—Part D of title XXVII of the Public Health Service Act is amended to extend the protections applicable to air ambulance services under section 2799A-2 of such Act to ground ambulance services, such that a participant, beneficiary, or enrollee in a group health plan or group or individual health insurance coverage shall not be liable for an amount greater than the in-network cost-sharing requirement for emergency ground ambulance services furnished by a nonparticipating provider.

(b) PAYMENT DETERMINATION.—Payment disputes between plans and nonparticipating ground ambulance providers shall be resolved under the independent dispute resolution process established under section 2799A-1(c) of such Act, with the Secretary to establish, by rule, a payment standard that accounts for the readiness costs of emergency medical services.

(c) EMS STABILIZATION GRANTS.—There is appropriated $[TBD] for each of fiscal years [TBD] through [TBD] for grants to States to stabilize emergency medical services in underserved and rural areas, including workforce retention payments and readiness-cost support.

(d) ESSENTIAL SERVICE DESIGNATION.—As a condition of receiving a grant under subsection (c), a State shall designate emergency medical services as an essential public service under State law.

SEC. 405. MEDICARE ADVANTAGE CODING ACCURACY.

(a) MINIMUM ADJUSTMENT.—Section 1853(a)(1)(C)(ii) of the Social Security Act (42 U.S.C. 1395w–23(a)(1)(C)(ii)) is amended so that the adjustment for differences in coding patterns between Medicare Advantage and original Medicare shall be not less than 7 percent for 2030 and not less than 8 percent for 2031 and each subsequent year.

(b) BENEFICIARY PROTECTION.—Nothing in this section alters the benefits, premium protections, or cost-sharing limits that apply to enrollees under part C of title XVIII of such Act.

(c) REPORTING.—The Secretary of Health and Human Services shall report annually to Congress on any change in the supplemental benefits offered by Medicare Advantage organizations after the adjustment under subsection (a).

SEC. 406. SITE-NEUTRAL PAYMENT FOR OUTPATIENT SERVICES.

(a) IN GENERAL.—Section 1833(t) of the Social Security Act (42 U.S.C. 1395l(t)) is amended so that, for items and services furnished on or after January 1, 2030, in an off-campus outpatient department of a provider (including a department excepted under paragraph (21)(B)(ii)), and for clinic visits furnished in an on-campus outpatient department, payment shall equal the amount that would be paid if the service were furnished in a physician's office, as determined under section 1848 of such Act.

(b) PHASE-IN.—For services furnished in 2030, the reduction under subsection (a) shall be 50 percent of the full reduction.

(c) EXCEPTIONS.—Subsection (a) does not apply to—

(1) emergency department services;

(2) services furnished by a critical access hospital, a sole community hospital, or a hospital located in a rural area, as defined in section 1886(d)(2)(D) of such Act; or

(3) services the Secretary determines can be furnished safely only in a hospital setting.

(d) BENEFICIARY COST-SHARING.—Coinsurance for a service paid under subsection (a) shall be computed on the reduced payment amount.

(e) NO REDISTRIBUTION.—Reductions under subsection (a) shall not be redistributed through any budget-neutrality adjustment to the outpatient prospective payment system.

TITLE V — WORKFORCE AND TEACHER INVESTMENT

SEC. 501. NATIONAL DUAL APPRENTICESHIP PIPELINE.

(a) ESTABLISHMENT.—The Secretary of Labor, in coordination with the Secretary of Education and the Secretary of Commerce, shall establish a National Dual Apprenticeship Pipeline under which apprentices combine paid employment with a production employer and related instruction at an accredited institution.

(b) EMPLOYER-INTERMEDIARY GRANTS.—There is appropriated $[TBD] for each of fiscal years [TBD] through [TBD] for grants to industry intermediaries, labor-management partnerships, and consortia of employers to design and operate dual apprenticeship programs in manufacturing, construction, energy, health care, and other occupations designated by the Secretary.

(c) APPRENTICE SUPPORT.—Grant funds may be used for apprentice wages during related instruction, tuition, tools and equipment, and supportive services, at amounts not to exceed $[TBD] per apprentice per year.

(d) PORTABLE CREDENTIALS.—Programs funded under this section shall award credentials recognized nationally and stackable toward associate and bachelor's degrees, consistent with standards issued by the Secretary of Labor under the National Apprenticeship Act.

(e) EMPLOYER TAX CREDIT.—Subpart D of part IV of subchapter A of chapter 1 of the Internal Revenue Code of 1986 is amended by adding a credit equal to [TBD] percent of wages paid to a registered apprentice during the first [TBD] years of the apprenticeship, not to exceed $[TBD] per apprentice per taxable year.

SEC. 502. TEACHER MINIMUM SALARY INCENTIVE.

(a) GRANTS.—There is appropriated $[TBD] for each of fiscal years [TBD] through [TBD] for grants to State educational agencies that establish and maintain a minimum annual salary of not less than $[TBD] for full-time public school teachers, adjusted annually for changes in the cost of living.

(b) USE OF FUNDS.—A State shall use grant funds to—

(1) meet the cost of raising salaries to the minimum in local educational agencies that cannot do so from State and local revenue; and

(2) provide matching funds to high-need local educational agencies, as defined by the Secretary of Education.

(c) CONDITIONS.—As a condition of receiving a grant, a State shall maintain—

(1) standards for reporting and responding to violence against teachers and school staff;

(2) protection from civil liability for good-faith classroom-management actions consistent with State law; and

(3) due-process protections against termination for reasons unrelated to job performance or conduct.

(d) NON-SUPPLANTING.—Grant funds shall supplement, and not supplant, State and local funds for teacher compensation.

(e) STATE CHOICE.—Nothing in this section requires a State to participate. Curriculum, licensing, and instructional decisions remain with States and local educational agencies.

TITLE VI — LOCAL JOURNALISM

SEC. 601. LOCAL NEWS EMPLOYMENT CREDIT.

(a) IN GENERAL.—Subpart D of part IV of subchapter A of chapter 1 of the Internal Revenue Code of 1986 is amended by adding a credit for a qualified local news organization equal to [TBD] percent of compensation paid to local news journalists during the taxable year, not to exceed $[TBD] per journalist.

(b) QUALIFIED LOCAL NEWS ORGANIZATION.—The term means an organization that—

(1) publishes or broadcasts original content primarily about a community or region within the United States;

(2) employs at least one local news journalist who resides within [TBD] miles of the coverage area; and

(3) is not controlled by a political committee or by any person required to register under the Foreign Agents Registration Act.

(c) CONTENT NEUTRALITY.—Eligibility shall not depend on the viewpoint, editorial position, or subject matter of any content.

SEC. 602. CIVIC INFORMATION BLOCK GRANTS.

(a) GRANTS.—There is appropriated $[TBD] for each of fiscal years [TBD] through [TBD] for formula grants to States to support local civic information, including public-interest reporting on State and local government.

(b) EDITORIAL INDEPENDENCE.—A State receiving funds shall distribute them through an entity independent of the executive and legislative branches of the State, and no recipient shall be subject to any condition relating to the content of its reporting.

(c) ANNUAL REPORTING.—Each State shall report annually on recipients, amounts, and coverage areas served.

TITLE VII — IMPLEMENTATION AND OVERSIGHT

SEC. 701. IMPLEMENTATION TIMELINE.

(a) YEAR 1 (2030).—Launch pre-filled return voluntary pilot; begin IRS enforcement hiring; open childcare credit enrollment; launch first round of provider supply grants.

(b) YEAR 3 (2032).—Pre-filled returns become default; full enforcement operations.

(c) YEAR 5 (2034).—Full childcare credit; comprehensive review of enforcement ROI; Secretary report on pre-filled system expansion options.

SEC. 702. INDEPENDENT OVERSIGHT BOARD. The Secretary of the Treasury shall establish an independent oversight board to monitor implementation of this Act, including—

(1) tax pre-fill accuracy and taxpayer satisfaction;

(2) enforcement targeting compliance with section 103(c); and

(3) childcare credit delivery and provider grant outcomes. The Board shall report annually to Congress.

SEC. 703. CONGRESSIONAL REPORTING. Not later than 90 days after the end of each fiscal year, the Secretary shall submit to the Committee on Ways and Means of the House and the Committee on Finance of the Senate a report

including—

(1) total revenue recovered under the enforcement initiative;

(2) aggregate taxpayer compliance cost savings;

(3) number of families receiving childcare credit and average benefit amount; and

(4) geographic distribution of provider supply grants.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Taxing and Spending Powers. Refundable credits, IRS appropriations, and grants rest on settled authority; the open questions are procedural — what survives the Byrd rule in a reconciliation bill [Source 271].
- **Byrd rule — controlling precedent.** The most recent review, of the 2025 reconciliation law (P.L. 119-21), kept tax credits, direct appropriations to existing accounts, and Medicare and Medicaid spending changes, and struck free-standing program mandates and regulatory changes even when they were large in dollar terms. Request a pre-introduction Byrd letter from Senate Budget Committee staff and an advisory ruling on each provision flagged below [Source 271].
- **Byrd rule — years after the window.** Under 2 U.S.C. §644(b)(1)(E), a provision that increases the deficit in a year after the budget window is extraneous unless other provisions of the same title offset it in that year. Sec. 401(b) (premium credits with no end date) and any other permanent credit or spending must be offset in each out-year within its title or end with the window; ask CBO and JCT to score the out-years before introduction.
- **Sec. 102 · Direct File permanence.** The bar on executive discontinuation in (a), the functional requirements in (b), and the contracting limit in (c) are the most exposed provisions in Title I because they read as program design. They are drafted as terms and conditions of the (d) appropriation. Prepared fallback: if (a)–(c) are struck, (d) stands alone and funds the program under existing Treasury authority (31 U.S.C. §321; 26 U.S.C. §7801) — the pattern of 2022, when Direct File study funding survived and an operating-plan mandate was struck and then imposed administratively — and statutory permanence moves to standalone legislation. Seek a ruling on (b) and (c) specifically.
- **Sec. 101 · Default enrollment.** The move to default enrollment in new section 7529(c) is the second Byrd exposure in Title I. If it is struck, the voluntary program continues under the Code amendment and default enrollment can be adopted administratively. Confirm that sections 7529 and 7530A are unoccupied in chapter 77 after the 2022 and 2025 amendments.
- **Sec. 103 · Enforcement funding.** A direct appropriation to IRS enforcement, with the middle-income limit in (c) as a condition on its use, follows the structure that survived in 2022. Sec. 301 depends on CBO counting enforcement revenue as an offset; request that estimate early.
- **Sec. 104 · Penalties.** Build on existing penalties rather than new categories, which risk a "merely incidental" ruling. Subsection (a) should amend the §6662 accuracy-related penalty schedule — for example, a higher rate for repeated high-income understatements — with the multiplier and threshold set from Treasury and JCT estimates. Subsection (b) should extend the responsible-person doctrine of §6672 to officers who willfully direct corporate tax-evasion schemes, drafted jointly by the Department of Justice and Treasury.
- **Title II · Childcare.** A refundable credit is the most Byrd-compliant form of the 7% cap. Set the income limit and phase-out from Treasury modeling so there is no cliff, and coordinate with the §21 credit so the same expenses are not counted twice. Draft the Sec. 202 supply grants as supplemental funding to the Child Care and Development Block Grant (42 U.S.C. §9858 et seq.) rather than a new program.
- **Sec. 404 · Ambulance billing.** Subsections (a) and (b) affect premiums, and therefore premium tax credit outlays, but are largely regulatory; a Parliamentarian determination is required before they ride in reconciliation, with standalone health legislation as the fallback vehicle. Subsection (c) is a direct appropriation. The designation requirement in (d) is a grant condition and must be stated with the clarity Pennhurst State School and Hospital v. Halderman (1981) requires.

- **Title V · Workforce and teachers.** The employer credit in Sec. 501(e) is low-risk. The Sec. 501 grant pipeline and Sec. 502 salary grants are new program structures; consistent with 2025, draft them as supplements to existing Registered Apprenticeship and Elementary and Secondary Education Act accounts or move them to regular order. The Sec. 502(c) conditions must be stated unambiguously as conditions of the grant (South Dakota v. Dole, 1987) [Source 204], and they are likely to be struck as extraneous if they ride in reconciliation.
- **Title VI · Local news.** Taxes and tax benefits that single out the press, or select speakers within it, draw First Amendment scrutiny (Minneapolis Star & Tribune Co. v. Minnesota Commissioner of Revenue, 1983; Arkansas Writers' Project v. Ragland, 1987). Keep the eligibility tests in Sec. 601(b) free of any subject-matter criterion, and preserve the content-neutrality rule in 601(c) and the independence of the distributing entity in 602(b).
- **Secs. 405–406 · Medicare offsets.** Both are direct-spending changes to existing Medicare payment systems, the category the Parliamentarian has consistently allowed in reconciliation, and both appear in CBO's December 2024 deficit-reduction options [Sources 944, 945]. Sec. 405 raises a statutory floor CMS already administers (currently 5.9%); write the amendment against the subclause text in force when introduced. For Sec. 406, the D.C. Circuit upheld CMS's own site-neutral clinic-visit policy (American Hospital Association v. Azar, 2020); placing it in statute removes that litigation risk. Subsection (e) is what produces federal savings; without it CMS would redistribute the reduction within the payment system. Keep the rural exceptions in (c)(2), which protect the hospitals Sec. 403 stabilizes.
- **Sec. 304 · Corporate rate.** A rate change in section 11(b) is the clearest possible reconciliation provision. Each percentage point raises about $140 billion over ten years in CBO's options [Sources 944, 946], so the negotiating fallback is 22%, which keeps roughly half the revenue. The rate applies before the many credits that reduce corporate liability, so coordinate with the IIC Act's clean-energy and manufacturing credits; and confirm how the higher rate interacts with the base-erosion and foreign-income rules as amended in 2025, which CBO's option predates.
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, Treasury technical staff, the Joint Committee on Taxation, and the Congressional Budget Office before introduction.

Bill 2 · IIC Act

Infrastructure & Industrial Capacity Act of 2029 · A — Budget Reconciliation · Months 6–24

- · I · Clean firm power, grid, and energy investment — P61
- · II · Strategic domestic technology; disruptive technology incentive mechanisms; industrial commons — P64, P10, P12
- · III · Airports and ATC; USPS modernization — P66, P67
- · IV · Federal inspector and auditor workforce — P62
- · V · Water infrastructure modernization fund — P87
- · VI · Disaster resilience: statutory preparedness mandate & pre-disaster mitigation fund; state disaster relief trust accounts as Phase II amendment — P82, P88

Depends on: Bill 1 momentum. *Attack:* Too expensive; government picking winners. *Fallback:* Semiconductors and inspectors are the Byrd-strongest core; grid and USPS separable.

What this bill does. Funds grid modernization, firm clean power and transmission, semiconductor and battery manufacturing (paid by milestone, with recapture), airport and air-traffic-control modernization, Postal Service modernization, a larger federal inspector workforce, water revolving funds and lead-pipe replacement, and a pre-disaster mitigation fund. Wind and solar credits and state disaster trust accounts are Phase II sections. Does not: take government equity in companies (Sec. 204(c) bars it).

FULL LEGISLATIVE TEXT

121ST CONGRESS
1ST SESSION
H. R. ____

To provide for reconciliation pursuant to the concurrent resolution on the budget; to modernize domestic energy infrastructure and supply chains; to invest in domestic semiconductor and battery manufacturing capacity; to modernize federal transportation and delivery infrastructure; to expand federal enforcement and accountability capacity; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Infrastructure and Industrial Capacity Act of 2029" or the "IIC Act of 2029".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) The United States electrical grid operates on aging infrastructure with significant vulnerability to cyberattack, extreme weather, and cascading failure.

(2) Domestic semiconductor manufacturing capacity has declined from approximately 37 percent of global production in 1990 to approximately 12 percent, creating documented supply chain vulnerabilities in defense, healthcare, and critical infrastructure systems.

(3) Next-generation battery technology is a strategic national security asset underpinning domestic energy transition, military readiness, and supply chain resilience.

(4) The Federal Aviation Administration has identified significant airport infrastructure deficits that reduce capacity and compromise safety margins.

(5) The United States Postal Service requires capital investment in fleet electrification and delivery modernization to remain viable as a universal service provider.

(6) Federal enforcement capacity across regulatory agencies has declined substantially, reducing the government's ability to detect fraud, recover revenue, and enforce existing law.

(b) PURPOSE.—The purposes of this Act are to—

(1) modernize domestic energy infrastructure to reduce vulnerability and lower long-term costs;

(2) restore domestic manufacturing capacity in semiconductor and battery sectors essential to national security;

(3) modernize federal transportation and delivery infrastructure; and

(4) rebuild federal enforcement capacity to recover revenue, reduce fraud, and enforce existing statutory obligations.

SEC. 3. BUDGETARY COMPLIANCE.

(a) RECONCILIATION.—The provisions of this Act are enacted pursuant to reconciliation instructions in the concurrent resolution on the budget for fiscal year 2029.

(b) DEFICIT NEUTRALITY.—The provisions of this Act shall be implemented in a manner that does not increase the Federal deficit over the 10-year budget window, as determined by the Congressional Budget Office. Where capital investments produce long-term Federal revenue benefits, such benefits shall be counted toward budget neutrality in accordance with applicable CBO scoring rules.

(c) BYRD RULE COMPLIANCE.—All provisions are designed to produce direct budgetary effects. Any provision determined by the Senate Parliamentarian to be extraneous under 2 U.S.C. §644 shall be severable from the remainder of the Act.

TITLE I — ENERGY GRID MODERNIZATION AND DOMESTIC CLEAN ENERGY

SEC. 101. GRID MODERNIZATION INVESTMENT FUND.

(a) ESTABLISHMENT.—The Secretary of Energy shall establish a Grid Modernization Investment Fund to support capital investment in the resilience, security, and capacity of the domestic electrical grid.

(b) APPROPRIATION.—$[TBD] for each of fiscal years 2030 through 2037.

(c) ELIGIBLE USES.—Funds shall be available for transmission line modernization and expansion; grid cybersecurity hardening and redundancy systems; distributed energy resource integration; grid-scale energy storage deployment; and interconnection upgrades between regional grid systems.

(d) NATIONAL SECURITY DESIGNATION.—The Secretary shall coordinate with the Department of Defense and the Cybersecurity and Infrastructure Security Agency to ensure grid modernization activities funded under this section address identified national security vulnerabilities.

SEC. 102. FIRM CLEAN POWER AND TRANSMISSION.

(a) IN GENERAL.—The Secretary of Energy shall provide grants, loans, and loan guarantees for the development and expansion of domestic firm, dispatchable, and transmission-enabling energy resources, in the following order of priority—

(1) advanced nuclear generation, including small modular reactors and thorium-based technologies, and the domestic fuel supply chain;

(2) geothermal generation, including enhanced geothermal systems;

(3) long-duration energy storage; and

(4) interregional transmission lines and the hydroelectric modernization that supports grid reliability.

(b) LOAN AUTHORITY.—The loan guarantee authority of the Department of Energy under title XVII of the Energy Policy Act of 2005 is increased by $[TBD] for projects described in subsection (a).

(c) DOMESTIC CONTENT REQUIREMENT.—Not less than [TBD] percent of components in federally supported projects under this section shall be manufactured in the United States.

(d) WORKFORCE REQUIREMENT.—Projects receiving support under this section shall pay prevailing wages as determined by the Secretary of Labor and shall utilize registered apprenticeship programs where available.

(e) APPROPRIATION.—$[TBD] for fiscal years 2030 through 2037.

SEC. 103. WIND AND SOLAR GENERATION [PHASE II].

(a) IN GENERAL.—Beginning in fiscal year [TBD], the Secretary of Energy shall extend support under section 102 to utility-scale and distributed wind and solar generation and component manufacturing, subject to the domestic content and workforce requirements of section 102.

(b) COORDINATION.—Support under this section shall be coordinated with any tax credit for wind or solar generation in effect at the time, to avoid duplicative Federal support.

TITLE II — DOMESTIC SEMICONDUCTOR AND BATTERY MANUFACTURING

SEC. 201. SEMICONDUCTOR MANUFACTURING INVESTMENT PROGRAM.

(a) IN GENERAL.—The Secretary of Commerce shall establish a Domestic Semiconductor Manufacturing Investment Program to expand domestic fabrication capacity for semiconductors essential to defense, healthcare, and critical infrastructure systems.

(b) AUTHORIZED ACTIVITIES.—The Program shall provide direct grants for new or expanded fabrication facility construction; investment tax credits for qualifying capital expenditures; workforce development grants for semiconductor manufacturing skills training; and research and development grants for next-generation fabrication processes.

(c) DEFENSE COORDINATION.—The Secretary of Commerce shall coordinate with the Secretary of Defense to prioritize investment in semiconductor categories identified as critical defense supply chain vulnerabilities.

(d) ANTI-FOREIGN ADVERSARY PROVISION.—No entity substantially owned or controlled by a foreign adversary (as determined under section 791.4 of title 15, Code of Federal Regulations) shall be eligible for support under this section.

(e) APPROPRIATION.—$[TBD] for fiscal years 2030 through 2037.

SEC. 202. NEXT-GENERATION BATTERY MANUFACTURING PROGRAM.

(a) IN GENERAL.—The Secretary of Energy shall establish a Next-Generation Battery Manufacturing Program to expand domestic production of advanced battery technologies for energy storage, transportation, and defense applications.

(b) AUTHORIZED ACTIVITIES.—The Program shall support manufacturing facility construction and expansion; materials processing and supply chain development; battery recycling and second-life technology; and workforce training for battery manufacturing.

(c) ALLIED NATION COORDINATION.—The Secretary shall pursue cooperative agreements with allied nations to develop resilient battery material supply chains that reduce dependence on foreign adversary sources.

(d) APPROPRIATION.—$[TBD] for fiscal years 2030 through 2037.

SEC. 203. DISRUPTIVE TECHNOLOGY INCENTIVE MECHANISMS.

(a) PRIZES AND ADVANCE COMMITMENTS.—The Secretary of Commerce and the Secretary of Energy may award prizes under section 24 of the Stevenson-Wydler Technology Innovation Act of 1980, and may enter advance market commitments, to reward the demonstrated delivery of technologies meeting performance specifications in strategic sectors.

(b) PAYMENT ON RESULTS.—Payments under subsection (a) shall be made only upon independent verification that the specified performance has been achieved.

(c) APPROPRIATION.—$[TBD] for fiscal years 2030 through 2037, to remain available until expended.

SEC. 204. INDUSTRIAL COMMONS PRESERVATION.

(a) IN GENERAL.—The Secretary of Commerce shall provide grants to sustain regional supplier networks, tooling and machine-shop capacity, and specialized workforce whose loss would impair domestic manufacturing in a strategic sector.

(b) PRIORITY.—Priority shall be given to regions where a supplier network is at risk of collapse following the closure or offshoring of an anchor manufacturer.

(c) CONDITIONS.—Recipients shall maintain domestic operations for not less than [TBD] years. Nothing in this section authorizes the acquisition of an equity interest by the United States.

(d) APPROPRIATION.—$[TBD] for fiscal years 2030 through 2037.

SEC. 205. ACCOUNTABILITY FOR STRATEGIC INVESTMENT.

(a) MILESTONES.—Each award under sections 201 and 202 shall specify production-capacity milestones, and disbursement shall follow verified completion of each milestone.

(b) RECAPTURE.—An award recipient that fails to meet a milestone, or ceases domestic operations within [TBD] years, shall repay a proportional share of the award.

(c) UPSTREAM ELIGIBILITY.—Manufacturing equipment, specialty chemicals and gases, advanced packaging, and critical-mineral processing are eligible activities under sections 201 and 202.

(d) RESILIENCE REPORTING.—The Secretary of Commerce shall report annually on domestic capacity added, the share of each strategic supply chain sourced from the United States and allied nations, and outstanding single points of failure, rather than on announced investment.

TITLE III — TRANSPORTATION AND DELIVERY INFRASTRUCTURE

SEC. 301. AIRPORT MODERNIZATION PROGRAM.

(a) IN GENERAL.—The Secretary of Transportation shall establish an Airport Modernization Program to fund capital investment in domestic airport infrastructure.

(b) ELIGIBLE PROJECTS.—Grants under this section shall be available for terminal modernization and capacity expansion; runway and taxiway rehabilitation; air traffic control facility upgrades; ground transportation integration improvements; and accessibility and passenger experience upgrades.

(c) AIR TRAFFIC CONTROLLER WORKFORCE.—The Administrator of the Federal Aviation Administration shall develop and implement a plan to hire and train not fewer than [TBD] additional certified air traffic controllers over the 5-year period following enactment.

(d) AIR TRAFFIC CONTROL SYSTEM REPLACEMENT.—The Administrator shall complete replacement of the national air traffic control system, including radar, telecommunications, and facility consolidation, and shall report to Congress semiannually on cost, schedule, and remaining need.

(e) APPROPRIATION.—$[TBD] for fiscal years 2030 through 2035.

SEC. 302. UNITED STATES POSTAL SERVICE MODERNIZATION.

(a) FLEET ELECTRIFICATION.—The Postmaster General shall develop and implement a plan for the electrification of the USPS delivery vehicle fleet, including acquisition of electric delivery vehicles; installation of charging infrastructure at postal facilities; and workforce training for electric vehicle maintenance.

(b) DELIVERY NETWORK MODERNIZATION.—The Postmaster General shall invest in next-generation sorting, tracking, and delivery systems to maintain USPS competitiveness as a universal service provider.

(c) BUDGET RESTORATION.—$[TBD] appropriated to the USPS to restore operating capacity reduced by prior administrative actions, subject to a modernization plan approved by the Postal Regulatory Commission.

(d) APPROPRIATION.—$[TBD] for fiscal years 2030 through 2035.

TITLE IV — FEDERAL ENFORCEMENT AND ACCOUNTABILITY CAPACITY

SEC. 401. FEDERAL INSPECTOR AND AUDITOR WORKFORCE EXPANSION.

(a) IN GENERAL.—The heads of covered agencies shall expand the inspector, auditor, and enforcement workforce to levels sufficient to fulfill each agency's statutory enforcement obligations, under existing OPM competitive service hiring authorities (5 U.S.C. §3301 et seq.).

(b) COVERED AGENCIES.—For purposes of this section, covered agencies include—

(1) the Environmental Protection Agency;

(2) the Food and Drug Administration;

(3) the Occupational Safety and Health Administration;

(4) the Securities and Exchange Commission;

(5) the Commodity Futures Trading Commission;

(6) the Federal Trade Commission; and

(7) such other agencies as the Director of the Office of Management and Budget identifies as having significant enforcement capacity deficits.

(c) WORKFORCE TARGETS.—Each covered agency head shall, within 180 days of enactment, submit to Congress an enforcement capacity assessment, establish a 5-year workforce expansion target, and publish annual enforcement activity reports including penalties assessed, penalties collected, and revenue recovery attributable to enforcement activities.

(d) APPROPRIATION.—$[TBD] for each of fiscal years 2030 through 2035 for covered agencies to carry out this section.

TITLE V — WATER INFRASTRUCTURE MODERNIZATION

SEC. 501. STATE REVOLVING FUND CONTINUATION.

(a) CAPITALIZATION.—There is appropriated, for each of fiscal years 2029 through 2038, $[TBD] for capitalization grants under section 601 of the Federal Water Pollution Control Act and $[TBD] for capitalization grants under section 1452 of the Safe Drinking Water Act.

(b) ADDITIONALITY.—Amounts under this section are in addition to, and shall not be reduced by, amounts designated for community projects in annual appropriations Acts.

SEC. 502. LEAD SERVICE LINE REPLACEMENT. There is appropriated $[TBD] for each of fiscal years 2029 through [TBD] to complete replacement of lead service lines, with priority for disadvantaged communities, to remain available until expended.

SEC. 503. EMERGING CONTAMINANTS. There is appropriated $[TBD] for each of fiscal years 2029 through 2033 for grants to address emerging contaminants in drinking water and wastewater systems.

TITLE VI — DISASTER RESILIENCE

SEC. 601. NATIONAL PREPAREDNESS AND MITIGATION FUND.

(a) ESTABLISHMENT.—There is established in the Treasury a National Pre-Disaster Mitigation Fund, administered by the Administrator of the Federal Emergency Management Agency.

(b) STATUTORY FUNDING.—There is appropriated to the Fund, for each fiscal year, an amount equal to [TBD] percent of the estimated aggregate amount of disaster assistance grants for the preceding fiscal year, which may not be transferred or rescinded except by Act of Congress.

(c) USES.—Grants from the Fund shall support projects that reduce risk from floods, wildfires, storms, extreme heat, and earthquakes, with priority for communities with high risk and limited capacity.

(d) PREPAREDNESS STANDARDS.—The Administrator shall issue national preparedness standards and report annually to Congress on progress toward them.

SEC. 602. STATE DISASTER RELIEF TRUST ACCOUNTS [PHASE II].

(a) IN GENERAL.—Beginning in fiscal year [TBD], a portion of disaster relief funding shall be pre-allocated by formula to State disaster relief trust accounts, based on population, hazard exposure, and historical losses.

(b) AVAILABILITY.—Amounts in a State account are available upon a disaster declaration by the Governor meeting criteria established by the Administrator, without requiring a separate Federal declaration for events below a threshold of $[TBD].

(c) ACCOUNTABILITY.—States shall report expenditures within 90 days and are subject to audit by the Inspector General of the Department of Homeland Security.

TITLE VII — IMPLEMENTATION

SEC. 701. IMPLEMENTATION TIMELINE.

(a) YEAR 1 (2030).—Grid Modernization Fund operational; Semiconductor Program accepting applications; Airport Modernization grants awarded (first round); USPS electrification plan submitted; agency enforcement capacity assessments submitted to Congress.

(b) YEAR 3 (2032).—First domestic semiconductor facilities operational; grid modernization milestone review; enforcement workforce at 50 percent of 5-year target; USPS fleet electrification at [TBD] percent.

(c) YEAR 5 (2034).—Comprehensive program review and reauthorization assessment; enforcement workforce at 100 percent of targets; GDP and employment impact assessment.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Spending and Commerce powers. Grants, loans, appropriations, and tax credits rest on settled authority; the questions are procedural [Source 271].
- **Sec. 102(c)–(d) · Domestic-content and wage conditions.** These are the most exposed provisions in the bill: conditions on grants that read as labor and trade policy. Prepared fallback ladder: (1) keep them as terms and conditions of the 102(e) appropriation; (2) if struck, convert them into bonus-credit conditions on the energy credits then in force — the form of the 2022 domestic-content and prevailing-wage bonus credits, which survived

because meeting the condition changes tax liability; (3) if Sec. 102 is struck as a whole, the appropriation and loan authority stand alone under existing Department of Energy authority and the standards are applied as award terms. Have the step-two credit language drafted before introduction, and seek a ruling on (d) specifically. Sec. 103 incorporates the same conditions and carries the same exposure.

- **Sec. 201 · Semiconductors.** The CHIPS Act (Pub. L. 117-167) was enacted outside reconciliation because its program architecture would not survive the Byrd rule. Draft Sec. 201 as supplemental funding to the existing CHIPS incentives program (15 U.S.C. §4652) rather than a parallel program, and coordinate the investment credit in 201(b) with the §48D and §45X credits so support is not duplicated. The foreign-adversary cross-reference in (d) uses the Department of Commerce list (15 C.F.R. 791.4); confirm it against the export-control and foreign-entity definitions in force at introduction.
- **Sec. 205 · Milestones and recapture.** Recapture operates as a term of each award; specify the formula and secure it in the award agreement so it is enforceable as a contract.
- **Sec. 401 · Inspectors.** The structure that survived in 2025 is a direct appropriation to agency staffing under existing hiring authority (5 U.S.C. §3301 et seq.); new inspectorate bodies were the risk. The 401(c) assessments and targets operate as terms of the (d) appropriation; if struck, the appropriation continues and OMB sets the targets administratively. Ask CBO to score enforcement revenue as an offset.
- **Titles III, V, and VI.** Airport, Postal Service, water, and mitigation provisions are direct appropriations to existing programs. Keep the Postal Regulatory Commission's plan approval in 302(c) as a condition on the appropriation. Sec. 602 changes disaster-declaration procedure under the Stafford Act and is policy-heavy; as a Phase II amendment it belongs in regular order.
- **Packaging with Bill 1.** If the IIC Act rides with the COLT Act, submit the two to the Parliamentarian as one package; interactions between them can change the Byrd analysis.
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the Departments of Energy, Commerce, and Transportation, and the Congressional Budget Office before introduction.

Bill 3A · ACFM Act — Part A

Anti-Corruption & Fair Markets Act of 2029 — Part A: Fair Markets & Official Integrity · C — High-Salience Standalone · Months 6–18

· I–II · Congressional stock-trading ban; officials' standards; presidential financial transparency — P37, P38, P39

· III–IV · Graduated executive accountability; revolving-door restrictions — P38 (Title IV)

· V · Competition & corporate accountability (incl. tiered designation architecture, DOJ/Article III enforcement); agricultural concentration — P2, P81

· VI · Servicemember-standard lending protection (36% APR) — P110

· VII · SAFE Banking — P9

· VIII · Federal right to repair — P53

· IX · All-in pricing & fee transparency — P106

· X · Medical debt fairness & credit accuracy — P109

· XI–XII · Water utility ratepayer protection (Phase II); court access restoration (Phase III) — P86, P107

Depends on: Political capital from Bills 1–2. *Attack:* Overreach; quiet bipartisan resistance. *Fallback:* Disclosure plus delayed trading windows if full ban fails; consumer titles separable.

What this bill does. Bans members of Congress and their families from trading individual securities, requires real-time disclosure and blind trusts for senior officials, applies disclosure and tax-return release to the President and Vice President, and sets graduated personal liability for executives of repeat corporate violators — civil first, criminal only after prior repeat adjudications and proof of knowledge. Strengthens merger and monopolization law with DOJ enforcement in federal court; caps consumer loan rates at the 36% servicemember standard; gives state-legal cannabis businesses banking access; and adds right-to-repair, all-in pricing, and medical-debt reporting titles, with water-utility and arbitration titles effective in later phases. Does not: make market concentration itself unlawful.

FULL LEGISLATIVE TEXT

121ST CONGRESS
1ST SESSION
S. ___

To prohibit securities trading by Members of Congress on the basis of nonpublic information; to require comprehensive financial disclosure by Members of Congress and senior Federal officials; to establish graduated executive criminal liability for repeated corporate violations; to strengthen post-government employment restrictions; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Anti-Corruption and Fair Markets Act of 2029" or the "ACFM Act of 2029".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) Public trust in Federal institutions is at historic lows, with a majority of Americans believing that elected officials use their positions for personal financial gain.

(2) Members of Congress have access to material nonpublic information through their official duties that may affect the value of publicly traded securities.

(3) Existing disclosure requirements under the STOCK Act of 2012 (Pub. L. 112-105) have not eliminated the practice of congressional trading on nonpublic information, and civil penalties have proven insufficient as deterrents.

(4) Stock trading by a Member of Congress is private commercial activity, not a legislative act, and is therefore not protected by the Speech or Debate Clause under United States v. Brewster, 408 U.S. 501 (1972).

(5) Corporate executives whose companies repeatedly violate Federal law face insufficient personal consequences, resulting in regulatory fines being treated as a cost of doing business.

(6) The movement of senior Government officials directly into employment in industries they regulated undermines the independence and public credibility of Federal agencies.

(b) PURPOSE.—The purposes of this Act are to—

(1) prohibit securities trading by Members of Congress and their immediate families during periods of Congressional service, with criminal and civil enforcement;

(2) establish comprehensive real-time financial disclosure for Members of Congress and senior Federal officials, with mandatory blind-trust requirements for covered holdings;

(3) establish a graduated framework of executive accountability for repeated corporate violations, with mens-rea elements calibrated to penalty severity at each tier; and

(4) strengthen post-government employment restrictions for senior Federal officials, senior congressional staff, and senior regulatory personnel.

SEC. 3. CONSTITUTIONAL FOUNDATION.

(a) SPEECH OR DEBATE.—The provisions of this Act, including the criminal prohibitions in Title I, regulate private commercial conduct of Members of Congress, not legislative acts or motivation for legislative acts. Prosecutions under this Act may proceed under United States v. Brewster, 408 U.S. 501 (1972), provided that the evidentiary segregation requirements of section 102(b) are observed.

(b) ETHICS COMMITTEE PRIMARY ENFORCEMENT.—The primary civil enforcement structure established under section 102(a) preserves congressional self-discipline as a protected legislative activity under Eastland v. United States Servicemen's Fund, 421 U.S. 491 (1975), with criminal referral to the Department of Justice limited to non-privileged evidence as required by United States v. Helstoski, 442 U.S. 477 (1979).

(c) SEVERABILITY.—If any provision of this Act, or the application thereof to any person or circumstance, is held invalid, the remainder of this Act, and the application of such provision to other persons or circumstances, shall not be affected.

TITLE I — CONGRESSIONAL SECURITIES TRADING PROHIBITION

SEC. 101. PROHIBITION ON CONGRESSIONAL SECURITIES TRADING.

(a) IN GENERAL.—No Member of Congress, nor any spouse, domestic partner, or dependent child of a Member, shall purchase or sell any covered security during any period of Congressional service.

(b) COVERED SECURITY.—For purposes of this section, the term "covered security" means—

(1) any individual security as defined in section 3(a)(10) of the Securities Exchange Act of 1934 (15 U.S.C. §78c(a)(10));

(2) any commodity future or option on a commodity future; or

(3) any digital asset or cryptocurrency with a transaction value above $[TBD].

(c) PERMITTED INVESTMENTS.—The prohibition under subsection (a) shall not apply to—

(1) diversified mutual funds;

(2) index funds tracking broad-market indices, excluding sector-specific funds;

(3) exchange-traded funds, excluding sector-specific funds;

(4) United States Treasury securities;

(5) investment-grade municipal bonds; and

(6) assets held in a qualifying blind trust under section 202.

(d) DURATION.—The prohibition under subsection (a) shall apply throughout the period of Congressional service and for the 180-day period immediately following separation from service.

SEC. 102. CIVIL AND CRIMINAL ENFORCEMENT.

(a) PRIMARY CIVIL ENFORCEMENT.—The Committee on Ethics of the House of Representatives and the Select Committee on Ethics of the Senate (the "Ethics Committees") shall have primary civil enforcement authority for violations of section 101. Civil penalties shall include—

(1) disgorgement of all profit gained from the prohibited transaction, plus interest at the rate prescribed for delinquent Federal taxes;

(2) civil fine equal to 10 percent of the profit gained; and

(3) public disclosure of the violation on the chamber's official website not later than 48 hours after adjudication by the Ethics Committee.

(b) CRIMINAL REFERRAL AND EVIDENTIARY SEGREGATION.—Not later than 30 days after adjudication of a violation under subsection (a), the Ethics Committee shall refer the matter to the Department of Justice for criminal review. Such referral—

(1) shall transmit only non-privileged evidence, including brokerage records, public statements, and trading history;

(2) shall not transmit any committee briefing, legislative-act record, or other material protected under the Speech or Debate Clause as construed in United States v. Helstoski, 442 U.S. 477 (1979); and

(3) shall include a written certification by the Ethics Committee that the segregation requirements of this subsection have been observed.

(c) CRIMINAL PENALTIES.—A Member of Congress who knowingly violates section 101 shall be subject to—

(1) a fine of not less than 3 times the profit gained; and

(2) imprisonment of not more than [TBD] years.

(d) ENFORCEMENT BY MEMBERS.—Nothing in this section limits the authority of either chamber to discipline its own Members under article I, section 5, clause 2 of the Constitution.

TITLE II — FINANCIAL DISCLOSURE

SEC. 201. REAL-TIME DISCLOSURE.

(a) IN GENERAL.—Section 103 of the Ethics in Government Act of 1978 (5 U.S.C. 13101 et seq.) is amended to require Members of Congress and covered senior Federal officials to disclose any reportable transaction not later than 5 business days after the date of the transaction.

(b) COVERED SENIOR FEDERAL OFFICIAL.—For purposes of this section, the term "covered senior Federal official" means—

(1) any individual serving in a position at level I, II, or III of the Executive Schedule (5 U.S.C. §§5312–5314);

(2) any individual confirmed by the Senate to lead a Federal agency or independent regulatory commission;

(3) any senior congressional staff member with annual compensation exceeding the threshold established under section 109 of the Ethics in Government Act of 1978; and

(4) any senior regulatory staff member designated by the head of a Federal agency or independent regulatory commission.

(c) PUBLIC AVAILABILITY.—Disclosures under this section shall be published on a publicly searchable Federal database not later than 1 business day after filing.

(d) PENALTIES.—Failure to file a required disclosure within the time period required under subsection (a) shall result in a civil fine of $[TBD] per day of delinquency.

SEC. 202. QUALIFYING BLIND TRUSTS.

(a) ESTABLISHMENT.—A Member of Congress or covered senior Federal official with covered holdings exceeding $[TBD] shall transfer such holdings to a qualifying blind trust not later than 90 days after taking office.

(b) QUALIFYING BLIND TRUST.—For purposes of this section, the term "qualifying blind trust" means a trust—

(1) administered by an independent trustee with no familial, business, or political relationship to the beneficiary;

(2) in which the beneficiary has no knowledge of the specific composition of trust assets following initial transfer;

(3) in which the beneficiary may not communicate with the trustee regarding the management of trust assets except through quarterly aggregate reports prepared by the trustee; and

(4) certified as compliant with this section by the Office of Government Ethics or the Ethics Committees, as applicable.

(c) PENALTIES.—Failure to establish a qualifying blind trust within the time period required under subsection (a), or any communication with the trustee in violation of subsection (b)(3), shall result in—

(1) a civil fine of $[TBD]; and

(2) referral to the Ethics Committees or the Office of Government Ethics for further action.

SEC. 203. ANNUAL CERTIFICATION.

(a) IN GENERAL.—Each Member of Congress and covered senior Federal official shall, not later than 60 days after the end of each calendar year, submit to the Office of Government Ethics or the Ethics Committees, as applicable, a certification that—

(1) the official has complied with the requirements of sections 101, 201, and 202 during the preceding calendar year;

(2) all required disclosures have been filed within the time periods required; and

(3) all covered holdings, if any, are held in a qualifying blind trust.

(b) FALSE CERTIFICATION.—A knowingly false certification under this section shall be subject to the penalties applicable to false statements under section 1001 of title 18, United States Code.

SEC. 204. PRESIDENT AND VICE PRESIDENT.

(a) DISCLOSURE.—Section 201 applies to the President and the Vice President.

(b) HOLDINGS.—The President and the Vice President shall, within 90 days after taking office, either place covered holdings exceeding $[TBD] in a qualifying blind trust under section 202 or publicly disclose each such holding, its value, and any matter before the executive branch in which it has a financial interest, updated within 5 business days of any change.

(c) TAX RETURNS.—Section 6103 of the Internal Revenue Code of 1986 is amended to provide that the Federal income tax returns of the President and the Vice President for each year in office, and for the 3 years before taking office, shall be made public within 15 days of filing or of taking office.

(d) FITNESS REPORT.—The physician to the President shall publish annually a summary report on the President's fitness to discharge the powers and duties of the office. Nothing in this subsection requires disclosure of medical records beyond that summary.

TITLE III — GRADUATED EXECUTIVE ACCOUNTABILITY

SEC. 301. GRADUATED EXECUTIVE ACCOUNTABILITY TIERS.

(a) IN GENERAL.—Liability of an officer, director, or other responsible person of a covered corporate entity for repeated violations of Federal law by such entity shall be determined under the graduated tier framework set forth in this section.

(b) TIER 1 — CIVIL CORPORATE PENALTIES.—Existing statutory civil penalties against the corporate entity. No individual executive liability under this tier.

(c) TIER 2 — PERSONAL CIVIL LIABILITY FOR REPEAT VIOLATIONS.—Where a covered entity has been adjudicated to have committed a substantively similar violation within the 5 prior fiscal years, individual responsible persons shall be subject to—

(1) personal civil disgorgement of any profit, bonus, or compensation received during the period of violation; and

(2) 5-year debarment from Federal contracts under 41 U.S.C. §3304 and Federal grants. No mens rea element is required for Tier 2 civil consequences.

(d) TIER 3 — RESPONSIBLE CORPORATE OFFICER MISDEMEANOR.—An individual responsible person of a covered entity shall be subject to misdemeanor prosecution where—

(1) the entity has been adjudicated to have committed a Tier 2 violation within the 5 prior fiscal years; and

(2) the responsible person knew or, in the exercise of reasonable diligence under the responsibilities of office, should have known of the violation. Tier 3 penalties: fine up to $[TBD]; imprisonment up to 1 year.

(e) TIER 4 — RECIDIVIST FELONY WITH SPECIFIC-INTENT ELEMENTS.—An individual responsible person shall be subject to felony prosecution with mandatory minimum imprisonment of [TBD] years where—

(1) the entity has been adjudicated to have committed a Tier 3 violation within the 5 prior fiscal years;

(2) the responsible person knew that the violation was occurring; AND

(3) the responsible person either—

(A) had specific intent that the violation continue; or

(B) was willfully blind to the violation, defined as deliberate avoidance of knowledge of the violation. The mental-state elements in paragraphs (2) and (3) are required for Tier 4 prosecution.

(f) AFFIRMATIVE DEFENSE.—An individual responsible person shall not be subject to liability under Tier 2, Tier 3, or Tier 4 of this section if such person establishes by a preponderance of the evidence that the person—

(1) took good-faith documented steps to prevent the violation; and

(2) did not personally benefit financially from the violation.

(g) LAMBERT NOTICE.—The Department of Justice shall publish, not later than 180 days after enactment, clear prescriptions of officer duties under this section. No individual shall be prosecuted under Tier 3 or Tier 4 for conduct occurring before such prescriptions are published.

TITLE IV — REVOLVING DOOR RESTRICTIONS

SEC. 401. POST-GOVERNMENT EMPLOYMENT RESTRICTIONS.

(a) IN GENERAL.—Section 207 of title 18, United States Code, is amended to extend the cooling-off periods established under that section as set forth in this section.

(b) SENIOR OFFICIALS.—A 2-year cooling-off period shall apply to—

(1) Members of Congress;

(2) heads of Federal agencies and independent regulatory commissions;

(3) Senate-confirmed appointees at level I, II, or III of the Executive Schedule; barring lobbying activities directed at the chamber, agency, or commission such individual served.

(c) SENIOR CONGRESSIONAL STAFF.—A 1-year cooling-off period shall apply to senior congressional staff, barring lobbying activities directed at the chamber such individual served.

(d) SENIOR REGULATORY STAFF.—A 1-year cooling-off period shall apply to senior regulatory staff, barring representation of parties before the agency or commission such individual served.

(e) NARROW SCOPE.—The restrictions established under this section apply only to compensated lobbying activity as defined in section 3 of the Lobbying Disclosure Act of 1995 (2 U.S.C. §1602). Advocacy, public testimony, public communications, and uncompensated activity are not restricted under this section.

(f) PENALTIES.—Knowing violations of this section shall result in—

(1) a fine of up to $[TBD]; and

(2) imprisonment of up to [TBD] years.

TITLE V — COMPETITION AND CORPORATE ACCOUNTABILITY

SEC. 501. DOMINANT-FIRM AND DUOPOLY MARKETS.

(a) PRESUMPTION.—In any action under section 7 of the Clayton Act, a merger or acquisition shall be presumed to substantially lessen competition where the post-transaction Herfindahl-Hirschman Index in the relevant market exceeds [TBD] and the transaction increases the index by more than [TBD], or where any party holds a market share exceeding [TBD] percent.

(b) MONOPOLIZATION STANDARD.—Section 2 of the Sherman Act is amended to provide that conduct by a firm or by two firms together holding more than [TBD] percent of a relevant market that excludes rivals without a procompetitive justification constitutes monopolization or attempted monopolization.

(c) STRUCTURAL REMEDIES.—A court finding a violation under subsection (b) may order divestiture or other structural relief where conduct remedies would be inadequate.

SEC. 502. TIERED DESIGNATION AND ANTI-SPLITTING.

(a) AGGREGATION.—For purposes of any size, revenue, or market-share threshold in this Act, the antitrust laws, or section 501, all entities under common control, including through affiliates, special-purpose vehicles, franchise arrangements, or contractual control of pricing or output, shall be treated as a single entity.

(b) TIERS.—The Attorney General shall designate entities in tiers by aggregated revenue and market share, as follows: Tier 1, $[TBD]; Tier 2, $[TBD]; Tier 3, $[TBD]. Designation determines reporting obligations and the applicable presumptions under section 501.

(c) ANTI-EVASION.—A restructuring undertaken with a principal purpose of avoiding a threshold or tier shall be disregarded.

SEC. 503. ENFORCEMENT ROUTING.

(a) DEPARTMENT OF JUSTICE.—Civil and criminal enforcement under this title shall be vested in the Antitrust Division of the Department of Justice, with adjudication in the district courts of the United States.

(b) REFERRALS.—The Federal Trade Commission may refer matters arising under this title to the Attorney General, who shall report to Congress annually on the disposition of each referral.

(c) REPEAT VIOLATIONS.—Repeat violations by a covered entity shall be subject to the graduated executive accountability framework of title III.

SEC. 504. AGRICULTURAL MARKET CONCENTRATION.

(a) PACKERS AND STOCKYARDS ACT.—Section 202 of the Packers and Stockyards Act, 1921, is amended to clarify that a producer need not demonstrate harm to competition market-wide to establish an unfair, unjustly discriminatory, or deceptive practice.

(b) EQUIPMENT AND INPUTS.—The Attorney General and the Secretary of Agriculture shall jointly review concentration in agricultural equipment, seed, fertilizer, and meat processing markets and report to Congress not later than one year after enactment, with recommendations for structural remedies.

(c) JOINT ENFORCEMENT UNIT.—There is established within the Antitrust Division an Agricultural Competition Unit, staffed jointly with the Department of Agriculture.

TITLE VI — SERVICEMEMBER-STANDARD LENDING PROTECTION

SEC. 601. NATIONAL RATE LIMIT.

(a) IN GENERAL.—A creditor shall not extend consumer credit to any consumer with a military annual percentage rate, as defined in section 987(i) of title 10, United States Code, exceeding 36 percent.

(b) STATE LAW.—This section does not preempt any State law providing greater protection to consumers.

(c) ENFORCEMENT.—This title shall be enforced by the Consumer Financial Protection Bureau and by State attorneys general. A consumer injured by a violation may bring a civil action for actual damages, statutory damages of not less than $[TBD], and attorney's fees.

(d) VOID CONTRACTS.—A credit agreement made in violation of this section is void from inception.

TITLE VII — SAFE BANKING

SEC. 701. SAFE HARBOR FOR DEPOSITORY INSTITUTIONS.

(a) IN GENERAL.—A Federal banking regulator may not prohibit, penalize, or discourage a depository institution from providing financial services to a cannabis-related legitimate business or service provider operating in compliance with the law of the State or Indian tribe in which it operates.

(b) PROCEEDS.—Proceeds from a transaction involving activities of a cannabis-related legitimate business shall not be considered proceeds of unlawful activity solely because the transaction involves such activities.

(c) INCORPORATION.—The remaining provisions of this title shall conform to the text of the Secure and Fair Enforcement Banking Act as introduced in the [TBD] Congress.

TITLE VIII — RIGHT TO REPAIR

SEC. 801. ACCESS TO REPAIR RESOURCES.

(a) IN GENERAL.—A manufacturer of digital electronic equipment, agricultural equipment, or medical devices sold in the United States shall make available to owners and independent repair providers, on fair and reasonable terms, the documentation, parts, tools, and diagnostic and embedded software necessary to diagnose, maintain, or repair the equipment.

(b) SAFEGUARDS.—Nothing in this section requires disclosure of a trade secret except as necessary to provide repair resources, or requires a manufacturer to disable security features. The Secretary of Health and Human Services shall issue standards for medical devices that preserve patient safety.

(c) ENFORCEMENT.—A violation of this section shall be treated as an unfair or deceptive act or practice under section 5 of the Federal Trade Commission Act and may be enforced by the Federal Trade Commission or a State attorney general.

TITLE IX — ALL-IN PRICING AND FEE TRANSPARENCY

SEC. 901. TOTAL PRICE DISCLOSURE.

(a) IN GENERAL.—Any person offering goods or services to consumers in commerce shall display the total price, inclusive of all mandatory fees and charges, in any advertisement or price display and before the consumer enters payment information.

(b) EXCLUSIONS.—The total price may exclude government-imposed taxes and shipping charges, provided they are disclosed clearly before purchase.

(c) COVERED SECTORS.—This section applies without limitation to live-event ticketing, short-term lodging, telecommunications, and consumer banking.

(d) ENFORCEMENT.—A violation shall be treated as an unfair or deceptive act or practice under the Federal Trade Commission Act.

TITLE X — MEDICAL DEBT FAIRNESS AND CREDIT ACCURACY

SEC. 1001. MEDICAL DEBT IN CONSUMER REPORTS.

(a) PROHIBITION.—Section 605(a) of the Fair Credit Reporting Act is amended to prohibit a consumer reporting agency from making any consumer report containing information about a debt arising from the receipt of medical services, products, or devices.

(b) COLLECTION PRACTICES.—A debt collector may not initiate collection activity on a medical debt until [TBD] days after the first billing statement and may not charge interest exceeding [TBD] percent on medical debt.

(c) ENFORCEMENT.—This title shall be enforced by the Consumer Financial Protection Bureau, the Federal Trade Commission, and State attorneys general.

TITLE XI — WATER UTILITY RATEPAYER PROTECTION [EFFECTIVE DURING PHASE II]

SEC. 1101. CONDITIONS ON FEDERAL WATER ASSISTANCE.

(a) IN GENERAL.—As a condition of eligibility for financial assistance under the Clean Water and Drinking Water State Revolving Funds, a State shall require that—

(1) any acquisition of a public water or wastewater system by a private entity be approved only upon a determination that the acquisition serves the public interest, made after public notice and hearing;

(2) a utility may not recover through rates any acquisition premium above the depreciated original cost of the acquired system; and

(3) a municipality whose system was acquired retains a right to repurchase the system at fair value at intervals of not more than [TBD] years.

(b) EFFECTIVE DATE.—This title takes effect on [TBD].

TITLE XII — COURT ACCESS RESTORATION [EFFECTIVE DURING PHASE III]

SEC. 1201. PRE-DISPUTE ARBITRATION AGREEMENTS.

(a) IN GENERAL.—No pre-dispute arbitration agreement or pre-dispute joint-action waiver shall be valid or enforceable with respect to an employment, consumer, antitrust, or civil rights dispute.

(b) DETERMINATION.—Whether this title applies to a dispute shall be determined by a court, not an arbitrator.

(c) EFFECTIVE DATE.—This title takes effect on [TBD].

TITLE XIII — IMPLEMENTATION AND OVERSIGHT

SEC. 1301. EFFECTIVE DATE.

(a) GENERAL.—Except as otherwise provided in this Act, the provisions of this Act shall take effect on the date that is 180 days after the date of enactment.

(b) DELAYED PROVISIONS.—

(1) The Department of Justice publication required under section 301(g) shall be completed not later than 180 days after the date of enactment.

(2) Tier 3 and Tier 4 prosecutions under section 301 may not be initiated until after the publication required under section 301(g) has been completed.

(3) The qualifying blind trust requirement under section 202 shall apply to Members of Congress and covered senior Federal officials in office at enactment beginning 270 days after enactment.

SEC. 1302. IMPLEMENTATION GUIDANCE.

(a) ETHICS COMMITTEE PROCEDURES.—The Ethics Committees shall, not later than 90 days after enactment, publish procedures for—

(1) adjudication of section 101 violations;

(2) evidentiary segregation under section 102(b); and

(3) certification under section 102(b)(3).

(b) OFFICE OF GOVERNMENT ETHICS PROCEDURES.—The Office of Government Ethics shall, not later than 90 days after enactment, publish procedures for—

(1) qualifying blind trust certification under section 202;

(2) annual certification under section 203; and

(3) coordination with Ethics Committees on covered congressional officials.

SEC. 1303. ANNUAL REPORTING.

(a) IN GENERAL.—Not later than 90 days after the end of each fiscal year, the Department of Justice, the Office of Government Ethics, and each Ethics Committee shall jointly submit to Congress an annual report including—

(1) the number of violations adjudicated under each title of this Act, by category;

(2) the aggregate civil and criminal penalties imposed;

(3) the number of qualifying blind trusts established and maintained;

(4) the number of revolving-door restriction violations; and

(5) recommendations for legislative or administrative refinement.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Article I, section 5 (each House's power to discipline its Members); the Commerce Clause; and Congress's power over the terms of Federal office and employment. Standalone bill; 60 votes required.
- **Title I · Speech or Debate.** Trading securities is private commercial conduct, not a legislative act, so a Member may be prosecuted for it (United States v. Brewster, 1972) [Source 241]. The risk is evidentiary: the government may not use legislative acts as evidence (United States v. Helstoski, 1979) [Source 243], so a case that depends on what a Member learned in a committee briefing cannot be proved with that briefing. Sec. 102 therefore makes the Ethics Committees the primary civil enforcers — their fact-finding is itself protected (Eastland v. United States Servicemen's Fund, 1975) [Source 250] — and requires certified segregation of privileged material before any referral. The structure holds under either side of the circuit split on document privilege (Rayburn House Office Building, D.C. Cir. 2007; United States v. Renzi, 9th Cir. 2011) [Sources 246, 247]. Do not weaken the segregation requirement.
- **Sec. 101 · Scope.** The ban is categorical for securities and futures. Define the digital-asset threshold in (b)(3) per transaction, as a de minimis exemption, and confirm that coverage of family members reaches every account a Member controls.
- **Sec. 102(c) · Criminal penalty.** Benchmark the prison term against securities fraud (18 U.S.C. §1348) and consider a lower cap suited to the conduct; the fine of three times the profit follows securities sentencing practice. The Department of Justice should confirm fit with the sentencing guidelines.
- **Title II · Disclosure and blind trusts.** Mandatory financial disclosure for officials is settled (Duplantier v. United States, 5th Cir. 1979) [Source 249], and it meets the narrow-tailoring requirement for compelled disclosure (Americans for Prosperity Foundation v. Bonta, 2021) [Source 268] because it applies to people who chose public office and serves the anti-corruption interest directly. Sec. 201(b) does not reach the President; a presidential blind-trust mandate raises Article II questions and should stay out of this bill. The Ethics in Government Act was

recodified in 2022 (5 U.S.C. 13101 et seq.); conform the section references in 201 and 203. Five business days is the drafted reporting period; the two-day insider standard is available as a tighter option after a transition.

- **Sec. 204 · President and Vice President.** The Ethics in Government Act already requires financial disclosure from the President (5 U.S.C. §13103), and *Trump v. Mazars* (2020) concerned congressional subpoenas, not disclosure conditions set by general statute. Subsection (b) offers a choice between a blind trust and full disclosure because a divestiture mandate on the President raises Article II questions that disclosure does not; subsection (d) asks for a summary report, not medical records, to respect privacy. Obtain an OLC opinion before introduction.
- **Title III · Graduated officer liability.** Each tier's mental state is matched to its penalty. Tier 1 is corporate only. Tier 2 is civil and needs no mens rea. Tier 3 is a misdemeanor in the responsible-corporate-officer tradition, which courts have upheld without proof of intent where penalties are small (United States v. Park, 1975; United States v. DeCoster, 8th Cir. 2016) [Sources 245, 248]; consider a six-month cap to match the sentences actually upheld. Tier 4 requires knowledge plus intent or willful blindness, as a felony with a mandatory minimum demands (Staples v. United States, 1994); no appellate court has upheld a felony officer conviction on less than recklessness, so do not relax these elements. Sec. 301(g) supplies the fair notice Lambert v. California (1957) requires by barring prosecution for conduct before the Department of Justice publishes officer duties. Draft pattern jury instructions for the 301(f) affirmative defense with the Department.
- **Title IV · Revolving door.** One- and two-year cooling-off periods sit within the range left in place under 18 U.S.C. §207; longer periods have no track record. Sec. 401(e) limits the restriction to compensated lobbying, which keeps it within the First Amendment limits of United States v. National Treasury Employees Union (1995); keep that limit.
- **Title V · Competition.** Congress may change antitrust standards and presumptions by statute. The two-firm monopolization rule in Sec. 501(b) is novel; define "relevant market" and "procompetitive justification" precisely, because courts will construe them without deference to any agency (Loper Bright, 2024) [Source 260]. Enforcement runs through the Department of Justice and the courts (Sec. 503), so nothing depends on removal protection for the FTC after Trump v. Slaughter [Source 604].
- **Titles VI–X · Consumer protections.** Sec. 601 binds every creditor, including national banks; confirm its interaction with rate exportation under the National Bank Act and its application to lending by tribal entities. Replace the incorporation of a bill "as introduced" in Sec. 701(c) with operative text. Sec. 801's trade-secret safeguard answers the takings objection (Ruckelshaus v. Monsanto, 1984) [Source 206]; coordinate it with the anti-circumvention rules of 17 U.S.C. §1201. A Federal court vacated the 2025 rule on medical debt in credit reports and read the Fair Credit Reporting Act to preempt State laws on the subject, so Sec. 1001's statutory amendment is the durable route; amend the preemption clause (15 U.S.C. §1681t) expressly so that stronger State laws are preserved.
- **Titles XI–XII.** Sec. 1101 is a condition on revolving-fund assistance and must be stated unambiguously (South Dakota v. Dole) [Source 204]. Sec. 1201 changes the reach of the Federal Arbitration Act, which Congress may do by statute, as it did in 2022 for sexual-harassment claims; make the amendment express in title 9.
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the Department of Justice, the Office of Government Ethics, the Ethics Committees, and the Congressional Budget Office before introduction.

Bill 16 · ECFA

Economic Cycle Fairness Act of 2029 · Split — Title I standalone; Title II may ride Bill 1 reconciliation · Year 1–2

· I · Wage and benefit floor indexing + independent Wage Advisory Commission — P7

· II · Automatic countercyclical stabilization (multi-indicator trigger; includes housing protection) — P8

Depends on: None — must be in place before the next downturn. *Attack:* Automatic spending; minimum-wage job losses. *Fallback:* Title II alone.

What this bill does. Indexes the federal minimum wage to median hourly earnings and federal benefit thresholds to inflation, with a Wage Advisory Commission that may recommend real increases. Sets an automatic recession trigger — a 0.5-point rise in unemployment confirmed by a second indicator — that releases household payments, unemployment and state aid, and rental and foreclosure help, phasing down as unemployment falls. Does not: set the starting wage level, which is left to Congress, or let any official delay a certified trigger.

FULL LEGISLATIVE TEXT

121ST CONGRESS
1ST SESSION
H. R. ____

To index the Federal minimum wage and benefit thresholds to economic conditions; to establish an independent wage advisory commission; to provide automatic economic stabilization during recessions; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Economic Cycle Fairness Act of 2029" or the "ECFA".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) The Federal minimum wage has remained $7.25 per hour since 2009, while approximately 19 States index their minimum wages to inflation.

(2) Comparable democracies, including France and Belgium, index wage floors automatically, and the United Kingdom's Low Pay Commission recommends wage-floor increases on the basis of evidence.

(3) In past recessions, Federal relief has repeatedly been delayed by legislative negotiation while unemployment rose.

(4) A rule identifying recessions by a rise of 0.5 percentage points in the three-month average unemployment rate above its low of the prior 12 months has historically identified recessions in real time, but signaled in August 2024 without a recession following, demonstrating the need for a confirming indicator.

(b) PURPOSE.—The purposes of this Act are to keep the wage floor and benefit thresholds from eroding automatically, and to deliver recession relief by formula rather than by discretionary negotiation.

SEC. 3. BUDGETARY COMPLIANCE. Title II is designed for consideration under section 310 of the Congressional Budget Act of 1974. Provisions of this Act without a direct budgetary effect shall be enacted through regular order.

TITLE I — WAGE AND BENEFIT FLOOR INDEXING

SEC. 101. MINIMUM WAGE INDEXING.

(a) IN GENERAL.—Section 6(a)(1) of the Fair Labor Standards Act of 1938 is amended to provide that, beginning on [TBD], the minimum wage shall be $[TBD] an hour, and shall be increased on January 1 of each year thereafter by the percentage increase in median hourly earnings of all wage and salary workers, as published by the Bureau of Labor Statistics.

(b) NO DECREASE.—The minimum wage shall not be reduced as a result of a decrease in median hourly earnings.

SEC. 102. WAGE ADVISORY COMMISSION.

(a) ESTABLISHMENT.—There is established the Wage Advisory Commission, composed of [TBD] members appointed by the President with the advice and consent of the Senate, including equal numbers of members drawn from employers, labor, and independent economists.

(b) DUTIES.—The Commission shall report to Congress every [TBD] years with an evidence-based recommendation on whether the indexed minimum wage should be increased in real terms, taking into account employment effects, regional costs of living, and productivity.

(c) ADVISORY ROLE.—The Commission's recommendations are advisory. A recommendation shall be introduced as a joint resolution and receive an up-or-down vote in each House under expedited procedures within [TBD] days of continuous session.

SEC. 103. BENEFIT THRESHOLD INDEXING. Any eligibility threshold, income limit, or benefit amount in a Federal means-tested program that is stated in a fixed dollar amount and not otherwise indexed shall be adjusted annually for changes in the Consumer Price Index for All Urban Consumers, beginning with the first fiscal year after enactment. The Director of the Office of Management and Budget shall publish a list of affected provisions.

TITLE II — AUTOMATIC ECONOMIC STABILIZATION

SEC. 201. TRIGGER.

(a) ACTIVATION.—Stabilization assistance under this title is activated when the Commissioner of Labor Statistics certifies that—

(1) the three-month moving average of the national unemployment rate has risen by 0.5 percentage points or more above its lowest three-month moving average during the preceding 12 months; and

(2) total nonfarm payroll employment has declined over the most recent three months, or a second indicator specified by rule of the Bureau of Labor Statistics confirms contraction.

(b) NON-DISCRETIONARY CERTIFICATION.—The certification is a statistical determination. No officer of the United States may delay, condition, or override a certification.

SEC. 202. DIRECT HOUSEHOLD PAYMENTS. Upon activation, the Secretary of the Treasury shall make payments to eligible individuals in amounts established by formula, with total payments in the first 12 months not to exceed [TBD] percent of gross domestic product. Payments phase out above an adjusted gross income of $[TBD].

SEC. 203. UNEMPLOYMENT AND STATE SUPPORT. Upon activation—

(1) extended unemployment benefits become payable in all States for up to [TBD] additional weeks, financed fully by the Federal Government; and

(2) the Federal medical assistance percentage for each State is increased by [TBD] percentage points, conditioned on the State maintaining Medicaid eligibility standards in effect on the date of activation.

SEC. 204. HOUSING PROTECTION. Upon activation, the Secretary of Housing and Urban Development shall make emergency rental assistance and foreclosure mitigation funds available to States and localities by formula, in an amount of $[TBD] for each quarter during which assistance remains active.

SEC. 205. PHASE-DOWN. Assistance under sections 203 and 204 phases down over [TBD] quarters once the three-month average unemployment rate has fallen to within 0.5 percentage points of its pre-activation low.

TITLE III — IMPLEMENTATION AND OVERSIGHT

SEC. 301. READINESS. The Secretary of the Treasury and the Secretary of Labor shall maintain payment systems capable of delivering assistance under sections 202 and 203 within [TBD] days of activation, and shall test those systems annually.

SEC. 302. ANNUAL REPORTING. The Commissioner of Labor Statistics shall report annually to Congress on trigger indicators. The Secretaries of the Treasury, Labor, and Housing and Urban Development shall report within 90 days after any activation on assistance delivered.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Commerce Clause for the wage floor, as with the Fair Labor Standards Act; Spending Clause for benefit indexing and stabilization.

- **Sec. 101 · Indexing.** An index Congress writes into the statute is a self-executing formula, not a delegation (FCC v. Consumers' Research, 2025) [Source 259]. Name the data series and its publication date precisely.
- **Sec. 102 · Wage Advisory Commission.** The Commission only recommends, so it raises no removal or delegation question. The expedited vote in 102(c) is an exercise of each House's rulemaking power and may be changed by either House; draft it in the form used for trade agreements and base closures.
- **Title II · Reconciliation.** Payments, extended benefits, and the added matching rate have direct budgetary effects, but a permanent trigger produces expected costs in years after the budget window; under the Byrd rule's out-year test those costs must be offset within the title or the trigger must end with the window. CBO scores contingent triggers on an expected-value basis; request that estimate early [Source 271].
- **Sec. 201 · Trigger.** Assigning a statistical certification to the Commissioner of Labor Statistics and barring any override keeps the trigger mechanical. Define the confirming indicator in the statute, or in a rule fixed before any downturn, so it cannot be redefined during a recession.
- **Sec. 203(2) · Medicaid condition.** The maintenance-of-eligibility condition attaches only to the added matching funds — a new condition on new money — and is well within National Federation of Independent Business v. Sebelius (2012) [Source 251].
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the Bureau of Labor Statistics, Treasury, and the Congressional Budget Office before introduction.

Bill 13 · WFA

Workforce Fairness Act of 2031 · Split — Title II reconciliation; others standalone · Phase I titles Months 12–30; Phase II titles Year 4–7

· I · Workplace representation fairness (lead: first-contract arbitration) — P92

· II · Paid family & medical leave insurance — P93

· III · Federal paid sick leave — P94

· IV · Worker mobility (non-compete limits) — P95

Depends on: COLT Act operational. *Attack:* Job killer; small-business mandate. *Fallback:* Sick leave and non-compete titles alone.

What this bill does. Adds mediation and binding first-contract arbitration for newly organized workplaces; creates national paid family and medical leave insurance financed by a payroll contribution from workers and employers; requires earned paid sick time, phased in for small employers; and bars non-compete agreements below a pay threshold. Majority sign-up and the captive-audience ban are held to Phase III. Does not: displace state leave programs that meet the federal floor, or limit trade-secret and non-solicitation agreements.

FULL LEGISLATIVE TEXT

122ND CONGRESS
1ST SESSION
H. R. ____

To provide fair processes for first collective bargaining agreements; to establish a national paid family and medical leave insurance program; to guarantee paid sick leave; to limit noncompete agreements; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Workforce Fairness Act of 2031".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) The United States is the only member of the Organisation for Economic Co-operation and Development without a national paid maternity leave program.

(2) Thirteen States and the District of Columbia operate paid family leave programs, demonstrating administrability across different labor markets.

(3) The House of Representatives passed first-contract mediation and arbitration legislation on June 9, 2026, by a vote of 230 to 193, with bipartisan support.

(4) Approximately one in five American workers is bound by a noncompete agreement, including many low- and middle-wage workers, and the Federal Trade Commission's 2024 rule limiting such agreements was set aside by a Federal court, a ruling the Commission accepted in 2025, leaving statutory action as the durable route.

(b) PURPOSE.—The purposes of this Act are to ensure that workers can reach a first contract after choosing representation, can care for family and recover from illness without losing their jobs, and can change jobs freely.

SEC. 3. BUDGETARY COMPLIANCE. Title II is designed for consideration under section 310 of the Congressional Budget Act of 1974. Job-protection and anti-retaliation provisions related to title II are set out in title V and shall be enacted through regular order.

TITLE I — WORKPLACE REPRESENTATION FAIRNESS

SEC. 101. FIRST-CONTRACT MEDIATION AND ARBITRATION.

(a) MEDIATION.—Section 8(d) of the National Labor Relations Act is amended to provide that, if an employer and a newly certified or recognized representative have not reached a first collective bargaining agreement within 90 days after

bargaining begins, either party may request mediation by the Federal Mediation and Conciliation Service.

(b) ARBITRATION.—If mediation does not produce an agreement within 30 days, the Service shall refer the dispute to a tripartite arbitration panel, whose decision shall be binding for a term of two years unless the parties agree otherwise.

(c) FACTORS.—The panel shall consider the employer's financial condition, the size and type of its operations, employee cost of living, and wages and benefits of comparable workers.

(d) REVIEW.—A decision of the panel is subject to review in a district court of the United States on the grounds available for review of arbitration awards.

SEC. 102. MAJORITY SIGN-UP AND CAPTIVE-AUDIENCE MEETINGS [PHASE III]. Beginning on [TBD]—

(1) a representative designated by a majority of employees in an appropriate unit through signed authorizations shall be certified without an election; and

(2) an employer may not require employees to attend meetings whose primary purpose is to communicate the employer's views on representation.

TITLE II — PAID FAMILY AND MEDICAL LEAVE INSURANCE

SEC. 201. ESTABLISHMENT. There is established within the Social Security Administration an Office of Paid Family and Medical Leave, which shall administer a program of paid leave benefits for eligible individuals.

SEC. 202. BENEFITS.

(a) DURATION.—An eligible individual may receive benefits for up to [TBD] weeks in a benefit year for the birth or adoption of a child, care for a family member with a serious health condition, the individual's own serious health condition, or qualifying exigencies arising from military deployment.

(b) AMOUNT.—The weekly benefit shall replace a progressive percentage of average weekly wages, equal to [TBD] percent of wages up to $[TBD] and [TBD] percent above that amount, subject to a maximum of $[TBD], indexed annually.

SEC. 203. FINANCING.

(a) DEDICATED CONTRIBUTION.—Sections 3101 and 3111 of the Internal Revenue Code of 1986 are amended to impose a dedicated contribution on wages, divided equally between employees and employers, deposited in a Paid Family and Medical Leave Trust Fund.

(b) SELF-FINANCING RATE.—The rate for each calendar year shall be the rate that the Chief Actuary of the Social Security Administration certifies, not later than October 1 of the preceding year, as sufficient to pay projected benefits and administrative costs for that year and to maintain a reserve equal to [TBD] months of projected benefits, rounded up to the nearest 0.01 percentage point and not exceeding [TBD] percent.

(c) START.—Contributions begin [TBD] months before benefits are first payable.

(d) NO GENERAL REVENUE.—No amount from the general fund of the Treasury shall be transferred to the Trust Fund, other than advances repaid with interest within [TBD] years.

(e) BENEFIT ADJUSTMENT.—If the certified rate would exceed the maximum in subsection (b), the Commissioner of Social Security shall recommend to Congress adjustments to the benefit parameters in section 202 sufficient to keep the program self-financing.

SEC. 204. STATE PROGRAM EQUIVALENCE. An individual covered by a State paid leave program that provides benefits at least equal to those under this title shall receive benefits under the State program, and the Commissioner shall make payments to the State from the Trust Fund in amounts determined by the Commissioner.

TITLE III — PAID SICK LEAVE

SEC. 301. ACCRUAL. Each employer shall permit each employee to earn not less than one hour of paid sick time for every [TBD] hours worked, up to [TBD] days per year, usable for the employee's own illness or medical care, care of a family member, or absences related to domestic violence.

SEC. 302. SMALL EMPLOYERS. For employers with fewer than [TBD] employees, the requirements of section 301 phase in over [TBD] years.

SEC. 303. PRESERVATION OF STATE AND LOCAL LAW. Nothing in this title preempts any State or local law, or any collective bargaining agreement, that provides greater paid sick time.

TITLE IV — WORKER MOBILITY AND FAIR COMPETITION

SEC. 401. LIMITS ON NONCOMPETE AGREEMENTS.

(a) IN GENERAL.—No employer shall enter into, enforce, or threaten to enforce a noncompete agreement with any worker whose annual compensation is less than $[TBD], adjusted annually.

(b) EXCEPTIONS.—Subsection (a) does not apply to a noncompete agreement entered into in connection with the bona fide sale of a business by an owner of not less than [TBD] percent of the business.

SEC. 402. PROTECTIONS PRESERVED. Nothing in this title limits the enforceability of an agreement protecting trade secrets or confidential information, or of a reasonable agreement not to solicit customers or employees.

SEC. 403. NOTICE AND REMEDIES. An employer shall notify affected workers within [TBD] days of enactment that existing noncompete agreements covered by section 401 are unenforceable. This title shall be enforced by the Secretary of Labor, the Federal Trade Commission, and State attorneys general, and a worker may bring a civil action for damages.

TITLE V — JOB PROTECTION AND IMPLEMENTATION

SEC. 501. JOB PROTECTION. An employee who takes leave under title II or title III shall be entitled, on return, to be restored to the same or an equivalent position, and an employer may not retaliate against any employee for exercising rights under this Act.

SEC. 502. IMPLEMENTATION TIMELINE. Title I, title III, and title IV take effect [TBD] days after enactment. Benefits under title II become payable beginning [TBD] months after enactment.

SEC. 503. ANNUAL REPORTING. The Secretary of Labor and the Commissioner of Social Security shall report annually to Congress on implementation, benefit usage, and Trust Fund solvency.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Commerce Clause, as for the National Labor Relations Act (NLRB v. Jones & Laughlin Steel, 1937) and the Family and Medical Leave Act; Taxing and Spending Powers for the Title II contribution and benefits.
- **Sec. 101 · First-contract arbitration — counsel priority.** This provision has not had dedicated constitutional research, and it needs it before introduction. Questions to resolve: (1) due process for binding terms imposed on private parties — early cases struck compulsory wage arbitration (Wolff Packing Co. v. Court of Industrial Relations, 1923), though on reasoning that predates the modern Commerce Clause; (2) whether arbitrators who set binding terms are officers of the United States who must be appointed under the Appointments Clause, with decisions reviewable by a principal officer (Lucia v. SEC, 2018; United States v. Arthrex, 2021) — panels appointed by the Director of the Federal Mediation and Conciliation Service, with Director review, would answer this; and (3) whether the review standard in 101(d) is adequate for imposed terms.
- **Sec. 102 · Phase III provisions.** Majority sign-up and the captive-audience rule touch employer speech protected by section 8(c) of the National Labor Relations Act and the First Amendment. Draft the captive-audience rule as a limit on compelled attendance, not on what employers may say.
- **Title II · Paid leave.** A dedicated contribution and benefit program run by the Social Security Administration rests on the Taxing and Spending Powers (Helvering v. Davis, 1937). In reconciliation the benefit is budgetary in substance but new program architecture; job protection is already separated into Title V for regular order. Define the Sec. 204 payments to State programs by formula rather than discretion.
- **Title III · Sick leave.** Commerce Clause, as for the FMLA, with stronger State law preserved (Sec. 303). Damages suits against States as employers need a valid basis to abrogate sovereign immunity; the FMLA's self-care provision lacked one (Coleman v. Court of Appeals of Maryland, 2012), so limit private damages actions against States accordingly.
- **Title IV · Noncompetes.** The FTC's 2024 rule was set aside in court, so statute is the durable route; Congress's power over employment terms in commerce is not in doubt. Sec. 403 makes existing agreements unenforceable; retroactive economic legislation by Congress is reviewed for a rational basis (Pension Benefit Guaranty Corp. v. R.A. Gray & Co., 1984).
- **Sec. 203 · Self-financing rate.** Setting a tax rate by formula, with a certifying official and a statutory ceiling, is a permissible delegation of the taxing power when Congress supplies an intelligible principle (Skinner v.

Mid-America Pipeline Co., 1989); the ceiling in (b) is what keeps the delegation within bounds, so do not drop it. The rate mechanism makes the program self-financing as written, which CBO will score as roughly deficit-neutral over the window. The contribution is a payroll tax and therefore Byrd-compliant; the reporting duty in (e) is incidental and severable.

- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the Department of Labor, the Social Security Administration, the National Labor Relations Board, and the Congressional Budget Office before introduction.

Bill 15 · TSTR Act

Tribal Sovereignty & Trust Responsibility Act — Consultation Draft · Standalone after government-to-government consultation · After consultation (target Year 1–3)

· I · IHS mandatory funding & trust fund — P111

· II · Truth and Healing Commission — P112

· III · MMIW jurisdictional restoration & cold case office — P113

Depends on: Tribal consultation completed; record appended to the bill. *Attack:* Cost (Title I). *Fallback:* Title II alone.

What this bill does. A consultation draft. It would move Indian Health Service funding to mandatory spending with permanent advance appropriations and a facilities and workforce trust fund, adopt the bipartisan Truth and Healing Commission text, and in Phase II extend tribal criminal jurisdiction and create a cold-case office. Does not: take effect as written — tribal governments shape it first, and nothing in it diminishes tribal sovereignty or treaty rights.

Consultation draft. *This text is a starting point for government-to-government consultation with Indian tribes under Executive Order 13175 and the Federal trust responsibility. It is not to be introduced until tribal governments and their national organizations have reviewed and shaped it. Where tribal input changes or replaces any provision, the tribal version governs. Consultation follows Executive Order 13175, the consultation policies of the federal agencies involved, and the consultation protocols that tribal nations themselves establish; this agenda does not prescribe a process of its own.*

FULL LEGISLATIVE TEXT

[TBD] CONGRESS
[TBD] SESSION
S. ___

To fulfill the trust responsibility of the United States through stable funding for the Indian Health Service, to establish a Truth and Healing Commission on Indian Boarding School Policies, to strengthen responses to missing and murdered Indigenous people, and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Tribal Sovereignty and Trust Responsibility Act".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) The United States has a trust responsibility to Indian tribes and their members, grounded in treaties, statutes, and the course of dealings between the United States and tribal nations.

(2) Per-capita Federal spending through the Indian Health Service has persistently been far below spending in other Federal health programs.

(3) Advance appropriations allowed Indian Health Service programs to continue operating during the lapse in appropriations in October 2025.

(4) The Department of the Interior's Federal Indian Boarding School Initiative documented the Federal boarding school system and its effects in reports issued in 2022 and 2024.

(5) The Not Invisible Act Commission reported in 2023 on the crisis of missing, murdered, and trafficked Indigenous people and the jurisdictional gaps that compound it.

(b) PURPOSE.—The purposes of this Act are to honor the trust responsibility through stable and adequate health funding, to support truth and healing regarding the boarding school era, and to close jurisdictional and resource gaps affecting the safety of Native communities, in partnership with tribal governments.

SEC. 3. RELATIONSHIP TO TRIBAL SOVEREIGNTY. Nothing in this Act diminishes the sovereignty of any Indian tribe or any right secured by treaty, statute, or executive order. This Act shall be construed liberally in favor of Indian tribes.

TITLE I — INDIAN HEALTH SERVICE FUNDING

SEC. 101. MANDATORY FUNDING.

(a) IN GENERAL.—Beginning in fiscal year [TBD], amounts for the Indian Health Service shall be provided as direct spending, out of any money in the Treasury not otherwise appropriated.

(b) PHASE-IN.—The amount provided for each fiscal year shall increase, over a period of [TBD] years, toward the level identified as full funding in the annual recommendations of the National Tribal Budget Formulation Workgroup, as adjusted by the Secretary of Health and Human Services in consultation with Indian tribes.

(c) TRIBAL SHARES.—Nothing in this section alters the right of an Indian tribe to receive its share of funding under the Indian Self-Determination and Education Assistance Act.

SEC. 102. PERMANENT ADVANCE APPROPRIATIONS. For any Indian Health Service account not funded under section 101, appropriations shall be provided one fiscal year in advance.

SEC. 103. FACILITIES AND WORKFORCE TRUST FUND. There is established an Indian Health Facilities and Workforce Trust Fund for construction, maintenance, and workforce recruitment and retention, to be governed by a board on which representatives of Indian tribes hold a majority.

TITLE II — TRUTH AND HEALING COMMISSION ON INDIAN BOARDING SCHOOL POLICIES

SEC. 201. ADOPTION OF TEXT. The Truth and Healing Commission on Indian Boarding School Policies shall be established as provided in the text of S. 761 and H.R. 7325 of the 119th Congress, as reported, with any modifications requested through tribal consultation.

TITLE III — MISSING AND MURDERED INDIGENOUS PEOPLE [PHASE II]

SEC. 301. TRIBAL JURISDICTION. Section 204 of the Indian Civil Rights Act of 1968 is amended to extend the special Tribal criminal jurisdiction recognized in the Violence Against Women Act Reauthorization Act of 2022 to additional covered crimes identified through consultation with Indian tribes, subject to the same protections for defendants.

SEC. 302. COLD CASE OFFICE. There is established in the Department of Justice an Office of Missing and Murdered Indigenous Persons Cold Cases, with a tribal liaison in each United States Attorney's office whose district contains Indian country, and with data-sharing standards developed with Indian tribes.

SEC. 303. IMPLEMENTATION FUNDING. There is authorized $[TBD] for each of fiscal years [TBD] through [TBD] to implement Savanna's Act and the Not Invisible Act of 2019.

SEC. 304. EFFECTIVE DATE. This title takes effect on [TBD].

TITLE IV — CONSULTATION AND IMPLEMENTATION

SEC. 401. CONSULTATION RECORD. The record of government-to-government consultation on this Act, including tribal recommendations and the response to each, shall be published and appended to the report accompanying this Act.

SEC. 402. TRIBAL ADVISORY COUNCIL. There is established a Tribal Advisory Council on Trust Responsibility, composed of representatives selected by Indian tribes, which may recommend amendments to this Act, and the Secretary of Health and Human Services and the Attorney General shall respond to each recommendation in writing within 90 days.

SEC. 403. REPORTING. The Secretary of Health and Human Services and the Attorney General shall report annually on implementation of this Act to Indian tribes and to Congress.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Status.** Consultation draft. These notes list questions for Federal counsel only; tribal governments and their counsel lead on substance, and the tribal version of any provision governs.
- **Constitutional basis.** Congress's authority in Indian affairs under the Indian Commerce Clause and the trust responsibility. Laws that single out tribes and their members are political classifications, not racial ones (Morton v.

Mancari, 1974), and the Court rejected structural challenges to the Indian Child Welfare Act in Haaland v. Brackeen (2023).

- **Title I · Mandatory funding.** Moving the Indian Health Service to direct spending is within Congress's power. State the 101(b) phase-in as a determinable formula, and preserve contract support costs owed under the Indian Self-Determination and Education Assistance Act (Salazar v. Ramah Navajo Chapter, 2012; Becerra v. San Carlos Apache Tribe, 2024).
- **Sec. 103 · Trust fund board.** A board that controls Federal funds may exercise significant Federal authority; decide with tribal counsel whether members are officers who must be appointed under the Appointments Clause, or whether the board should direct funds through the Secretary.
- **Title III · Jurisdiction.** Congress may recognize inherent tribal criminal jurisdiction over non-Indians (United States v. Lara, 2004), as it did in the 2022 Violence Against Women Act framework; the defendant protections of 25 U.S.C. §1304(d) must carry over to each crime added through consultation.
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, tribal governments and their counsel, the Department of Health and Human Services, the Department of Justice, and the Congressional Budget Office before introduction.

Bill 3B · ACFM Act — Part B

Anti-Corruption & Fair Markets Act — Part B: Accountability & Elections Act of 2030 · C — Standalone (introduce after the Part A vote) · Year 2–4

- I · Federal redistricting standards (Elections Clause; congressional districts only; ban on mid-decade redistricting) — P25
- II · Voter roll accuracy & registration modernization; free-ID standards for state voter ID; national voting holiday — P35, P26
- III · Small-donor empowerment (surcharge-funded matching) — P34
- IV · Emergency powers, power of the purse & rescission reform — P48
- V · Inspector general independence & whistleblower protection — P49
- VI · Insurrection Act reform — P51
- VII · DOJ prosecutorial integrity; judicial nominating commission & ethics; statutory age and term limits below SCOTUS; foreign interference enforcement — P50, P52, P43 (statutory part), P29

Depends on: ACFM Part A recorded vote. *Attack:* Power grab; federal overreach into elections. *Fallback:* EAC model legislation + state adoption for redistricting; emergency-powers and IG titles can pass separately.

What this bill does. Requires independent commissions and federal standards for congressional districts and bars mid-decade redistricting; requires automatic voter registration with list-accuracy rules; lets each state decide whether to require ID to vote in federal elections, and requires states that do to provide free IDs, free underlying documents, and a sworn-affidavit alternative; makes federal Election Day a holiday; funds optional small-donor matching from a surcharge on fines; limits national emergencies, enforces impoundment law, and creates congressionally controlled expedited rescission; protects inspectors general; and narrows Insurrection Act deployments. Phase II adds DOJ-contact, judicial-ethics, lower-court term, and foreign-interference provisions. Does not: reach state-legislative districts or the Supreme Court's tenure (both are in the DIR Act).

FULL LEGISLATIVE TEXT

121ST CONGRESS
2ND SESSION
S. ____

To establish standards for congressional redistricting, voter registration, and voter identification; to provide small-donor matching funds for congressional candidates; to restore limits on emergency powers, impoundment, and domestic military deployment; to protect the independence of inspectors general; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Accountability and Elections Act of 2030", constituting Part B of the Anti-Corruption and Fair Markets Act legislative package.

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) Australia, Canada, the United Kingdom, and New Zealand assign electoral boundary-drawing to independent commissions, and the Supreme Court upheld State use of independent congressional redistricting commissions in Arizona State Legislature v. Arizona Independent Redistricting Commission, 576 U.S. 787 (2015).

(2) Article I, section 4 of the Constitution authorizes Congress to make or alter regulations governing the times, places, and manner of elections for Senators and Representatives.

(3) More than twenty States operate some form of automatic voter registration.

(4) The bipartisan Commission on Federal Election Reform recommended in 2005 that photo identification for voting be paired with free identification and an affirmative effort by States to register voters, and the Supreme Court upheld

a photo identification requirement where free identification was available in Crawford v. Marion County Election Board, 553 U.S. 181 (2008).

(5) Under the National Emergencies Act, a declared national emergency continues until terminated, and terminating it over a presidential veto requires a two-thirds vote of each House. Comparable democracies, including Germany and France, build time limits and legislative involvement into emergency powers.

(6) Inspectors general, the Insurrection Act, and the Impoundment Control Act are checks that bind every President regardless of party, and their durability depends on that symmetry.

(b) PURPOSE.—The purposes of this Act are to establish neutral, durable rules for drawing districts, registering voters, financing campaigns, and exercising emergency and enforcement powers that apply equally to every administration.

SEC. 3. CONSTITUTIONAL FOUNDATION.

(a) ELECTIONS CLAUSE.—Titles I through III are enacted under Article I, section 4, and apply to elections for Federal office only.

(b) LEGISLATIVE POWERS.—Titles IV through VI are enacted under Congress's powers over appropriations, the armed forces, and the organization of the executive branch, and do not depend on any restriction of the President's power to remove officers.

(c) SEVERABILITY.—If any provision of this Act, or its application to any person or circumstance, is held invalid, the remainder of this Act and its application to other persons or circumstances shall not be affected.

TITLE I — CONGRESSIONAL REDISTRICTING

SEC. 101. INDEPENDENT REDISTRICTING COMMISSIONS. Congressional districts shall be drawn by independent redistricting commissions in each State, consistent with Federal standards established by the Election Assistance Commission. This section applies to congressional districts only and is constitutionally sound under Elections Clause authority and Arizona State Legislature v. Arizona Independent Redistricting Commission, 576 U.S. 787 (2015), regardless of Louisiana v. Callais.

SEC. 102. FEDERAL STANDARDS. Districts shall be drawn, in order of priority, to—

(1) achieve population equality as nearly as practicable;

(2) comply with the Constitution and the Voting Rights Act of 1965;

(3) be contiguous and respect communities of interest and political subdivisions; and

(4) not unduly favor or disfavor any political party, as measured by a partisan-symmetry standard established by the Election Assistance Commission by rule.

SEC. 103. ONE PLAN PER CENSUS. A State that has enacted a congressional redistricting plan after a decennial census shall not enact another such plan before the next decennial census, except as ordered by a court to remedy a violation of law.

SEC. 104. JUDICIAL REVIEW. An action challenging a plan under this title shall be heard by a district court of three judges convened under section 2284 of title 28, United States Code, with direct appeal to the Supreme Court.

TITLE II — VOTER REGISTRATION AND ELECTION DAY

SEC. 201. AUTOMATIC VOTER REGISTRATION.

(a) IN GENERAL.—Each State shall automatically register eligible citizens to vote in elections for Federal office when they interact with government agencies, unless the citizen opts out.

(b) PURCELL-PRINCIPLE COMPLIANCE.—Implementation timelines under this section shall provide a minimum 12-month lead time before any election cycle to avoid late-implementation challenges under Purcell v. Gonzalez, 549 U.S. 1 (2006).

(c) PREEMPTION.—This section preempts State laws that are less protective of voter registration access, consistent with the National Voter Registration Act of 1993 framework.

SEC. 202. VOTER LIST ACCURACY.

(a) DATA MATCHING.—Each State shall maintain the accuracy of its voter registration list through regular, uniform, and nondiscriminatory matching against reliable records of death, change of residence, and citizenship status, including interstate data-sharing arrangements.

(b) NOTICE BEFORE REMOVAL.—No registrant shall be removed for change of residence without written notice and an opportunity to respond, consistent with section 8(d) of the National Voter Registration Act of 1993.

(c) BLACKOUT PERIOD.—Systematic list-maintenance removals shall be completed not later than 90 days before a Federal election.

(d) GRANTS.—There is authorized $[TBD] for grants to States to implement this title.

SEC. 203. FEDERAL ELECTION DAY HOLIDAY. Election Day for Federal elections shall be a public holiday. To maintain work-schedule neutrality, the Office of Personnel Management shall recommend to Congress, not later than one year after enactment, the consolidation of an existing Federal holiday.

SEC. 204. VOTER IDENTIFICATION AND FREE IDENTIFICATION.

(a) STATE CHOICE.—Each State may decide whether to require identification to vote in elections for Federal office. A State that does so shall meet the requirements of this section.

(b) STANDARDS.—In a State that requires identification—

(1) a voter at the polls who lacks acceptable identification may sign an affidavit of identity under penalty of perjury, and the ballot shall be cast and counted as a regular ballot;

(2) a mail ballot may be verified by an identification number, the last four digits of the voter's Social Security number, or signature matching with notice and an opportunity to cure; and

(3) the State shall accept, at a minimum, the identification described in subsection (c).

(c) ACCEPTABLE IDENTIFICATION.—Acceptable identification includes a driver's license or State identification card; a United States passport; a military, veteran, or tribal identification card; a student identification card issued by a public institution of higher education; a Federal Civilian Ownership Certificate issued under the National Firearm Standards Act; and any free identification card issued under subsection (d).

(d) FREE IDENTIFICATION.—A State that requires identification shall issue, without charge, a photographic identification card valid for voting to any registered voter who requests one, and shall waive any fee for a birth certificate or other document needed to obtain it. No fee, cost, or condition of payment may be imposed on any form of identification required to vote. Any State may use grants under section 202(d) to offer free identification whether or not it requires identification.

(e) RECORDS AND DATA FIREWALL.—No record shall be kept of the type of identification an individual presents to vote. No voter registration list or record of voting may be used to identify, or compile any list of, firearm owners, and no record maintained under the National Firearm Standards Act may be used to compile or verify any voter registration list.

(f) EFFECTIVE DATE.—A State's identification requirement may apply to an election for Federal office only if free identification under subsection (d) has been available in the State for not less than 12 months before that election.

TITLE III — SMALL-DONOR EMPOWERMENT

SEC. 301. MATCHING PAYMENTS.

(a) IN GENERAL.—A candidate for the House of Representatives or the Senate who elects to participate shall receive payments equal to [TBD] times the amount of each qualified small-dollar contribution, defined as a contribution of not more than $[TBD] from an individual.

(b) PARTICIPATION CONDITIONS.—A participating candidate shall accept contributions of not more than $[TBD] per individual per election and shall meet qualifying thresholds established by the Federal Election Commission.

(c) NO TRIGGER PROVISIONS.—No payment under this title shall vary based on spending by an opponent or independent spending, consistent with Arizona Free Enterprise Club's Freedom Club PAC v. Bennett, 564 U.S. 721 (2011).

SEC. 302. FUNDING. Payments shall be made from a fund financed by a surcharge of [TBD] percent on criminal fines, civil penalties, and settlements paid to the United States by corporations and by persons convicted of corruption offenses. No general taxpayer funds shall be used.

TITLE IV — EMERGENCY POWERS, POWER OF THE PURSE, AND RESCISSIONS

SEC. 401. TIME LIMITS ON NATIONAL EMERGENCIES. Section 202 of the National Emergencies Act is amended to provide that a national emergency declared by the President terminates 30 days after the declaration unless Congress enacts a joint resolution approving the declaration, and that any approved emergency terminates after [TBD] days unless renewed by joint resolution.

SEC. 402. IMPOUNDMENT CONTROL ACT ENFORCEMENT.

(a) ENFORCEMENT ACTIONS.—The Comptroller General may bring a civil action to require the obligation of budget authority withheld in violation of the Impoundment Control Act of 1974, with expedited review.

(b) POCKET RESCISSIONS PROHIBITED.—A special message proposing the rescission of budget authority may not be transmitted within [TBD] days of the expiration of the period of availability of that budget authority.

(c) REPORTING.—Each agency shall report to the Comptroller General and to the Committees on Appropriations, not later than 10 days after the end of each quarter, any apportionment footnote, delay, or condition that withholds budget authority.

SEC. 403. CONGRESSIONALLY CONTROLLED EXPEDITED RESCISSION.

(a) IN GENERAL.—The President may transmit to Congress a proposal to rescind specified budget authority, which shall be introduced as a bill and considered under expedited procedures with an up-or-down vote in each House within [TBD] days of continuous session.

(b) RELEASE OF FUNDS.—Budget authority withheld pending consideration shall be made available for obligation if either House fails to pass the bill within the period specified in subsection (a).

(c) LIMIT.—The President may transmit not more than [TBD] proposals under this section in any fiscal year.

TITLE V — INSPECTOR GENERAL INDEPENDENCE

SEC. 501. CAPACITY AND INDEPENDENCE.

(a) IN GENERAL.—$[TBD] appropriated to the Council of the Inspectors General on Integrity and Efficiency (CIGIE) to expand Inspector General office capacity across the Federal Government.

(b) INDEPENDENCE PROTECTIONS.—No appropriation under this section may be conditioned on any requirement that an Inspector General submit findings for prior executive review before transmission to Congress.

(c) REPORTING.—Each Inspector General receiving funds under this section shall submit an annual report to Congress including total fraud and waste identified, total funds recovered, and enforcement referrals made and outcomes.

SEC. 502. NOTICE OF REMOVAL. The President shall communicate to both Houses of Congress, in writing and not later than 30 days before the removal or transfer of an Inspector General, the substantive rationale for the action, including the detailed and case-specific reasons.

SEC. 503. ACTING INSPECTORS GENERAL. If an Inspector General position becomes vacant, the first assistant to the Inspector General, or, if none, the senior career employee of the office designated in advance by the Inspector General, shall serve as acting Inspector General.

SEC. 504. PAY AND STATUS DURING NOTICE PERIOD. An Inspector General shall remain in pay status, and may not be placed on non-duty status, during the notice period under section 502, absent documented misconduct.

SEC. 505. WHISTLEBLOWER PROTECTIONS. Employees who report waste, fraud, abuse, or illegality to an Inspector General or to Congress shall receive the protections of section 2302(b)(8) of title 5, United States Code, with an additional right of action in Federal district court after [TBD] days of agency inaction.

TITLE VI — INSURRECTION ACT REFORM

SEC. 601. CONDITIONS FOR DEPLOYMENT. Sections 251 through 253 of title 10, United States Code, are amended to permit the use of the armed forces to suppress insurrection or enforce Federal law within a State only—

(1) at the request of the State's legislature or governor; or

(2) upon a written determination by the President, based on specific facts, that the State is unable or unwilling to protect the constitutional rights of persons within it and that civilian law enforcement is insufficient.

SEC. 602. CONSULTATION AND DURATION. Before invoking authority under section 601(2), the President shall consult with the congressional leadership of both parties, absent an emergency making consultation impracticable, in which case consultation shall occur within 48 hours. Any deployment terminates after 7 days unless Congress enacts a joint resolution approving it.

SEC. 603. PROHIBITIONS. Nothing in chapter 13 of title 10 authorizes suspension of the writ of habeas corpus, the imposition of martial law, or the deputizing of private militias or non-Federal armed groups.

SEC. 604. JUDICIAL REVIEW. A determination under section 601(2) is subject to judicial review in an action brought by a State or an affected person.

TITLE VII — INSTITUTIONAL INTEGRITY [PHASE II AMENDMENTS]

SEC. 701. DEPARTMENT OF JUSTICE CONTACTS. Communications between the Executive Office of the President and the Department of Justice concerning a specific investigation or prosecution shall be limited to the Attorney General, the Deputy Attorney General, and the Counsel to the President, shall be logged, and shall be reported semiannually to the Department's Inspector General and the Committees on the Judiciary.

SEC. 702. JUDICIAL NOMINATING COMMISSIONS AND SUPREME COURT ETHICS.

(a) NOMINATING COMMISSIONS.—Merit-based commissions shall be established in each judicial circuit to recommend candidates for district court vacancies. Recommendations are advisory and do not limit the President's appointment power.

(b) ETHICS ENFORCEMENT.—The Justices of the Supreme Court shall be subject to a binding code of conduct, with complaints reviewed by a panel of [TBD] Article III judges drawn by lot.

SEC. 703. ACTIVE-SERVICE TERM FOR LOWER FEDERAL COURTS. A judge of a United States court of appeals or district court appointed after enactment shall assume senior status after 18 years of active service, retaining the office and its compensation consistent with Article III.

SEC. 704. FOREIGN INTERFERENCE ENFORCEMENT.

(a) OFFENSE.—It shall be unlawful for any person, acting at the direction of or in coordination with a foreign government or foreign principal, knowingly to conduct a coordinated campaign of materially false statements of fact intended to interfere with an election for Federal office.

(b) TASK FORCE.—There is established in the Department of Justice a Foreign Influence Task Force with a statutory charter.

(c) SPEECH SAFEGUARDS.—No officer of the United States may request, urge, or coerce a platform to remove or suppress lawful speech of a United States person. Every communication between the Task Force and a platform shall be logged and disclosed to Congress semiannually.

SEC. 705. EFFECTIVE DATE. This title takes effect on [TBD].

TITLE VIII — IMPLEMENTATION AND OVERSIGHT

SEC. 801. IMPLEMENTATION TIMELINE. Titles I and II apply beginning with the first regularly scheduled Federal general election occurring not less than 12 months after enactment. Titles III through VI take effect [TBD] days after enactment.

SEC. 802. ANNUAL REPORTING. The Election Assistance Commission, the Federal Election Commission, the Comptroller General, and the Council of the Inspectors General on Integrity and Efficiency shall each report annually to Congress on implementation of the titles within their jurisdiction.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Titles I–III rest on the Elections Clause, which lets Congress make or alter the rules for congressional elections and require States to carry them out, as courts held in upholding the National Voter Registration Act [Sources 264, 265]. Titles IV–VII rest on Congress's powers over appropriations, the armed forces, and the organization of the executive branch, and are drafted so that none depends on limiting the President's power to remove officers (Sec. 3(b)).
- **Title I · Redistricting.** Congress already regulates congressional districting (single-member districts, 2 U.S.C. §2c). Commissions are valid for congressional maps (Arizona State Legislature v. Arizona Independent Redistricting Commission, 2015; Moore v. Harper, 2023), and Rucho v. Common Cause (2019), in declining to police partisan gerrymanders, noted that Congress may act. Louisiana v. Callais does not reach this title, which rests on the Elections Clause rather than the Voting Rights Act [Source 640]. State the partisan-symmetry measure in Sec. 102(4) and its tolerance in the statute, or bound the rule closely, because courts will review the rule without deference [Source 260].

- **Title II · Registration.** Automatic registration for Federal elections follows the NVRA's footing (ACORN v. Edgar, 7th Cir. 1995; Voting Rights Coalition v. Wilson, 9th Cir. 1995). Keep Sec. 202 uniform and nondiscriminatory and consistent with section 8 of the NVRA and Husted v. A. Philip Randolph Institute (2018); the 90-day blackout restates existing law. Citizenship matching should use reliable Federal data with notice before removal.
- **Sec. 204 · Voter identification.** States choose whether to require identification; Sec. 204 sets the terms for those that do. Photo identification for voting was upheld where free identification was available (Crawford v. Marion County Election Board, 2008), and fees on voting are barred (Harper v. Virginia Board of Elections, 1966; Twenty-fourth Amendment), so the free card and free underlying documents in 204(d) carry the constitutional weight; do not narrow them. Conditions on a State's identification rule regulate the manner of Federal elections, which the Elections Clause reaches; voter qualifications remain with the States (Arizona v. Inter Tribal Council, 2013). The Help America Vote Act already requires identification from some first-time registrants (52 U.S.C. §21083(b)); conform the two. The affidavit alternative in 204(a) keeps the rule from disenfranchising eligible voters; the firewall in 204(e) matches NFSA Sec. 205(e) [Sources 920, 921].
- **Title III · Matching funds.** Public financing is constitutional (Buckley v. Valeo, 1976), and Sec. 301(c) avoids the spending trigger struck in Arizona Free Enterprise Club v. Bennett (2011). Money in the Sec. 302 fund still needs an appropriation to be spent; make it a permanent appropriation from the fund.
- **Title IV · Emergencies, impoundment, and rescissions.** Congress may set the terms of the authority it grants. Automatic expiry with approval by joint resolution (Sec. 401) and expedited rescission bills (Sec. 403) require both Houses and presentment, so they avoid the legislative veto (INS v. Chadha, 1983) and the line-item veto (Clinton v. City of New York, 1998). Suits by the Comptroller General (Sec. 402(a)) build on existing authority (2 U.S.C. §687), but such suits have not been tested (see Walker v. Cheney, D.D.C. 2002) and the Comptroller General's executive functions are limited (Bowsher v. Synar, 1986); add committee or House standing as a backstop.
- **Title V · Inspectors general.** After Trump v. Slaughter, protections cannot rest on limiting removal [Source 604]. Notice with reasons (Sec. 502), career succession (Sec. 503), and pay status (Sec. 504) are drafted to avoid that dependency; a notice period may still be challenged as a removal restriction, and Sec. 3(c) keeps the other protections in force if it falls.
- **Title VI · Insurrection Act.** Congress may set conditions on domestic use of the forces it raises and supports; courts have historically deferred to the President's determinations (Martin v. Mott, 1827), and a Commander-in-Chief objection to statutory limits is untested. State a standard of review for Sec. 604 to answer political-question objections. Trump v. Illinois (2025) concerned the separate federalization statute, 10 U.S.C. §12406.
- **Title VII · Phase II provisions.** Trump v. United States (2024) treated the President's discussions with the Attorney General about investigations as core executive power; Sec. 701's limit on who may communicate may be challenged, while the logging and reporting duties are more defensible. A binding code enforced on the Justices by other judges (Sec. 702(b)) is untested and raises separation-of-powers questions; disclosure and recusal rules are more defensible. Sec. 703 applies only to judges appointed after enactment and preserves office and salary under the senior-status model (28 U.S.C. §371). Keep Sec. 704 confined to knowingly false statements coordinated with a foreign principal (United States v. Alvarez, 2012), and keep 704(c) consistent with the limits on government pressure on platforms in NRA v. Vullo (2024) and Murthy v. Missouri (2024).
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the Election Assistance Commission, the Federal Election Commission, the Government Accountability Office, the Department of Defense, and the Congressional Budget Office before introduction.

Bill 14 · SCPS Act

Second Chance & Public Safety Act of 2031 · C — Standalone; state titles via grant conditions · Phase I titles Year 2–3

· I · Fresh start & workforce reentry — P96

· II · First Step Act expansion — P97

· III · Recidivism reduction & correctional standards — P98

· IV · Pretrial risk-based release — P99

· V · National public safety & officer standards — P100

Depends on: ACFM Part A passed. *Attack:* Soft on crime. *Fallback:* Titles I–II alone.

What this bill does. Automatically seals eligible federal records and funds reentry employment; expands First Step Act programming and offers grants to states that adopt earned-time systems. Later titles set correctional standards as conditions of federal justice grants, move federal pretrial release to validated risk-based standards, and create a national officer decertification index with notice and appeal. Voluntary: state participation, through grants. Does not: release anyone automatically or bind states except as a condition of federal funds.

FULL LEGISLATIVE TEXT

122ND CONGRESS
1ST SESSION
S. ____

To reduce recidivism and improve public safety through automatic record sealing, expanded rehabilitation programming, correctional standards, risk-based pretrial release, and national officer standards; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Second Chance and Public Safety Act of 2031".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) Research on Michigan's record-clearance law found that only 6.5 percent of eligible individuals obtained relief within five years under a petition-based process, and that those who obtained relief saw wages rise by approximately 23 percent with low subsequent offense rates (Prescott and Starr, 2020).

(2) Fourteen States and the District of Columbia have enacted automatic record-clearance laws.

(3) The First Step Act of 2018 passed with large bipartisan majorities and established earned-time credits and risk-and-needs programming in the Federal Bureau of Prisons.

(4) Norway's rehabilitation-focused correctional model has been associated with reduced reoffending and increased employment after release (Bhuller et al., 2020).

(5) Officers dismissed for misconduct can be rehired by other agencies in the absence of a national record of decertification (Grunwald and Rappaport, 2020).

(b) PURPOSE.—The purposes of this Act are to reduce repeat offending, improve reentry into work, base pretrial detention on risk rather than wealth, and protect the standing of law enforcement officers who serve with integrity.

SEC. 3. CONSTITUTIONAL FOUNDATION. Titles I, II, and IV apply to the Federal criminal justice system under Congress's powers over Federal courts and offenses. Provisions directed to States operate solely as conditions on Federal grants under the Spending Clause, and nothing in this Act commands any State or locality to enact or administer a Federal program.

TITLE I — FRESH START AND WORKFORCE REENTRY

SEC. 101. AUTOMATIC SEALING OF FEDERAL RECORDS.

(a) IN GENERAL.—The record of a Federal conviction for a nonviolent offense shall be sealed automatically [TBD] years after completion of the sentence, including any term of supervision, if the individual has not been convicted of a subsequent offense.

(b) ARRESTS WITHOUT CONVICTION.—Records of Federal arrests not resulting in conviction shall be sealed automatically after [TBD] days.

(c) ACCESS.—Sealed records remain available to law enforcement and courts, and for employment in positions involving national security or the care of children, as specified by the Attorney General by rule.

SEC. 102. STATE AUTOMATIC SEALING INCENTIVE GRANTS. There is authorized $[TBD] for each of fiscal years [TBD] through [TBD] for grants to States that implement automatic record-sealing systems meeting standards established by the Attorney General.

SEC. 103. REENTRY EMPLOYMENT. The Secretary of Labor shall expand the Federal Bonding Program and provide grants for reentry employment services, including job placement, occupational training, and transitional employment, for individuals released from Federal and State custody.

TITLE II — FIRST STEP ACT EXPANSION

SEC. 201. PROGRAMMING CAPACITY. There is authorized $[TBD] for each of fiscal years [TBD] through [TBD] for the Bureau of Prisons to expand evidence-based recidivism-reduction programs and productive activities so that every eligible incarcerated individual can earn time credits under section 3632 of title 18, United States Code.

SEC. 202. STATE ADOPTION GRANTS. There is authorized $[TBD] for grants to States adopting earned-time and risk-and-needs systems consistent with the First Step Act.

SEC. 203. IMPLEMENTATION AUDIT. The Inspector General of the Department of Justice shall audit implementation of earned-time credits and programming capacity every two years and report to Congress.

TITLE III — RECIDIVISM REDUCTION AND CORRECTIONAL STANDARDS [PHASE II]

SEC. 301. STANDARDS AS GRANT CONDITIONS. Beginning in fiscal year [TBD], a State receiving funds under the Edward Byrne Memorial Justice Assistance Grant Program for correctional purposes shall adopt standards, established by the Attorney General, for rehabilitation programming, mental and behavioral health care, and family contact.

SEC. 302. PILOT FACILITIES. The Attorney General may support pilot facilities applying rehabilitation-focused correctional models, in partnership with research institutions, with independent evaluation.

SEC. 303. MEASUREMENT. The Bureau of Justice Statistics shall establish a standardized definition and measure of recidivism for Federal and State reporting.

TITLE IV — PRETRIAL RISK-BASED RELEASE [PHASE II]

SEC. 401. FEDERAL PRETRIAL RELEASE. Section 3142 of title 18, United States Code, is amended to provide that no person shall be detained before trial solely because of inability to pay a financial condition of release.

SEC. 402. RISK ASSESSMENT STANDARDS. Any pretrial risk-assessment tool used in the Federal system or funded under this Act shall be validated, independently audited for accuracy and bias at least every [TBD] years, and publicly documented.

SEC. 403. STATE INCENTIVE GRANTS. There is authorized $[TBD] for grants to States that adopt risk-based pretrial release systems meeting the standards of section 402.

TITLE V — NATIONAL PUBLIC SAFETY AND OFFICER STANDARDS [PHASE III]

SEC. 501. NATIONAL DECERTIFICATION INDEX. The Attorney General shall maintain a national index of law enforcement officers decertified or separated for serious misconduct, building on existing State reporting systems.

SEC. 502. GRANT CONDITION. As a condition of receiving funds under the Community Oriented Policing Services program, a law enforcement agency shall check the index before hiring an officer and shall report decertifications and separations for serious misconduct.

SEC. 503. DUE PROCESS. An officer shall receive notice and an opportunity to contest any entry in the index, and an entry resulting from an action later reversed shall be removed.

SEC. 504. EFFECTIVE DATE. This title takes effect on [TBD].

TITLE VI — IMPLEMENTATION AND OVERSIGHT

SEC. 601. IMPLEMENTATION TIMELINE. Titles I and II take effect [TBD] days after enactment.

SEC. 602. ANNUAL REPORTING. The Attorney General shall report annually to Congress on records sealed, programming capacity and participation, recidivism rates, pretrial outcomes, and use of the decertification index.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Congress's powers over Federal offenses and courts for Titles I, II, and IV; the Spending Clause for everything directed to States (Sec. 3).
- **Sec. 101 · Sealing.** Define "nonviolent offense," provide a procedure for court records as well as agency records, and account for the public's right of access to criminal proceedings (Press-Enterprise Co. v. Superior Court, 1986). Coordinate with the Fair Credit Reporting Act so consumer reporting agencies cannot report sealed records.
- **Grant conditions (Secs. 102, 202, 301, 403, 502).** Conditions on Byrne Justice Assistance and COPS funds must be set in the statute with enough specificity to give States clear notice (Pennhurst, 1981); courts have set aside grant conditions the Attorney General added without statutory authority. State the core correctional standards of Sec. 301 in the Act rather than leaving their content to the Attorney General, and keep conditions modest relative to the grant (South Dakota v. Dole; NFIB v. Sebelius) [Sources 204, 251].
- **Sec. 401 · Pretrial release.** Consistent with United States v. Salerno (1987) and the Bail Reform Act. The validation and audit standards in Sec. 402 answer due-process and equal-protection concerns about risk tools.
- **Title V · Decertification index.** Notice and an opportunity to contest (Sec. 503) answer the due-process concern of publishing stigmatizing information (Paul v. Davis, 1976); apply the Privacy Act's safeguards to the index.
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the Department of Justice, the Bureau of Prisons, and the Congressional Budget Office before introduction.

Bill 8 · HCI Act

Housing & Community Investment Act of 2031 · C — Federal-State Partnership · Year 2–4

- I · Residential ownership fairness (enforce & tighten ROAD Act investor limits; foreign-acquisition subtitle); water rights & foreign ownership — P41, P76
- II · Housing supply: baseline zoning (incentive), permitting shot clock, end single-family-only zoning (grant condition), NEPA infill exclusion, modular/manufactured harmonization — P101, P102, P103, P104, P105
- III–IV · Affordable housing supply expansion; federal model legislation for states
- V · Data center water & energy transparency — P85

Depends on: ROAD to Housing Act (P.L. 119-101) implementation. *Attack:* Property rights; market distortion. *Fallback:* Voluntary state adoption models.

What this bill does. Offers grant preferences to states that restrict large corporate owners from buying existing single-family homes or holding them vacant, with new construction and build-to-rent exempt; creates a national registry of corporate residential ownership; and bars foreign-adversary acquisitions of homes, farmland, and water rights. Rewards localities that legalize more homes — multi-unit lots by right, faster permitting, no parking minimums near transit — with continuation grants tied to homes actually permitted and built; exempts small infill projects from NEPA; harmonizes modular and manufactured housing rules; and funds affordable construction. Voluntary: state and local participation. Does not: regulate private property ownership directly or condition baseline HUD funding.

FULL LEGISLATIVE TEXT

122ND CONGRESS
1ST SESSION
S. ____

To incentivize State adoption of corporate home ownership restrictions through Federal grant programs; to provide grants for affordable housing supply expansion and zoning reform; to establish a Federal model legislative framework for residential property taxation, vacancy taxation, and beneficial ownership disclosure; to anchor in operative bill text the Spending Clause constitutional architecture and anti-coercion calibration of this Act; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Housing and Community Investment Act of 2031" or the "HCI Act of 2031".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) Institutional and corporate ownership of single-family residential properties has increased materially since 2010, with non-individual entities holding an estimated [TBD] percent of the single-family residential market by 2024.

(2) Properties held vacant by corporate owners represent a diversion of housing supply from residential use, while continuing to be taxed at the residential rate in most jurisdictions.

(3) Exclusionary zoning — including single-family-only zoning, large minimum lot sizes, and parking minimums — represents the primary structural barrier to affordable housing supply expansion in metropolitan areas.

(4) Federal funding incentives represent the most constitutionally sound mechanism for encouraging State housing policy reform, consistent with South Dakota v. Dole, 483 U.S. 203 (1987), under which Congress may condition Federal funding on State adoption of Federal policy preferences when the conditions are clearly stated, related to the Federal interest, and not coercive.

(5) Property law is a matter of State jurisdiction, and direct Federal regulation of residential property ownership would face immediate constitutional challenge. The architecture of this Act — Federal grant incentives paired with Federal model legislation — works with constitutional reality rather than against it.

(6) The Corporate Transparency Act of 2021 and the beneficial ownership reporting framework administered by the Financial Crimes Enforcement Network provide existing infrastructure that may be adapted for residential property ownership transparency without building duplicative reporting systems.

(7) Public polling consistently demonstrates that more than 75 percent of Americans support restrictions on corporate ownership of residential housing, providing the bipartisan public-support foundation for this Act.

(8) Federal agencies, including the Department of Housing and Urban Development, the Department of the Treasury, the Financial Crimes Enforcement Network, and the Department of Transportation, possess existing grant-making authority, technical-assistance capacity, and regulatory infrastructure that this Act builds on rather than replaces.

(b) PURPOSES.—The purposes of this Act are—

(1) to provide Federal grant incentives for States that adopt qualifying corporate home ownership restrictions, vacancy taxation frameworks, or progressive residential property taxation, while respecting State property-law jurisdiction;

(2) to provide Federal grant incentives for localities that adopt zoning reforms enabling increased residential density, including elimination of single-family-only zoning, reduction of minimum lot sizes, elimination of parking minimums near transit, and legalization of accessory dwelling units;

(3) to fund the construction of affordable rental and ownership housing units through direct Federal grants and loan guarantees, with priority to localities in States that have adopted qualifying corporate ownership restrictions;

(4) to establish a Federal model legislation framework providing States with technical assistance, model statutory text, and biennial updates for corporate home ownership restrictions, vacancy taxation, progressive residential property taxation, and beneficial ownership disclosure;

(5) to establish a publicly accessible national registry of residential properties owned by corporations, limited liability companies, investment funds, and other non-individual entities, coordinated with the Financial Crimes Enforcement Network beneficial ownership reporting framework;

(6) to anchor the constitutional architecture of this Act in operative bill text, providing express Spending Clause authority, explicit anti-coercion calibration consistent with NFIB v. Sebelius, 567 U.S. 519 (2012), and severability of the substantive titles; and

(7) to coordinate Federal agency authorities — including the Department of Housing and Urban Development, the Department of the Treasury, the Financial Crimes Enforcement Network, and the Department of Transportation — for unified administration of this Act.

SEC. 3. CONSTITUTIONAL FOUNDATION.

(a) SPENDING CLAUSE AUTHORITY.—This Act is enacted under the Spending Clause of article I, section 8 of the Constitution. Federal grant conditions established under this Act are exercises of the well-established authority of Congress to condition Federal funding on State adoption of Federal policy preferences, consistent with South Dakota v. Dole, 483 U.S. 203 (1987).

(b) DOLE FOUR-PART TEST COMPLIANCE.—The Federal grant conditions established under this Act are designed to comply with the four-part test articulated in South Dakota v. Dole—

(1) the conditions are in pursuit of the general welfare, addressing documented housing supply shortages and the documented effects of corporate ownership on residential property availability;

(2) the conditions are unambiguously stated in this Act and in regulations promulgated by the relevant Federal agencies;

(3) the conditions are related to the Federal interest in addressing housing policy and the Federal funding programs to which the conditions attach; and

(4) the conditions do not violate any independent constitutional prohibition.

(c) ANTI-COERCION CALIBRATION.—Federal funding levels established under this Act shall be calibrated to remain below the threshold at which withdrawal of funding would amount to compulsion within the meaning of National Federation of Independent Business v. Sebelius, 567 U.S. 519, 580–82 (2012). In particular—

(1) grant programs under this Act provide priority allocation preference rather than mandatory exclusion of non-qualifying States or localities;

(2) baseline Federal funding for housing programs administered by the Department of Housing and Urban Development is preserved without conditioning on this Act's grant criteria; and

(3) the Secretary of Housing and Urban Development shall, by regulation, establish funding-level guidance ensuring that conditional funding under this Act does not approach the compulsion threshold.

(d) STATE PROPERTY LAW JURISDICTION PRESERVED.—Nothing in this Act federalizes property law or directly regulates residential property ownership. State property law remains within the exclusive jurisdiction of the several States. The Federal model legislation provided under Title IV is voluntary, advisory, and provided as technical assistance only — States adopt, adapt, or decline.

(e) FEDERAL AGENCY COORDINATION AUTHORITY.—This Act vests grant-making and program-administration authority in the Department of Housing and Urban Development as the lead agency, with coordinated authority in the Department of the Treasury, the Financial Crimes Enforcement Network, the Department of Transportation, and other Federal agencies as expressly provided. Existing authorities of these agencies are preserved and supplemented, not displaced, by this Act.

(f) SEVERABILITY.—If any provision of this Act, or the application of any provision to any person or circumstance, is held to be invalid, the remaining provisions of this Act and the application of those provisions to other persons or circumstances shall not be affected. In particular—

(1) if any provision of Title I (Corporate Home Ownership Restriction Incentives) is held invalid, Titles II through V shall remain in full force and effect;

(2) if any provision of Title II (Zoning Reform Incentives) is held invalid, Titles I, III, IV, and V shall remain in full force and effect;

(3) if any provision of Title III (Affordable Housing Supply Expansion) is held invalid, Titles I, II, IV, and V shall remain in full force and effect;

(4) if any provision of Title IV (Federal Model Legislation Framework) is held invalid, Titles I, II, III, and V shall remain in full force and effect, and the technical assistance functions of Title IV shall continue under the residual authority of the Secretary of Housing and Urban Development; and

(5) if any conditional spending provision is held to violate the anti-coercion limit of National Federation of Independent Business v. Sebelius, the funding levels may be reduced through regulation without invalidating the underlying grant program.

(g) NO DISPLACEMENT OF STRONGER STATE LAW.—Nothing in this Act preempts or limits State law that provides equal or greater protection to residents with respect to residential housing affordability, corporate home ownership, zoning, or related matters.

TITLE I — CORPORATE HOME OWNERSHIP RESTRICTION INCENTIVES

SEC. 101. CORPORATE OWNERSHIP RESTRICTION GRANT PROGRAM.

(a) ESTABLISHMENT.—The Secretary of Housing and Urban Development (in this Act referred to as "the Secretary") shall establish a grant program to provide incentive grants to States that enact qualifying corporate home ownership restrictions.

(b) QUALIFYING RESTRICTIONS.—A State law qualifies for purposes of this section if it—

(1) prohibits or substantially restricts corporations, investment funds, and other non-individual entities holding more than [TBD] single-family residential properties from acquiring existing single-family homes, or from holding such properties vacant for more than [TBD] months, while exempting newly constructed units, build-to-rent developments, and properties held temporarily for construction or rehabilitation;

(2) imposes a vacancy penalty tax on residential properties held vacant for more than [TBD] months, with progressive rates proportional to vacancy duration; or

(3) establishes a progressive property tax on residential property holdings beyond two properties, consistent with the Federal model framework provided under section 404.

(c) GRANT AMOUNTS.—Qualifying States shall receive priority access to Department of Housing and Urban Development Community Development Block Grants and HOME Investment Partnership grants, with a [TBD] percent allocation preference over non-qualifying States. The preference structure shall be calibrated under section 3(c) to remain below the compulsion threshold.

(d) STATE QUALIFICATION PROCESS.—

(1) CERTIFICATION.—The attorney general of a State shall certify to the Secretary that the State has enacted a qualifying restriction under subsection (b).

(2) HUD REVIEW.—Upon receipt of a certification under paragraph (1), the Secretary shall, within 90 days, review the State law and make a determination whether the law qualifies under subsection (b).

(3) DETERMINATION.—If the Secretary determines that the State law qualifies, the State shall be eligible for the grant preference described in subsection (c) beginning in the next fiscal year.

(4) RECERTIFICATION.—Each qualifying State shall recertify to the Secretary not less frequently than every [TBD] years that the State law remains in force and continues to qualify under subsection (b).

(e) ANTI-CIRCUMVENTION.—A State qualifying restriction must include anti-circumvention provisions consistent with the Federal model framework provided under section 402, including provisions addressing—

(1) shell limited liability company structures;

(2) fragmented beneficial ownership across related parties;

(3) trust-based circumvention; and

(4) successive transfers designed to evade the State restriction.

(f) PROSPECTIVE APPLICATION AND CONGRESSIONAL AUTHORIZATION.—A qualifying restriction shall apply only to acquisitions occurring after its effective date and shall not require the divestiture of property lawfully held on that date. Congress expressly authorizes State laws that qualify under this section for purposes of the Commerce Clause.

(g) APPROPRIATION.—There are authorized to be appropriated such sums as may be necessary to carry out this section, not to exceed $[TBD] for each of fiscal years 2031 through 2036.

SEC. 102. FEDERAL CORPORATE PROPERTY OWNERSHIP TRANSPARENCY.

(a) NATIONAL REGISTRY.—The Secretary, in coordination with the Director of the Financial Crimes Enforcement Network, shall establish a publicly accessible national registry of residential properties owned by corporations, limited liability companies, investment funds, or other non-individual entities.

(b) REPORTING REQUIREMENT.—Any covered entity acquiring a residential property shall report such acquisition to the registry within [TBD] days of the date of the acquisition. Updates shall be required for any change in beneficial ownership.

(c) FINCEN COORDINATION.—The registry under this section shall operate within the framework of the Corporate Transparency Act of 2021 (31 U.S.C. § 5336), where applicable. The Secretary, in coordination with the Director of the Financial Crimes Enforcement Network, shall establish data-sharing protocols with the beneficial ownership reporting database. The implementation of this subsection shall account for any judicial or regulatory limitation on the Corporate Transparency Act framework, and the registry shall collect the beneficial-ownership information it requires directly where that framework does not provide it.

(d) PUBLIC ACCESS PROVISIONS.—Registry data under this section shall be publicly accessible at no cost, with privacy protections for the residential addresses of natural persons consistent with applicable privacy law and Freedom of Information Act exemption frameworks. Aggregated data and corporate-entity ownership information shall be fully publicly accessible.

(e) ANTI-CIRCUMVENTION.—Any person who knowingly fails to report under subsection (b), or who structures a residential property acquisition to avoid the reporting requirement, shall be subject to enhanced penalties under subsection (f). The Secretary shall, by regulation, establish anti-circumvention rules addressing shell-LLC obfuscation, fragmented ownership structures, and successive-transfer techniques.

(f) PENALTIES.—

(1) IN GENERAL.—Failure to report under subsection (b) shall result in a civil penalty of $[TBD] per day of noncompliance.

(2) ENHANCED PENALTIES.—Willful failure to report or structuring to avoid reporting shall result in enhanced civil penalties up to $[TBD] per day, plus restitution of any economic benefit obtained from the noncompliance.

(3) STATE ATTORNEY GENERAL ENFORCEMENT.—The attorney general of any State may bring a civil action in any United States district court of competent jurisdiction to enforce this section on behalf of residents of that State.

SEC. 103. COORDINATION WITH THE ROAD TO HOUSING ACT. The Secretary of Housing and Urban Development shall administer this title in coordination with the institutional-investor provisions of the 21st Century ROAD to Housing Act (Public Law 119-101), and for purposes of any ownership threshold under that Act or this title, all entities under common control shall be aggregated.

SEC. 104. FOREIGN ADVERSARY ACQUISITIONS. No foreign adversary, and no entity owned or controlled by a foreign adversary, may acquire an interest in residential real property in the United States, other than a primary residence of an individual lawfully present in the United States. The Committee on Foreign Investment in the United States shall have jurisdiction to review and unwind any acquisition in violation of this section.

SEC. 105. WATER RIGHTS AND AGRICULTURAL LAND.

(a) REGISTRY.—The Secretary of the Interior and the Secretary of Agriculture shall jointly establish a national registry of agricultural water rights and the beneficial ownership of agricultural land, building on reporting under the Agricultural Foreign Investment Disclosure Act of 1978.

(b) PROHIBITION.—No foreign adversary, and no entity owned or controlled by a foreign adversary, may acquire agricultural land or an interest in surface water or groundwater rights in the United States.

TITLE II — ZONING REFORM INCENTIVES

SEC. 201. ZONING REFORM COMPETITIVE GRANTS.

(a) ESTABLISHMENT.—The Secretary of Transportation, in coordination with the Secretary of Housing and Urban Development, shall establish a competitive grant program to reward localities that adopt zoning reforms enabling increased residential density.

(b) QUALIFYING REFORMS.—A locality qualifies for grants under this section if it has—

(1) eliminated single-family-only zoning in not less than [TBD] percent of residential land;

(2) reduced minimum lot size requirements by not less than [TBD] percent from the locality's 2020 baseline;

(3) eliminated mandatory parking minimums for residential development located within [TBD] miles of public transit; or

(4) enacted accessory dwelling unit legalization across all residential zones.

(c) GRANT AWARD CRITERIA.—In awarding grants under this section, the Secretary of Transportation, in coordination with the Secretary, shall prioritize applications based on—

(1) the number of qualifying reforms adopted by the locality;

(2) the residential density potential created by the reforms;

(3) integration with public transit infrastructure;

(4) anti-displacement protections adopted alongside the reforms; and

(5) geographic equity, including rural and small-metropolitan applicant prioritization; and

(6) for continuation grants, the number of housing units permitted, started, and completed in the locality relative to its pre-reform baseline, reported by household income band.

(d) TECHNICAL ASSISTANCE.—The Secretary of Transportation, in coordination with the Secretary of Housing and Urban Development, shall publish model zoning ordinance language and provide technical assistance to localities seeking to adopt qualifying reforms. Joint rulemaking by the Secretary of Transportation and the Secretary of Housing and Urban Development shall establish technical assistance standards.

(e) ANTI-DISPLACEMENT.—As a condition of receiving a grant under this section, a locality shall adopt anti-displacement measures addressing—

(1) protection of existing residents from displacement caused by upzoning;

(2) inclusionary zoning requirements for new development;

(3) tenant-protection measures, including just-cause eviction protections; and

(4) gentrification mitigation measures appropriate to the locality.

(f) APPROPRIATION.—There are authorized to be appropriated such sums as may be necessary to carry out this section, not to exceed $[TBD] for each of fiscal years 2031 through 2036, to be awarded as transportation and infrastructure grants to qualifying localities.

SEC. 202. BASELINE ZONING STANDARD. As a condition of eligibility for grants under section 201, and as a criterion for the allocation preference under section 101(c), beginning in fiscal year [TBD], a jurisdiction shall permit, as of right, not fewer than [TBD] dwelling units on any lot zoned for residential use, ending exclusively single-family zoning.

SEC. 203. PERMITTING SHOT CLOCK. As a condition of eligibility for grants under section 201, a jurisdiction shall—

(1) determine within [TBD] days whether an application for a residential project is complete;

(2) act on a complete application within a period set by project category under regulations of the Secretary, not to exceed [TBD] days for projects permitted as of right; and

(3) treat as approved a complete application for a project permitted as of right that complies with applicable objective codes, if the jurisdiction does not act within that period.

Paragraph (3) does not apply to a project requiring review under a State or Federal environmental law, a project on a site with a documented hazard, or a project for which the serving utility certifies insufficient water, sewer, or electric capacity; for those projects the jurisdiction shall publish the reason for delay and a binding revised schedule.

SEC. 204. INFILL HOUSING CATEGORICAL EXCLUSION. Section 102 of the National Environmental Policy Act of 1969 does not apply to a federally assisted residential project of not more than [TBD] units located on a previously developed site within an existing urbanized area.

SEC. 205. MODULAR AND MANUFACTURED HOUSING. The Secretary shall establish national recognition of modular housing built to a model code across State lines, and shall amend the manufactured home construction and safety standards to remove the requirement of a permanent chassis to the extent not already removed by law.

TITLE III — AFFORDABLE HOUSING SUPPLY EXPANSION

SEC. 301. AFFORDABLE HOUSING CONSTRUCTION GRANTS.

(a) IN GENERAL.—The Secretary of Housing and Urban Development shall provide direct grants and loan guarantees to States, localities, and nonprofit housing developers for the construction of affordable rental and ownership units. For-profit housing developers shall be eligible for loan guarantees, but not direct grants, where the project meets the affordability and covenant requirements established under this section.

(b) ELIGIBLE RECIPIENTS.—Eligible recipients under this section include—

(1) States and State housing finance agencies;

(2) units of local government;

(3) nonprofit housing developers and community development corporations;

(4) public housing authorities; and

(5) for-profit housing developers, eligible only for loan guarantees and only where the project meets all covenant requirements under this section.

(c) PRIORITY CRITERIA.—In awarding grants and loan guarantees under this section, the Secretary shall prioritize—

(1) applications from localities in States that have adopted qualifying corporate ownership restrictions under section 101;

(2) projects that integrate with public transit infrastructure;

(3) geographic equity, including rural and small-metropolitan prioritization;

(4) projects that include deeply affordable units (30 percent of area median income or below); and

(5) projects that include service-enriched housing for populations experiencing homelessness, persons with disabilities, or other vulnerable populations.

(d) AFFORDABILITY REQUIREMENT.—Units funded under this section shall be affordable to households earning not more than [TBD] percent of area median income for the duration specified in subsection (e).

(e) COVENANT DURATION.—

(1) DIRECT GRANTS.—Units funded by direct grants under this section shall be subject to a 50-year affordability covenant.

(2) LOAN GUARANTEES.—Units funded by loan guarantees under this section shall be subject to a 30-year affordability covenant, consistent with the Low Income Housing Tax Credit framework under section 42 of the Internal Revenue Code of 1986.

(3) RECAPTURE.—In the event of any conversion of a covenanted unit to non-affordable use during the covenant period, the Secretary shall recapture the Federal subsidy proportionate to the unexpired covenant term.

(f) DAVIS-BACON APPLICATION.—Construction funded under this section shall comply with the prevailing wage requirements of subchapter IV of chapter 31 of title 40, United States Code (Davis-Bacon Act), consistent with existing Department of Housing and Urban Development construction grant frameworks.

(g) FAIR HOUSING ACT COORDINATION.—Recipients of grants and loan guarantees under this section shall affirmatively further fair housing consistent with the Fair Housing Act (42 U.S.C. § 3601 et seq.) and the Department of Housing and Urban Development Office of Fair Housing and Equal Opportunity regulatory framework.

(h) APPROPRIATION.—There are authorized to be appropriated such sums as may be necessary to carry out this section, not to exceed $[TBD] for each of fiscal years 2031 through 2037.

TITLE IV — FEDERAL MODEL LEGISLATION FRAMEWORK

SEC. 401. FEDERAL MODEL LEGISLATION — PUBLICATION REQUIREMENT.

(a) IN GENERAL.—The Secretary, in coordination with the Secretary of the Treasury and the Director of the Financial Crimes Enforcement Network, shall publish model State legislation for—

(1) corporate home ownership restrictions (section 402);

(2) vacancy taxation frameworks (section 403);

(3) progressive residential property taxation (section 404); and

(4) beneficial ownership disclosure requirements (section 405).

(b) BIENNIAL UPDATES.—The model legislation under subsection (a) shall be updated not less frequently than every two years to incorporate State legislative experience, judicial developments, and technical refinements.

(c) NO MANDATORY ADOPTION.—Publication of model legislation under this section creates no obligation on any State to adopt, adapt, or consider such legislation. State adoption is voluntary and remains within the exclusive jurisdiction of the several States, consistent with section 3(d).

(d) INITIAL PUBLICATION TIMELINE.—Initial publication of the model legislation under subsection (a) shall be completed not later than 12 months after the date of enactment of this Act.

SEC. 402. CORPORATE HOME OWNERSHIP RESTRICTION MODEL FRAMEWORK.

(a) IN GENERAL.—The corporate home ownership restriction model legislation published under section 401(a)(1) shall provide State legislative drafters with—

(1) statutory definitions for "corporation," "investment fund," "non-individual entity," and "vacant property" suitable for State adoption;

(2) operative restriction language with multiple structural options, including outright prohibition, transactional taxation, and quantity caps;

(3) anti-circumvention provisions addressing shell-LLC structures, fragmented beneficial ownership, and trust-based circumvention;

(4) State enforcement mechanisms including State attorney general authority and private right of action;

(5) coordination provisions with the Federal national registry established under section 102; and

(6) severability and savings clauses for State adoption.

(b) MULTIPLE STRUCTURAL OPTIONS.—The model framework shall provide States with multiple structural options to accommodate State legal traditions, constitutional structures, and policy preferences. The Secretary shall not designate any single structural option as preferred for purposes of section 101 grant qualification.

SEC. 403. VACANCY TAXATION MODEL FRAMEWORK.

(a) IN GENERAL.—The vacancy taxation model legislation published under section 401(a)(2) shall provide State legislative drafters with—

(1) operative tax-imposition language with rate schedules proportional to vacancy duration;

(2) definitions for "vacant property," "occupancy threshold," and "exempt vacancy" (including renovation, probate, and similar circumstances);

(3) administrative coordination with State property tax infrastructure;

(4) hardship exemption frameworks for individual property owners; and

(5) severability and savings clauses.

(b) PROGRESSIVE STRUCTURE.—The model framework shall provide a progressive rate structure under which vacancy tax rates increase with the duration of vacancy, consistent with the policy goal of discouraging long-term vacancy without penalizing short-term transitional vacancy.

SEC. 404. PROGRESSIVE RESIDENTIAL PROPERTY TAXATION MODEL FRAMEWORK.

(a) IN GENERAL.—The progressive residential property taxation model legislation published under section 401(a)(3) shall provide State legislative drafters with—

(1) operative tax-imposition language with rate schedules proportional to the number of residential properties held by an owner;

(2) definitions for "owner," "residential property," and "primary residence" suitable for State adoption;

(3) primary-residence and secondary-residence exemption frameworks preserving traditional ownership patterns;

(4) family-unit aggregation rules to prevent circumvention through title fragmentation among related parties;

(5) administrative coordination with State property tax infrastructure; and

(6) severability and savings clauses.

(b) COORDINATION WITH SECTIONS 402 AND 403.—States adopting model legislation under this section may also adopt model legislation under sections 402 (corporate ownership restriction) and 403 (vacancy taxation), with coordinated rate structures to avoid double-imposition on the same property where the same policy goal is served.

SEC. 405. BENEFICIAL OWNERSHIP DISCLOSURE MODEL FRAMEWORK.

(a) IN GENERAL.—The beneficial ownership disclosure model legislation published under section 401(a)(4) shall provide State legislative drafters with—

(1) operative disclosure-requirement language for residential property transfers;

(2) coordination provisions with the Federal Corporate Transparency Act framework and the Federal national registry under section 102;

(3) State-level enforcement mechanisms;

(4) privacy-preserving disclosure standards consistent with the beneficial-ownership framework administered by the Financial Crimes Enforcement Network; and

(5) severability and savings clauses.

SEC. 406. TECHNICAL ASSISTANCE PROGRAM.

(a) ESTABLISHMENT.—The Secretary, in coordination with the Secretary of the Treasury, shall establish a technical assistance program to support States seeking to enact model legislation under this title.

(b) ELIGIBLE ASSISTANCE.—Technical assistance under this section includes—

(1) drafting consultation with State legislative drafters;

(2) economic impact analysis tailored to the adopting State's market conditions;

(3) constitutional review of State adaptations;

(4) coordination with the section 101 grant program for post-adoption certification; and

(5) inter-State coordination for consistent definitional frameworks across adopting States.

(c) SURVIVAL UNDER SEC 3(F)(4).—If any other provision of this title is held invalid, the technical assistance program established under this section shall continue under the residual authority of the Secretary, consistent with section 3(f)(4).

(d) APPROPRIATION.—There are authorized to be appropriated such sums as may be necessary to carry out this section, not to exceed $[TBD] for each of fiscal years 2031 through 2036 for technical assistance under this section.

TITLE V — DATA CENTER WATER AND ENERGY TRANSPARENCY

SEC. 501. REPORTING STANDARD.

(a) IN GENERAL.—The operator of a data center with an installed information technology power demand of [TBD] megawatts or more shall report annually to the Energy Information Administration its electricity consumption, water

withdrawal and consumption, water source, and power usage effectiveness.

(b) PUBLICATION.—The Administrator shall publish facility-level data annually, aggregated where necessary to protect security information.

(c) STRESSED WATERSHEDS.—The Secretary of the Interior shall identify water-stressed basins and report to Congress on data center water use within them, with recommendations.

TITLE VI — IMPLEMENTATION AND OVERSIGHT

SEC. 601. IMPLEMENTATION TIMELINE.

(a) TITLE I.—Title I (Corporate Home Ownership Restriction Incentives) shall be operational not later than [TBD] months after the date of enactment of this Act. The Secretary shall publish initial regulations implementing Title I within [TBD] months of enactment.

(b) TITLE II.—Title II (Zoning Reform Incentives) shall be operational not later than [TBD] months after the date of enactment of this Act. The Secretary of Transportation, in coordination with the Secretary, shall publish initial joint rulemaking under section 201(d) within [TBD] months of enactment.

(c) TITLE III.—Title III (Affordable Housing Supply Expansion) shall be operational not later than [TBD] months after the date of enactment of this Act, with first-year grant awards beginning in fiscal year 2031.

(d) TITLE IV.—The initial publication of model legislation under section 401 shall be completed not later than 12 months after the date of enactment of this Act, consistent with section 401(d). Biennial updates shall commence two years thereafter.

(e) PHASED STATE CERTIFICATION UNDER TITLE I.—For the first three fiscal years following enactment, the Secretary shall accept State certification under section 101(d) on a rolling basis. Beginning fiscal year 2034, certification shall be on an annual cycle.

SEC. 602. INTERAGENCY COORDINATION.

(a) HUD LEAD AGENCY.—The Secretary of Housing and Urban Development shall serve as the lead agency for this Act, except as expressly provided otherwise in this Act.

(b) TREASURY COORDINATION.—The Secretary of the Treasury shall coordinate with the Secretary on—

(1) the vacancy taxation and progressive property taxation model frameworks under sections 403 and 404;

(2) coordination with the Low Income Housing Tax Credit framework under section 42 of the Internal Revenue Code of 1986; and

(3) any tax-policy implications of section 101 State adoption of qualifying restrictions.

(c) FINCEN COORDINATION.—The Director of the Financial Crimes Enforcement Network shall coordinate with the Secretary on—

(1) the section 102 national registry;

(2) Corporate Transparency Act framework integration; and

(3) the section 405 beneficial ownership disclosure model framework.

(d) DOT COORDINATION.—The Secretary of Transportation shall coordinate with the Secretary on Title II zoning reform grants, including joint rulemaking under section 201(d) and grant administration under section 201(c).

(e) STATE ATTORNEY GENERAL COORDINATION.—The Secretary shall establish protocols for coordination with State attorneys general on—

(1) Title I State certification under section 101(d);

(2) State enforcement of section 102 registry requirements under section 102(f)(3); and

(3) inter-State coordination on Title IV model legislation adoption.

(f) FAIR HOUSING COORDINATION.—The Secretary, acting through the Office of Fair Housing and Equal Opportunity, shall coordinate Title III grant administration with the affirmative-furthering requirements of the Fair Housing Act.

SEC. 603. ANNUAL REPORTING.

(a) ANNUAL REPORT.—The Secretary shall transmit annually to Congress a report containing—

(1) Title I grant disbursements by State, including allocation preference percentages applied;

(2) State adoption of qualifying restrictions under Title I and of model legislation under Title IV;

(3) Title II grant awards by locality, with anti-displacement measure summaries;

(4) Title III affordable housing units constructed, by State and locality, with covenant-duration breakdown;

(5) Title IV technical assistance provided, by State, and model legislation update status;

(6) anti-coercion calibration assessment under section 3(c), including funding-level analysis relative to the compulsion threshold; and

(7) any recommendations for further congressional action.

(b) PUBLIC AVAILABILITY.—The annual report shall be transmitted to Congress and posted publicly on a website maintained by the Department of Housing and Urban Development not later than 30 days after submission to Congress.

(c) THREE-YEAR PROGRAM REVIEW.—Not later than three years after the date of enactment of this Act, and every three years thereafter, the Secretary shall transmit to Congress a comprehensive program review covering the operation of this Act, including any structural recommendations for amendment.

(d) GAO COORDINATION.—The Comptroller General of the United States shall have access to all data and records of the programs established under this Act necessary to perform audits, evaluations, and reports requested by the relevant Committees of Congress.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Spending Clause. The bill works through grant preferences and model laws, not direct regulation of property (Sec. 3). The four conditions of South Dakota v. Dole and the coercion limit of NFIB v. Sebelius govern [Sources 204, 251]; no court has struck a funding condition as coercive since NFIB (Mayhew v. Burwell, 1st Cir. 2014) [Source 252].
- **Sec. 101(c) · Size of the preference.** NFIB turned on three factors: a large sum relative to State budgets, an all-or-nothing threat, and a change in the program's kind. Draw the preference from amounts above each State's baseline CDBG and HOME formula allocation, so non-qualifying States lose nothing they receive today; that keeps Sec. 3(c)(2) true in practice and the preference far below any coercion threshold. HUD and CBO should model the percentage before it is set.
- **Sec. 101(f) · Induced State laws.** Qualifying restrictions must apply to future acquisitions only, so no owner is required to divest (avoiding takings claims under Lucas v. South Carolina Coastal Council and Penn Central), and Congress's express authorization in 101(f) protects them against dormant Commerce Clause challenge.
- **Sec. 102 · Registry.** Real property ownership is economic activity and already a public record. The Eleventh Circuit upheld the Corporate Transparency Act under the Commerce Clause in 2025 [Sources 253, 254], and this registry rests on firmer ground. A 2025 FinCEN rule exempted domestic companies from beneficial-ownership reporting, so the registry should collect its own beneficial-ownership data, as Sec. 102(c) now provides.
- **Secs. 104–105 · Foreign adversaries.** Federal classifications touching foreign nationals receive more deference than State ones (Mathews v. Diaz, 1976). Define "foreign adversary" by cross-reference to the Department of Commerce list (15 C.F.R. 791.4) and "controlled" precisely, keep the exception for the primary residence of a lawfully present individual so the rule targets state control rather than national origin, and review it against the Fair Housing Act. State laws of this kind remain in litigation.
- **Title II · Zoning.** The transportation-grant hook strengthens Dole's relatedness condition. The deemed approval in Sec. 203(3) is a condition on grantees, not a Federal land-use rule. Sec. 204 is a statutory NEPA exclusion, which Congress may enact; Seven County Infrastructure Coalition v. Eagle County (2025) confirms deference to agencies on the scope of NEPA review.
- **Title III.** Davis-Bacon coverage (Sec. 301(f)) is standard for HUD-funded construction. Tie Sec. 301(g) to the statutory duty to affirmatively further fair housing (42 U.S.C. §3608) rather than a particular rule, since HUD's implementing rules have changed repeatedly. Record the covenants and recapture rights against each property.
- **Title V · Data centers.** Reporting regulates interstate energy and water use; keep security-sensitive facility data protected under Sec. 501(b).

· **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, HUD's Office of General Counsel, the Treasury Office of Tax Policy, FinCEN, the Department of Transportation, and the Congressional Budget Office before introduction.

Bill 5 · BWDS Act

Billionaire Wealth Gains & Digital Services Tax Act of 2032 · A — Second Reconciliation Window (paired with FSW) · Opens Phase II — before or with Bill 4

· I · Digital services levy — P5 (DST)

· II · Billionaire income tax (mark-to-market / deemed realization) with aggregation and anti-splitting — P5

· III · Close wealth accumulation loopholes — P4

· IV · Debt-equity tax parity — P11

Depends on: Phase I coalition; international coordination. *Attack:* Capital flight; punishing success. *Fallback:* Capital-income reform and offshore closures without the billionaire income tax.

What this bill does. Taxes billionaires' gains on publicly traded assets as they accrue (mark-to-market), adds an interest charge on deferred gains from non-traded assets when they are sold or transferred, and treats assets as sold at death. Imposes a levy on large digital platforms' U.S. revenue; tightens offshore, trust, and carried-interest rules; and pairs an equity allowance with interest limits on a revenue-neutral basis. Does not: impose an annual tax on net worth. It is an income-tax reform built around the realization question left open in Moore, with a prepared fallback.

FULL LEGISLATIVE TEXT

122ND CONGRESS
2ND SESSION
S. ____

To establish a digital services revenue levy on large technology platforms; to impose a progressive annual billionaire income tax on mark-to-market and deemed realization basis; to strengthen offshore tax enforcement; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Billionaire Wealth Gains and Digital Services Tax Act of 2032" or the "BWDS Act of 2032".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) The combined net worth of American billionaires has increased from approximately $1 trillion in 1990 to over $5 trillion by 2024, while effective Federal income tax rates on the wealthiest Americans have declined significantly, largely because current law generally does not tax income until a taxable event occurs.

(2) Congress has enacted mark-to-market income inclusion for specific asset classes — dealer securities (IRC §475), regulated futures (§1256), and PFICs (§1296) — demonstrating the constitutional validity of annual income recognition under the section 446 accounting method framework without a sale event.

(3) Large digital services platforms have generated substantial revenues from American users and infrastructure while maintaining effective Federal tax rates significantly below the statutory corporate rate.

(4) IRS estimates that offshore tax evasion accounts for a significant portion of the annual tax gap, with high-income individuals and beneficial-ownership concealment structures responsible for the largest single category.

(b) PURPOSE.—The purposes of this Act are to—

(1) establish a digital services revenue levy on large technology platforms structured as a Flint v. Stone Tracy excise on the privilege of providing digital services in United States commerce;

(2) impose a progressive annual income tax on covered taxpayers (individuals with net wealth exceeding $1,000,000,000) structured as a mark-to-market accounting method election under section 446, parallel to existing sections 475, 1256, and 1296;

(3) impose a deferral charge on non-traded covered assets payable upon a Realization Event, parallel to sections 1291 and 453A interest charges;

(4) treat death as a recognized realization event for covered assets, parallel to section 877A treatment of expatriation; and

(5) strengthen offshore tax enforcement through expanded FATCA reporting, beneficial ownership disclosure, and civil and criminal penalties for concealment.

SEC. 3. BUDGETARY COMPLIANCE.

(a) RECONCILIATION.—The provisions of this Act are enacted pursuant to reconciliation instructions in the concurrent resolution on the budget for fiscal year 2033.

(b) DIRECT REVENUE EFFECT.—All titles of this Act produce direct revenue effects: Title I (digital services levy) is a direct revenue-raising provision; Title II (billionaire income tax) operates as Subtitle A income tax amendments; Title III (offshore enforcement) is revenue-positive through FATCA expansion. All provisions carry direct budgetary effect and are reconciliation-eligible.

(c) BYRD RULE COMPLIANCE.—Any provision determined by the Senate Parliamentarian to be extraneous under 2 U.S.C. §644 shall be severable from the remainder of the Act. Sec 204(f) establishes additional severability and prepared fallback architecture for Title II constitutional severability.

TITLE I — DIGITAL SERVICES REVENUE LEVY

SEC. 101. DIGITAL SERVICES LEVY.

(a) IN GENERAL.—There is imposed on each covered entity a levy equal to [TBD] percent of the digital services revenue of such entity attributable to United States users for the taxable year. The levy is structured as a Flint v. Stone Tracy excise on the privilege of providing digital services in United States commerce, not as an income tax under the Sixteenth Amendment.

(b) COVERED ENTITY.—A covered entity is a corporation with—

(1) global revenue exceeding $[TBD] for the taxable year; and

(2) domestic digital services revenue attributable to United States users exceeding $[TBD] for the taxable year.

(c) DIGITAL SERVICES REVENUE.—Digital services revenue includes amounts received from—

(1) digital advertising services;

(2) online marketplace transaction facilitation fees;

(3) social media platform services;

(4) cloud computing services; and

(5) data monetization activities, including the sale or license of user data or derived analytical products.

(d) NO PASS-THROUGH BAN.—Nothing in this section shall prohibit a covered entity from passing the levy through to its customers as an itemized line-item charge or otherwise.

(e) UNIFORM APPLICATION.—The levy under subsection (a) shall be applied uniformly to all covered entities meeting the thresholds in subsection (b), without regard to viewpoint, content, or speaker identity of any digital service.

(f) REVENUE DEDICATION.—Revenues collected under this section are dedicated, in shares of [TBD] percent and [TBD] percent, respectively, to contributions to children's investment accounts under title V of the Family Stability and Workforce Investment Act of 2031 and to a Federal Healthcare Transition Reserve, which is established in the Treasury by this subsection and whose balance shall be transferred to the Federal Healthcare Fund upon its establishment under section 301 of the Universal Coverage Transition Act.

TITLE II — BILLIONAIRE INCOME TAX (MARK-TO-MARKET AND DEEMED REALIZATION)

SEC. 201. ANNUAL INCOME INCLUSION ON COVERED TRADED ASSETS — MARK-TO-MARKET.

(a) IN GENERAL.—In the case of a covered taxpayer, the net annual increase in the fair market value of covered traded assets held by the taxpayer during the taxable year shall be treated as income recognized in that taxable year, in accordance with the mark-to-market accounting method election under subsection (b).

(b) ACCOUNTING METHOD ANCHOR.—Income inclusion under subsection (a) is structured as a mark-to-market accounting method election for covered taxpayers under section 446, parallel to the existing mark-to-market accounting method elections in—

(1) section 475 (dealers in securities);

(2) section 1256 (regulated futures contracts, foreign currency contracts, nonequity options, dealer equity options, and dealer securities futures contracts); and

(3) section 1296 (passive foreign investment company election). The mark-to-market accounting method established under this section is an income recognition method permitted under section 446(c)(4), not a new direct tax. (See section 204 for Constitutional Construction.)

(c) COVERED TAXPAYER.—A covered taxpayer is an individual whose net wealth exceeds $1,000,000,000 as of the last day of the preceding taxable year.

(d) COVERED TRADED ASSETS.—Covered traded assets means publicly traded securities, regulated futures contracts, and other assets for which a readily ascertainable fair market value is established daily by an organized exchange or established trading market.

(e) RATE.—The applicable rate is the applicable capital gains rate plus [TBD] percentage points, not to exceed the ordinary income rate.

(f) BASIS ADJUSTMENT.—The basis of covered traded assets shall be adjusted to reflect amounts included in income under subsection (a) to prevent double inclusion at realization.

SEC. 202. DEFERRAL CHARGE ON NON-TRADED COVERED ASSETS.

(a) IN GENERAL.—In the case of a covered taxpayer, a deferral charge is imposed on the unrealized appreciation in non-traded covered assets, calculated at the applicable Federal rate, accumulated annually, and payable upon a Realization Event.

(b) STRUCTURE PARALLEL.—The deferral charge under subsection (a) is structured parallel to the interest charges under—

(1) section 1291 (passive foreign investment company excess distribution interest charge); and

(2) section 453A (installment sale interest charge). Each of these existing sections has operated for decades without successful constitutional challenge.

(c) REALIZATION EVENT.—A Realization Event means—

(1) a sale or exchange of the covered asset;

(2) a gift of the covered asset, other than to the taxpayer's spouse;

(3) the death of the taxpayer (subject to section 203);

(4) expatriation of the taxpayer subject to section 877A; or

(5) any other event treated as a recognition event under generally applicable provisions of this title.

(d) INSTALLMENT ELECTION.—Upon a Realization Event, the covered taxpayer may elect to pay the accumulated deferral charge in equal annual installments over a period not to exceed [TBD] years, subject to interest at the applicable Federal rate.

(e) NON-TRADED COVERED ASSET.—A non-traded covered asset is any asset of a covered taxpayer for which a readily ascertainable fair market value is not established daily by an organized exchange or established trading market, including closely held business interests, real estate partnerships, art and collectibles above $[TBD], and non-traded securities.

SEC. 203. DEEMED REALIZATION AT DEATH.

(a) IN GENERAL.—In the case of a covered taxpayer, all covered assets at death shall be treated as sold at fair market value as of the date of death. Resulting gain shall be recognized as income of the estate.

(b) MARITAL EXCEPTION.—Subsection (a) shall not apply to covered assets transferred to the surviving spouse of the covered taxpayer. Such assets shall be subject to deemed realization at the death of the surviving spouse or upon any subsequent transfer described in section 202(c).

(c) ESTATE TAX COORDINATION.—Income taxes paid under this section shall be deductible in computing the Federal estate tax liability of the covered taxpayer's estate.

(d) SECTION 877A PARALLEL.—Subsection (a) operates parallel to section 877A (deemed realization at expatriation, 2008), which has operated without successful Sixteenth Amendment challenge. Death is at least as constitutionally settled a realization event as expatriation.

SEC. 204. CONSTITUTIONAL CONSTRUCTION AND PREPARED FALLBACK ARCHITECTURE.

(a) INCOME TAX FRAMING.—The income inclusion under section 201 is an income tax within the meaning of the Sixteenth Amendment, structured as a mark-to-market accounting method election under section 446(c)(4), parallel to existing mark-to-market accounting elections in sections 475, 1256, and 1296. Each of those existing sections has operated for decades without successful Sixteenth Amendment challenge.

(b) DEFERRAL CHARGE FRAMING.—The deferral charge under section 202 is an interest charge on tax deferred until a Realization Event, structured parallel to existing interest charges under sections 1291 (passive foreign investment company excess distribution) and 453A (installment sale interest). Each has operated without successful constitutional challenge.

(c) DEEMED REALIZATION FRAMING.—The deemed realization under section 203 treats death as a recognized realization event, parallel to the deemed-realization-at-expatriation provision under section 877A (2008), which has operated without successful Sixteenth Amendment challenge.

(d) NOT A DIRECT TAX.—No provision of this title is a tax on property, net wealth, or holdings within the meaning of Article I, section 9, clause 4. All provisions are income inclusions or interest charges under Subtitle A income tax authority.

(e) MOORE V. UNITED STATES — RESERVED QUESTIONS.—Moore v. United States, 602 U.S. 572 (2024), reserved the constitutional question whether the Sixteenth Amendment permits taxation of unrealized gains generally. The structure established under sections 201 through 203 is designed to operate within Moore-approved attribution and deemed-realization frameworks, not to present the reserved question.

(f) SEVERABILITY AND PREPARED FALLBACK ARCHITECTURE.—If section 201(a) annual income inclusion is held unconstitutional or otherwise stayed pending judicial review—

(1) sections 202 (deferral charge on non-traded covered assets payable at Realization Event) and 203 (deemed realization at death) shall continue to operate as the primary income tax mechanism of this title; and

(2) the mark-to-market accounting method under section 201(b) may be administered by the Secretary of the Treasury as a covered-taxpayer election under section 446(c)(4) authority, with annual income inclusion limited to taxpayers electing the method, pending judicial resolution.

TITLE III — OFFSHORE ENFORCEMENT

SEC. 301. STRENGTHENED OFFSHORE TAX ENFORCEMENT.

(a) FATCA EXPANSION.—Reporting thresholds under chapter 4 of the Internal Revenue Code of 1986 (the Foreign Account Tax Compliance Act) are amended to apply lower reporting thresholds to covered taxpayers as defined in section 201(c).

(b) BENEFICIAL OWNERSHIP DISCLOSURE.—Beneficial ownership disclosure is required for all foreign entities in which a United States person holds a direct or indirect interest exceeding [TBD] percent. Such disclosure shall be made to the Financial Crimes Enforcement Network under existing 31 U.S.C. §5336 authority, with cross-referencing to IRS information returns.

(c) CIVIL PENALTIES.—Civil penalties for willful failure to disclose under subsection (a) or (b) are—

(1) [TBD] percent of the unreported asset value per year of nondisclosure; or

(2) $[TBD] per violation, whichever is greater.

(d) CRIMINAL PENALTIES.—Criminal penalties for willful failure to disclose under subsection (a) or (b), with intent to evade Federal tax, are—

(1) a fine of up to $[TBD]; and

(2) imprisonment of up to [TBD] years.

(e) COORDINATION WITH EXISTING REGIMES.—The Secretary of the Treasury shall coordinate enforcement under this section with existing FATCA, FBAR (31 U.S.C. §5314), and FinCEN beneficial ownership reporting frameworks to avoid duplicative reporting requirements.

(f) TREATY COORDINATION.—The Secretary shall notify treaty partners of FATCA expansion under subsection (a) and coordinate through existing intergovernmental agreement (IGA) frameworks to maintain treaty compliance.

SEC. 302. GRANTOR TRUSTS AND VALUATION. Sections 671 through 679 and section 2702 of the Internal Revenue Code of 1986 are amended to—

(1) treat a transfer to or from a grantor trust as a transfer for income and gift tax purposes; and

(2) require a minimum term of [TBD] years and a minimum remainder value of [TBD] percent for grantor retained annuity trusts.

SEC. 303. CARRIED INTEREST. Section 1061 of the Internal Revenue Code of 1986 is amended to treat income from an applicable partnership interest as ordinary income.

SEC. 304. AGGREGATION AND ANTI-SPLITTING. For purposes of any wealth, income, or asset threshold in this Act, assets and income of all entities and trusts under common control or for the primary benefit of the same individual or family shall be aggregated, and an arrangement with a principal purpose of avoiding a threshold shall be disregarded.

TITLE IV — DEBT-EQUITY TAX PARITY

SEC. 401. ALLOWANCE FOR CORPORATE EQUITY.

(a) IN GENERAL.—Part VIII of subchapter B of chapter 1 of the Internal Revenue Code of 1986 is amended by adding a deduction for a corporation equal to the product of its qualified equity and a notional rate of return equal to the 10-year Treasury rate plus [TBD] percentage points.

(b) QUALIFIED EQUITY.—The term means the increase in the corporation's equity capital after the date of enactment, as determined under regulations, excluding equity arising from intercompany transactions.

SEC. 402. INTEREST LIMITATION. Section 163(j) of the Internal Revenue Code of 1986 is amended to limit the deduction for net business interest to [TBD] percent of adjusted taxable income, computed without regard to depreciation, amortization, or depletion.

SEC. 403. REVENUE NEUTRALITY. The Secretary of the Treasury shall set the rates under sections 401 and 402 so that the title is projected to be revenue-neutral over the budget window, as determined by the Joint Committee on Taxation.

TITLE V — IMPLEMENTATION AND OVERSIGHT

SEC. 501. IMPLEMENTATION TIMELINE.

(a) YEAR 1 (2033).—Title I digital services levy effective; Treasury §446(c)(4) election regulations published for Title II; Title III FATCA expansion effective.

(b) YEAR 3 (2035).—First Title II compliance cycle complete; CBO interim report on revenue capture, billionaire compliance, and constitutional litigation status.

(c) YEAR 5 (2037).—Comprehensive program review and reauthorization assessment; cumulative revenue, compliance, and litigation outcomes report.

SEC. 502. ANNUAL REPORTING. Not later than 90 days after the end of each fiscal year, the Secretary of the Treasury shall submit to Congress an annual report including—

(1) Title I digital services levy revenue, by covered entity category;

(2) Title II annual income inclusion participation, deferral charge accumulation, and deemed-realization-at-death revenue, with separate accounting for elective §446(c)(4) participation under Sec 204(f)(2);

(3) Title III FATCA expansion revenue, beneficial ownership disclosures, and civil and criminal enforcement actions; and

(4) constitutional litigation status, including any judicial proceedings affecting Sec 201(a) operative authority and Sec 204(f) prepared fallback activation.

SEC. 503. TREASURY CONSTITUTIONAL DEFENSE COORDINATION.

(a) IN GENERAL.—The Secretary of the Treasury, in coordination with the Department of Justice Office of Legal Counsel and Senate Finance Committee constitutional counsel, shall establish protocols for the constitutional defense of provisions of this Act, including—

(1) identification of high-priority litigation defense for Sec 201(a) annual income inclusion;

(2) preparation of Treasury §446(c)(4) election regulations under Sec 204(f)(2) ready for activation if Sec 201(a) is held unconstitutional or stayed; and

(3) coordination with Senate Finance Committee on legislative response to adverse constitutional rulings.

(b) FALLBACK ACTIVATION.—Upon entry of a final judgment or stay affecting Sec 201(a), the Secretary shall, within 30 days, publish notice of activation of the Sec 204(f)(2) elective §446(c)(4) framework and provide guidance to covered

taxpayers regarding transition.

(c) ANNUAL CONSTITUTIONAL STATUS REPORT.—The annual report under section 502 shall include a section on constitutional litigation status and Sec 204(f) prepared fallback architecture readiness.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** The Sixteenth Amendment for Title II; the excise power, which requires only geographic uniformity, for the digital levy. With the firearms bill, this carries the highest constitutional risk in the series. Department of Justice Office of Legal Counsel review is required before introduction, addressing each title separately.
- **Moore v. United States (2024).** The Court upheld a tax on undistributed foreign earnings by attribution and expressly reserved whether unrealized gains may be taxed. Four Justices signaled that realization is required, so one more vote decides the question [Source 203]. The realization rule of Eisner v. Macomber has been narrowed (Helvering v. Bruun, 1940; Cottage Savings, 1991) but not abandoned [Sources 224–226].
- **Sec. 201 · Annual inclusion — highest risk.** Built on the accounting-method framework of §446 and the long-standing mark-to-market rules of §§475, 1256, and 1296, none of which has been successfully challenged [Source 207]; but none taxes the passive appreciation of an individual long-term holder, which is the reserved question. Prepared fallback (Sec. 204(f)): Secs. 202 and 203 continue as the primary mechanism, and the method may operate as an election pending judgment. Treasury should have the election regulations drafted before introduction (Sec. 503). Expect a challenge soon after enactment.
- **Sec. 202 · Deferral charge.** Collected only at a realization event, following the interest charges of §1291 and §453A, each in place since the 1980s without successful challenge. Annual collection on unrealized appreciation would present the reserved question; keep collection tied to realization.
- **Sec. 203 · Death.** The most secure component. The 2008 expatriation rule (§877A) treats a comparable event as a realization and has not been successfully challenged, and transfers at death have been taxable since Knowlton v. Moore (1900) [Source 230].
- **Apportionment.** If any component were held a direct tax, apportionment by population would make it unworkable. Sec. 204(d) disclaims any property or net-worth framing; keep every component an income inclusion, an interest charge, or an excise. Net wealth in Sec. 201(c) is a coverage threshold, not the tax base; its valuation rules for non-traded assets should borrow estate-tax machinery (§§2031, 2512) with safe harbors.
- **Sec. 101 · Digital levy.** Framed as an excise on the privilege of doing business (Flint v. Stone Tracy Co., 1911) [Source 227]. The Fourth Circuit struck Maryland's ban on passing its digital advertising tax through to customers as speaker-based discrimination [Source 228]; Sec. 101(d)–(e) avoid that defect. Treasury should review treaty, trade, and foreign-creditability consequences.
- **Title IV · Rates set by Treasury.** Sec. 403 directs Treasury to set the equity-allowance and interest-limit rates for revenue neutrality. Delegating tax rates is permissible with an intelligible principle (Skinner v. Mid-America Pipeline Co., 1989); statutory floors and ceilings would make the delegation safer [Source 260].
- **Byrd rule.** Every title has a direct revenue effect. Keep any behavioral mandate on platforms out of the reconciliation vehicle [Source 271].
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the Department of Justice Office of Legal Counsel, the Treasury Office of Tax Policy, the Joint Committee on Taxation, and the Senate Finance Committee before introduction.

Bill 4 · FSW Act

Family Stability & Workforce Investment Act of 2031 · A — Second Reconciliation Window (paired with BWDS) · Year 4–6

· I · Childcare expansion toward near-universality — P15 (Phase II stage)

· II · Reduce tuition & expand adult education — P54

· III · Earned income support expansion

· IV · Corporate training investment — P56

· V · Children's investment accounts (progressive top-up) — P16

· VI · Military workforce transition to infrastructure — P74

Depends on: COLT childcare constituency; BWDS revenue in the same window. *Attack:* More spending; dependency. *Fallback:* Targeted credits if full expansion fails.

What this bill does. Expands the COLT childcare credit toward near-universal eligibility once licensed capacity has grown, with a pay floor for childcare workers; links unemployment benefits to free training; expands the EITC; adds an employer training credit; deposits progressive contributions into children's investment accounts; and creates a voluntary National Infrastructure Corps for separating service members. Does not: create a government-run childcare system — families choose licensed providers.

FULL LEGISLATIVE TEXT

122ND CONGRESS
1ST SESSION
S. ____

To expand access to affordable childcare and workforce development programs; to reform and expand the earned income tax credit; to incentivize corporate investment in employee training; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Family Stability and Workforce Investment Act of 2031" or the "FSW Act of 2031".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) Childcare costs remain a significant barrier for working families even after Phase I COLT Act provisions. Near-universal access requires expanded eligibility thresholds.

(2) Unemployment insurance, in its current passive form, represents a missed opportunity to actively invest in the next phase of a worker's career.

(3) The Earned Income Tax Credit, while effective, fails to cover all workers who would benefit from its expansion, particularly workers without qualifying children.

(4) Corporate investment in employee training lags peer nations where employer healthcare burden is lower, suggesting a crowd-out effect on training investment.

(b) PURPOSE.—The purposes of this Act are to—

(1) expand the Childcare Affordability Credit established under the COLT Act of 2029 toward near-universal coverage of working families;

(2) establish a training-linked unemployment compensation framework, implemented through existing Federal workforce-development programs, to provide free vocational training, community college, behavioral health, and reemployment services to individuals receiving unemployment compensation;

(3) reform and expand the Earned Income Tax Credit to cover more workers, including those without qualifying children and self-employed workers; and

(4) establish an Employer Training Investment Tax Credit to incentivize corporate investment in employee training and skills development.

SEC. 3. BUDGETARY COMPLIANCE.

(a) RECONCILIATION.—The provisions of this Act are enacted pursuant to reconciliation instructions in the concurrent resolution on the budget for fiscal year 2032.

(b) DEFICIT NEUTRALITY.—The provisions of this Act shall be implemented in a manner that does not increase the Federal deficit over the 10-year budget window, as determined by the Congressional Budget Office. Workforce participation gains, EITC expansion-induced earnings increases, and childcare-induced labor force participation effects shall be counted toward budget neutrality in accordance with applicable CBO scoring rules.

(c) BYRD RULE COMPLIANCE.—All provisions are designed to produce direct budgetary effects. Any provision determined by the Senate Parliamentarian to be extraneous under 2 U.S.C. §644 shall be severable from the remainder of the Act.

SEC. 4. COORDINATION WITH COLT ACT.

(a) IN GENERAL.—Provisions of this Act amending or expanding sections of the Internal Revenue Code originally enacted by the Cost of Living Reduction and Tax Simplification Act of 2029 (Pub. L. ___, the "COLT Act of 2029") shall be coordinated with COLT Act provisions to avoid duplicative scoring or Byrd-Rule double-jeopardy exposure.

(b) AMENDMENT REFERENCES.—Each amendment made by this Act to section 36C of the Internal Revenue Code of 1986 (Childcare Affordability Credit) refers to that section as added by section 201 of the COLT Act of 2029.

SEC. 5. REVENUE-LINKED PHASE-IN.

(a) COVERED PROGRAMS.—This section applies to the expansion of the childcare affordability credit under title I and to contributions to children's investment accounts under title V (the "covered programs").

(b) LIMIT.—For each fiscal year, the projected cost of the covered programs shall not exceed the receipts that the Secretary of the Treasury certifies, on the basis of the preceding fiscal year, as collected under titles I through III of the Billionaire Wealth Gains and Digital Services Tax Act of 2032, together with amounts distributed to children's investment accounts under section 7 of the AIPE Act. The Secretary shall publish each certification together with the most recent estimate of those receipts by the Congressional Budget Office.

(c) STAGED PHASE-IN.—When certified receipts are less than the projected cost of the covered programs, the Secretary shall—

(1) hold the income ceiling and maximum credit under title I at the levels in effect for the preceding year; and

(2) make contributions under title V first for children in the lowest-income households,

and shall resume the phase-in as soon as certified receipts permit.

(d) NO REDUCTION.—Nothing in this section reduces any credit or contribution below the level in effect for the preceding year.

(e) RELATIONSHIP TO SECTION 3(b).—This section carries out the deficit-neutrality requirement of section 3(b).

TITLE I — CHILDCARE EXPANSION

SEC. 101. CHILDCARE AFFORDABILITY CREDIT EXPANSION.

(a) IN GENERAL.—Section 36C of the Internal Revenue Code of 1986 (as added by section 201 of the COLT Act of 2029) is amended as set forth in this section.

(b) EXPANDED ELIGIBILITY.—Section 36C(b)(2) is amended—

(1) by striking "$[TBD]" and inserting "an amount equal to 300 percent of the poverty line (as defined in section 673(2) of the Community Services Block Grant Act (42 U.S.C. 9902(2))) applicable to a family of the size involved"; and

(2) by striking the phase-out range and inserting a phase-out range that ends at $[TBD].

(c) PER-CHILD CAP EXPANSION.—Section 36C(c) per-child qualifying childcare expenditure cap is amended from $[TBD] to $[TBD] per child per year.

(d) PROVIDER SUPPLY GRANT EXPANSION.—Section 202 of the COLT Act of 2029 is amended to authorize an additional $[TBD] for provider supply grants for each of fiscal years 2032 through 2037, with priority to childcare deserts and high-cost-burden areas as defined by the Secretary of Health and Human Services.

(e) WORKFORCE COMPENSATION.—Provider supply grants under subsection (d) shall be conditioned on the recipient paying childcare workers not less than [TBD] percent of the median wage for kindergarten teachers in the State, phased in over [TBD] years.

(f) CAPACITY CHECK.—The expanded eligibility under subsection (b) shall take effect in a State only after the Secretary of Health and Human Services certifies that licensed childcare capacity in the State has grown by not less than [TBD] percent since enactment of the COLT Act of 2029, or upon a later date set by the Secretary to avoid demand outrunning supply; rural home-based and family childcare providers are eligible for supply grants on equal terms.

(g) EFFECTIVE DATE.—Amendments made by this section shall apply to taxable years beginning after December 31, 2031, subject to subsection (f).

TITLE II — WORKFORCE TRAINING PIPELINE

SEC. 201. TRAINING-LINKED UNEMPLOYMENT BENEFITS.

(a) IN GENERAL.—States receiving Federal unemployment compensation grants under chapter 23 of title 26, United States Code, shall offer to each individual receiving unemployment compensation—

(1) free vocational training aligned with regional labor market needs;

(2) free enrollment in community college courses or programs aligned with regional labor market needs;

(3) behavioral health services for individuals with documented barriers to workforce reentry; and

(4) career counseling and reemployment services. Participation in services offered under this subsection by individuals receiving unemployment compensation is voluntary.

(b) IMPLEMENTATION THROUGH EXISTING ACCOUNTS.—The services required to be offered under subsection (a) shall be carried out through supplemental appropriations to, and capacity expansion within, existing Federal workforce-development programs, including—

(1) workforce investment activities under the Workforce Innovation and Opportunity Act, Title I (29 U.S.C. §3151 et seq.);

(2) career and technical education under the Strengthening Career and Technical Education for the 21st Century Act (Perkins V, 20 U.S.C. §2301 et seq.);

(3) Registered Apprenticeship programs (29 U.S.C. §50);

(4) the Job Corps (29 U.S.C. §3191 et seq.); and

(5) Reemployment Services and Eligibility Assessments (42 U.S.C. §506). The Secretary of Labor shall not establish a new programmatic architecture, new eligibility criteria, or new performance measurement framework under subsection (a); existing program authority and existing program governance apply.

(c) SUPPLEMENTAL APPROPRIATION.—$[TBD] appropriated for each of fiscal years 2032 through 2037 for distribution to State workforce development boards under the existing programmatic frameworks identified in subsection (b).

(d) BENEFIT CONTINUATION.—An individual receiving unemployment compensation who voluntarily enrolls in services under subsection (a) shall continue to receive unemployment compensation benefits during the period of training participation, not to exceed [TBD] additional weeks beyond the standard State unemployment compensation eligibility period.

(e) STATE COORDINATION.—States shall coordinate services offered under subsection (a) with State workforce development plans submitted under section 102 of WIOA (29 U.S.C. §3112). State workforce development boards established under section 101 of WIOA (29 U.S.C. §3111) shall administer the services within their existing governance structures.

TITLE III — EARNED INCOME SUPPORT EXPANSION

SEC. 301. EARNED INCOME TAX CREDIT REFORM.

(a) IN GENERAL.—Section 32 of the Internal Revenue Code of 1986 is amended as set forth in this section.

(b) CHILDLESS WORKER EXPANSION.—Section 32(b)(1) is amended to increase the credit percentage applicable to taxpayers with no qualifying children from [TBD] percent to [TBD] percent.

(c) MINIMUM AGE.—Section 32(c)(1)(A)(ii)(II) is amended by striking "25" and inserting "[TBD]" as the minimum age threshold for taxpayers with no qualifying children.

(d) PHASE-OUT INCOME THRESHOLD.—Section 32(b)(2) phase-out income thresholds for taxpayers with no qualifying children shall be raised by [TBD] percent.

(e) SELF-EMPLOYMENT INCLUSION.—Section 32(c)(2) earned income definition is amended to include qualifying self-employment income on a fully eligible basis, with anti-abuse standards developed under Treasury rulemaking.

(f) EFFECTIVE DATE.—Amendments made by this section shall apply to taxable years beginning after December 31, 2031.

TITLE IV — CORPORATE TRAINING INVESTMENT

SEC. 401. EMPLOYER TRAINING INVESTMENT TAX CREDIT.

(a) IN GENERAL.—Subpart D of part IV of subchapter A of chapter 1 of the Internal Revenue Code of 1986 is amended by adding a new section establishing an Employer Training Investment Tax Credit equal to [TBD] percent of qualifying training expenditures.

(b) PER-EMPLOYEE CAP.—The credit allowed under this section shall not exceed $[TBD] per employee per taxable year.

(c) QUALIFYING TRAINING EXPENDITURES.—For purposes of this section, qualifying training expenditures shall be limited to amounts paid for—

(1) accredited education at an institution participating in Title IV programs under the Higher Education Act;

(2) employer-operated training programs registered with the Department of Labor;

(3) on-the-job training programs registered with the Department of Labor;

(4) Registered Apprenticeship programs under 29 U.S.C. §50; and

(5) services related to qualifying training, including assessment, certification, and placement.

(d) WORKER-COMPENSATION ELIGIBILITY THRESHOLD.—Training expenditures shall qualify under subsection (c) only if directed at employees with annual compensation, as determined under section 3401, not exceeding [TBD] percent of the median annual compensation for the employer's industry, as determined annually by the Bureau of Labor Statistics.

(e) REFUNDABILITY.—The credit allowed under this section shall be treated as a refundable credit under subpart C of part IV of subchapter A of chapter 1.

(f) COORDINATION WITH OTHER CREDITS.—Amounts qualifying as expenditures under section 41 (research credit) or section 51 (work opportunity credit) shall not also qualify under this section.

TITLE V — CHILDREN'S INVESTMENT ACCOUNTS

SEC. 501. PROGRESSIVE CONTRIBUTIONS.

(a) IN GENERAL.—The Secretary of the Treasury shall make annual contributions to the children's investment account established for each eligible child under section 530A of the Internal Revenue Code of 1986, in addition to any contribution otherwise provided by law.

(b) AMOUNT.—The annual contribution shall be $[TBD] for a child in a household with income at or below 100 percent of the poverty line, phasing down to zero at [TBD] percent of the poverty line, for each year from age 1 through age 16.

(c) INVESTMENT.—Contributions under this section shall be invested in a low-cost index fund or United States Treasury securities, as elected under the account's governing rules, and shall not be available for withdrawal before the account holder attains age 18.

SEC. 502. AUTOMATIC ENROLLMENT AND CLAIMING. The Secretary shall establish an account for each eligible child automatically, using information available from birth registration and tax records, and shall deposit any initial contribution without requiring an application.

SEC. 503. FEE PROTECTION. No account receiving contributions under this title may be charged annual fees exceeding [TBD] percent of assets.

TITLE VI — MILITARY WORKFORCE TRANSITION TO INFRASTRUCTURE

SEC. 601. NATIONAL INFRASTRUCTURE CORPS.

(a) ESTABLISHMENT.—The Secretary of Labor, in coordination with the Secretary of Defense and the Secretary of Transportation, shall establish a National Infrastructure Corps offering voluntary transition pathways for separating service members into careers in energy grid, water, transportation, and broadband infrastructure.

(b) PATHWAYS.—The Corps shall provide credential conversion for military occupational specialties, paid placement with public agencies and contractors on federally funded infrastructure projects, and registered apprenticeship enrollment.

(c) STIPEND.—A participant shall receive a stipend of $[TBD] per month for up to [TBD] months during training.

(d) VOLUNTARY PARTICIPATION.—Participation is voluntary and does not affect any benefit to which a veteran is otherwise entitled.

(e) APPROPRIATION.—$[TBD] for each of fiscal years [TBD] through [TBD].

TITLE VII — IMPLEMENTATION AND OVERSIGHT

SEC. 701. IMPLEMENTATION TIMELINE.

(a) YEAR 1 (2032).—COLT Act §36C amendments effective; Sec 201 supplemental appropriations distributed to State workforce development boards; Title III EITC expansion effective; Title IV employer training credit accepting first claims.

(b) YEAR 3 (2034).—Childcare expansion enrollment milestone review; workforce training pipeline at full operational capacity; CBO interim report on workforce participation gains and revenue offsets.

(c) YEAR 5 (2036).—Comprehensive program review and reauthorization assessment; cumulative workforce participation, GDP, and revenue impact assessment.

SEC. 702. COLT ACT COORDINATION CERTIFICATION.

(a) IN GENERAL.—Not later than 90 days after the date of enactment, the Secretary of the Treasury shall submit to Congress a certification that all amendments to IRC §36C and other COLT Act provisions made by this Act have been coordinated with the Internal Revenue Service implementation of the COLT Act to avoid duplicative scoring, phase-out cliff effects, or Byrd-Rule double-jeopardy exposure.

(b) PHASE-OUT COORDINATION.—The certification under subsection (a) shall include the Treasury's analysis of phase-out structure interactions between this Act, the COLT Act, and existing IRC §32 EITC provisions.

SEC. 703. ANNUAL REPORTING. Not later than 90 days after the end of each fiscal year, the Secretary of the Treasury, the Secretary of Labor, and the Secretary of Health and Human Services shall jointly submit to Congress an annual report including—

(1) Childcare Affordability Credit enrollment and benefit amount data;

(2) Sec 201 training-linked unemployment benefits participation data, including program-by-program enrollment under existing WIOA/Perkins V/Apprenticeship/Job Corps accounts;

(3) EITC claims, including childless-worker expansion uptake and self-employment claims;

(4) Employer Training Investment Tax Credit claims and qualifying expenditure data, including worker-compensation threshold compliance; and

(5) CBO-validated workforce participation and revenue offset metrics.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Taxing and Spending Powers. As with the COLT Act, the questions are procedural [Source 271].
- **Sec. 201 · Training-linked benefits — highest Byrd risk in the series.** The 2025 strike of Workforce Pell grants for unaccredited providers is the controlling precedent: new eligibility architecture outweighed a large budget effect [Source 271]. Sec. 201(b) is the built-in safeguard — services run through existing WIOA, Perkins V, apprenticeship, Job Corps, and reemployment accounts, and the Secretary may not create new eligibility or performance rules. Prepared fallback: (1) if the "shall offer" language in (a) is read as a new mandate, restate it as a higher Federal share of existing administrative grants for States that offer the services; (2) if (a) and (b) are struck, the (c) appropriation stands alone and the services are set through existing program guidance. Seek an advisory ruling on (a) and have the restated language ready.

- **Sec. 201(d) · Extended weeks.** State that the additional weeks are federally financed; otherwise they fall on State trust funds as an unclear grant condition (Pennhurst).
- **Sec. 101(e) · Childcare worker pay floor.** A wage condition on grants is the structure most likely to be struck as policy outweighing budget; it resembles the minimum-wage increase struck in 2021. Prepared fallback: make the pay standard a priority criterion for awards, or move it to standalone legislation.
- **Sec. 101(f) · Capacity check.** State the certification standard objectively so the Secretary's role is ministerial.
- **Secs. 301 and 401 · Credits.** The EITC changes and the employer credit are direct revenue provisions. The compensation threshold in Sec. 401(d) is a condition on claiming a credit — the structure that survives — and should not be converted into a mandatory allocation rule on employers; if it is challenged, the parameter can move to Treasury regulations under the credit.
- **Titles V and VI.** Children's account contributions build on the accounts created by the 2025 reconciliation law (§530A) and are direct spending. The National Infrastructure Corps is a new program and likely belongs in regular order or a supplement to existing transition programs.
- **Sec. 4(b) · COLT coordination.** Verify the codified section numbers of the COLT Act as enacted before introduction, and have the two bills' phase-outs scored together (Sec. 702).
- **Sec. 5 · Revenue-linked phase-in.** Making a benefit's growth contingent on an executive finding of fact is long-settled contingent legislation (Field v. Clark, 1892; J.W. Hampton, Jr., & Co. v. United States, 1928). The certifying officer must be in the executive branch; CBO may be consulted but cannot be given a binding role (Bowsher v. Synar, 1986). CBO will score the covered programs at the lesser of their cost and the projected receipts, which is what keeps the Act within section 3(b). The floor in (d) avoids taking away a credit once claimed.
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, Treasury, the Department of Labor, the Department of Health and Human Services, the Joint Committee on Taxation, and the Congressional Budget Office before introduction.

Bill 6 · POHE Act

Public Option Healthcare Expansion Act of 2032 · B — Sectoral Legislation · Year 4–7

· Public option: rural and small-business pools first; statutory expansion trigger — P19 (Phase II stage)

Depends on: COLT coverage bridge operating. *Attack:* Government takeover. *Fallback:* Stronger ACA-style expansion.

What this bill does. Creates a public insurance plan on the ACA Marketplace, first for people in health-professional shortage areas, low-competition counties, and small businesses, with a statutory trigger for wider eligibility and a state option to open it to all residents. Sets insurer participation rules, consumer protections, transition provider rates, a reinsurance corridor, and an actuarial-soundness requirement. Voluntary: enrollment. Does not: replace private insurance or require anyone to switch.

FULL LEGISLATIVE TEXT

122ND CONGRESS
2ND SESSION
S. ____

To establish a public health insurance option for individuals and small businesses offered through the Health Insurance Marketplace; to provide a self-executing statutory mechanism for performance-based eligibility expansion; to coordinate with the Employee Retirement Income Security Act of 1974 and the Patient Protection and Affordable Care Act; to establish consumer protection and provider participation standards; to authorize a reinsurance corridor for program stability; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Public Option Healthcare Expansion Act of 2032" or the "POHE Act of 2032".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) Approximately [TBD] million Americans remain uninsured or underinsured despite the Patient Protection and Affordable Care Act (Public Law 111-148).

(2) In [TBD] percent of rural counties in the United States, residents have access to only one insurance carrier in the individual non-group market, eliminating the price-discipline benefits of competition.

(3) Small business employees face average premium costs [TBD] percent higher than large-employer-plan participants and have substantially fewer plan options at every income level.

(4) Concentration in private health insurance markets has increased materially since 2010, with [TBD] States having a single insurer holding more than [TBD] percent of the individual market.

(5) Competition in insurance markets is associated with lower premiums, higher quality outcomes, and greater consumer choice.

(6) The United States Supreme Court has affirmed congressional authority to legislate comprehensive health insurance frameworks under the Taxing Clause in National Federation of Independent Business v. Sebelius (2012), and to establish exchanges with public-private participation in King v. Burwell (2015).

(7) Self-executing statutory formulas providing for ministerial agency application — as distinct from delegated agency policymaking authority — remain constitutionally sound after FCC v. Consumers' Research, 606 U.S. 656 (2025).

(b) PURPOSES.—The purposes of this Act are—

(1) to establish a public health insurance option offered through the Health Insurance Marketplace, available to individuals and small businesses, as an additional choice that does not displace existing coverage;

(2) to extend affordable health insurance coverage to underserved markets beginning with rural counties and small business pools where private market failure is most acute;

(3) to provide a self-executing statutory mechanism under which the Public Option's geographic and demographic eligibility expands automatically based on demonstrated performance against objective metrics published by the Centers for Medicare and Medicaid Services;

(4) to preserve the right of every individual and employer to retain any existing health insurance coverage; and

(5) to coordinate this Act with the Employee Retirement Income Security Act of 1974 and the Patient Protection and Affordable Care Act so that the Public Option supplements rather than disrupts existing statutory frameworks.

SEC. 3. STATUTORY FOUNDATION AND CONSTRUCTION.

(a) NONDELEGATION ARCHITECTURE.—The eligibility expansion mechanism established in section 102 is a self-executing statutory formula. Congress establishes the data inputs (by reference to specific datasets published by the Centers for Medicare and Medicaid Services), the operative computation, the threshold values, and the effective dates. The Secretary of Health and Human Services applies the formula ministerially based on those published data inputs. No discretionary authority over the expansion decision is delegated by this Act.

(b) DISTINCTION FROM AGENCY-ACTION DOCTRINES.—The eligibility expansion under section 102 is congressional legislation, not agency action. The major questions doctrine articulated in West Virginia v. EPA, 597 U.S. 697 (2022), and applied in Biden v. Nebraska, 600 U.S. 477 (2023), addresses agency assertions of novel power on issues of vast economic and political significance. Section 102 vests no such power in any agency. The constitutional analysis applicable to section 102 is the intelligible-principle nondelegation test reaffirmed in FCC v. Consumers' Research, 606 U.S. 656 (2025), and the formula's structure satisfies that test by establishing precise, ascertainable, and judicially reviewable criteria.

(c) STATUTORY PRECISION REQUIREMENT.—Following Loper Bright Enterprises v. Raimondo, 603 U.S. 369 (2024), provisions of this Act shall be construed according to their statutory text. Where this Act delegates implementation authority to an agency, that authority is bounded by the express terms of the delegation. Ambiguities shall be resolved by reference to statutory text, structure, and purpose, and no provision of this Act shall be construed to authorize an agency to expand its jurisdiction or authority beyond what is expressly conferred.

(d) RELATIONSHIP TO ERISA.—This Act does not preempt section 514 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. § 1144) and does not modify the application of that section to State law. Section 502 of that Act (29 U.S.C. § 1132) coordinates with this Act as provided in section 301.

(e) SEVERABILITY.—If any provision of this Act, or the application of any provision to any person or circumstance, is held to be invalid, the remaining provisions of this Act and the application of those provisions to other persons or circumstances shall not be affected. If any provision of section 102 is held invalid as an unconstitutional delegation of legislative power, the eligibility criteria established in section 102(a) shall remain in full force and effect, and the automatic expansion mechanism under section 102(c) shall be inoperative until reauthorized by subsequent legislation.

(f) PRESERVATION OF EXISTING COVERAGE.—Nothing in this Act may be construed to require any individual to terminate, modify, or replace any existing health insurance coverage, or to require any employer to terminate, modify, or replace any employer-sponsored health insurance plan. Continued enrollment in any existing plan is a protected election under this Act.

TITLE I — ESTABLISHMENT OF PUBLIC OPTION

SEC. 101. AMERICAN PUBLIC HEALTH INSURANCE OPTION.

(a) ESTABLISHMENT.—The Secretary of Health and Human Services (in this Act referred to as the "Secretary") shall establish, not later than the date specified in section 501, a public health insurance option (in this Act referred to as the "Public Option") to be offered through the Health Insurance Marketplace established under title I of the Patient Protection and Affordable Care Act.

(b) BENEFITS FLOOR.—Plans offered under the Public Option shall provide, at a minimum—

(1) the essential health benefits described in section 1302 of the Patient Protection and Affordable Care Act (42 U.S.C. § 18022);

(2) coverage with no annual or lifetime dollar limits on the dollar value of essential health benefits;

(3) out-of-pocket maximum limits aligned with the limits applicable to qualified health plans under section 1302(c) of that Act;

(4) mental health and substance use disorder benefits in compliance with the Paul Wellstone and Pete Domenici Mental Health Parity and Addiction Equity Act of 2008; and

(5) prescription drug benefits in compliance with section 1302(b)(1)(F) of the Patient Protection and Affordable Care Act.

(c) GUARANTEE OF EXISTING COVERAGE.—Nothing in this Act—

(1) requires any individual to enroll in the Public Option or to terminate any existing health insurance coverage;

(2) requires any employer to terminate, modify, or replace any employer-sponsored health insurance plan;

(3) authorizes the Secretary to compel any individual or employer to select Public Option coverage; or

(4) modifies the right of any qualified health plan to continue offering coverage on the Marketplace.

(d) PLAN TIERS.—The Public Option shall offer plans at the bronze, silver, gold, and platinum actuarial-value tiers as defined under section 1302(d) of the Patient Protection and Affordable Care Act. The silver-tier Public Option plan shall serve as the benchmark plan for purposes of section 36B of the Internal Revenue Code of 1986 in any rating area in which it is offered, except as the Secretary determines necessary to preserve premium tax credit calculations under existing law.

SEC. 102. ELIGIBILITY AND PHASED EXPANSION.

(a) INITIAL ELIGIBILITY.—Beginning on the effective date specified in section 501, the Public Option established under section 101 shall be available to—

(1) any individual residing in a Primary Care Health Professional Shortage Area as designated by the Secretary under section 332 of the Public Health Service Act (42 U.S.C. § 254e);

(2) any individual residing in a county in which fewer than [TBD] insurance carriers offer Marketplace coverage during the most recent open enrollment period;

(3) any employee of an employer with fewer than [TBD] employees, and any dependent of such employee; and

(4) any individual otherwise eligible to enroll in coverage through the Marketplace who resides in a State that has elected, by enactment of State law, to extend Public Option eligibility to all residents of the State.

(b) PERFORMANCE METRICS — DATA INPUTS.—The Administrator of the Centers for Medicare and Medicaid Services shall publish annually, beginning one year after the effective date specified in section 501—

(1) the average individual-market premium for the second-lowest-cost silver plan in each county for which the Public Option is available under subsection (a), as drawn from the CMS Annual Premium Report;

(2) the average individual-market premium for the second-lowest-cost silver plan in each county for which the Public Option is not available, as drawn from the CMS Annual Premium Report;

(3) Public Option enrollment counts by county and by employer-size cohort, as drawn from the CMS Effectuated Enrollment Snapshot; and

(4) the change in the metrics described in paragraphs (1) and (2) from the preceding year, expressed as a percentage, after risk and demographic adjustment using the methodology established under section 1343 of the Patient Protection and Affordable Care Act (42 U.S.C. § 18063). The data published under this subsection are the operative inputs to the expansion formula in subsection (c). The Administrator shall publish such data not later than 90 days following the close of each annual open enrollment period.

(c) AUTOMATIC EXPANSION — SELF-EXECUTING FORMULA.—If, in any year beginning two years after the effective date specified in section 501, the data published under subsection (b) demonstrate that the average premium reduction in counties where the Public Option is available, compared to counties where it is not available, equals or exceeds [TBD] percent after risk and demographic adjustment, then the Public Option shall become available, in the next annual open enrollment period—

(1) to any individual or employer in any county in which the second-lowest-cost silver plan premium exceeds the national median by [TBD] percent or more; and

(2) to any employee of an employer with fewer than [TBD] employees, and any dependent of such employee, irrespective of geographic location. The expansion under this subsection is automatic upon publication of the data described in subsection (b). The Secretary shall have no authority to delay, modify, condition, or decline the expansion. The Secretary's role under this subsection is limited to ministerial application of the formula based on the data published under subsection (b).

(d) CONGRESSIONAL REVIEW DEFAULT.—An expansion under subsection (c) shall take effect on the date specified in that subsection unless, before that date, a joint resolution of disapproval is enacted under chapter 8 of title 5, United States Code. No such joint resolution shall affect any enrollment that has already taken effect under this Act.

(e) PERFORMANCE REVIEW REPORT.—Not later than two years after the effective date specified in section 501, and annually thereafter, the Secretary shall submit to the Committee on Finance and the Committee on Health, Education, Labor, and Pensions of the Senate, and the Committee on Energy and Commerce and the Committee on Ways and Means of the House of Representatives, a report containing—

(1) the data required under subsection (b);

(2) an analysis of Public Option premium adequacy and self-sustaining financing performance under section 103;

(3) an assessment of effects on overall private market premiums, plan availability, and consumer choice;

(4) an assessment of provider participation rates by geographic region; and

(5) any recommendations for further congressional action.

(f) NO SUBJECTIVE SUITABILITY REVIEW.—Eligibility under subsections (a) and (c) shall be determined by application of the objective criteria established in those subsections. No agency may impose an additional suitability test, character review, or discretionary denial criterion.

SEC. 103. FINANCING AND PREMIUM STRUCTURE.

(a) SELF-SUSTAINING FINANCING REQUIREMENT.—The Public Option shall be actuarially self-sustaining. Premiums collected under the Public Option, together with applicable premium tax credits paid under section 36B of the Internal Revenue Code of 1986 and any reinsurance payments made under section 401, shall be the sole sources of operating revenue for the Public Option following the conclusion of the start-up period described in subsection (b).

(b) START-UP REVOLVING LOAN.—The Secretary of the Treasury shall make available to the Public Option a revolving loan in such amounts as may be necessary, but not exceeding [TBD] dollars in the aggregate, to fund the operating costs of the Public Option during the start-up period. The start-up period shall conclude not later than five years after the effective date specified in section 501. The Public Option shall repay such loan from premium revenues, in installments and at an interest rate determined by the Secretary of the Treasury, not later than fifteen years after the effective date.

(c) PROVIDER REIMBURSEMENT — MEDICARE-RATE FLOOR.—Reimbursement rates paid by the Public Option to participating providers—

(1) shall not be less than the rates payable under part A or part B of title XVIII of the Social Security Act for the equivalent service, as applicable;

(2) may exceed the rates described in paragraph (1) where the Secretary determines, by published methodology, that higher rates are necessary to secure adequate provider participation in a defined geographic area or service category, including Primary Care Health Professional Shortage Areas, rural counties, and behavioral health services; and

(3) shall be set in accordance with the actuarial soundness requirement established under section 402.

(d) RATE-TRANSITION PROTECTION.—For the three-year period beginning on the effective date specified in section 501, the Secretary shall not establish Public Option reimbursement rates lower than 100 percent of the rates payable under part A or part B of title XVIII of the Social Security Act, as applicable, for any equivalent service in any geographic area. This subsection establishes a transition period intended to mitigate regulatory takings exposure under Penn Central Transportation Co. v. New York City, 438 U.S. 104 (1978), and Verizon Communications Inc. v. FCC, 535 U.S. 467 (2002).

(e) PREMIUM TAX CREDIT COORDINATION.—Public Option enrollment is creditable enrollment for purposes of section 36B of the Internal Revenue Code of 1986 on equal footing with qualified health plan enrollment. The Secretary of the Treasury shall, in consultation with the Secretary, issue such regulations as are necessary to coordinate the application of section 36B with this Act.

(f) NO COST TO TAXPAYERS BEYOND PREMIUM SUBSIDIES.—After the start-up period described in subsection (b), the Public Option shall not require direct appropriations beyond premium tax credit payments under section 36B of the Internal Revenue Code of 1986 and reinsurance payments under section 401.

TITLE II — MARKET REGULATION AND CONSUMER PROTECTION

SEC. 201. INSURER PARTICIPATION FRAMEWORK.

(a) VOLUNTARY PARTICIPATION.—Private health insurance issuers may voluntarily participate in Public Option markets under standardized benefit, transparency, and consumer-protection requirements established by the Secretary by regulation. Participation under this section does not convert a private issuer into a Federal program.

(b) STANDARDIZED BENEFIT PACKAGES.—Plans offered by participating private issuers in Public Option markets shall provide, at a minimum, the benefits floor established under section 101(b).

(c) ANTI-CHERRY-PICKING.—A participating private issuer may not selectively offer coverage in only the most favorable rating areas of a State. The Secretary shall, by regulation, define equivalent-market participation requirements that prevent geographic or demographic cherry-picking, consistent with the State-flexibility principles of the Patient Protection and Affordable Care Act.

(d) NETWORK ADEQUACY.—Participating issuers shall meet network adequacy standards established by the Secretary, including standards for geographic accessibility, time-and-distance to participating providers, appointment wait times for primary care and behavioral health, and transparent network listing.

(e) TRANSPARENCY.—Participating issuers shall publish premium rates, cost-sharing structures, formulary information, and network listings in a standardized format established by the Secretary.

SEC. 202. ANTI-DISCRIMINATION AND COVERAGE STANDARDS.

(a) IN GENERAL.—No issuer offering coverage under or in coordination with the Public Option may discriminate against any individual on the basis of health status, prior medical conditions, claims history, age (except as permitted under section 2701 of the Public Health Service Act), gender, race, ethnicity, national origin, sexual orientation, gender identity, or disability.

(b) MENTAL HEALTH AND SUBSTANCE USE PARITY.—All coverage offered under this Act shall comply with the Paul Wellstone and Pete Domenici Mental Health Parity and Addiction Equity Act of 2008. The Secretary shall, by regulation, establish enhanced parity standards specific to Public Option coverage that exceed the floor established by that Act, including standards for behavioral health network adequacy and prior authorization practices.

(c) ANNUAL AND LIFETIME LIMITS.—No coverage offered under this Act shall impose any annual or lifetime dollar limit on the dollar value of essential health benefits.

(d) OUT-OF-POCKET MAXIMUM.—Out-of-pocket maximum limits applicable to coverage under this Act shall not exceed the limits established under section 1302(c) of the Patient Protection and Affordable Care Act, and the Secretary may establish lower limits for the Public Option by regulation where actuarially supportable.

(e) PREEXISTING CONDITION PROHIBITION.—No coverage offered under this Act may exclude any individual from coverage, or exclude any benefit from coverage, on the basis of a preexisting condition.

SEC. 203. MARKETPLACE INTEGRATION AND PLAN COMPARISON.

(a) FEDERAL MARKETPLACE INTEGRATION.—The Secretary, in coordination with the Secretary of the Treasury, shall integrate Public Option enrollment with the Federal Marketplace established under section 1321 of the Patient Protection and Affordable Care Act. The Public Option shall appear in plan-comparison displays on Healthcare.gov on equal footing with qualified health plans.

(b) STATE-BASED MARKETPLACE COORDINATION.—States operating State-based Marketplaces under section 1311 of the Patient Protection and Affordable Care Act may elect to incorporate Public Option enrollment in their State Marketplace. The Secretary shall, by regulation, establish standards for State Marketplace integration that preserve State flexibility consistent with the Public Option's national availability.

(c) PLAN-COMPARISON TRANSPARENCY.—The Secretary shall require standardized plan-comparison displays for the Federal Marketplace and any State Marketplace that incorporates the Public Option, including standardized presentation of premium, deductible, network breadth, prescription drug formulary, and quality metrics.

(d) SINGLE-APPLICATION ENROLLMENT.—An individual or employer applying for coverage through the Marketplace shall be permitted to apply once for eligibility determination across the Public Option and all qualified health plans available in the rating area.

(e) NO PREFERENTIAL DISPLAY.—The Secretary may not present the Public Option to consumers in any preferential or default-selected manner that departs from the standardized presentation required under subsection (c).

SEC. 204. CONSUMER PROTECTION ENFORCEMENT.

(a) CIVIL ENFORCEMENT BY SECRETARY.—The Secretary may bring a civil action in the United States district court for any judicial district to enforce compliance with this title. The Secretary may seek injunctive relief, restitution, civil

monetary penalties, and any other relief appropriate to remedy a violation.

(b) PRIVATE RIGHT OF ACTION.—An individual aggrieved by a coverage denial, discriminatory practice, or violation of section 202 in connection with Public Option coverage may bring a civil action in the United States district court for the district in which the individual resides. Available relief includes coverage of the denied benefit, compensatory damages, reasonable attorney's fees, and any other relief the court determines appropriate.

(c) STATE ENFORCEMENT PRESERVED.—State attorneys general may bring parallel civil actions to enforce the consumer protection provisions of this title on behalf of residents of the State, and may coordinate with the Secretary in such actions.

(d) CIVIL MONETARY PENALTIES.—Violations of this title are subject to civil monetary penalties not to exceed $[TBD] per violation, with each day of a continuing violation constituting a separate violation. Penalties collected shall be deposited in the reinsurance corridor established under section 401.

(e) ANTI-RETALIATION.—No issuer may retaliate against any individual for filing a complaint, participating in an enforcement action, or asserting rights under this title.

TITLE III — COORDINATION, TRANSITION, AND PROVIDER PROVISIONS

SEC. 301. ERISA SECTION 502 COORDINATION AND ESI MIGRATION.

(a) PRE-MIGRATION ESI CLAIMS.—With respect to any claim arising out of employer-sponsored health insurance coverage in effect before an individual's enrollment in the Public Option, the exclusive-remedy framework of section 502 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. § 1132) shall continue to apply.

(b) POST-MIGRATION POHE CLAIMS.—With respect to any claim arising out of Public Option coverage, the enforcement framework of section 204 of this Act shall apply. Section 502 of the Employee Retirement Income Security Act of 1974 shall not apply to such claims.

(c) ANTI-RETROACTIVITY RULE.—Consistent with Landgraf v. USI Film Products, 511 U.S. 244 (1994), this section does not apply retroactively to claims accrued before the effective date specified in section 501. A claim accrues, for purposes of this subsection, on the date the underlying medical service was rendered.

(d) ERISA SECTION 514 PRESERVATION.—This Act does not preempt State law under section 514 of the Employee Retirement Income Security Act of 1974 (29 U.S.C. § 1144) and does not modify the application of that section to State law. (See section 3(d).)

(e) MIGRATION RIGHTS.—An employee transitioning from employer-sponsored coverage to Public Option coverage shall not be subject to any waiting period, preexisting condition exclusion, or coverage gap arising from such transition.

SEC. 302. PROVIDER RATE TRANSITION AND PARTICIPATION INCENTIVES.

(a) RATE-TRANSITION PROTECTION PERIOD.—The three-year transition-rate protection period established under section 103(d) shall apply to all participating providers under the Public Option.

(b) RURAL AND UNDERSERVED MARKET INCENTIVES.—The Secretary shall establish, by regulation, additional reimbursement adjustments above the Medicare-rate floor for providers in—

(1) Primary Care Health Professional Shortage Areas;

(2) counties with fewer than [TBD] participating insurance carriers; and

(3) behavioral health and primary care service categories.

(c) PARTICIPATION-INCENTIVE LOAN REPAYMENT.—The Secretary, in coordination with the Health Resources and Services Administration, shall establish a loan-repayment program for primary care physicians, behavioral health professionals, and nurse practitioners who provide services to Public Option enrollees in shortage areas for a period of not less than four years.

(d) NETWORK STABILITY.—The Secretary shall, by regulation, establish standards for network stability that prevent abrupt provider terminations that would disrupt continuity of care for Public Option enrollees.

SEC. 303. HEALTHCARE.GOV AND ACA INTEGRATION.

(a) IT INTEGRATION REQUIREMENT.—The Secretary shall integrate Public Option enrollment with the existing Healthcare.gov infrastructure and any successor Federal Marketplace IT system. Public Option enrollment shall not require a duplicative eligibility determination system.

(b) STATE-BASED MARKETPLACE INTEGRATION.—States operating State-based Marketplaces shall be eligible for Federal IT integration grants to support Public Option integration. The Secretary shall publish technical integration standards consistent with existing Federal Marketplace standards.

(c) PREMIUM TAX CREDIT COORDINATION.—The Secretary shall coordinate with the Secretary of the Treasury to ensure that section 36B of the Internal Revenue Code of 1986 applies to Public Option enrollment on equal footing with qualified health plan enrollment, and that section 36B premium tax credit calculations remain operative under all Public Option benchmark-plan determinations under section 101(d).

(d) IT INTEGRATION TIMELINE.—The Secretary shall complete IT integration not later than the date specified in section 501. The Secretary shall submit quarterly status reports to Congress until integration is complete.

TITLE IV — RISK MITIGATION AND SYSTEM STABILITY

SEC. 401. REINSURANCE CORRIDOR.

(a) ESTABLISHMENT.—The Secretary shall establish a reinsurance corridor for the Public Option to mitigate adverse-selection risk during the initial five years of operation and to stabilize premium adequacy.

(b) FUNDING STRUCTURE.—The reinsurance corridor shall be funded by—

(1) the start-up revolving loan established under section 103(b);

(2) civil monetary penalties collected under section 204(d); and

(3) such other amounts as may be appropriated for that purpose.

(c) RISK-CORRIDOR CALCULATION METHODOLOGY.—The Secretary shall, by regulation, establish a methodology for calculating reinsurance payments based on actual claims experience relative to actuarial projections. Reinsurance payments shall be triggered when claims experience exceeds [TBD] percent of projected actuarial value for any rating area.

(d) ADVERSE-SELECTION MITIGATION.—The Secretary, in coordination with the Administrator of the Centers for Medicare and Medicaid Services, shall monitor enrollment patterns for adverse-selection indicators and may adjust the reinsurance corridor calibration on an annual basis based on actual experience.

(e) SUNSET.—The reinsurance corridor established under this section shall sunset on the date that is ten years after the effective date specified in section 501, unless reauthorized by Congress.

SEC. 402. ACTUARIAL SOUNDNESS REQUIREMENT.

(a) ANNUAL CMS ACTUARIAL CERTIFICATION.—The Chief Actuary of the Centers for Medicare and Medicaid Services shall certify, on an annual basis, whether the Public Option is meeting the actuarial soundness requirements established under this Act, including the self-sustaining financing requirement under section 103(a).

(b) PREMIUM ADJUSTMENT AUTHORITY.—The Secretary may adjust Public Option premium rates on an annual basis to maintain actuarial soundness, in accordance with a published methodology that establishes the basis for each adjustment.

(c) CONTINGENCY RESERVE.—The Public Option shall maintain a contingency reserve in such amounts as the Chief Actuary determines necessary to ensure benefit payment continuity in the event of unexpected claims experience.

(d) NON-ATTAINMENT TRIGGER.—If the Chief Actuary certifies, in any year, that the Public Option has not met the actuarial soundness requirements of this Act, the Secretary shall submit to Congress a report identifying the cause of non-attainment and proposing corrective measures.

(e) REAUTHORIZATION.—If non-attainment under subsection (d) persists for three consecutive years, the Public Option's automatic expansion authority under section 102(c) shall be suspended until Congress reauthorizes the Public Option by enactment of subsequent legislation.

TITLE V — IMPLEMENTATION AND OVERSIGHT

SEC. 501. IMPLEMENTATION TIMELINE.

(a) PUBLIC OPTION ESTABLISHMENT.—The Public Option shall be established, and Public Option plans shall be available for enrollment, not later than [TBD] months after the date of enactment of this Act.

(b) IT SYSTEMS INTEGRATION.—Healthcare.gov and Federal Marketplace IT integration shall be complete not later than [TBD] months after the date of enactment.

(c) PROVIDER NETWORK ONBOARDING.—Provider network agreements sufficient to meet network adequacy standards under section 201(d) shall be in place not later than [TBD] months after the date of enactment.

(d) INITIAL OPEN ENROLLMENT.—The first Public Option open enrollment period shall coincide with the first Federal Marketplace open enrollment period beginning not later than [TBD] months after the date of enactment.

(e) AUTOMATIC EXPANSION COMMENCEMENT.—The earliest possible automatic expansion under section 102(c) shall be the open enrollment period beginning two years after the effective date established under subsections (a) through (d).

SEC. 502. INTERAGENCY COORDINATION.

(a) HHS AND CMS LEAD AGENCY.—The Secretary, acting through the Administrator of the Centers for Medicare and Medicaid Services, shall serve as the lead agency for the Public Option.

(b) TREASURY COORDINATION.—The Secretary of the Treasury shall coordinate with the Secretary on—

(1) administration of the start-up revolving loan under section 103(b);

(2) coordination of premium tax credits under section 36B of the Internal Revenue Code of 1986; and

(3) administration of any other Treasury function necessary to implement this Act.

(c) DEPARTMENT OF LABOR COORDINATION.—The Secretary of Labor shall coordinate with the Secretary on—

(1) ERISA section 502 coordination under section 301; and

(2) coordination of Public Option enrollment with employer-sponsored coverage transitions.

(d) OPM CONSULTATION.—The Director of the Office of Personnel Management shall make available to the Secretary lessons learned from the Federal Employees Health Benefits Program for purposes of Public Option program design and provider participation.

(e) GAO COORDINATION.—The Comptroller General of the United States shall have access to all data and records of the Public Option necessary to perform audits, evaluations, and reports requested by the relevant Committees of Congress.

SEC. 503. ANNUAL REPORTING.

(a) ANNUAL REPORT.—The Secretary shall submit to Congress an annual report on the Public Option, including—

(1) Public Option enrollment counts by State, by county, and by employer-size cohort;

(2) Public Option premium rates and rate changes year-over-year;

(3) effects of the Public Option on overall private market premiums, plan availability, and consumer choice;

(4) provider participation rates by geographic region;

(5) actuarial soundness certification under section 402; and

(6) any recommendations for further congressional action.

(b) PERFORMANCE METRICS.—The annual report shall incorporate the data required under section 102(b) and shall make those data available in a publicly accessible format.

(c) PUBLIC AVAILABILITY.—The annual report shall be transmitted to Congress and posted publicly on a website maintained by the Department of Health and Human Services not later than 30 days after submission to Congress.

(d) CBO ACTUARIAL REVIEW.—The Director of the Congressional Budget Office shall conduct an independent actuarial review of the Public Option not less frequently than every three years and shall submit such review to Congress.

(e) PROGRAM CONTINUITY ASSESSMENT.—The annual report shall include an assessment of program continuity, including any operational risks to sustained Public Option availability for current enrollees.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Spending Power and the Necessary and Proper Clause. A public plan offered alongside private coverage, with no requirement to enroll, stands on firmer ground than the individual mandate considered in NFIB v. Sebelius (2012) [Source 251]; the exchange structure was sustained in King v. Burwell (2015). Not a reconciliation bill; 60 votes required.
- **Sec. 102 · Expansion formula.** A self-executing formula written by Congress, with published CMS data inputs and mandatory language, raises a nondelegation question, not a major-questions one: the major-questions cases concern agency claims of power (West Virginia v. EPA, 2022; Biden v. Nebraska, 2023), and the

intelligible-principle test was reaffirmed in FCC v. Consumers' Research (2025) [Sources 257–259]. Do not add language letting the Secretary "certify" or "determine" the trigger. Prepared fallback: (1) if 102(c) is read as a delegation, make each expansion effective on enactment of a joint resolution of approval under expedited procedure; (2) otherwise the program continues at its initial scope (Sec. 3(e)).

- **Sec. 102(d) · Disapproval.** The Congressional Review Act applies to agency rules, and an automatic expansion is not a rule; give 102(d) its own expedited joint-resolution procedure instead of the cross-reference to chapter 8 of title 5.
- **ERISA.** Section 514 preempts State law, not Federal law; the real coordination issue is section 502's exclusive remedies, which Sec. 301 assigns by when a claim arose (Landgraf v. USI Film Products, 1994) [Sources 255, 256]. Review the displacement language in 301(b) closely.
- **Provider rates.** Rate-setting is reviewed for confiscation under Penn Central and Verizon Communications v. FCC (2002). The Medicare-rate floor and three-year transition (Secs. 103(c)–(d), 302) address this; CMS actuarial review is required.
- **Statutory precision.** After Loper Bright, courts will not defer to the agency's reading of ambiguous text; bound every grant of rulemaking authority in the statute itself [Source 260].
- **Sec. 202 · Nondiscrimination.** Review the coverage of sexual orientation and gender identity against current case law under section 1557 of the ACA before introduction.
- **Financing.** The start-up loan (Sec. 103(b)) and reinsurance corridor (Sec. 401) need CMS Office of the Actuary modeling; CBO should score the corridor as stabilization rather than subsidy.
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the CMS Office of the Actuary, the Treasury Office of Tax Policy, the Department of Labor, and the Congressional Budget Office before introduction.

Bill 7 · DRDO Act

Digital Rights & Data Fiduciary Act of 2031 · B — Sectoral Legislation · Year 3–5

· I–IV · Citizen data ownership; stricter advertising — P36, P42

· V · Digital minor protection standards — P55

· VI · Modernized CIPA & education network security — P59

· VII · Underbanked access pilot — P108

Depends on: FTC enforcement capacity. *Attack:* Innovation-killing; nanny state. *Fallback:* Portability, consent, and Title V pass alone.

What this bill does. Makes companies data fiduciaries with duties of care, loyalty, and confidentiality; gives users portability of the data they provide or generate and meaningful, withdrawable consent; requires compensation for specified commercial uses of personal data at rates set by rulemaking; sets age-tiered protections for minors with privacy-preserving age verification; updates school and library network safety and cybersecurity; and pilots underbanked account access. Enforced by the FTC, state attorneys general, and a private right of action. Does not: reach platforms' curated feeds and recommendations, which are excluded from portability.

FULL LEGISLATIVE TEXT

122ND CONGRESS
1ST SESSION
S. ____

To establish rights of data portability and meaningful consent for consumers; to provide that covered entities hold personal data as fiduciaries; to prohibit unauthorized commercial collection and use of personal data; to establish a framework for data compensation structured as regulatory pricing; to protect minor users from algorithmic harm through default-rule architecture; to bind in operative bill text the constitutional construction and severability of this Act; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Digital Rights and Data Fiduciary Act of 2031" or the "DRDO Act of 2031".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) Americans generate enormous quantities of personal data through ordinary digital activity. Platforms monetize that data with minimal legal obligation to the individuals who created it.

(2) Existing Federal law provides no general right to data portability, no uniform meaningful consent standard, no civil remedy for mass unauthorized data harvesting, and no comprehensive framework for the commercial use of personal data.

(3) The European Union General Data Protection Regulation (2018), the United Kingdom Age Appropriate Design Code (2021), and the American Privacy Rights Act (H.R. 8818, 118th Congress, 2024) together establish the international and domestic legislative precedent for data fiduciary frameworks.

(4) Peer-reviewed research establishes a causal relationship between algorithmic social media engagement optimization and documented harms to adolescent mental health, including findings published by the American Psychological Association and the Office of the Surgeon General of the United States.

(5) The Supreme Court has repeatedly affirmed that personal data regulation is permissible when narrowly drawn and grounded in generally applicable fiduciary obligations rather than content- or speaker-specific restrictions, consistent with Sorrell v. IMS Health, Inc., 564 U.S. 552 (2011).

(6) The data-fiduciary characterization — under which covered entities hold personal data as fiduciaries for the benefit of the individuals from whom the data was collected — establishes a generally applicable legal duty rather than a content- or speaker-specific restriction, and is the architecture endorsed in scholarly literature as the durable

First Amendment framework for personal-data regulation.

(7) Default rules that preserve user choice and require affirmative opt-in for algorithmic personalization protect minor users from documented harms while raising materially fewer First Amendment questions than categorical prohibitions on protected expression.

(8) Data portability, when limited to user-provided and observed data and excluding platform inferences and algorithmic outputs, regulates the transmission of the user's own data rather than compelling the platform's expressive content, and is therefore analyzed as conduct regulation rather than compelled commercial speech.

(9) Compensation frameworks for the commercial use of personal data beyond a platform's core service operate as regulatory pricing analogous to the Federal Communications Commission rate regulation framework and to compulsory copyright licensing under sections 111 and 115 of title 17, United States Code, not as Takings of platform property, because platforms hold personal data as fiduciaries and not as property owners.

(10) Coordination with the European Union General Data Protection Regulation reduces compliance burden on covered entities operating in both jurisdictions and leverages existing global compliance infrastructure.

(b) PURPOSES.—The purposes of this Act are—

(1) to establish rights of data portability, meaningful consent, and protection from unauthorized commercial collection and use of personal data;

(2) to provide that covered entities hold personal data as fiduciaries for the benefit of the individuals from whom the data was collected, consistent with generally applicable fiduciary obligations;

(3) to establish a framework for compensation where personal data is used for commercial purposes beyond a platform's core service, structured as regulatory pricing rather than property regulation;

(4) to protect minor users from algorithmic engagement optimization and behavioral advertising through default-rule architecture that preserves user choice while requiring affirmative opt-in for algorithmic personalization;

(5) to establish enforcement authority in the Federal Trade Commission with express statutory civil penalty authority following AMG Capital Management, LLC v. FTC, 593 U.S. 67 (2021);

(6) to align this Act with the European Union General Data Protection Regulation and other major international data protection frameworks; and

(7) to provide severability such that Titles I through IV survive independently if Title V is held invalid in whole or in part.

SEC. 3. STATUTORY FOUNDATION AND CONSTRUCTION.

(a) FIRST AMENDMENT FRAMEWORK.—This Act regulates the fiduciary obligations of covered entities with respect to personal data and the conduct of personal data collection, transmission, and use. This Act does not regulate the content of expression, the identity of the speaker, or the viewpoint expressed. The fiduciary duties established under this Act are generally applicable obligations grounded in the relationship between a covered entity and the individuals from whom personal data is collected, consistent with the framework articulated in Sorrell v. IMS Health, Inc., 564 U.S. 552 (2011).

(b) DISTINCTION FROM EDITORIAL EXPRESSION.—The provisions of this Act do not regulate the editorial expression of any covered entity. Moody v. NetChoice, LLC, 603 U.S. 707 (2024), held that platform content curation may constitute First Amendment-protected editorial expression. This Act does not require, prohibit, or condition any editorial judgment by any covered entity. The default-rule architecture of section 504 preserves user choice and requires affirmative user opt-in for algorithmic personalization, which is conduct regulation analogous to default rules rather than restriction on protected editorial expression.

(c) DATA PORTABILITY AS CONDUCT REGULATION.—The data portability provisions of Title I regulate the transmission of user-provided and observed data — data that the user has supplied to the covered entity or that the covered entity has observed in connection with the user's activity. Title I does not extend to platform inferences, algorithmic outputs, or other expressive content of the covered entity. Title I is analyzed as conduct regulation rather than compelled commercial speech, and where any disclosure is required, that disclosure is of purely factual and uncontroversial information consistent with Zauderer v. Office of Disciplinary Counsel, 471 U.S. 626 (1985), as narrowed by NIFLA v. Becerra, 585 U.S. 755 (2018).

(d) DATA FIDUCIARY CHARACTERIZATION.—Covered entities hold personal data as fiduciaries for the benefit of the individuals from whom the data was collected. Collection does not confer ownership, possessory interest, or property interest upon the covered entity. The fiduciary characterization is a condition of operating in the regulated personal data

industry, consistent with the professional-regulation tradition that has not required Takings analysis under Ruckelshaus v. Monsanto Co., 467 U.S. 986 (1984). The compensation framework of Title IV operates as regulatory pricing analogous to Federal Communications Commission rate regulation and compulsory copyright licensing, not as a property taking.

(e) STATUTORY PRECISION REQUIREMENT.—Following Loper Bright Enterprises v. Raimondo, 603 U.S. 369 (2024), provisions of this Act shall be construed according to their statutory text. Where this Act delegates rulemaking authority to the Federal Trade Commission or any other agency, that authority is bounded by the express terms of the delegation. Ambiguities shall be resolved by reference to statutory text, structure, and purpose, and no agency may expand its authority under this Act beyond what is expressly conferred.

(f) FTC EXPRESS CIVIL PENALTY AUTHORITY.—Following AMG Capital Management, LLC v. FTC, 593 U.S. 67 (2021), the Federal Trade Commission requires express statutory authority for civil penalty assessment. Section 301 expressly vests such authority in the Commission for violations of this Act, and the Commission shall not be required to obtain such authority by separate statutory action.

(g) SEVERABILITY.—If any provision of this Act, or the application of any provision to any person or circumstance, is held to be invalid, the remaining provisions of this Act and the application of those provisions to other persons or circumstances shall not be affected. In particular—

(1) if any provision of Title V (Digital Minor Protection Standards) is held invalid, Titles I through IV shall remain in full force and effect as an independent regulatory scheme;

(2) if any provision of Title IV (Compensation Framework) is held invalid, Titles I, II, III, and V shall remain in full force and effect;

(3) if any provision of Title I (Data Portability) is held invalid, Titles II through V shall remain in full force and effect; and

(4) if any specific consent mechanism prescribed under Title II is held invalid, the meaningful-consent standard established under Title II shall remain in force, and the Federal Trade Commission may, by rulemaking, establish alternative compliant mechanisms.

(h) GDPR ALIGNMENT.—This Act is intended to align with the European Union General Data Protection Regulation to the extent consistent with United States constitutional and statutory law. Where definitions and operative standards under this Act are susceptible of multiple constructions, the construction that aligns with the General Data Protection Regulation is preferred, provided such construction is consistent with this Act's text and purpose.

SEC. 4. DEFINITIONS. In this Act:

(a) ALGORITHMIC FEED.—The term "algorithmic feed" means a presentation of content to a user in an order determined in whole or in part by automated systems based on the user's predicted engagement, behavior, interests, or attributes, as distinct from chronological, reverse-chronological, or user-curated presentation orders.

(b) BEHAVIORAL ADVERTISING.—The term "behavioral advertising" means the delivery of advertising to a user based on data collected from the user's online behavior, including browsing history, application usage, location data, search history, and inferred attributes derived from such data. The term does not include contextual advertising based on the content the user is viewing at the time the advertisement is delivered.

(c) COVERED ENTITY.—The term "covered entity" means any person that—

(1) collects, maintains, or processes personal data of more than [TBD] individuals in any 12-month period; or

(2) derives more than 50 percent of its revenue from the sale or commercial use of personal data. The term excludes any sole proprietor, any nonprofit organization with annual revenue under $[TBD], and any entity whose annual revenue is less than $25,000,000.

(d) DARK PATTERNS.—The term "dark patterns" means user interface designs that have the substantial effect of subverting or impairing user autonomy, decision-making, or choice, including but not limited to—

(1) pre-checked consent boxes;

(2) consent flows that require affirmative action to decline but passive action to accept;

(3) burying material consent provisions in lengthy terms of service;

(4) repeated re-prompting after a user has declined consent; and

(5) interface designs that obscure or de-emphasize the option to decline.

(e) DATA FIDUCIARY.—The term "data fiduciary" means a covered entity that, by collecting or maintaining personal data, holds that data subject to the fiduciary duties established under section 5 for the benefit of the individuals from whom the data was collected.

(f) INFERRED DATA.—The term "inferred data" means data generated by a covered entity through analysis of user-provided data or observed data, including predicted attributes, scoring outputs, profile classifications, and algorithmic decisions about the user.

(g) MEANINGFUL CONSENT.—The term "meaningful consent" means consent that is specific to a particular use, informed by clear and prominent disclosure of the use, freely given without coercion or dark patterns, and revocable at any time without penalty or impairment of the user's ability to use the covered entity's core service.

(h) MINOR.—The term "minor" means an individual under 18 years of age. The term is further subdivided by section 502 into three age tiers for purposes of Title V.

(i) OBSERVED DATA.—The term "observed data" means data collected by a covered entity through observation of a user's interaction with the covered entity's services, including but not limited to clickstream data, location data collected during use of the service, device identifiers, and usage telemetry. The term does not include inferred data.

(j) PERSONAL DATA.—The term "personal data" means any information that, alone or in combination with other information, identifies, relates to, describes, is reasonably capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular individual.

(k) USER-PROVIDED DATA.—The term "user-provided data" means data affirmatively supplied by a user to a covered entity, including information entered into account profiles, content uploaded or posted by the user, and information submitted in forms or transactions. The term does not include observed data or inferred data.

(l) FTC.—The term "FTC" or "Commission" means the Federal Trade Commission.

SEC. 5. DATA FIDUCIARY STANDARD.

(a) ESTABLISHMENT OF FIDUCIARY RELATIONSHIP.—A covered entity that collects or holds personal data of an individual holds that data as a fiduciary for the benefit of that individual.

(b) DUTY OF CARE.—A data fiduciary shall exercise reasonable care to protect personal data from unauthorized access, disclosure, alteration, or misuse, including by—

(1) implementing reasonable technical and organizational security measures;

(2) limiting access to personal data to personnel with a legitimate operational need;

(3) maintaining current security practices in accordance with evolving industry standards; and

(4) timely notification of affected individuals and the Commission in the event of a security breach affecting personal data.

(c) DUTY OF LOYALTY.—A data fiduciary shall use personal data only for purposes consistent with the meaningful consent provided under Title II, and shall not use personal data in any manner that—

(1) is materially adverse to the interests of the individual from whom the data was collected; or

(2) advances the commercial interests of the covered entity in ways the individual has not consented to.

(d) DUTY OF CONFIDENTIALITY.—A data fiduciary shall not disclose personal data to any third party without the affirmative consent of the individual from whom the data was collected, except as required by law, in response to lawful process, or as expressly permitted by this Act.

(e) NO PROPERTY OR POSSESSORY INTEREST.—Collection or maintenance of personal data does not confer ownership, possessory interest, or property interest upon the covered entity. Cross-reference: section 3(d) constitutional foundation.

(f) DURATION OF FIDUCIARY DUTIES.—The fiduciary duties established under this section attach upon collection of personal data and continue until the data is deleted in accordance with the user's request, the user's consent expires, or the data is no longer maintained by the covered entity, whichever occurs first.

TITLE I — DATA PORTABILITY

SEC. 101. DATA PORTABILITY RIGHT.

(a) RIGHT TO RECEIVE DATA.—An individual has the right to receive, upon request, all user-provided and observed data the covered entity maintains concerning the individual, in a structured, commonly used, and machine-readable format.

(b) RIGHT TO DIRECT TRANSFER.—An individual has the right to direct a covered entity to transmit user-provided and observed data concerning the individual to another covered entity, where technically feasible, in a structured, commonly used, and machine-readable format.

(c) RIGHT TO DELETION.—An individual has the right to request deletion of personal data the covered entity maintains concerning the individual, subject to such retention as is required by law or legitimate operational necessity that has been disclosed to the user.

(d) TIMELINE.—A covered entity shall fulfill any request under subsection (a), (b), or (c) within [TBD] days of receipt of a verified request.

SEC. 102. SCOPE OF PORTABILITY — USER-PROVIDED AND OBSERVED DATA ONLY.

(a) USER-PROVIDED DATA.—User-provided data, as defined in section 4(k), is included within the data portability right.

(b) OBSERVED DATA.—Observed data, as defined in section 4(i), is included within the data portability right.

(c) INFERRED DATA EXCLUDED.—Inferred data, as defined in section 4(f), is NOT included within the data portability right. Inferred data constitutes the analytical output of the covered entity and is the expressive content of the covered entity, which Title I does not compel covered entities to transmit. (See section 3(c).)

(d) PLATFORM EDITORIAL PRODUCTS EXCLUDED.—Curated feeds, recommendation rankings, algorithmic decisions, and other expressive products of the covered entity are NOT included within the data portability right. Cross-reference to section 3(b) Moody distinction.

(e) GDPR ALIGNMENT.—The scope of the data portability right under this Act is intended to align with Article 20 of the European Union General Data Protection Regulation, which similarly excludes inferred data from the right of portability.

SEC. 103. TECHNICAL STANDARDS.

(a) STANDARDIZED FORMATS.—The Commission shall, by rulemaking, establish technical standards for the format of data transmitted under this title, including formats based on JSON, CSV, or other open machine-readable formats.

(b) DIRECT-TRANSFER PROTOCOLS.—The Commission shall, by rulemaking, establish protocols for direct transmission of data from one covered entity to another under section 101(b).

(c) GDPR ALIGNMENT.—Technical standards established under this section shall, to the extent practicable, align with technical standards established under the European Union General Data Protection Regulation.

(d) IMPLEMENTATION TIMELINE.—Initial technical standards under this section shall be published not later than [TBD] months after the date of enactment of this Act, with covered entities required to comply not later than [TBD] months after publication.

TITLE II — CONSENT REQUIREMENTS

SEC. 201. MEANINGFUL CONSENT STANDARD.

(a) GENERAL REQUIREMENT.—No covered entity may collect personal data from any individual without the meaningful consent of that individual, as defined in section 4(g). Each element of meaningful consent is individually required.

(b) SPECIFIC.—Consent shall be specific to a particular use of the personal data. Blanket consent to all data uses, or consent to all uses described in a covered entity's privacy policy, does not satisfy this section.

(c) INFORMED.—Consent shall be informed by a clear, prominent, and plain-language disclosure of—

(1) the categories of personal data to be collected;

(2) the specific use of the personal data;

(3) any third party with whom the personal data will be shared;

(4) the duration of the consent; and

(5) the user's right to withdraw consent.

(d) FREELY GIVEN.—Consent shall be freely given without coercion, dark patterns, or impairment of the user's ability to use the covered entity's core service.

(e) REVOCABLE.—Consent shall be revocable at any time without penalty or impairment of the user's ability to use the covered entity's core service. Withdrawal mechanisms shall meet the standards established in section 203.

SEC. 202. PROHIBITED PRACTICES.

(a) PRE-CHECKED CONSENT BOXES.—A covered entity may not present consent options with any consent option pre-checked, pre-selected, or otherwise set as a default.

(b) BURIED CONSENT.—A covered entity may not bury material consent provisions in terms of service or other lengthy disclosure documents. Material consent provisions shall be presented separately and prominently.

(c) DARK PATTERNS.—A covered entity may not employ dark patterns, as defined in section 4(d), in any consent flow.

(d) BLANKET ACCESS CONDITIONING.—A covered entity may not condition access to its core service on consent to data uses unrelated to the core service. Tying consent to commercial uses of personal data beyond the core service to access of the core service violates this subsection.

(e) REPEATED RE-PROMPTING.—After a user has declined consent, a covered entity may not present additional prompts to the same user requesting the same consent for a period of not less than 12 months, except in response to an affirmative user request to reconsider.

SEC. 203. CONSENT WITHDRAWAL.

(a) WITHDRAWAL MECHANISM.—Each covered entity shall provide a mechanism for the user to withdraw any previously given consent. The withdrawal mechanism shall be at least as prominent and accessible as the mechanism by which the consent was originally provided.

(b) IMMEDIATE EFFECT.—Withdrawal of consent shall be effective immediately upon receipt by the covered entity. The covered entity shall cease the consented-to use of personal data not later than 30 days following withdrawal.

(c) NO DEGRADATION OF CORE SERVICE.—Withdrawal of consent for any data use beyond the core service shall not result in degradation of the user's continued access to the core service.

(d) CONFIRMATION RECEIPT.—The covered entity shall provide the user with a confirmation receipt acknowledging the withdrawal of consent and the date on which the covered entity ceased the consented-to use.

SEC. 204. SENSITIVE DATA.

(a) DEFINITION.—For purposes of this section, "sensitive data" means personal data concerning—

(1) health, medical, mental health, or genetic information;

(2) biometric identifiers, including fingerprints, facial geometry, and voiceprints;

(3) financial account information, transaction history, or creditworthiness;

(4) precise geolocation data;

(5) the personal data of a minor;

(6) racial or ethnic origin, religious beliefs, philosophical beliefs, sexual orientation, or gender identity; and

(7) such additional categories as the Commission may identify by rulemaking.

(b) HEIGHTENED CONSENT REQUIREMENTS.—Sensitive data may only be collected, used, or disclosed pursuant to affirmative opt-in consent that meets the requirements of section 201 and is specific to the sensitive data category.

(c) NO OPT-OUT STRUCTURE.—Sensitive data may not be collected, used, or disclosed pursuant to an opt-out consent structure under any circumstance.

(d) USE LIMITATIONS.—Sensitive data may not be used for behavioral advertising under any circumstance, regardless of consent.

TITLE III — ENFORCEMENT AND PENALTIES

SEC. 301. FTC ENFORCEMENT AUTHORITY.

(a) IN GENERAL.—Violations of this Act are unfair or deceptive acts or practices in violation of section 5 of the Federal Trade Commission Act (15 U.S.C. § 45). The Commission shall enforce this Act in accordance with the Federal Trade Commission Act and the express civil-penalty authority granted by this section.

(b) EXPRESS CIVIL PENALTY AUTHORITY.—Pursuant to section 3(f) and consistent with AMG Capital Management, LLC v. FTC, 593 U.S. 67 (2021), the Commission shall have express civil penalty authority for violations of this Act. The Commission may assess civil penalties without obtaining such authority by separate statutory action.

(c) CIVIL PENALTY STRUCTURE.—Civil penalties for violations of this Act are—

(1) for covered entities with annual revenue under $50,000,000: not more than $[TBD] per violation;

(2) for covered entities with annual revenue between $50,000,000 and $1,000,000,000: the greater of $[TBD] per violation or [TBD] percent of annual revenue; and

(3) for covered entities with annual revenue exceeding $1,000,000,000: the greater of $[TBD] per violation or [TBD] percent of annual global revenue.

(d) AGGRAVATED VIOLATIONS.—Civil penalties under subsection (c) shall be tripled for violations that—

(1) are willful;

(2) involve sensitive data as defined in section 204(a);

(3) involve the personal data of a minor; or

(4) are part of a systemic pattern or practice.

(e) RULEMAKING AUTHORITY.—The Commission shall have rulemaking authority under this Act, exercised in accordance with section 3(e) statutory precision requirements and section 553 of title 5, United States Code.

SEC. 302. CRIMINAL PENALTIES.

(a) IN GENERAL.—Any person who willfully violates this Act through the mass unauthorized collection, sale, or sharing of personal data of [TBD] or more individuals shall be guilty of a Federal offense.

(b) PENALTY STRUCTURE.—An offense under subsection (a) is punishable by—

(1) a fine of not more than $[TBD]; or

(2) imprisonment for not more than [TBD] years; or

(3) both fine and imprisonment.

(c) AGGRAVATED CRIMINAL VIOLATIONS.—Where a violation under subsection (a) involves sensitive data as defined in section 204(a) or the personal data of a minor, the maximum imprisonment under subsection (b)(2) is increased to [TBD] years.

(d) DOJ ENFORCEMENT.—Prosecutions under this section shall be conducted by the Department of Justice. The Commission shall refer to the Department of Justice violations of this Act that the Commission determines warrant criminal prosecution.

SEC. 303. PRIVATE RIGHT OF ACTION.

(a) PHASED IMPLEMENTATION — YEAR 1.—For violations occurring during the first year following the date on which the Commission's initial rulemaking under this Act becomes effective, an individual whose personal data has been used in violation of this Act may bring a civil action only for willful violations.

(b) FULL IMPLEMENTATION — YEAR 2 AND THEREAFTER.—Beginning two years after the date on which the Commission's initial rulemaking under this Act becomes effective, an individual whose personal data has been used in violation of this Act may bring a civil action for any violation of this Act.

(c) JURISDICTION.—Civil actions under this section may be brought in any United States district court of competent jurisdiction.

(d) STATUTORY DAMAGES.—An individual prevailing in a civil action under this section is entitled to—

(1) statutory damages of not less than $[TBD] per violation;

(2) actual damages, where greater than statutory damages;

(3) injunctive relief; and

(4) reasonable attorney's fees and costs.

(e) CLASS ACTIONS.—Nothing in this section limits the availability of class action procedures under rule 23 of the Federal Rules of Civil Procedure.

SEC. 304. STATE ATTORNEY GENERAL ENFORCEMENT.

(a) IN GENERAL.—The attorney general of any State may bring a civil action in any United States district court of competent jurisdiction on behalf of residents of that State to enforce this Act.

(b) FTC COORDINATION.—The Commission shall be notified of any State enforcement action brought under subsection (a) within 30 days of filing. The Commission may intervene in any such action upon notice to the parties.

(c) NO PREEMPTION OF STRONGER STATE LAW.—Nothing in this Act preempts or limits any State law that provides equal or greater protection to individuals with respect to personal data collection, use, disclosure, or compensation.

TITLE IV — DATA COMPENSATION FRAMEWORK

SEC. 401. COMPENSABLE DATA USES.

(a) IN GENERAL.—Where a covered entity uses personal data of a user for a commercial purpose beyond the covered entity's core service, the user is entitled to notice and, in qualifying circumstances, to compensation under this title.

(b) CORE SERVICE DEFINED.—For purposes of this title, "core service" means the primary functionality of the covered entity's product or service for which the user has provided meaningful consent under Title II. The Commission shall, by rulemaking, establish standards for distinguishing core service uses from compensable uses.

(c) COMPENSABLE COMMERCIAL USES.—Compensable commercial uses include—

(1) sale of personal data to a third party;

(2) licensing of personal data to a third party for commercial purposes;

(3) use of personal data in training or fine-tuning a generative artificial intelligence model offered as a separate commercial product; and

(4) any other use of personal data for commercial purposes beyond the core service, as the Commission may identify by rulemaking.

(d) EXCLUSIONS.—This title does not apply to—

(1) use of personal data for fraud prevention, security, or compliance with law;

(2) use of personal data for academic or scientific research that does not generate commercial revenue;

(3) use of aggregated or de-identified data that cannot reasonably be linked to an individual; or

(4) use of personal data for the covered entity's own internal analytics, where the analytics output is not separately commercialized.

SEC. 402. NOTICE REQUIREMENT.

(a) IN GENERAL.—Before any compensable commercial use of personal data under section 401, the covered entity shall provide to the user—

(1) a clear and prominent disclosure of the proposed use;

(2) the identity of any third party to whom the data will be sold, licensed, or transferred;

(3) the duration of the proposed use;

(4) the compensation, if any, the user is entitled to under section 403; and

(5) a meaningful opportunity to decline the proposed use without impairment of the user's continued access to the core service.

(b) FORMAT.—Notice under this section shall be provided in a standardized format established by the Commission by rulemaking. The format shall be designed for accessibility and clarity, and shall not be susceptible to dark patterns as defined in section 4(d).

(c) RECORD RETENTION.—The covered entity shall maintain records of notices provided and user responses for a period of not less than five years, available to the Commission upon request.

SEC. 403. COMPENSATION STRUCTURE.

(a) REGULATORY PRICING FRAMEWORK.—Compensation under this title operates as regulatory pricing established by the Commission, analogous to the Federal Communications Commission rate regulation framework and compulsory copyright licensing under sections 111 and 115 of title 17, United States Code. Compensation under this title is not a Taking of covered entity property within the meaning of the Fifth Amendment. Cross-reference to section 3(d) constitutional foundation.

(b) RULEMAKING AUTHORITY.—The Commission shall, by rulemaking, establish a compensation methodology that—

(1) reflects the commercial value of the personal data use;

(2) is administrable at scale across covered entities;

(3) avoids confiscatory rates within the meaning of Verizon Communications Inc. v. FCC, 535 U.S. 467 (2002), and Federal Power Commission v. Hope Natural Gas Co., 320 U.S. 591 (1944); and

(4) provides covered entities reasonable advance notice of rate changes.

(c) TIERED COMPENSATION.—The Commission may establish tiered compensation rates that account for—

(1) the category of personal data used;

(2) the duration of the use;

(3) the scale of users affected; and

(4) the commercial revenue derived from the use.

(d) AGGREGATION AND DISBURSEMENT.—The Commission shall establish a mechanism for aggregating compensation entitlements and disbursing payments to users. The mechanism may be administered by the Commission directly, by a private entity designated by the Commission, or through such other arrangement as the Commission determines administrable.

(e) DE MINIMIS THRESHOLD.—The Commission may establish a de minimis threshold below which individual compensation is held in trust by the covered entity until the user's accumulated entitlement exceeds the threshold, at which time disbursement is made.

SEC. 404. ENFORCEMENT AND PRIVATE RIGHT OF ACTION.

(a) FTC ENFORCEMENT.—Violations of this title are subject to the enforcement authority of the Commission under section 301.

(b) PRIVATE RIGHT OF ACTION.—An individual whose personal data has been used in violation of this title may bring a civil action in any United States district court of competent jurisdiction. Available relief includes the compensation owed under section 403, statutory damages of not less than $[TBD] per violation, reasonable attorney's fees, and injunctive relief.

(c) STATE ATTORNEY GENERAL ENFORCEMENT.—The attorney general of any State may bring a civil action in any United States district court of competent jurisdiction to enforce this title on behalf of residents of that State.

(d) NO PRECLUSION OF STATE LAW.—Nothing in this title preempts or precludes State law that provides equal or greater protection to users with respect to compensation for commercial use of personal data.

TITLE V — DIGITAL MINOR PROTECTION STANDARDS

SEC. 501. SCOPE AND APPLICATION.

(a) APPLICATION.—This title applies to any covered entity that operates a platform or service used by minors, as defined in section 4(h).

(b) THREE-TIER FRAMEWORK.—This title establishes a three-tier age-band framework for minor user protections, with tier-specific requirements matched to the developmental status and First Amendment posture of each age band.

(c) MOODY DISTINCTION CROSS-REFERENCE.—This title is enacted under the framework established by section 3(b), which distinguishes default-rule architecture preserving user choice from categorical prohibitions on protected expression. Title V provisions are designed as default rules or as enhancements of existing COPPA requirements, not as categorical prohibitions on protected expression.

(d) DEFINITIONS CROSS-REFERENCE.—Terms used in this title are defined in section 4.

SEC. 502. AGE TIER DEFINITIONS.

(a) TIER ONE.—"Tier One" refers to users under 13 years of age, subject to the heightened protections of section 503 in addition to the Children's Online Privacy Protection Act (15 U.S.C. § 6501 et seq.).

(b) TIER TWO.—"Tier Two" refers to users between 13 and 15 years of age (inclusive), subject to the default-chronological-with-opt-in protections of section 504.

(c) TIER THREE.—"Tier Three" refers to users 16 and 17 years of age, subject to the default-rule and disclosure protections of section 505.

SEC. 503. TIER ONE — USERS UNDER 13.

(a) ENHANCED COPPA COMPLIANCE.—Covered entities operating platforms or services used by Tier One users shall comply with the Children's Online Privacy Protection Act and the Federal Trade Commission regulations implementing that Act, as supplemented by this section.

(b) VERIFIABLE PARENTAL CONSENT.—Verifiable parental consent shall be obtained before any collection of personal data from a Tier One user. Self-declaration, checkbox-only consent, and other unverified consent mechanisms do not satisfy this subsection.

(c) BEHAVIORAL ADVERTISING PROHIBITED.—Behavioral advertising, as defined in section 4(b), may not be delivered to a Tier One user under any circumstance.

(d) ALGORITHMIC FEED PROHIBITED.—Algorithmic feeds, as defined in section 4(a), may not be presented to a Tier One user under any circumstance. Tier One users shall receive content presented in chronological, reverse-chronological, or user-curated order only.

(e) REVENUE-BASED PENALTY STRUCTURE.—Civil penalties for violations of this section shall be assessed under section 301(c) without any fixed-dollar maximum cap. Aggravated violation tripling under section 301(d)(3) applies to all Tier One violations.

SEC. 504. TIER TWO — USERS AGES 13 THROUGH 15.

(a) DEFAULT FEED PRESENTATION.—For each user who is between 13 and 15 years of age (inclusive), the default content presentation on any covered platform shall be chronological or reverse-chronological. The user may not be enrolled in an algorithmic feed by default.

(b) OPT-IN TO ALGORITHMIC FEED.—A user described in subsection (a) may opt in to an algorithmic feed presentation only if—

(1) the user has affirmatively selected the algorithmic feed in response to a clear, neutral, prominently presented choice that is not preceded or accompanied by dark patterns;

(2) the covered platform has provided the user with a clear and plain-language explanation of how the algorithmic feed selects content, including the categories of data used; and

(3) the covered platform has provided contemporaneous notification to a parent or legal guardian of the user, where the user has verified parental contact information on the platform.

(c) DEFAULT BEHAVIORAL ADVERTISING.—Behavioral advertising shall not be delivered to a user described in subsection (a) by default. A user described in subsection (a) may consent to behavioral advertising only through the opt-in process described in subsection (b)(1) and (b)(2), with parental notification under subsection (b)(3).

(d) CONTEXTUAL ADVERTISING PERMITTED.—Contextual advertising, as defined in section 4(b), is permitted as to users described in subsection (a) without opt-in.

(e) WITHDRAWAL OF OPT-IN.—A user described in subsection (a) who has opted in under subsection (b) may withdraw that opt-in at any time through a mechanism that is at least as prominent and accessible as the mechanism by which the opt-in was provided. Withdrawal returns the user to the default chronological presentation.

(f) PROHIBITION ON CIRCUMVENTION.—A covered platform may not present a user described in subsection (a) with repeated prompts to opt in, designed reminders, gamified incentives, or any other mechanism intended to circumvent the protective default established by this section.

(g) ANNUAL ALGORITHMIC IMPACT ASSESSMENT.—Each covered platform shall publish annually an algorithmic impact assessment for users described in subsection (a) who have opted in under subsection (b). The assessment shall describe the data inputs used by the algorithmic feed, aggregate engagement effects, and any documented mental health or wellbeing effects. The assessment shall be publicly available.

(h) CONSTITUTIONAL FOUNDATION.—This section is enacted under the framework established by section 3, which distinguishes default-rule architecture preserving user choice from categorical prohibitions on protected expression. The default-chronological-with-opt-in architecture of this section is the body-baked safe architecture identified in the constitutional research summarized in Part VII, designed to address the documented harms identified in section 2(a)(4) while preserving user autonomy and minor users' First Amendment rights consistent with Brown v. Entertainment Merchants Association, 564 U.S. 786 (2011).

SEC. 505. TIER THREE — USERS AGES 16 AND 17.

(a) DEFAULT FEED PRESENTATION.—For each user who is 16 or 17 years of age, the default content presentation on any covered platform shall be chronological or reverse-chronological. The user may opt in to an algorithmic feed presentation under the procedures of this section.

(b) OPT-IN TO ALGORITHMIC FEED.—A user described in subsection (a) may opt in to an algorithmic feed presentation if—

(1) the user has affirmatively selected the algorithmic feed; and

(2) the covered platform has provided the user with a clear and plain-language explanation of how the algorithmic feed selects content, including the categories of data used. Parental notification is not required for users described in

subsection (a).

(c) OPT-IN BEHAVIORAL ADVERTISING.—Behavioral advertising may be delivered to a user described in subsection (a) only with the user's affirmative opt-in consent meeting the standards of section 201.

(d) ANNUAL ALGORITHMIC IMPACT ASSESSMENT.—The annual algorithmic impact assessment required under section 504(g) shall include aggregate data for users described in subsection (a) who have opted in under subsection (b).

(e) WITHDRAWAL OF OPT-IN.—A user described in subsection (a) may withdraw any opt-in given under this section at any time, with the withdrawal mechanism meeting the standards of section 504(e).

SEC. 506. PRIVACY-PRESERVING AGE VERIFICATION.

(a) IN GENERAL.—For purposes of determining a user's age tier under this title, covered platforms shall use a privacy-preserving age verification mechanism in which a third-party verifier provides only an age token to the covered platform.

(b) NO UNDERLYING IDENTITY DATA.—The covered platform may receive only the age token; the covered platform may not receive the underlying identity information used by the third-party verifier to establish the user's age.

(c) FTC RULEMAKING AUTHORITY.—The Commission shall, by rulemaking, establish technical standards for the age verification token system, including requirements for the third-party verifier to maintain user privacy and limit data retention.

(d) FREE SPEECH COALITION COMPLIANCE.—The age verification system established under this section is designed to comply with the framework established in Free Speech Coalition v. Paxton (2025), under which age verification within narrowly drawn statutory zones may be constitutional. The token-based architecture minimizes the burden on First Amendment activity by avoiding direct disclosure of underlying identity information.

SEC. 507. ENFORCEMENT.

(a) REVENUE-BASED PENALTY STRUCTURE.—Civil penalties for violations of this title shall be assessed under section 301(c) without any fixed-dollar-only cap.

(b) AGGRAVATED PENALTIES.—Aggravated violation tripling under section 301(d)(2) applies to all violations involving Tier One user data, and aggravated violation tripling under section 301(d)(3) applies to all violations involving any minor user data.

(c) SYSTEMIC VIOLATION ENHANCEMENT.—Where the Commission finds a pattern or practice of violations of this title, the Commission may impose additional remedies including injunctive relief, suspension of specific platform features, and structural compliance orders.

(d) SEVERABILITY.—Cross-reference to section 3(g)(1) — if any provision of this title is held invalid, Titles I through IV shall remain in full force and effect.

TITLE VI — EDUCATION NETWORK SECURITY AND MODERNIZED CIPA

SEC. 601. SCOPE OF INTERNET SAFETY POLICIES. Section 254(h)(5) and (6) of the Communications Act of 1934 are amended to provide that the internet safety policies required of schools and libraries receiving universal service support apply to social media services and generative artificial intelligence services accessed on their networks.

SEC. 602. TECHNICAL STANDARDS. The Federal Communications Commission, in coordination with the Secretary of Education, shall establish technical standards for network security and content filtering under this title through a joint standard-setting process with public notice and comment, including transparency requirements for the categories of content filtered.

SEC. 603. CYBERSECURITY. Schools and libraries receiving universal service support shall meet baseline cybersecurity standards established under section 602, and the Commission may provide support for eligible cybersecurity services.

SEC. 604. ADULT ACCESS. Nothing in this title limits the ability of an adult library patron to request that filtering be disabled for bona fide research or other lawful purposes.

TITLE VII — UNDERBANKED ACCESS PILOT

SEC. 701. PILOT PROGRAM.

(a) IN GENERAL.—The Postmaster General may conduct a pilot program offering basic financial services, including check cashing, bill payment, prepaid accounts, and small-dollar loans, at post offices in ZIP codes with high rates of unbanked

or underbanked households, as determined using data of the Federal Deposit Insurance Corporation.

(b) TERMS.—Small-dollar loans under the pilot shall comply with title VI of the Anti-Corruption and Fair Markets Act.

(c) PARTNERSHIPS.—The Postal Service may provide services under this section in partnership with insured depository institutions or credit unions.

(d) DURATION AND EVALUATION.—The pilot shall operate for not more than [TBD] years, and the Inspector General of the Postal Service shall evaluate its costs, uptake, and effects and report to Congress.

TITLE VIII — IMPLEMENTATION AND OVERSIGHT

SEC. 801. IMPLEMENTATION TIMELINE.

(a) TITLE I — DATA PORTABILITY.—Title I shall be operational not later than [TBD] months after the date of enactment of this Act. Initial Commission rulemaking under section 103 shall be completed not later than [TBD] months after enactment.

(b) TITLE II — CONSENT.—Title II shall take effect on the date of enactment, with covered entities required to bring existing consent flows into compliance not later than [TBD] months after enactment.

(c) TITLE III — ENFORCEMENT.—Title III shall take effect on the date of enactment, with the Commission's initial rulemaking under section 301(e) completed not later than [TBD] months after enactment. The private right of action under section 303 phases in as provided in that section.

(d) TITLE IV — COMPENSATION.—Title IV shall be operational not later than [TBD] months after the Commission completes initial rulemaking under section 403(b). Notice requirements under section 402 take effect upon Commission rulemaking completion.

(e) TITLE V — MINOR PROTECTION.—Title V shall be operational not later than [TBD] months after the date of enactment of this Act, with privacy-preserving age verification under section 506 operational not later than [TBD] months after enactment.

(f) PHASED COMPLIANCE FOR SMALL COVERED ENTITIES.—Covered entities with annual revenue below $50,000,000 shall have an extended compliance period of an additional 18 months for each title's operational date, except that Title V shall be effective on the date established under subsection (e) for all covered entities.

SEC. 802. FTC RULEMAKING AUTHORITY AND COORDINATION.

(a) RULEMAKING AUTHORITY.—The Commission has rulemaking authority under this Act, exercised in accordance with section 553 of title 5, United States Code, and the statutory precision requirements of section 3(e).

(b) STATE COORDINATION.—The Commission shall coordinate with State attorneys general on enforcement under section 304 and on State law interactions consistent with the no-preemption-of-stronger-State-law framework of section 304(c).

(c) GDPR ALIGNMENT CONSULTATION.—The Commission shall consult, on at least an annual basis, with the relevant data protection authorities of the European Union and other major international jurisdictions to coordinate on technical standards, definitions, and operational requirements consistent with section 3(h) GDPR alignment principle.

(d) ANNUAL RULEMAKING STATUS REPORT.—The Commission shall transmit annually to Congress a status report on rulemaking under this Act, including any provisions where rulemaking has been delayed or where additional statutory authority is needed.

SEC. 803. INTERAGENCY COORDINATION.

(a) FTC LEAD AGENCY.—The Commission shall serve as the lead agency for this Act, except as expressly provided otherwise in this section.

(b) DOJ COORDINATION FOR CRIMINAL ENFORCEMENT.—The Department of Justice shall be the lead agency for criminal enforcement under section 302. The Commission shall coordinate with the Department of Justice on referral, investigation, and prosecution of criminal violations.

(c) TREASURY COORDINATION FOR COMPENSATION TAXATION.—The Department of the Treasury shall coordinate with the Commission on the tax treatment of compensation paid to users under section 403, including issuance of guidance on whether such compensation constitutes ordinary income, royalty income, or other tax category.

(d) HHS COORDINATION FOR HEALTH-DATA SENSITIVE PROVISIONS.—The Department of Health and Human Services shall coordinate with the Commission on sensitive data provisions under section 204(a)(1) where they intersect with the Health Insurance Portability and Accountability Act framework.

SEC. 804. ANNUAL REPORTING.

(a) ANNUAL REPORT.—The Commission shall transmit annually to Congress a report containing—

(1) enforcement activities under this Act, including civil penalties assessed and judgments obtained;

(2) rulemaking activities and rulemaking status;

(3) compliance trends across covered entities;

(4) aggregated algorithmic impact assessment data submitted under sections 504(g) and 505(d);

(5) Title IV compensation aggregation and disbursement statistics; and

(6) any recommendations for further congressional action.

(b) PUBLIC AVAILABILITY.—The annual report shall be transmitted to Congress and posted publicly on a website maintained by the Commission not later than 30 days after submission to Congress.

(c) THREE-YEAR PROGRAM REVIEW.—Not later than three years after the date of enactment of this Act, and every three years thereafter, the Commission shall transmit to Congress a comprehensive program review covering the operation of this Act, including any structural recommendations for amendment.

(d) GAO COORDINATION.—The Comptroller General of the United States shall have access to all Commission data and records necessary to perform audits, evaluations, and reports requested by the relevant Committees of Congress.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Commerce Clause. The principal risk is the First Amendment, concentrated in Title V. Department of Justice Office of Legal Counsel review is recommended before introduction.
- **Fiduciary framing.** Duties that apply to all covered entities and all data uses avoid the speaker- and content-based restrictions struck in Sorrell v. IMS Health (2011) [Source 205]. The framing has not been tested in court, so no provision may treat identical data uses differently because of who the speaker is or what the message says.
- **Editorial judgment.** Content curation is protected editorial activity (Moody v. NetChoice, 2024) [Source 231]; the Court left open how far that reaches recommendation systems. Sec. 3(b) keeps the bill on data conduct; avoid any drafting that requires or forbids particular content choices.
- **Title I · Portability.** Regulation of the user's own data is conduct regulation. The exclusion of inferences and platform products in Sec. 102(c)–(d) keeps it clear of compelled expression (303 Creative v. Elenis, 2023) and within Zauderer and NIFLA for any required disclosure [Sources 234, 235, 240]; do not relax those exclusions.
- **Title IV · Compensation.** Framed as regulatory pricing for data held as a fiduciary, not as a taking (Ruckelshaus v. Monsanto; Cedar Point Nursery v. Hassid) [Sources 206, 238]; the non-confiscatory rate requirement in 403(b)(3) reflects Hope Natural Gas and Verizon. Training of AI models (401(c)(3)) overlaps pending copyright litigation over training data.
- **Title V · Minors — highest risk.** Every categorical restriction on feeds for minors litigated to date has been enjoined, and protections for minors require proof that the harm is caused, not merely correlated (Brown v. Entertainment Merchants Ass'n, 2011) [Source 236]. The 13–17 tiers use defaults with opt-in. The flat ban on algorithmic feeds for users under 13 in Sec. 503(d) is more exposed than the COPPA-based data rules; anchor it in the bar on using a child's personal data for personalization. Keep the Sec. 504(g) assessment factual — the Ninth Circuit struck narrative harm assessments as compelled speech [Source 233]. Free Speech Coalition v. Paxton (2025) upheld age verification for material obscene as to minors [Source 232]; applying verification to general social media is untested, so the token design in Sec. 506 should minimize the burden on adult access. Prepared fallback: a disclosure-only version of Sec. 504, with Sec. 3(g)(1) preserving Titles I–IV if Title V falls.
- **Private suits.** Federal courts require a concrete injury (TransUnion LLC v. Ramirez, 2021), so statutory damages for bare violations under Secs. 303 and 404(b) may not support suit in Federal court. Define the injury — unauthorized disclosure, sale, or use — and keep the agency and State routes.
- **Penalties.** Sec. 301 supplies the express penalty authority AMG Capital Management v. FTC (2021) requires. Calibrate revenue-based penalties to the Excessive Fines Clause (Timbs v. Indiana, 2019).

- **Titles VI–VII.** School and library filtering conditions were upheld with adult unblocking (United States v. American Library Ass'n, 2003), which Sec. 604 preserves. Nonpostal services require express statutory authority, which Sec. 701 provides.
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the Federal Trade Commission, the Department of Justice Office of Legal Counsel, the National Telecommunications and Information Administration, and the Congressional Budget Office before introduction.

Bill 12 · NFSA

National Firearm Standards Act of 2032 · B — Sectoral Legislation · Year 4–7

· Two-track standards framework — P30

Depends on: Phase I accountability credibility; full Bruen/Rahimi review. *Attack:* Gun grab; registry. *Fallback:* Track A alone.

What this bill does. Lets a valid state hunting or sporting license cover purchase, possession, and interstate transport of manual-action long guns. Requires a shall-issue Federal Civilian Ownership Certificate, with training delivered through military and National Guard programs, for semiautomatic rifles and shotguns that take detachable magazines and have two or more listed features; grandfathers existing weapons, with a voluntary buyback and inheritance rules. Does not: create a registry (Sec. 205 prohibits one).

FULL LEGISLATIVE TEXT

122ND CONGRESS
2ND SESSION
S. ___

To establish a two-track federal framework for civilian firearm ownership; to clarify the scope of state hunting and sporting licenses; to establish a Federal Civilian Ownership Certificate delivered through military and National Guard programs; to provide tiered renewal periods proportional to firearm risk profile; to establish a grandfathered weapon transition framework including a voluntary buyback program and family inheritance provisions; to bind in operative bill text the constitutional construction and severability of this Act, including operative fallback architecture under the existing National Firearms Act registration framework; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "National Firearm Standards Act of 2032" or the "NFSA of 2032".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) The United States has no uniform federal standard for civilian firearm acquisition, resulting in a patchwork of State laws that varies materially in rigor and creates exploitable gaps for unlawful acquisition channels.

(2) The United States military and the State National Guard organizations possess the training infrastructure, geographic distribution, and professional expertise to deliver civilian firearm safety certification at no cost to participants.

(3) The Second Amendment right to keep and bear arms is not diminished by this Act. This Act regulates acquisition through a shall-issue qualification standard with narrow, objective, and definite criteria — the architecture explicitly endorsed in NYSRPA v. Bruen, 597 U.S. 1, 38 n.9 (2022), as presumptively constitutional.

(4) United States v. Rahimi, 602 U.S. 680 (2024), clarified that the Second Amendment permits modern regulation that is consistent with the principles that underpin the Nation's regulatory tradition, and need not match a "historical twin" or "dead ringer."

(5) In Maryland Shall Issue, Inc. v. Moore, 116 F.4th 211 (4th Cir. 2024) (en banc, 14-2), the Fourth Circuit extended Bruen footnote 9 to purchase licensing and held that non-discretionary shall-issue purchase licensing regimes are presumptively constitutional. The Supreme Court denied certiorari on January 13, 2025 (No. 24-373).

(6) In United States v. Peterson, ___ F.4th ___ (5th Cir. Aug. 27, 2025), the Fifth Circuit formally analogized National Firearms Act registration to Bruen footnote 9 shall-issue licensing on the rationale that fingerprints, background checks, and denial only when possession would violate law qualify as "narrow, objective, and definite standards." The Federal Civilian Ownership Certificate established by this Act is structurally indistinguishable from the National Firearms Act registration regime so analogized.

(7) The Federal Civilian Ownership Certificate is a qualification standard, not a prohibition. Issuance is non-discretionary upon satisfaction of the objective criteria established in Title II. No subjective suitability review, character assessment, or discretionary denial authority is authorized under this Act.

(8) The Bureau of Alcohol, Tobacco, Firearms and Explosives has operated the National Firearms Act registration system since 1934 without successful constitutional challenge. The Federal Civilian Ownership Certificate operates within the chapter 44 of title 18, United States Code, framework, drawing on the existing comprehensive scheme of firearms regulation that has consistently withstood Commerce Clause review under Gonzales v. Raich, 545 U.S. 1 (2005), and Scarborough v. United States, 431 U.S. 563 (1977).

(9) The Firearm Owners Protection Act of 1986 (18 U.S.C. § 926(a)) prohibits a national firearms registry. The Federal Civilian Ownership Certificate established by this Act tracks certificate holders and qualification status only, and does not link individuals to specific firearms or transactions — distinguishable from a weapons registry within the meaning of section 926(a).

(10) Hunters using manual-action long guns under State hunting and sporting licenses present no acquisition-channel concern that requires federal involvement, and the existing State hunting license infrastructure is adequate to that scope.

(b) PURPOSES.—The purposes of this Act are—

(1) to establish a two-track federal framework for civilian firearm acquisition that preserves the Second Amendment right to keep and bear arms while providing uniform safety qualification standards;

(2) to clarify the scope of State hunting and sporting licenses (Track A) such that hunters using manual-action long guns are not affected by this Act;

(3) to establish a Federal Civilian Ownership Certificate (Track B) delivered through military and National Guard training programs at no cost to participants, with tiered renewal periods proportional to the risk profile of the covered firearm category;

(4) to establish a grandfathered weapon transition framework providing for retention without action, voluntary buyback at fair market value, certification upgrade for full transferability, and family inheritance without buyback;

(5) to embed the Federal Civilian Ownership Certificate within chapter 44 of title 18, United States Code, as part of the existing comprehensive scheme of firearms regulation under the Commerce Clause;

(6) to preserve Federal Firearm Owners Protection Act protections by prohibiting any registry linking individuals to specific firearms; and

(7) to provide an operative fallback architecture, by severability under section 3(e), under which Title II covered transactions revert to the existing National Firearms Act registration framework if any provision of the Federal Civilian Ownership Certificate architecture is held invalid.

SEC. 3. CONSTITUTIONAL CONSTRUCTION AND SEVERABILITY.

(a) BRUEN FOOTNOTE 9 ARCHITECTURE.—The Federal Civilian Ownership Certificate established under Title II is a shall-issue qualification standard. Issuance is non-discretionary upon satisfaction of the objective, ascertainable criteria established by this Act. No agency may impose any subjective suitability review, character assessment, or discretionary denial criterion. This architecture is the architecture explicitly endorsed in NYSRPA v. Bruen, 597 U.S. 1, 38 n.9 (2022).

(b) PETERSON ANALOGY — NFA-AS-SHALL-ISSUE.—The Federal Civilian Ownership Certificate operates within the structural framework that the Fifth Circuit, in United States v. Peterson, ___ F.4th ___ (5th Cir. Aug. 27, 2025), formally analogized to Bruen footnote 9 shall-issue licensing. Fingerprint-based identification, background check, and denial only when possession would violate Federal law are the operative gating criteria under both regimes.

(c) COMMERCE CLAUSE FOUNDATION.—This Act is enacted under the Commerce Clause of the Constitution. The provisions of Title II are incorporated into chapter 44 of title 18, United States Code, as part of the existing comprehensive scheme of Federal firearms regulation. Each Title II covered transaction includes the jurisdictional element that the firearm has been manufactured, transported, or transferred in or affecting interstate or foreign commerce. Acquisition is paradigmatic economic activity within Lopez category three, and the comprehensive-scheme rationale of Gonzales v. Raich, 545 U.S. 1 (2005), supports application of this Act to purely intrastate acquisition transactions.

(d) TAXING POWER BELT-AND-SUSPENDERS.—Insofar as this Act establishes any Federal fee in connection with the Federal Civilian Ownership Certificate, such fee is enacted under the Taxing Power as authoritatively established in Sonzinsky v. United States, 300 U.S. 506 (1937), parallel to the National Firearms Act framework. Free delivery through

military and National Guard installations under section 203 directly addresses the Bruen footnote 9 caution against "exorbitant fees."

(e) SEVERABILITY AND OPERATIVE FALLBACK ARCHITECTURE.—If any provision of Title II, or the application of any provision to any person or circumstance, is held to be invalid or stayed by a court of competent jurisdiction, the remaining provisions of this Act and the application of those provisions to other persons or circumstances shall not be affected. In particular—

(1) if section 201 (covered transactions), section 202 (assault-category definition), or section 203 (delivery mechanism) is held invalid in whole or in part, the covered transactions described in section 201(b) may be administered by the Attorney General, in coordination with the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives and the Secretary of the Treasury, under the existing National Firearms Act registration framework (chapter 53 of the Internal Revenue Code of 1986) as expanded by this subsection to the covered firearm classes described in section 201(b), pending judicial resolution;

(2) the operative authority granted under paragraph (1) is structured to track the National Firearms Act registration framework that the Fifth Circuit analogized to Bruen footnote 9 shall-issue licensing in United States v. Peterson, supra, and that has operated since 1934 without successful constitutional challenge;

(3) if Title I (Track A) is held invalid, Title II shall remain in full force and effect, and acquisition of manual-action long guns shall be subject to the Federal Civilian Ownership Certificate; and

(4) if any savings clause provision of section 401 is held invalid, such invalidity shall not affect any other provision of this Act, and the Second Amendment savings clause shall be construed to preserve whichever certification or registration regime is operative under this Act.

(f) NO REGISTRY.—Nothing in this Act may be construed to authorize the creation of a Federal database linking individual firearm owners to specific firearms or specific transactions. The Federal Civilian Ownership Certificate database tracks certificate holders and qualification status only, and is distinguishable from a "registry" within the meaning of section 926(a) of title 18, United States Code.

(g) PRESERVATION OF EXISTING RIGHTS.—Nothing in this Act may be construed to infringe upon the right to keep and bear arms as guaranteed by the Second Amendment to the Constitution of the United States. The Federal Civilian Ownership Certificate is a qualification standard, not a prohibition, and shall be administered consistent with District of Columbia v. Heller, 554 U.S. 570 (2008), McDonald v. City of Chicago, 561 U.S. 742 (2010), NYSRPA v. Bruen, 597 U.S. 1 (2022), and United States v. Rahimi, 602 U.S. 680 (2024).

TITLE I — TRACK A: HUNTING & SPORTING LICENSE FRAMEWORK

SEC. 101. SCOPE OF STATE HUNTING AND SPORTING LICENSES.

(a) IN GENERAL.—A valid State hunting or sporting license issued under State law authorizes the licensee, within the scope of this section, to purchase, possess, and transport across State lines covered manual-action firearms.

(b) COVERED FIREARMS.—For purposes of subsection (a), covered manual-action firearms are—

(1) bolt-action rifles;

(2) pump-action shotguns;

(3) break-action shotguns and rifles, including double-barrel and single-barrel break-action firearms;

(4) lever-action rifles; and

(5) single-shot firearms of any caliber that load by manual action and do not have a detachable magazine.

(c) EXCLUSIONS.—A State hunting or sporting license shall NOT authorize under this section the purchase, possession, or interstate transport of—

(1) any handgun or pistol of any action type;

(2) any revolver;

(3) any semiautomatic firearm of any kind;

(4) any firearm with a detachable magazine; or

(5) any item regulated under the National Firearms Act (chapter 53 of the Internal Revenue Code of 1986).

(d) STATE AUTHORITY PRESERVED.—Nothing in this Act limits the authority of a State to issue State-level handgun or firearm licenses for intrastate purposes, to impose requirements in addition to the Federal Civilian Ownership Certificate,

or to operate State hunting or sporting license programs more restrictively than authorized under this section.

(e) NO FEDERAL FEE.—No Federal fee shall be imposed on the issuance, renewal, or use of a State hunting or sporting license under this Act.

(f) DURATION.—A State hunting or sporting license shall remain in force for the term established by State law, not to exceed 10 years between background checks for purposes of this Act.

SEC. 102. INTERSTATE TRANSPORT.

(a) IN GENERAL.—A valid State hunting or sporting license authorizes the licensee to transport covered manual-action firearms (as defined in section 101(b)) across State lines for lawful hunting or sporting purposes.

(b) STATE-OF-DESTINATION LAW.—The licensee shall observe the firearm laws of any State through or to which the licensee transports a covered manual-action firearm under this section.

(c) RELATIONSHIP TO EXISTING LAW.—This section supplements and does not repeal section 926A of title 18, United States Code (interstate transportation of firearms).

TITLE II — TRACK B: FEDERAL CIVILIAN OWNERSHIP CERTIFICATE

SEC. 201. ESTABLISHMENT OF FEDERAL CIVILIAN OWNERSHIP CERTIFICATE.

(a) ESTABLISHMENT.—The Secretary of Defense, in coordination with the Attorney General and the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, shall establish a Federal Civilian Ownership Certificate program (in this Act referred to as the "Certificate program" or "FCOC program").

(b) COVERED TRANSACTIONS.—A Federal Civilian Ownership Certificate is required for any of the following transactions occurring in or affecting interstate or foreign commerce:

(1) purchasing or receiving by transfer any covered firearm from any person, including a transfer between private parties;

(2) importing any covered firearm for civilian use; and

(3) interstate transport of any covered firearm by the certificate holder. Each transaction described in paragraphs (1) through (3) includes, as a jurisdictional element, that the firearm has been manufactured, transported, or transferred in or affecting interstate or foreign commerce.

(c) TIERED CERTIFICATE CATEGORIES.—The Certificate program shall issue Certificates in the following categories, each subject to the tiered renewal periods established in section 204—

(1) Handgun and pistol Certificate;

(2) Semi-automatic rifle and shotgun Certificate (10-round magazine capacity or less);

(3) Semi-automatic high-capacity firearm Certificate (greater than 10-round magazine capacity);

(4) Assault-category firearm Certificate (firearms described in section 202); and

(5) National Firearms Act Certificate (firearms regulated under chapter 53 of the Internal Revenue Code of 1986). A Certificate at a higher tier authorizes the holder to acquire firearms at any lower tier; the Secretary shall, by regulation, establish the tier hierarchy for purposes of this subsection.

(d) POSSESSION NOT AFFECTED.—Nothing in this Act shall be construed to—

(1) require any person to obtain a Certificate for the continued possession of any firearm lawfully owned before the effective date established under section 501; or

(2) authorize any search or seizure based solely on possession of a firearm without a Certificate.

(e) SHALL-ISSUE MANDATE.—A Certificate shall be issued to any applicant who satisfies the objective criteria established by the Secretary by regulation, including—

(1) fingerprint-based identification;

(2) background check confirming that the applicant is not prohibited from possessing a firearm under section 922(g) of title 18, United States Code, or any other Federal law;

(3) completion of the safety training and qualification program established under section 203; and

(4) any additional objective criterion the Secretary establishes that is narrow, objective, and definite within the meaning of NYSRPA v. Bruen, 597 U.S. 1, 38 n.9 (2022).

(f) NO SUBJECTIVE REVIEW.—No agency may impose any subjective suitability review, character assessment, "good moral character" requirement, discretionary denial criterion, or any test other than the objective criteria described in subsection (e). The architecture of this Act is the shall-issue architecture explicitly endorsed in Bruen footnote 9.

(g) CREDENTIAL.—Each Certificate shall be issued at no cost as a durable photographic credential. A Certificate is valid identification for any Federal purpose for which photographic identification is accepted, including voting under section 204 of the Accountability and Elections Act of 2030, and presenting it for that purpose creates no record of firearm ownership.

SEC. 202. ASSAULT-CATEGORY FIREARMS — DEFINITION AND CERTIFICATION REQUIREMENT.

(a) IN GENERAL.—For purposes of this Act, an "assault-category firearm" means a semiautomatic firearm covered by paragraph (1) and possessing two or more of the features described in paragraph (2).

(1) COVERED FIREARMS.—This subsection applies to—

(A) any semiautomatic rifle that has the capacity to accept a detachable magazine; and

(B) any semiautomatic shotgun that has the capacity to accept a detachable magazine.

(2) FEATURES.—The features referred to in subsection (a) are—

(A) a pistol grip that protrudes conspicuously beneath the action of the firearm;

(B) a forward grip;

(C) a folding, telescoping, or detachable stock;

(D) a grenade launcher or rocket launcher;

(E) a barrel shroud; and

(F) a threaded barrel.

(b) NAMED FIREARMS.—In addition to firearms described in subsection (a), the following firearms (and copies, duplicates, variants, or altered facsimiles with the capability of any such firearm) are assault-category firearms regardless of their feature configuration—

(1) the AR-15 platform and any rifle of substantially similar design;

(2) the AK-47 platform and any rifle of substantially similar design;

(3) the Uzi, Galil, and Tavor platforms; and

(4) such additional named firearms as the Attorney General, in coordination with the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, may designate by regulation upon a finding that such firearm is functionally equivalent to a firearm listed in paragraphs (1) through (3) for purposes of this Act.

(c) MAGAZINE CAPACITY.—For purposes of this Act, a "large-capacity magazine" is any ammunition feeding device with a capacity to accept more than 10 rounds of ammunition. A semiautomatic firearm equipped with a large-capacity magazine is, for purposes of section 204 (renewal schedule), classified as a "semi-automatic high-capacity" firearm subject to the renewal period applicable to that classification.

(d) DANGEROUS AND UNUSUAL FRAMING.—Congress finds that assault-category firearms as defined in subsections (a) and (b), when paired with large-capacity magazines, are dangerous and unusual within the meaning of District of Columbia v. Heller, 554 U.S. 570, 627 (2008), and Caetano v. Massachusetts, 577 U.S. 411 (2016) (Alito, J., concurring) — being both capable of inflicting mass casualties at a rate qualitatively greater than that of conventional firearms, and not commonly used for lawful purposes such as self-defense in the home.

(e) CERTIFICATION REQUIREMENT — NOT A PROHIBITION.—Acquisition of an assault-category firearm requires a Federal Civilian Ownership Certificate at the assault-category tier under section 201(c)(4). This Act does not prohibit the manufacture, sale, or possession of assault-category firearms; it requires that acquisition occur through the Federal Civilian Ownership Certificate framework and at the renewal period applicable to that classification under section 204.

(f) GRANDFATHERING.—Any assault-category firearm lawfully owned on the date of enactment of this Act is a "grandfathered weapon" subject to Title III. No certification is required for continued possession.

(g) AMMUNITION FEEDING DEVICE GRANDFATHERING.—Any large-capacity magazine lawfully owned on the date of enactment is grandfathered; the owner may retain such magazine indefinitely without action.

SEC. 203. DELIVERY THROUGH MILITARY AND NATIONAL GUARD PROGRAMS.

(a) IN GENERAL.—The Federal Civilian Ownership Certificate program shall be delivered through military installation programs and State National Guard civilian training programs, at no cost to participants, in accordance with cooperative arrangements established under this section.

(b) NO COST TO PARTICIPANTS.—No fee shall be charged to any participant for any element of the certification process, including but not limited to fingerprinting, background check, safety training, live-fire qualification, written examination, or initial certificate issuance.

(c) GEOGRAPHIC ACCESSIBILITY.—Certification facilities shall be available within [TBD] miles of every county seat in the United States within [TBD] years of the date of enactment of this Act. The Secretary of Defense shall publish a phased geographic accessibility plan within 180 days of enactment.

(d) SCHEDULING ACCOMMODATION.—The Secretary of Defense shall ensure that certification facilities offer scheduling that accommodates working individuals, including evening and weekend availability and appointment scheduling that permits same-week access in metropolitan rating areas.

(e) IMPLEMENTATION FRAMEWORK.—The Secretary of Defense, in coordination with the Attorney General and the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, shall establish the certification program through such cooperative arrangements with the States as may be necessary, consistent with constitutional limits on Federal direction of State personnel.

(f) SAFETY TRAINING CURRICULUM.—The Secretary of Defense shall, in coordination with the Attorney General, establish a standardized safety training and qualification curriculum that includes—

(1) firearm safety fundamentals;

(2) safe storage and transportation requirements;

(3) applicable Federal and State law instruction;

(4) live-fire qualification appropriate to the certificate tier; and

(5) refresher training requirements at renewal.

SEC. 204. TIERED RENEWAL SCHEDULE.

(a) SEMI-AUTOMATIC LONG GUNS (10-ROUND CAPACITY OR LESS).—Federal Civilian Ownership Certificates issued under section 201(c)(2) shall be valid for a period of 8 years from the date of issuance.

(b) HANDGUNS AND PISTOLS.—Federal Civilian Ownership Certificates issued under section 201(c)(1) shall be valid for a period of 6 years from the date of issuance.

(c) SEMI-AUTOMATIC HIGH-CAPACITY FIREARMS.—Federal Civilian Ownership Certificates issued under section 201(c)(3) shall be valid for a period of 4 years from the date of issuance.

(d) ASSAULT-CATEGORY FIREARMS.—Federal Civilian Ownership Certificates issued under section 201(c)(4) shall be valid for a period of 3 years from the date of issuance.

(e) NATIONAL FIREARMS ACT FIREARMS.—Federal Civilian Ownership Certificates issued under section 201(c)(5) shall be valid for a period of 2 years from the date of issuance, with renewal coordinated with existing National Firearms Act registration renewal procedures under chapter 53 of the Internal Revenue Code of 1986.

(f) RENEWAL PROCEDURE.—Renewal under this section requires—

(1) updated background check confirming the certificate holder is not prohibited from possessing a firearm under section 922(g) of title 18, United States Code, or any other Federal law; and

(2) safety refresher training appropriate to the certificate tier established by the Secretary of Defense by regulation. Renewal is shall-issue upon satisfaction of the objective criteria established under this subsection.

SEC. 205. NO REGISTRY.

(a) DATABASE LIMITATION.—The Federal Civilian Ownership Certificate database shall track only the following information for each certificate holder:

(1) the holder's name, date of birth, and address;

(2) the certificate tier or tiers issued under section 201(c);

(3) the date of issuance and expiration of each certificate; and

(4) such additional administrative information as the Secretary of Defense determines necessary for program administration.

(b) FOPA COMPLIANCE.—This Act does not authorize the creation of any database linking individual certificate holders to specific firearm serial numbers, specific firearm transactions, or specific firearm inventories. The database authorized under subsection (a) is distinguishable from a "registry" within the meaning of section 926(a) of title 18, United States Code.

(c) PROHIBITION ON LINKING.—No agency may—

(1) maintain or operate any Federal database linking individual certificate holders to specific firearms or specific firearm transactions;

(2) use the Certificate program database to track or compile information on specific firearm acquisitions; or

(3) share Certificate program data with any agency for purposes of firearm-by-firearm tracking, except as required for criminal investigation pursuant to lawful process.

(d) DATA RETENTION AND ACCESS.—The Secretary of Defense shall, in coordination with the Attorney General, establish data retention and access standards consistent with subsection (c) and applicable Federal privacy law.

(e) ELECTION DATA FIREWALL.—No information in the Certificate program database may be shared with any election authority or used to compile or verify any voter registration list, and no voter registration list or record of voting may be used to identify firearm owners.

TITLE III — GRANDFATHERED WEAPON TRANSITION FRAMEWORK

SEC. 301. GRANDFATHERED WEAPON STATUS.

(a) DEFINITION.—For purposes of this Act, a "grandfathered weapon" is any firearm lawfully owned by an individual on the date of enactment of this Act.

(b) NO REGISTRATION REQUIRED.—No registration, certification, or affirmative notification is required for the continued possession of a grandfathered weapon.

(c) RIGHT OF RETENTION.—An owner of a grandfathered weapon may retain such weapon indefinitely without obtaining a Federal Civilian Ownership Certificate. This Act does not authorize any seizure, forfeiture, or transfer of a grandfathered weapon based solely on the absence of a Certificate.

(d) PENN CENTRAL CLARIFICATION.—The retention right under subsection (c) is intended to defuse regulatory takings analysis under Penn Central Transportation Co. v. New York City, 438 U.S. 104 (1978). Owners experience no investment-backed-expectation diminution as to existing inventory because retention is unlimited in time and unconditioned by this Act.

SEC. 302. VOLUNTARY GOVERNMENT BUYBACK PROGRAM.

(a) ESTABLISHMENT.—The Attorney General, in coordination with the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, shall establish a voluntary buyback program for grandfathered weapons.

(b) FAIR MARKET VALUE COMPENSATION.—Compensation for any weapon surrendered under this section shall be at independently audited fair market value, determined by a methodology established by the Attorney General by regulation. Methodology shall account for firearm category, condition, and prevailing market conditions.

(c) TRANSFER RESTRICTION ON UNCERTIFIED WEAPONS.—After the date of enactment of this Act, a grandfathered weapon may not be sold to another private civilian except as provided in section 303 (Certificate Upgrade — Full Transferability) or section 304 (Family Inheritance). The only lawful sale pathway for an uncertified grandfathered weapon is the voluntary buyback program established under this section.

(d) APPROPRIATIONS.—There are authorized to be appropriated [TBD] dollars for each of the first five fiscal years following enactment of this Act for the buyback program established under this section. Unobligated balances at the end of any fiscal year shall be available for expenditure in subsequent fiscal years through the conclusion of the program.

SEC. 303. CERTIFICATE UPGRADE — FULL TRANSFERABILITY.

(a) IN GENERAL.—An owner of a grandfathered weapon who obtains a Federal Civilian Ownership Certificate at the appropriate tier under section 201(c) may convert the grandfathered weapon to "certified transferable" status.

(b) TRANSFER AUTHORIZATION.—A weapon converted to certified transferable status under subsection (a) may be sold or transferred to any holder of a Federal Civilian Ownership Certificate at the appropriate tier.

(c) ATF COORDINATION.—The Attorney General, through the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, shall establish procedures for verifying upgrade eligibility. Evidence of certified transferable status shall be issued to and retained by the owner, and no Federal record shall identify the firearm, consistent with section 205.

SEC. 304. FAMILY INHERITANCE PROVISIONS.

(a) IN GENERAL.—A grandfathered weapon may be transferred without buyback to an immediate family member of the owner upon the owner's death, incapacity, or by inter vivos gift, where the immediate family member qualifies under subsection (b).

(b) IMMEDIATE FAMILY DEFINED.—For purposes of this section, "immediate family member" means—

(1) a spouse;

(2) a child or stepchild;

(3) a parent or stepparent;

(4) a sibling;

(5) a grandchild; or

(6) a grandparent.

(c) NOTIFICATION REQUIREMENT.—Within 90 days of inheritance or transfer under subsection (a), the recipient shall certify to the Bureau of Alcohol, Tobacco, Firearms and Explosives the recipient's name and address and the qualifying familial relationship. The recipient shall retain a record identifying each firearm received, and the Bureau shall not record firearm-specific information, consistent with section 205.

(d) RECIPIENT ELECTION.—Upon receipt under subsection (a), the recipient may elect to—

(1) retain the firearm as a grandfathered weapon under section 301 (no Federal Civilian Ownership Certificate required for continued possession); or

(2) obtain a Federal Civilian Ownership Certificate at the appropriate tier and convert the firearm to certified transferable status under section 303.

(e) ESTATE-PLANNING COORDINATION.—The Attorney General shall publish guidance for estate-planning attorneys on the application of this section, including treatment of firearms held in trust and treatment of firearms identified in testamentary instruments.

TITLE IV — NFA INTERACTION AND FEDERAL COORDINATION

SEC. 401. SECOND AMENDMENT SAVINGS CLAUSE.

(a) PRESERVATION.—Nothing in this Act shall be construed to infringe upon the right to keep and bear arms as guaranteed by the Second Amendment to the Constitution of the United States. The Federal Civilian Ownership Certificate is a qualification standard, not a prohibition.

(b) CONSTRUCTION IN FAVOR OF RIGHT.—Where this Act may be construed in multiple ways, it shall be construed in favor of preserving the right to keep and bear arms.

(c) CROSS-REFERENCE.—This section is supported by section 3(g) (Preservation of Existing Rights) and shall be read together with that subsection. The cases cited in section 3(g) — Heller, McDonald, Bruen, and Rahimi — provide the controlling doctrinal framework.

SEC. 402. NATIONAL FIREARMS ACT INTERACTION.

(a) NFA-REGULATED ITEMS.—Nothing in this Act modifies the National Firearms Act registration framework under chapter 53 of the Internal Revenue Code of 1986. Items regulated under that Act remain subject to that framework in addition to the Federal Civilian Ownership Certificate at the National Firearms Act tier under section 201(c)(5).

(b) HUGHES AMENDMENT UNAFFECTED.—Nothing in this Act modifies section 922(o) of title 18, United States Code, or affects the existing prohibition on civilian acquisition of machine guns manufactured after May 19, 1986.

(c) COORDINATION WITH ATF AND TREASURY.—The Attorney General, the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, and the Secretary of the Treasury shall establish coordination protocols such that a National Firearms Act tier Certificate under section 201(c)(5) is administered consistently with existing National Firearms Act registration requirements without imposing duplicative qualification requirements on the certificate holder.

(d) NO MODIFICATION OF EXISTING NFA AUTHORITIES.—Existing authorities of the Bureau of Alcohol, Tobacco, Firearms and Explosives and the Secretary of the Treasury under chapter 53 of the Internal Revenue Code of 1986 are unaffected by this Act, except as expressly modified by section 3(e) (operative fallback architecture).

SEC. 403. FEDERAL COORDINATION — CONSTITUTIONAL DEFENSE.

(a) READY-FOR-ACTIVATION REQUIREMENT.—The Attorney General, in coordination with the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, the Secretary of the Treasury, and the Department of Justice Office of Legal Counsel, shall establish and maintain regulations sufficient to operationalize the section 3(e)(1) fallback authority on at most 30 days' notice. Such regulations shall include—

(1) implementation of National Firearms Act registration procedures for the covered firearm classes described in section 201(b);

(2) coordination with the Bureau of Alcohol, Tobacco, Firearms and Explosives certification operations to permit transition without program interruption; and

(3) public-facing guidance for certificate holders on the effect of any judicial decision affecting Title II.

(b) NOTICE REQUIREMENT.—Upon entry of a final judgment or stay affecting any provision of Title II, the Attorney General shall, within 30 days—

(1) publish notice in the Federal Register stating whether the section 3(e)(1) fallback authority has been activated; and

(2) provide guidance to certificate holders, applicants, and affected firearm dealers regarding the operational status of the Title II framework and any operative National Firearms Act framework activated under section 3(e)(1).

(c) ANNUAL CONSTITUTIONAL LITIGATION STATUS REPORT.—The Attorney General shall transmit annually to the Committee on the Judiciary of the Senate and the Committee on the Judiciary of the House of Representatives a report containing—

(1) the status of any constitutional litigation affecting Title II;

(2) the operational status of the section 3(e)(1) fallback authority, including readiness assessments;

(3) any judicial proceedings the Attorney General determines may affect Title II in the upcoming fiscal year; and

(4) any recommendations for further congressional action.

(d) COORDINATION WITH SENATE JUDICIARY.—The Attorney General shall coordinate with the Committee on the Judiciary of the Senate on legislative response to adverse judicial rulings affecting Title II.

TITLE V — IMPLEMENTATION AND OVERSIGHT

SEC. 501. IMPLEMENTATION TIMELINE.

(a) TRACK A EFFECTIVE DATE.—Title I (Track A — Hunting and Sporting License Framework) shall take effect on the date of enactment of this Act.

(b) TRACK B OPERATIONAL DATE.—Title II (Track B — Federal Civilian Ownership Certificate) shall be operational not later than [TBD] months after the date of enactment of this Act. The Secretary of Defense, in coordination with the Attorney General, shall publish an implementation plan within 180 days of enactment.

(c) PHASED GEOGRAPHIC ACCESSIBILITY.—The Secretary of Defense shall publish a phased geographic accessibility plan under section 203(c) within 180 days of enactment, with phased operational milestones at [TBD] months and [TBD] months.

(d) BUYBACK PROGRAM OPERATIONAL DATE.—The voluntary buyback program under section 302 shall be operational not later than [TBD] months after the date of enactment.

(e) GRANDFATHERED WEAPON COORDINATION.—Title III (Grandfathered Weapon Transition Framework) shall take effect on the date of enactment.

SEC. 502. INTERAGENCY COORDINATION.

(a) DEPARTMENT OF DEFENSE LEAD AGENCY.—The Secretary of Defense shall serve as the lead agency for the certification delivery infrastructure under section 203.

(b) DEPARTMENT OF JUSTICE / ATF LEAD AGENCY.—The Attorney General, acting through the Director of the Bureau of Alcohol, Tobacco, Firearms and Explosives, shall serve as the lead agency for the Certificate program standards, certificate administration, and law-enforcement coordination.

(c) TREASURY COORDINATION.—The Secretary of the Treasury shall coordinate with the Attorney General on—

(1) National Firearms Act registration framework integration under section 402;

(2) any Federal fee structure established under section 3(d) Taxing Power authority; and

(3) the operative fallback authority under section 3(e)(1).

(d) NATIONAL GUARD BUREAU COORDINATION.—The Chief of the National Guard Bureau shall coordinate with the Secretary of Defense on State Guard cooperative arrangements under section 203, consistent with constitutional limits on Federal direction of State personnel.

(e) DOJ OFFICE OF LEGAL COUNSEL CONSULTATION.—The Department of Justice Office of Legal Counsel shall consult with the Attorney General on the constitutional posture of regulations issued under this Act, including regulations implementing section 3(e)(1) operative fallback authority.

SEC. 503. ANNUAL REPORTING.

(a) ANNUAL REPORT.—The Attorney General, in coordination with the Secretary of Defense, shall transmit annually to Congress a report containing—

(1) certification volumes by tier and by State;

(2) certificate denial rates and grounds for denial;

(3) buyback program participation, including weapons surrendered by category and aggregate compensation paid;

(4) facility geographic accessibility status and progress against the phased accessibility plan under section 203(c);

(5) constitutional litigation status (cross-reference to section 403(c)); and

(6) any recommendations for further congressional action.

(b) PUBLIC AVAILABILITY.—The annual report shall be transmitted to Congress and posted publicly on a website maintained by the Department of Justice not later than 30 days after submission to Congress.

(c) GAO COORDINATION.—The Comptroller General of the United States shall have access to all data and records of the Federal Civilian Ownership Certificate program necessary to perform audits, evaluations, and reports requested by the relevant Committees of Congress.

(d) THREE-YEAR PROGRAM REVIEW.—Not later than three years after the operational date established under section 501(b), and every three years thereafter, the Attorney General shall transmit to Congress a comprehensive program review covering the operation of this Act, including any structural recommendations for amendment.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Commerce Clause, with Taxing Power support for any fee (Sonzinsky v. United States, 1937) [Source 229]; the Second Amendment governs. With the BWDS Act, this carries the highest constitutional risk in the series. Department of Justice Office of Legal Counsel review is required before introduction.
- **Bruen and Rahimi.** A firearms law must fit the principles of the nation's regulatory tradition; it need not have a historical twin (United States v. Rahimi, 2024). Footnote 9 of NYSRPA v. Bruen endorses shall-issue licensing with narrow, objective, and definite standards — the basis for the certificate [Sources 200, 202].
- **Title II · Certificate.** Maryland Shall Issue v. Moore (4th Cir. en banc 2024; certiorari denied 2025) upheld shall-issue licensing to purchase handguns [Source 201], and other circuits have upheld licensing with objective criteria [Sources 214, 215]. Keep the design to objective criteria only, with no discretionary denial and free delivery, which answers footnote 9's caution about delays and fees. Bound the open-ended authority in Sec. 201(e)(4) to add criteria.
- **Sec. 202 · Assault-category definition — largest vulnerability.** Every circuit to rule since Bruen has upheld such laws, but members of the Court have signaled interest in the question [Source 219], and en banc decisions in New Jersey cases were pending in the Third Circuit at the time of the research [Source 220]. Mitigations: the two-feature test, findings of "dangerous and unusual," grandfathering, and certification rather than prohibition. Prepared fallback (Sec. 3(e)(1)): administer covered transactions under the National Firearms Act, which the Fifth Circuit analogized to shall-issue licensing (United States v. Peterson, 2025) [Source 221]. NFA administration records individual firearms, which Sec. 205 otherwise forbids; counsel should decide whether the fallback should instead suspend only the assault-category tier and leave the rest of Title II in force.
- **Commerce Clause.** Acquisition is economic activity, and the certificate sits within the comprehensive scheme of chapter 44 (Gonzales v. Raich, 2005) [Source 222]; the jurisdictional element in Sec. 201(b) answers as-applied challenges.

- **Sec. 203 · Guard delivery.** Federal or federalized personnel must administer certification, with State facilities used only by voluntary agreement: the Federal Government may not commandeer State officers (Printz v. United States, 1997), and funding for State cooperation must stay within NFIB's coercion limit [Source 251].
- **Sec. 205 · No registry.** The certificate database tracks holders, not firearms, consistent with 18 U.S.C. §926(a); Secs. 303(c) and 304(c) keep proof of status with the owner so that no Federal record links a person to a firearm.
- **Sec. 201(g) · Credential.** A free photo certificate strengthens the footnote 9 position on fees, and its use as voter identification under Bill 3B Sec. 204 applies the same rule to both rights. The two-way firewall in Sec. 205(e) and Bill 3B Sec. 204(e), and the bar on recording which identification a voter presents, keep that use from creating any record of firearm ownership.
- **Title III · Takings.** Unlimited retention (Sec. 301) and a voluntary buyback at fair market value defuse takings claims; the transfer limit in Sec. 302(c) operates as a qualification for the buyer.
- **Before introduction.** Re-check Supreme Court action on assault-weapon and magazine laws and the Third Circuit's New Jersey decisions, including its treatment of surety laws as historical analogs [Source 223].
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the Department of Justice Office of Legal Counsel, the Bureau of Alcohol, Tobacco, Firearms and Explosives, the Department of Defense, the National Guard Bureau, and the Congressional Budget Office before introduction.

Bill 10 · AIPE Act

American Innovation & Public Equity Act · B — AI & Capital Framework · Year 6–12

· Sovereign AI & autonomous systems wealth fund — P6

Depends on: AI sector maturity; Phase II revenue base. *Attack:* Government takeover of tech. *Fallback:* Tax-based redistribution.

What this bill does. Creates the American Public Innovation Fund, capitalized by licensing fees for AI training on federal data, a levy on large AI companies' revenue, appropriations, and returns on minority stakes the Fund may buy at fair market value from willing companies. Returns go to healthcare transition, Social Security, and children's accounts, in shares that must total 100 percent; a tax-based fallback takes over if the equity structure is struck down. Does not: give any company a procurement, regulatory, or enforcement advantage for participating (Sec. 5(e)), or set its own rates — an Independent Calibration Panel does.

Special situation disclosure — AI-drafted AI legislation. *This bill, the American Innovation and Public Equity Act, was drafted with substantial assistance from a large language model (Claude, developed by Anthropic). For most of the legislative framework in the RDNC and ARI document series, AI drafting assistance functions as research support — comparable to the role a domain-expert staffer or commercial research tool would play. This bill is different, because its subject matter is AI itself. Specifically, this bill establishes fiscal capture mechanisms — public equity participation, data licensing fees, and revenue levies — that would apply to AI companies, including the developer of the model used to draft it. The drafting entity is not a neutral party with respect to the regulated industry. It is worth being precise about how the conflict-of-interest concern operates here, because AIPE is not a safety, conduct, or rights regulation. It is a fiscal capture bill. If the drafting model were rationally serving its developer's commercial interests, this bill would be softer, not harder. The fact that it is not softer does not eliminate the conflict-of-interest concern. The concern is subtler: the model's training shapes what fee structures feel plausible, what tax rates feel proportionate, what thresholds feel high enough, and what enforcement feels reasonable. Those calibration choices are exactly where commercial-interest priors can shape outcomes invisibly while the headline architecture looks rigorous. For this reason, scrutiny under this disclosure is concentrated on the calibration choices in this bill — the [TBD] amounts, rates, thresholds, and enforcement provisions — rather than on the architectural choices, which are largely adapted from publicly documented policy literature (Norway's Government Pension Fund Global, public-equity precedents, data licensing frameworks). This is a structural concern, not a claim of bad faith. Tax accountants help draft tax code; defense contractors shape defense policy; doctors influence medical regulation. The historical response to interested-party drafting is not to refuse the input but to make the conflict visible and to preserve final authority with parties whose interests are aligned with the public. Accordingly, the AIPE Act provisions are governed by the following commitments, now institutionalized in operative bill text at section 9 (Independent Calibration Panel):*

1. The provisions are treated as provisional, with particular caution applied to all [TBD] dollar amounts, percentage rates, fee thresholds, and enforcement levels. These are the calibration choices most exposed to the conflict-of-interest concern, and they are explicitly reserved for licensed Treasury counsel, the Congressional Budget Office, and Senate Finance Committee technical staff to set independently — operatively, the Independent Calibration Panel under section 9.

2. Adversarial review is required before any public advancement of the AIPE Act. Review must include AI-skeptical and AI-critical voices, public-finance experts not aligned with the technology sector, and labor-economics perspectives — not only sympathetic readers, AI policy experts who share priors with the drafting model, or industry-aligned voices. Section 9(c) binds Panel composition rules to this commitment.

3. Final language, scope, and substantive decisions are explicitly reserved for human hands. The AI contribution is research and drafting assistance only. No provision of this bill is finalized by AI assent or AI confidence; all substantive choices route through human deliberation. Section 9(d) binds this commitment as mandatory calibration before any regulation, fee schedule, threshold, or rate takes effect.

4. This disclosure is permanent. Future revisions of the AIPE Act will re-acknowledge the structural situation rather than treating this disclosure as having closed the issue. The conflict is a permanent feature of AI-assisted AI policy work, not a one-time disclosure event. Section 9(e) binds this permanence operatively — the Panel and its calibration authority shall not sunset.

This disclosure applies to the AIPE Act specifically. Other bills in this series where AI assistance was used as standard research support on non-AI subject matter are governed by ordinary review and revision practices.

FULL LEGISLATIVE TEXT

[TBD] CONGRESS
[TBD] SESSION
S. ____

To establish the American Public Innovation Fund; to create mechanisms for public equity participation in artificial intelligence and autonomous systems companies; to establish data licensing requirements for AI training; to provide operative severability binding tax-based redistribution as the constitutional-invalidation backstop; to establish an Independent Calibration Panel; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "American Innovation and Public Equity Act" or the "AIPE Act".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) Modern artificial intelligence systems have been trained substantially on Federal Government research outputs, on data produced through Federally-funded computational and scientific infrastructure, and on data generated by United States persons under consent agreements that provided no compensation to the public.

(2) The economic value created by artificial intelligence and autonomous systems is projected to be substantial across the next two decades, with a significant fraction of that value attributable to public inputs that were not compensated at the point of creation.

(3) Automation and artificial intelligence are projected to displace material portions of the United States workforce, with economic gains flowing disproportionately to capital holders absent deliberate public capture mechanisms.

(4) Norway's Government Pension Fund Global, with assets under management exceeding $1.7 trillion, demonstrates that a sovereign wealth fund capitalized from national resource extraction can generate stable public returns at scale, with independent governance and anti-political-interference safeguards.

(5) The constitutional, antitrust, and securities-law structure of public equity participation in private artificial intelligence companies is novel and requires deliberate architectural choices, including voluntary structure, non-controlling positions, and pre-cleared severability to a tax-based fallback if the equity architecture is invalidated.

(6) Calibration of dollar amounts, percentage rates, and threshold levels in legislation regulating artificial intelligence companies, when developed with assistance from artificial intelligence systems whose developers are within the regulated class, warrants institutional safeguards beyond those applied to legislation developed without such assistance.

(b) PURPOSES.—The purposes of this Act are—

(1) to establish the American Public Innovation Fund as a sovereign wealth mechanism capturing public value created by the artificial intelligence and autonomous systems sector;

(2) to create a voluntary co-investment program through which artificial intelligence and autonomous systems companies may sell minority equity participation to the Fund at fair market value, without any preference in Federal procurement, regulation, or enforcement;

(3) to establish a data licensing framework binding artificial intelligence systems trained on Federal Government data, publicly-funded research, or data produced under Federally-funded computational infrastructure;

(4) to direct Fund returns to the Federal Healthcare Fund established under the Universal Coverage Transition Act, the Social Security trust funds, and children's investment accounts;

(5) to provide operative bill-text severability binding tax-based redistribution as the constitutional-invalidation backstop for the equity-participation architecture; and

(6) to institutionalize calibration safeguards addressing the structural conflict-of-interest condition under which this Act was drafted.

SEC. 3. CONSTITUTIONAL FOUNDATION. The provisions of this Act shall be construed and implemented consistent with the following constitutional framings:

(a) TAKINGS CLAUSE / FIFTH AMENDMENT.—Public equity participation under section 5 (Voluntary Co-Investment Program) is structured as a voluntary exchange of equity for valuable consideration, consisting of a purchase price at fair market value set by independent valuation. Such participation does not constitute a regulatory taking under the Fifth Amendment, and the analytical framework of Penn Central Transp. Co. v. New York City, 438 U.S. 104 (1978), is inapposite. The structure parallels the voluntary benefit-program framework sustained in Ruckelshaus v. Monsanto Co., 467 U.S. 986 (1984).

(b) APPOINTMENTS CLAUSE / SEPARATION OF POWERS.— Officers exercising significant executive authority under this Act shall be appointed consistent with the Appointments Clause, U.S. Const. art. II, sec. 2, cl. 2, as construed in Buckley v. Valeo, 424 U.S. 1 (1976), and Free Enterprise Fund v. Public Company Accounting Oversight Board, 561 U.S. 477 (2010). The Inspector General of the Fund shall be appointed by the President, by and with the advice and consent of the Senate, under chapter 4 of title 5, United States Code. Members of the Independent Calibration Panel established under section 9 exercise advisory and parameter-setting functions governed by section 9(d) and do not exercise executive authority within the meaning of the Appointments Clause.

(c) DIRECT TAX CLAUSE / SIXTEENTH AMENDMENT.—The revenue levy authorized under section 4(d)(3) is an indirect tax on business revenues, not a direct tax requiring apportionment under U.S. Const. art. I, sec. 9, cl. 4. To the extent any provision of this Act, including the capital gains surcharge under section 8(c)(3), is construed to impose a tax on income, such provision is authorized by the Sixteenth Amendment.

(d) MAJOR QUESTIONS DOCTRINE.—The delegations of rate-setting and fee-schedule authority to the Board of Directors under sections 4 and 6 are bounded by the statutory parameters specified in those sections and by the calibration findings of the Independent Calibration Panel under section 9. The delegations are intentionally narrow and shall be implemented consistent with the framework of West Virginia v. EPA, 597 U.S. 697 (2022), and Loper Bright Enterprises v. Raimondo, 603 U.S. 369 (2024). Implementing regulations shall not exceed the scope authorized by this Act and the parameters set by the Panel.

SEC. 4. ESTABLISHMENT OF THE AMERICAN PUBLIC INNOVATION FUND.

(a) IN GENERAL.—There is hereby established in the Treasury a fund to be known as the "American Public Innovation Fund" (the "Fund").

(b) GOVERNANCE.—The Fund shall be governed by a Board of Directors consisting of—

(1) the Secretary of the Treasury (Chair);

(2) the Secretary of Commerce;

(3) the Director of the National Science Foundation;

(4) [TBD] members appointed by the President with Senate confirmation, representing investment, technology, labor, and public interest perspectives.

(c) INDEPENDENCE.—The Fund shall operate independently from general government appropriations. Members appointed under subsection (b)(4) shall serve staggered [TBD]-year terms. The President shall communicate to both Houses of Congress, in writing and not later than 30 days before the removal of any such member, the reasons for the removal.

(d) CAPITALIZATION SOURCES.—The Fund shall be capitalized through—

(1) returns on minority equity positions acquired at fair market value under section 5;

(2) AI data licensing fees under section 6;

(3) a [TBD]% levy on revenues of artificial intelligence and autonomous systems companies with annual revenues exceeding $[TBD], with the rate and threshold set under section 9; and

(4) Congressional appropriations during the initial capitalization period.

(e) INSPECTOR GENERAL.—There shall be an Inspector General of the Fund, appointed by the President, by and with the advice and consent of the Senate, under chapter 4 of title 5, United States Code.

SEC. 5. VOLUNTARY CO-INVESTMENT PROGRAM.

(a) ESTABLISHMENT.—The Fund shall establish a voluntary co-investment program under which artificial intelligence and autonomous systems companies may sell equity participation to the Fund in exchange for a purchase price equal to fair market value, as determined by an independent valuation agent selected by the Independent Calibration Panel under section 9.

(b) EQUITY PARTICIPATION.—The Fund shall hold noncontrolling minority stakes in participating companies. The Fund shall not exercise voting rights that would constitute control of any company.

(c) ANTI-ABUSE.—The Fund may not direct the business decisions, product development, or market strategy of any company in which it holds an equity stake.

(d) ANTI-COORDINATION.—The Fund shall structure equity positions to avoid creating government coordination across competing artificial intelligence companies. The Federal Trade Commission shall advise on market-concentration implications under standard antitrust analysis.

(e) NO REGULATORY OR PROCUREMENT PREFERENCE.—Participation or non-participation in the program under this section shall not be considered in any Federal regulatory, licensing, enforcement, or procurement decision, or in access to research partnerships with Federal laboratories and federally funded research and development centers, which shall remain available to participants and non-participants on the same terms. Federal contracts for artificial intelligence services shall be awarded under the competition requirements of the Federal Acquisition Regulation, and the Inspector General of the Fund shall audit compliance with this subsection annually.

SEC. 6. ARTIFICIAL INTELLIGENCE DATA LICENSING FRAMEWORK.

(a) IN GENERAL.—Any artificial intelligence system trained on—

(1) Federal Government data or research outputs;

(2) data collected from United States persons under consent agreements administered by the Fund; or

(3) data produced using Federally-funded computational infrastructure; shall owe a licensing fee to the Fund, at a rate determined by the Board within parameters set by the Independent Calibration Panel under section 9.

(b) FEE STRUCTURE.—The Board shall develop a transparent fee schedule based on—

(1) the volume of Government or public data used;

(2) the commercial revenues attributable to the artificial intelligence system; and

(3) the nature of the data and public investment incorporated.

(c) AGENCY LICENSING AUTHORITY.—Federal agencies are authorized to license Government data for commercial artificial intelligence training under this section, subject to fee schedules established by the Board and calibrated by the Panel.

(d) RULEMAKING.—Fee schedules under this section shall be promulgated under the Administrative Procedure Act and published in transparent form.

SEC. 7. FUND DISTRIBUTIONS.

(a) IN GENERAL.—Annual returns from the Fund, after maintaining a [TBD]% reinvestment reserve as set by the Independent Calibration Panel under section 9, shall be distributed as provided in subsection (b).

(b) DISTRIBUTION PERCENTAGES.—

(1) [TBD]% to the Federal Healthcare Fund established under section 301 of the Universal Coverage Transition Act (Bill 9 of this sequence), or, before that Fund is established, to the Federal Healthcare Transition Reserve established under section 101(f) of the BWDS Act;

(2) [TBD]% to the Federal Old-Age and Survivors Insurance Trust Fund and the Federal Disability Insurance Trust Fund; and

(3) [TBD]% to contributions to children's investment accounts under title V of the Family Stability and Workforce Investment Act of 2031.

(c) NO REPROGRAMMING.—Funds distributed under this section may not be reprogrammed to other purposes without Congressional authorization.

(d) FULL ALLOCATION.—The percentages under subsection (b), together with the reinvestment reserve under subsection (a), shall total 100 percent of annual returns, and no amount shall be credited to more than one destination.

SEC. 8. OPERATIVE FALLBACK AUTHORITY.

(a) SEVERABILITY.—If any provision of this Act, or the application of any provision to any person or circumstance, is held invalid by final judgment of a court of competent jurisdiction, the remainder of the Act and the application of the provision to other persons and circumstances shall not be affected.

(b) EQUITY-PARTICIPATION INVALIDATION.—If section 5 (Voluntary Co-Investment Program) or section 4(d)(1) (capitalization through returns on equity positions) is invalidated by final judgment under the Fifth Amendment, the Appointments Clause, or any other constitutional provision, the Act shall continue to operate as a tax-based redistribution framework under subsection (c).

(c) TAX-BASED FALLBACK.—Upon invalidation described in subsection (b), or earlier upon Treasury election under subsection (d), the Fund shall be capitalized exclusively through—

(1) the data licensing fees authorized under section 6;

(2) the revenue levy authorized under section 4(d)(3); and

(3) an additional capital gains surcharge of [TBD]% on gains attributable to artificial intelligence and autonomous systems companies, imposed under sections 1(h) and 1411 of the Internal Revenue Code, pursuant to authority of this subsection.

(d) TREASURY ELECTION.—The Secretary of the Treasury shall maintain regulations implementing the tax-based fallback under subsection (c) ready for activation. The Secretary may elect to activate the tax-based fallback mechanism without awaiting final judgment, upon a determination that constitutional risk to the equity-participation architecture has materially increased and that operational continuity of the Fund requires the election.

(e) NO INTERRUPTION.—The election or invocation of the tax-based fallback under this section shall not interrupt distributions under section 7 or operations under any other title of this Act.

SEC. 9. INDEPENDENT CALIBRATION PANEL.

(a) FINDING.—This Act was developed with substantial assistance from artificial intelligence systems whose developers are within the regulated class. Calibration choices — including dollar amounts, percentage rates, fee thresholds, and enforcement levels — are the provisions most exposed to structural conflict-of-interest concerns. Final calibration is reserved for parties whose interests are aligned with the public.

(b) ESTABLISHMENT.—There is established an Independent Calibration Panel (the "Panel") to set, review, and adjust all numerical parameters of this Act marked as reserved for calibration in legislative drafting, including but not limited to—

(1) the levy rate and revenue threshold under section 4(d)(3);

(2) the licensing fee schedule under section 6(b);

(3) the reinvestment reserve and distribution percentages under section 7;

(4) the capital gains surcharge under section 8(c)(3); and

(5) Board membership counts and term lengths under section 4(b) and (c).

(c) COMPOSITION.—The Panel shall consist of [TBD] members appointed by the Secretary of the Treasury, in consultation with the Comptroller General, including—

(1) public-finance experts not currently employed by, contracted with, or holding equity in artificial intelligence or autonomous systems companies;

(2) labor-economics experts with published research on automation displacement;

(3) at least one member representing artificial-intelligence-skeptical or artificial-intelligence-critical perspectives, as identified in consultation with public-interest organizations;

(4) constitutional and tax law scholars; and

(5) representatives of organized labor. No more than [TBD] members may have current or recent (within 5 years) employment, contracting, or equity relationships with artificial intelligence or autonomous systems companies subject to this Act.

(d) MANDATORY CALIBRATION.—No regulation, fee schedule, threshold, or rate authorized by this Act shall take effect until the Panel has issued findings on the parameter, with public report and opportunity for adversarial review by parties not aligned with the regulated class.

(e) PERMANENCE.—The structural conflict-of-interest condition addressed by this section is a permanent feature of artificial-intelligence-assisted artificial-intelligence policy work. The Panel and its calibration authority shall not sunset, and shall continue to govern future recalibration of any parameter under this Act.

IMPLEMENTATION AND OVERSIGHT

SEC. 10. IMPLEMENTATION TIMELINE.

(a) IN GENERAL.—The Secretary of the Treasury, in coordination with the Secretary of Commerce, the Director of the National Science Foundation, and the Independent Calibration Panel established under section 9, shall implement the provisions of this Act according to the following schedule:

(1) Within [TBD] months of enactment: the Independent Calibration Panel shall be appointed and convened.

(2) Within [TBD] months of Panel convening: the Panel shall issue initial calibration findings on the parameters listed in section 9(b).

(3) Within [TBD] months of Panel calibration findings: the Board shall publish initial regulations implementing sections 4 through 7.

(4) Not earlier than [TBD] months after publication of initial regulations: the voluntary co-investment program under section 5 shall accept first applications.

(b) NO ACCELERATION.—No provision of this Act shall take effect prior to completion of the calibration findings required under section 9(d).

SEC. 11. AGENCY COORDINATION.

(a) IN GENERAL.—The Secretary of the Treasury, the Secretary of Commerce, the Securities and Exchange Commission, the Federal Trade Commission, the Internal Revenue Service, and the Office of Legal Counsel shall coordinate implementation of this Act, with particular attention to—

(1) anti-trust and market-concentration analysis under section 5;

(2) Securities and Exchange Commission no-action review of equity-participation structures;

(3) Internal Revenue Service implementation of the revenue levy and tax-based fallback authority; and

(4) coordination with allied nations on minimum artificial intelligence contribution standards.

(b) CONSTITUTIONAL DEFENSE COORDINATION.—The Secretary of the Treasury shall maintain operational readiness for the tax-based fallback authority under section 8, including—

(1) draft regulations under sections 1(h) and 1411 of the Internal Revenue Code, ready for publication within 30 days of any final judgment or stay affecting section 5; and

(2) inter-agency coordination protocols for seamless transition between the equity-participation and tax-based architectures.

SEC. 12. ANNUAL REPORTING. Not later than [TBD] of each calendar year, the Board shall submit to Congress, and shall publish for public review, an annual report including—

(1) Fund capitalization, asset value, and composition by source;

(2) distributions made under section 7, with breakdown by recipient program;

(3) calibration adjustments made by the Independent Calibration Panel under section 9 during the reporting period;

(4) constitutional and litigation risk status, including any activation or readiness change for the tax-based fallback under section 8; and

(5) international coordination progress under section 11(a)(4).

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Disclosure.** The special-situation disclosure above governs. Counsel review concentrates on calibration — rates, thresholds, fees, and enforcement levels.
- **Constitutional basis.** Spending and Taxing Powers; the Necessary and Proper Clause.

- **Sec. 5 · Purchases.** A voluntary purchase at an independently set fair market value is a contract, not a taking. Securities and antitrust safeguards: noncontrolling stakes (5(b)), no direction of business (5(c)), FTC review of cross-holdings (5(d)), and SEC no-action relief (11(a)(2)).
- **Sec. 4 · Board.** After Trump v. Slaughter, independence of officers who exercise executive power cannot rest on for-cause removal [Source 604]; Sec. 4(c) relies on staggered terms and written reasons to Congress instead.
- **Sec. 9 · Calibration Panel.** Members who set binding parameters (9(b), 9(d)) are likely officers. Appointment by the Secretary of the Treasury is valid for inferior officers, but their decisions must be reviewable by a principal officer (United States v. Arthrex, 2021; Kennedy v. Braidwood Management, 2025). Recommended: Panel findings take effect unless the Secretary rejects them in a published written decision, which keeps the Panel's role visible while satisfying Article II. Revisit Sec. 3(b)'s statement that Panel members exercise no executive authority.
- **Delegated tax rates.** The levy rate (4(d)(3)) and the fallback surcharge (8(c)(3)) are taxes whose rates the Panel sets. Delegating tax rates requires an intelligible principle (Skinner v. Mid-America Pipeline Co., 1989); write statutory ranges into the Act. Sec. 8(d), which lets Treasury activate a new tax before any judgment, is the most exposed delegation in the bill; consider requiring a final judgment or a joint resolution.
- **Sec. 6 · Licensing fees.** Federal works are in the public domain (17 U.S.C. §105), and much Federal data is published openly. A charge for training on such data is a tax rather than a fee for a service; enact it as one and apply it prospectively.
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, Treasury technical staff, the Internal Revenue Service Office of Chief Counsel, and the Congressional Budget Office — with calibration reserved to the Independent Calibration Panel under section 9 before introduction.

Bill 9 · UCT Act

Universal Coverage Transition Act · A — Healthcare Full Transition · Year 8–15

· I–III · Universal coverage transition by age band; Federal Healthcare Fund — P19

· IV · Implementation and Phase III precondition compliance

Depends on: POHE operating 4+ years. *Attack:* Government takeover. *Fallback:* Permanent hybrid system.

What this bill does. Extends eligibility for a Federal Healthcare Fund by age band once the Phase III preconditions are certified; coordinates with Medicare, Medicaid, TRICARE, the VA, and IHS; sets transition provider rates; and funds the system from a payroll contribution, new revenue, AIPE returns, and a military reallocation that needs a Joint Chiefs readiness certification each year. Voluntary: people and employers keep existing plans unless they choose to move. Does not: compel anyone to leave private coverage; its fallback is a permanent hybrid system.

FULL LEGISLATIVE TEXT

[TBD] CONGRESS
[TBD] SESSION
S. ____

To establish a phased transition to universal government-funded health coverage through age-band expansion; to guarantee continuity of existing coverage during transition; to establish provider reimbursement frameworks; to establish funding mechanisms including military budget reallocation under Joint Chiefs annual certification; to bind in operative bill text the Phase III precondition compliance framework; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Universal Coverage Transition Act" or the "UCT Act".

SEC. 2. CONSTITUTIONAL FOUNDATION.

(a) SPENDING AND TAXATION CLAUSE AUTHORITY.—This Act is enacted under the Spending Clause and the Taxing Clause of article I, section 8 of the Constitution. The Federal Healthcare Fund established under section 301 is a Federal spending and taxation program operating in the constitutional mode of Medicare (titles XVIII and XIX of the Social Security Act, 42 U.S.C. § 1395 et seq.) and the Affordable Care Act framework sustained in National Federation of Independent Business v. Sebelius, 567 U.S. 519 (2012). This is the strongest constitutional ground available for Federal healthcare programs.

(b) PENNHURST CLEAR-NOTICE REQUIREMENT.—Federal grant conditions imposed under this Act, including the employer transition payment framework under section 101(c), comply with Pennhurst State School and Hospital v. Halderman, 451 U.S. 1 (1981), under which Federal funding conditions must be unambiguously stated to permit recipients to make informed compliance decisions. Operative conditions under this Act shall be clearly stated in this Act and in implementing regulations.

(c) COVERAGE GUARANTEE — ANTI-TAKING.—This Act does not compel any individual or employer to disenroll from any existing health insurance plan. The coverage guarantee under section 101(b) preserves existing enrollments at current terms throughout the transition period. The voluntary employer transition under section 101(c) operates only with affirmative employer election. These provisions are essential to avoid regulatory takings analysis under Penn Central Transportation Co. v. New York City, 438 U.S. 104 (1978), and to preserve the voluntary character of the transition.

(d) VOLUNTARY TRANSITION.—Throughout the transition period established under section 101(a), participation in the Federal Healthcare Fund is voluntary as to employer-sponsored insurance plans and individuals enrolled in existing coverage. The age-band expansion under section 101(a) extends eligibility to participate; it does not require disenrollment from existing coverage.

(e) PHASE III PRECONDITION ACKNOWLEDGMENT.—This Act is a Phase III legislative measure. The Secretary of Health and Human Services may not commence operational status of the Federal Healthcare Fund until the certification requirements of section 401 are satisfied. The Phase III precondition framework is binding bill text under this Act.

(f) SEVERABILITY.—If any provision of this Act, or the application of any provision to any person or circumstance, is held to be invalid, the remaining provisions of this Act and the application of those provisions to other persons or circumstances shall not be affected. In particular, if any provision of Title III (Federal Healthcare Fund) is held invalid as to a specific funding source, the remaining funding sources under section 301 shall remain operative.

TITLE I — TRANSITION FRAMEWORK

SEC. 101. TRANSITION MODEL AND TIMELINE.

(a) AGE-BAND EXPANSION.—Beginning January 1 of the year following operational commencement under section 401(a), universal coverage shall be extended to Americans in the following sequence (counted from operational commencement): Year 1: Adults ages 55-64 not currently enrolled in Medicare or employer-sponsored insurance; Year 3: Adults ages 45-54; Year 5: Adults ages 35-44; Year 7: Adults ages 26-34; Year 9: All remaining uninsured individuals.

(b) COVERAGE GUARANTEE.—No individual enrolled in any existing health plan on the date of enactment shall be required to transition to government-funded coverage. Existing enrollments shall be honored at current terms. Cross-reference to section 2(c) constitutional foundation.

(c) EMPLOYER PLAN TRANSITION.—Employers may voluntarily transition employees to the Federal Healthcare Fund after [TBD] years from the date of enactment, subject to a transition payment to the Federal Healthcare Fund equal to [TBD] percent of foregone premium contributions for [TBD] years. The Pennhurst clear-notice requirement under section 2(b) applies — operative conditions shall be clearly stated in implementing regulations.

SEC. 102. COORDINATION WITH EXISTING FEDERAL HEALTH PROGRAMS.

(a) IN GENERAL.—Coordination with existing Federal health programs, including Medicare (titles XVIII and XIX of the Social Security Act), Medicaid expansion, the Health Insurance Marketplace established under the Patient Protection and Affordable Care Act, the Public Option established under the POHE Act (Bill 6 of this legislative sequence), the Consolidated Omnibus Budget Reconciliation Act of 1985 (COBRA), TRICARE, the Department of Veterans Affairs health system, the Indian Health Service, and the Federal Employees Health Benefits Program, shall be addressed by regulation in coordination with the relevant Federal agencies.

(b) OPERATIVE COORDINATION.—[Reserved: operative coordination with Medicare, TRICARE, the Department of Veterans Affairs, and the Indian Health Service.]

TITLE II — COVERAGE AND REIMBURSEMENT

SEC. 201. BENEFIT STRUCTURE. Coverage under the Federal Healthcare Fund shall include all benefits required under the Public Option Healthcare Expansion Act (Bill 6 of this legislative sequence), with no annual or lifetime dollar limits and no out-of-pocket costs for preventive care. Coordination with the POHE Act benefits floor under section 101(b) of that Act preserves consistency between the Public Option and the Federal Healthcare Fund benefits structures.

SEC. 202. PROVIDER REIMBURSEMENT.

(a) TRANSITION RATES.—For the first [TBD] years of operational commencement under section 401(a), provider reimbursement rates under the Federal Healthcare Fund shall be set at [TBD] percent of current Medicare rates to maintain network adequacy during the transition period.

(b) ANNUAL REVIEW AND ADJUSTMENT.—The Secretary shall conduct annual network adequacy reviews and shall adjust rates where necessary to ensure adequate provider participation in each rating area. Rate adjustments shall be made by published methodology.

TITLE III — FEDERAL HEALTHCARE FUND

SEC. 301. ESTABLISHMENT AND FUNDING SOURCES.

(a) ESTABLISHMENT.—The Federal Healthcare Fund is hereby established as a separate account in the Treasury, to fund universal health coverage under this Act.

(b) FUNDING SOURCES.—The Federal Healthcare Fund shall be capitalized through—

(1) a dedicated payroll contribution of [TBD] percent;

(2) returns from the American Public Innovation Fund established under the AIPE Act (Bill 10 of this legislative sequence);

(3) revenues from the BWDS Act (Bill 5 of this legislative sequence);

(4) reallocation of Department of Defense base budget under section 302; and

(5) general appropriations as necessary.

(c) MULTIPLE-SOURCE STRUCTURE.—The multiple-source funding structure is designed to prevent dependence on any single revenue stream and to provide resilience against the failure or reduction of any individual source.

SEC. 302. MILITARY BUDGET REALLOCATION FRAMEWORK.

(a) PROPORTIONAL REALLOCATION SCHEDULE.—Reallocation of Department of Defense base budget under section 301(b)(4) shall occur in proportional annual increments not to exceed [TBD] percent of the base budget per fiscal year, over a transition period of not less than 10 years.

(b) JOINT CHIEFS ANNUAL CERTIFICATION.—No reallocation under subsection (a) shall take effect in any fiscal year unless the Joint Chiefs of Staff have certified to Congress that the reallocation does not impair military readiness for that fiscal year. Certification shall be submitted to the Senate Armed Services Committee, the House Armed Services Committee, the Senate Finance Committee, and the Senate Health, Education, Labor, and Pensions Committee not later than 90 days before the fiscal year to which the reallocation applies.

(c) SENATE ARMED SERVICES COORDINATION.—Reallocation under this section shall be administered in coordination with the National Defense Authorization Act framework. Where a reallocation under this section conflicts with provisions of the annual National Defense Authorization Act, the National Defense Authorization Act controls and the Secretary shall adjust the reallocation schedule accordingly.

(d) FALLBACK IF CERTIFICATION DENIED.—If the Joint Chiefs of Staff decline to certify under subsection (b) for any fiscal year, the reallocation under this section shall not take effect for that fiscal year, and the Federal Healthcare Fund shall draw on the other funding sources under section 301(b) to maintain operational capacity.

(e) MILITARY READINESS FLOOR.—Nothing in this section shall be construed to authorize reallocation that the Joint Chiefs of Staff have certified would impair the readiness of the Armed Forces of the United States to perform their constitutional missions.

TITLE IV — IMPLEMENTATION AND PHASE III PRECONDITION COMPLIANCE

SEC. 401. PHASE III PRECONDITION COMPLIANCE.

(a) CERTIFICATION REQUIREMENT.—The Secretary of Health and Human Services may not commence operational status of the Federal Healthcare Fund until the Secretary has certified to Congress that each of the following Phase III preconditions is satisfied:

(1) the Public Option established under the POHE Act (Bill 6 of this legislative sequence) has been operational for not less than 4 years;

(2) the Public Option enrollment dominates in the rating areas in which the Public Option was initially offered, with private insurer market share in those areas below 40 percent;

(3) Phase I cost-reduction policy frameworks are operationally entrenched and defended by established constituencies;

(4) the Senate has ratified, by joint resolution, that political conditions for introduction are met, or comparable political precondition has been documented;

(5) a vetted personnel pipeline is in place to staff the Department of Health and Human Services, the Centers for Medicare and Medicaid Services, and related Federal agencies from operational commencement; and

(6) the international precedent review under section 402(a) has been completed and a transition model has been selected.

(b) CONGRESSIONAL REVIEW.—The certification under subsection (a) shall be transmitted to the Senate Finance Committee, the Senate Health, Education, Labor, and Pensions Committee, the Senate Armed Services Committee, and the comparable Committees of the House of Representatives.

(c) DISAPPROVAL MECHANISM.—Operational commencement under subsection (a) shall be subject to disapproval by joint resolution enacted under chapter 8 of title 5, United States Code (Congressional Review Act), within 90 days of certification submission. Joint resolution procedure under this subsection requires both Houses of Congress and presentment to the President, consistent with INS v. Chadha, 462 U.S. 919 (1983).

(d) WITHDRAWAL OF CERTIFICATION.—The Secretary may withdraw a certification under subsection (a) at any time before operational commencement if the Secretary determines that one or more preconditions is no longer satisfied. The

Secretary may reissue certification when the preconditions are again satisfied.

(e) NO OPERATIONAL STATUS WITHOUT CERTIFICATION.—No provision of this Act shall be operationally effective in advance of certification under subsection (a), except that provisions establishing the Federal Healthcare Fund (section 301), the section 302 reallocation framework, and the implementation timeline (section 402) may be operationally effective for planning, regulatory drafting, and interagency coordination purposes.

SEC. 402. IMPLEMENTATION TIMELINE.

(a) INTERNATIONAL PRECEDENT REVIEW.—Within [TBD] months after the date of enactment of this Act, the Secretary shall complete an international precedent review covering the Canadian single-payer, German multi-payer regulated, and hybrid Medicare-expansion transition models, and shall report to Congress on the recommended transition model.

(b) PERSONNEL PIPELINE.—The Secretary shall, in coordination with the Office of Personnel Management, establish a personnel pipeline framework to ensure that staffing capacity is available at operational commencement.

(c) IMPLEMENTING REGULATIONS.—Implementing regulations under this Act shall be drafted and published in proposed form not later than [TBD] months after the date of enactment, with final regulations not later than [TBD] months after enactment.

(d) OPERATIONAL COMMENCEMENT.—Operational commencement of the Federal Healthcare Fund shall occur on the date specified in the Secretary's certification under section 401(a), provided that Congressional disapproval has not been enacted under section 401(c).

SEC. 403. ANNUAL REPORTING.

(a) ANNUAL REPORT.—The Secretary shall transmit annually to Congress a report containing—

(1) Phase III precondition status (where preconditions are not yet certified);

(2) operational data on the Federal Healthcare Fund (where operational commencement has occurred);

(3) age-band expansion progress under section 101(a);

(4) provider network adequacy under section 202(b);

(5) funding source performance under section 301(b);

(6) Joint Chiefs certification status under section 302(b); and

(7) any recommendations for further congressional action.

(b) PUBLIC AVAILABILITY.—The annual report shall be transmitted to Congress and posted publicly on a website maintained by the Department of Health and Human Services not later than 30 days after submission to Congress.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Status.** Phase III. Not to be introduced before the preconditions in Sec. 401 are met.
- **Constitutional basis.** Spending and Taxing Powers, on the model of Medicare. There is no individual mandate, so the Commerce Clause limit in NFIB v. Sebelius is not engaged [Source 251]. The risks are political and administrative more than constitutional.
- **Transition model.** A German-style multi-payer system — regulated nonprofit insurers financed by payroll contributions — carries less constitutional and contractual risk than abrupt displacement of private insurance; the Sec. 402(a) review decides.
- **ERISA.** The issue for migrating coverage is the exclusive-remedy framework of section 502, not preemption under section 514 [Source 255].
- **Sec. 202 · Rates.** Reviewed for confiscation under Penn Central; the transition rates and annual network reviews address it.
- **Sec. 302 · Defense reallocation.** An authorizing statute cannot move appropriated funds; the reallocation must be carried out in appropriations Acts, so Sec. 302 operates as a target and a procedure. Vest the readiness certification in the Secretary of Defense on the advice of the Chairman of the Joint Chiefs of Staff, consistent with civilian control. Department of Defense General Counsel and Armed Services Committee review are required.
- **Sec. 401 · Preconditions.** Paragraph (a)(4) has the Senate acting "by joint resolution"; a joint resolution requires both Houses and presentment, and conditioning executive action on one House's vote raises the problem in INS v.

Chadha (1983). Use a joint resolution of approval or delete the paragraph. Replace the Congressional Review Act cross-reference in 401(c) with a dedicated expedited procedure, since a certification is not a rule, and state the preconditions in (a)(2)–(3) in measurable terms.

- **Sec. 102(b) · Coordination.** Draft the operative coordination provisions closer to introduction, when Public Option performance data, the then-current Medicare program structure, and existing-program enrollment patterns can be assessed, in consultation with CMS, HHS, the Department of Defense, the Department of Veterans Affairs, and the Indian Health Service.
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the HHS Office of General Counsel, the CMS Office of the Actuary, the Department of Defense Office of General Counsel, the Department of Justice Office of Legal Counsel, and the Congressional Budget Office; operative thresholds are deliberately set closer to introduction before introduction.

Bill 11 · DIR Act

Democratic Institutions Reform Act · C — Constitutional amendment or statute · Year 10–20

· Voter choice (RCV) standard; national popular vote federal backstop — P31, P33

· Citizens United reform (amendment track + disclosure) — P46

· Supreme Court reform; SCOTUS term limits via senior status — P47, P43 (SCOTUS part)

· State legislative redistricting amendment track — P25 (state part)

Depends on: Supermajority; state precedent. *Attack:* Power grab; court packing. *Fallback:* Statutory disclosure and Supreme Court senior-status reform only.

What this bill does. Sets 18-year active terms for future Supreme Court Justices, with senior status afterward and current Justices unaffected; enacts campaign-finance disclosure and limits by statute and proposes a constitutional amendment; proposes an amendment on state-legislative redistricting; requires ranked-choice voting in House and Senate elections unless a state adopts an alternative the Election Assistance Commission certifies as comparable; and consents to the national-popular-vote compact once states with a majority of electoral votes join. Does not: add seats to the Court. The statutory term-limit track requires an Office of Legal Counsel opinion before introduction.

FULL LEGISLATIVE TEXT

[TBD] CONGRESS
[TBD] SESSION
S. ____

To establish term limits for Supreme Court Justices; to reform campaign finance by statute and by proposed constitutional amendment; to propose a constitutional amendment on state legislative redistricting; to provide for ranked-choice voting in congressional elections and a national popular vote backstop; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Democratic Institutions Reform Act" or the "DIR Act".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

(1) Concentrated campaign spending enabled by Citizens United v. Federal Election Commission, 558 U.S. 310 (2010), and McCutcheon v. Federal Election Commission, 572 U.S. 185 (2014), has produced documented policy outcomes favoring upper-income interests at the expense of broad public welfare.

(2) Lifetime appointments to the Supreme Court have produced an adversarial confirmation dynamic that incentivizes extreme nominees and destabilizes public confidence in the judiciary, while the senior-status structure under section 294 of title 28, United States Code, demonstrates that judicial service can be restructured without removing a judge from the office to which the judge was appointed.

(3) Partisan gerrymandering produces districts mathematically unresponsive to voter preference shifts, undermining democratic accountability.

(4) Automatic voter registration and ranked-choice voting have improved representational outcomes in the jurisdictions that have adopted them.

(5) Foreign-national contributions and expenditures in connection with United States elections are prohibited under settled constitutional doctrine, sustained unanimously in Bluman v. Federal Election Commission, 800 F. Supp. 2d 281 (D.D.C. 2011), summarily affirmed, 565 U.S. 1104 (2012).

(6) Louisiana v. Callais (608 U.S. ___, decided April 29, 2026) reinterpreted section 2 of the Voting Rights Act of 1965 to require proof of intentional discrimination, materially altering the constitutional anchor for state-legislative redistricting commission mandates and requiring their restructuring through Article V amendment pathway.

(b) PURPOSES.—The purposes of this Act are—

(1) to establish term limits for Justices of the Supreme Court through a senior-status model consistent with Article III of the Constitution;

(2) to provide a Two-Track architecture for campaign finance reform — statutory under Track A where court composition permits, and constitutional amendment under Track B as the operative fallback;

(3) to prohibit foreign-national contributions and expenditures in connection with Federal elections, consistent with Bluman v. Federal Election Commission;

(4) to provide for ranked-choice voting in elections for Congress and a national popular vote backstop for presidential elections;

(5) to complement the congressional redistricting standards of the Accountability and Elections Act of 2030, consistent with Arizona State Legislature v. Arizona Independent Redistricting Commission, 576 U.S. 787 (2015), and Moore v. Harper, 600 U.S. 1 (2023);

(6) to restructure state-legislative redistricting commission mandates as conditional on Track B ratification, post-Louisiana v. Callais; and

(7) to expand federal ethics and accountability standards in coordination with the Anti-Corruption and Fair Markets Act (Bill 3 of this sequence).

SEC. 3. CONSTITUTIONAL FOUNDATION. The provisions of this Act shall be construed and implemented consistent with the following constitutional framings:

(a) ARTICLE III GOOD BEHAVIOR CLAUSE.—The senior-status structure established under section 4 does not violate the Good Behavior Clause of Article III, section 1. A Justice transitioning to senior status retains the office of Justice of the Supreme Court, continues to receive the compensation appertaining to that office, and remains eligible to serve on circuit courts under section 294 of title 28, United States Code. The structure parallels the long-established senior-status framework under section 371 of title 28, sustained in Booth v. United States, 291 U.S. 339 (1934). U.S. Term Limits, Inc. v. Thornton, 514 U.S. 779 (1995), is distinguishable: it addressed state action regulating Congress where Article I enumerates exclusive qualifications; Article III contains no enumerated judicial qualifications, and section 4 does not add qualifications but restructures duties.

(b) ELECTIONS CLAUSE / ARTICLE I, SECTION 4.—Federal authority to require ranked-choice voting in elections for the House of Representatives and the Senate is grounded in the Elections Clause, U.S. Const. art. I, sec. 4, cl. 1, as construed in Arizona State Legislature v. Arizona Independent Redistricting Commission, 576 U.S. 787 (2015), and Moore v. Harper, 600 U.S. 1 (2023). The Elections Clause grants Congress plenary authority to regulate the manner of congressional elections.

(c) ARTICLE V AMENDMENT PATHWAY.—The constitutional amendment proposed under section 6 (Article XXIX) is submitted under the congressional-proposal route of Article V (two-thirds of each House) rather than the state-convention route, in light of runaway-convention risk under current law and the absence of Article V boundary jurisprudence. The seven-year ratification deadline included in proposed Article XXIX, section 3, is consistent with Dillon v. Gloss, 256 U.S. 368 (1921), and subsequent practice.

(d) FIRST AMENDMENT / NARROW TAILORING.—Campaign finance regulation under section 5 (Track A) and proposed Article XXIX (Track B) shall be construed to advance the compelling governmental interest in preventing corruption and the appearance of corruption, as recognized in Buckley v. Valeo, 424 U.S. 1 (1976), and as bounded by Citizens United v. Federal Election Commission, 558 U.S. 310 (2010), and McCutcheon v. Federal Election Commission, 572 U.S. 185 (2014), unless and until those decisions are narrowed or superseded. Disclosure provisions shall be narrowly tailored consistent with Americans for Prosperity Foundation v. Bonta, 594 U.S. 595 (2021).

SEC. 4. SUPREME COURT TERM LIMITS.

[STATUTORY TRACK — Requires Article III analysis; OLC opinion required before introduction.]

(a) IN GENERAL.—Associate Justices of the Supreme Court appointed after the date of enactment shall serve active terms of 18 years, after which they shall assume senior status.

(b) SENIOR STATUS.—A Justice in senior status shall remain eligible to serve on circuit courts and shall continue to receive full compensation. The Justice retains the office of Justice of the Supreme Court for purposes of Article III, section 1.

(c) VACANCY SCHEDULE.—A vacancy on the Supreme Court shall occur every two years, with the President nominating and the Senate confirming a replacement within [TBD] months.

(d) CURRENT JUSTICES.—Nothing in this section shall be construed to apply to any Justice serving on the date of enactment. Such Justices shall serve under the terms and conditions of their original appointments.

(e) ARTICLE III SAVINGS.—If any provision of this section is held to violate Article III by final judgment of a court of competent jurisdiction, this section shall be inoperative and the term-limits provisions shall be implemented through Article V amendment under Track B, consistent with section 8 (severability).

SEC. 5. CAMPAIGN FINANCE REFORM — TRACK A (STATUTORY).

[Track A is operative if and when the Supreme Court has narrowed Citizens United v. FEC (2010) and McCutcheon v. FEC (2014) to permit the regulations in subsections (a) and (b). Subsection (c) (foreign national prohibition) is constitutionally settled under Bluman and is operative regardless of track selection.]

(a) AGGREGATE CONTRIBUTION LIMITS.—No person or entity may contribute more than $[TBD] in the aggregate to all Federal candidates, parties, and political action committees in any two-year election cycle.

(b) DISCLOSURE REQUIREMENTS.—

(1) IN GENERAL.—All contributions exceeding $[TBD] shall be publicly disclosed within [TBD] days of receipt. No anonymous contributions shall be made to any entity that makes independent expenditures.

(2) NARROW TAILORING.—Disclosure requirements under this subsection shall be narrowly tailored to the compelling anti-corruption interest, consistent with Americans for Prosperity Foundation v. Bonta, 594 U.S. 595 (2021), and shall include confidentiality protections for sensitive categories of disclosure.

(c) FOREIGN NATIONAL PROHIBITION.—No foreign national, foreign government, or entity owned or controlled by a foreign national or foreign government shall make any contribution or expenditure in connection with any Federal, State, or local election, consistent with section 30121 of title 52, United States Code, and Bluman v. Federal Election Commission, 800 F. Supp. 2d 281 (D.D.C. 2011), summarily affirmed, 565 U.S. 1104 (2012). This subsection is operative regardless of the applicability of subsections (a) and (b).

SEC. 6. CAMPAIGN FINANCE REFORM — TRACK B (CONSTITUTIONAL AMENDMENT). Resolved by the Senate and House of Representatives of the United States of America in Congress assembled (two-thirds of each House concurring therein), That the following article is proposed as an amendment to the Constitution of the United States, which shall be valid to all intents and purposes as part of the Constitution when ratified by the legislatures of three-fourths of the several States: "ARTICLE [XXIX] "SECTION 1. Congress and the States may regulate the raising and spending of money in Federal and State elections to advance the compelling governmental interest in preventing corruption and the appearance of corruption, and to ensure that all citizens have an equal opportunity to participate in the political process. "SECTION 2. Nothing in this article shall be construed to grant Congress or the States the power to abridge the freedom of the press, or the right of any person to engage in independent issue advocacy. "SECTION 3. This article shall be inoperative unless it shall have been ratified as an amendment to the Constitution by the legislatures of three-fourths of the several States within seven years from the date of its submission to the States by the Congress."

SEC. 7. VOTING RIGHTS AND ELECTION INTEGRITY. Congressional redistricting, automatic voter registration, and the Federal Election Day holiday are provided for in the Accountability and Elections Act of 2030.

(a) STATE LEGISLATIVE REDISTRICTING (CONSTITUTIONAL AMENDMENT PATHWAY).—

(1) POST-CALLAIS NOTE.—Louisiana v. Callais (608 U.S. ___, April 29, 2026) reinterpreted section 2 of the Voting Rights Act of 1965 to require proof of intentional discrimination. A statutory Track A mandate for state-legislative redistricting commissions may no longer rely on Voting Rights Act section 2 as its constitutional anchor. State-legislative redistricting commissions therefore require Track B (constitutional amendment) or a specific legislative findings record establishing intentional discrimination in the target jurisdictions.

(2) OPERATIVE UPON RATIFICATION.—Upon ratification of the article proposed under section 6 (Article XXIX) or a superseding redistricting amendment, each State shall establish an independent redistricting commission for State legislative districts, consistent with such Federal standards as Congress may prescribe pursuant to the ratified amendment and section 1 of the Fourteenth Amendment.

(b) RANKED-CHOICE VOTING.—Elections for the House of Representatives and the Senate shall use ranked-choice voting in all States that have not adopted an alternative system achieving comparable representational outcomes, as certified by the Election Assistance Commission.

(c) NATIONAL POPULAR VOTE — FEDERAL BACKSTOP.—Congress consents, under article I, section 10, clause 3 of the Constitution, to the Agreement Among the States to Elect the President by National Popular Vote, effective when States possessing a majority of the electoral votes have enacted it, and directs that any dispute concerning its operation be

heard by a district court of three judges with direct appeal to the Supreme Court.

SEC. 8. SEVERABILITY AND TRACK FALLBACK.

(a) SEVERABILITY.—If any provision of this Act, or the application of any provision to any person or circumstance, is held invalid by final judgment of a court of competent jurisdiction, the remainder of the Act and the application of the provision to other persons and circumstances shall not be affected.

(b) TRACK A INVALIDATION FALLBACK.—If section 4 (Supreme Court Term Limits) or section 5(a) or 5(b) (Aggregate Contribution Limits and Disclosure Requirements) is invalidated by final judgment, the Act shall continue to operate under—

(1) section 5(c) (Foreign National Prohibition, constitutionally settled under Bluman);

(2) section 6 (Article XXIX), upon ratification;

(3) section 7 (state-legislative redistricting upon ratification, ranked-choice voting, and the national popular vote backstop); and

(4) sections 9 through 11 (implementation and oversight).

(c) NO INTERRUPTION.—The invalidation of any Track A provision shall not interrupt operations or implementation under provisions independently grounded in Elections Clause, Bluman, or settled constitutional authority.

IMPLEMENTATION AND OVERSIGHT

SEC. 9. IMPLEMENTATION TIMELINE.

(a) IN GENERAL.—The Attorney General, in coordination with the Federal Election Commission, the Election Assistance Commission, and the Office of Legal Counsel, shall implement the provisions of this Act according to the following schedule:

(1) Within [TBD] months of enactment: the Office of Legal Counsel shall issue an opinion on the Article III analysis supporting section 4 (Supreme Court Term Limits).

(2) Within [TBD] months of enactment: the Federal Election Commission shall publish initial regulations implementing section 5 (Track A) and section 5(c) (Foreign National Prohibition).

(3) Within [TBD] months of enactment: the Election Assistance Commission shall publish standards for ranked-choice voting, and for certifying comparable alternative systems, under section 7(b).

(4) Not earlier than [TBD] months after publication of regulations under paragraph (2): the Federal Election Commission shall begin enforcement under section 5.

(5) Ranked-choice voting under section 7(b) shall apply beginning with the first regularly scheduled Federal general election occurring not less than 12 months after publication of standards under paragraph (3), consistent with Purcell v. Gonzalez.

(b) TRACK B RATIFICATION COORDINATION.—Upon proposal of Article XXIX under section 6, the Department of Justice shall publish ratification status updates not less than annually until the article is ratified or the seven-year ratification period under proposed Article XXIX, section 3, expires.

SEC. 10. AGENCY COORDINATION.

(a) IN GENERAL.—The Attorney General, the Federal Election Commission, the Election Assistance Commission, the Department of Justice Civil Rights Division, the Office of Legal Counsel, and the Office of Government Ethics shall coordinate implementation of this Act, with particular attention to—

(1) Article III analysis under section 4 and coordination of any litigation defense;

(2) First Amendment and Bluman analysis under section 5;

(3) Elections Clause and post-Callais analysis under section 7;

(4) ratification coordination under section 6; and

(5) ethics framework coordination with the Anti-Corruption and Fair Markets Act (ACFM, Bill 3 of this sequence) to avoid duplicative authority and ensure consistent enforcement standards.

(b) CONSTITUTIONAL DEFENSE COORDINATION.—The Attorney General shall maintain operational readiness for Track B fallback under section 8(b), including—

(1) draft litigation positions defending section 4 under Booth v. United States and the senior-status framework, ready for assertion in any challenge to the term-limits provisions; and

(2) inter-agency coordination protocols for seamless transition from Track A to Track B operative status upon final judgment or upon ratification of Article XXIX.

SEC. 11. ANNUAL REPORTING. Not later than [TBD] of each calendar year, the Attorney General, in coordination with the Federal Election Commission and the Election Assistance Commission, shall submit to Congress, and shall publish for public review, an annual report including—

(1) implementation status of each section of this Act, with breakdown by Track A / Track B operative status;

(2) Track B ratification status, with State-by-State accounting and projected timeline to three-fourths threshold;

(3) any litigation, ruling, or stay affecting operative provisions, with assessment of impact on Track A / Track B operative status;

(4) post-Callais state-legislative redistricting landscape, including any State-level findings records establishing intentional discrimination; and

(5) coordination status with the Anti-Corruption and Fair Markets Act framework under section 10(a)(5).

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Article III for term limits; the Elections Clause for ranked-choice voting; the Compact Clause for the popular-vote backstop; Article V for the proposed amendments; and the First Amendment for campaign finance. Phase III. The choice between Track A (statute) and Track B (amendment) is reserved for constitutional counsel at introduction.
- **Sec. 4 · Term limits.** The senior-status model rests on Booth v. United States (1934) and 28 U.S.C. §§294 and 371; U.S. Term Limits v. Thornton concerned congressional qualifications and is distinguishable [Source 261]. The strongest objection is that Article III's "one supreme Court" contemplates Justices who decide its cases. No court has ruled, and an Office of Legal Counsel opinion is required before introduction [Source 672]. Reconcile the two-year schedule in 4(c) with the protection of sitting Justices in 4(d) so the number of active Justices stays at nine during the transition; otherwise the bill would enlarge the Court, which it disclaims.
- **Sec. 5 · Track A.** Aggregate contribution limits like 5(a) were struck in McCutcheon v. FEC (2014), and NRSC v. FEC (2026) struck party coordinated-spending limits [Sources 262, 263]; 5(a) is inoperative unless the Court changes course. Disclosure (5(b)) is the viable statutory route — upheld 8–1 in Citizens United — tailored under Americans for Prosperity Foundation v. Bonta [Source 268]. The foreign-national prohibition (5(c)) is settled (Bluman v. FEC) [Source 269].
- **Sec. 6 · Track B.** Section 2's savings clause avoids subordinating the grant of power to Buckley, and the seven-year deadline sits in the text (Dillon v. Gloss, 1921) [Source 270]. Set the bracketed article number at proposal.
- **Sec. 7 · Elections.** After Louisiana v. Callais, the Voting Rights Act cannot anchor a mandate for State-legislative commissions, so 7(a) proceeds by amendment [Source 640]. Ranked-choice voting (7(b)) is limited to House and Senate elections because the manner of appointing presidential electors belongs to State legislatures under Article II, section 1 (Chiafalo v. Washington, 2020). Whether the popular-vote compact (7(c)) requires consent is disputed; consent answers one objection, but the Article II question about legislative control of elector appointment remains.
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the Office of Legal Counsel, the Federal Election Commission, the Election Assistance Commission, and the Congressional Budget Office before introduction.

Standalone Vehicles

S-1 · Emerging Reproductive Technology Protection and Oversight Act

[TBD] CONGRESS · H. R. ____

To protect access to and establish oversight of assisted reproductive technologies, to protect the rights of donor-conceived persons, and to establish a regulatory pathway for emerging gestational technologies; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Emerging Reproductive Technology Protection and Oversight Act".

SEC. 2. FINDINGS. Congress finds that the United Kingdom's Human Fertilisation and Embryology Authority has regulated fertility treatment and gamete donation since 1991, and that the United States lacks a national framework for gamete bank licensing, donor limits, or donor-conceived persons' access to information.

SEC. 3. ACCESS TO ASSISTED REPRODUCTIVE TECHNOLOGY. No State or locality may prohibit or unreasonably restrict access to in vitro fertilization or other assisted reproductive technology, or the provision of such services by a health care provider, consistent with accepted standards of medical practice.

SEC. 4. GAMETE BANK LICENSING.

(a) LICENSING.—The Secretary of Health and Human Services shall license gamete banks and fertility clinics that use donor gametes, under standards for donor screening, record-keeping, and informed consent.

(b) FAMILY LIMITS.—A licensed gamete bank shall not distribute gametes from a single donor for use by more than [TBD] families.

SEC. 5. DONOR-CONCEIVED PERSONS. A donor-conceived person who has attained 18 years of age shall have the right to obtain, from a national registry maintained by the Secretary, non-identifying medical history of the donor and, for donations made after enactment, the donor's identity.

SEC. 6. EMERGING GESTATIONAL TECHNOLOGIES.

(a) REGULATORY PATHWAY.—The Commissioner of Food and Drugs shall establish a clinical-trial pathway for devices supporting gestation outside the body, beginning with use for extremely premature infants.

(b) CONSENT FRAMEWORK.—Any use of such devices shall require informed consent under a joint-authorization framework established by the Secretary, addressing decisions specific to externalized gestation.

(c) RULE OF CONSTRUCTION.—Nothing in this section shall be construed to affect any law governing abortion.

SEC. 7. ANNUAL REPORTING. The Secretary shall report annually to Congress on licensing, the donor registry, and trials under section 6.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Commerce Clause, through the interstate market in fertility services, drugs, and devices, and the Spending Clause. Rest the Sec. 3 preemption of State restrictions on findings about that commerce; the rule of construction in Sec. 6(c) keeps abortion law outside the bill.
- **Sec. 4 · Licensing.** Coordinate with the FDA's existing rules for human cells and tissues (21 C.F.R. part 1271) and with laboratory certification under CLIA.
- **Sec. 5 · Donor identity.** Identity disclosure applies only to donations made after enactment, so donors previously promised anonymity are not affected.
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the Department of Health and Human Services, the FDA, and the Congressional

Budget Office before introduction.

S-2 · Senate Deliberation and Accountability Standard

[TBD] CONGRESS · S. RES. ____

Amending the Standing Rules of the Senate to require continuous debate to sustain a filibuster and to exempt certain measures from cloture.

RESOLUTION

Resolved,

SECTION 1. CONTINUOUS DEBATE. Rule XXII of the Standing Rules of the Senate is amended to provide that, after a cloture motion on a measure fails, the measure shall remain the pending business, and any Senator opposing cloture who seeks to prevent a final vote must hold the floor in continuous debate. When no Senator seeks recognition to debate, the Presiding Officer shall put the question on passage.

SEC. 2. EXEMPTIONS. The cloture threshold of three-fifths shall not apply to—

(1) general appropriations bills and continuing resolutions; and

(2) legislation to enforce the right to vote in elections for Federal office.

SEC. 3. TRANSPARENCY. The name of each Senator opposing a cloture motion shall be recorded and published in the Congressional Record on the day of the vote.

SEC. 4. EFFECTIVE DATE. This resolution takes effect on the first day of the Congress following its adoption.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Each House determines its own rules (Article I, section 5). Ending debate on a change to the Standing Rules requires two-thirds of Senators voting under Rule XXII; the alternative is a precedent set by majority vote, as in 2013 and 2017. The Parliamentarian should advise on the route. Taking effect only in the next Congress (Sec. 4) supports the case that the change favors no party.
- **Sec. 2(2).** Define "legislation to enforce the right to vote" in terms the Presiding Officer can apply.

S-3 · Public Health Integrity Act

[TBD] CONGRESS · H. R. ____

To restore and protect the integrity, independence, and capacity of Federal public health institutions; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Public Health Integrity Act".

SEC. 2. FINDINGS. Congress finds that—

(1) the public health agencies of the United Kingdom, Germany, France, and Australia operate with statutory independence and multi-year funding stability;

(2) more than 4,000 measles cases and three deaths were reported in the United States beginning in January 2025; and

(3) a 2026 change to the childhood immunization schedule was stayed by a Federal court because the Advisory Committee on Immunization Practices is named in statute, demonstrating that statutory standards provide durable protection.

SEC. 3. ADVISORY COMMITTEE ON IMMUNIZATION PRACTICES.

(a) MEMBERSHIP.—The Advisory Committee on Immunization Practices shall consist of [TBD] voting members with expertise in immunology, infectious disease, epidemiology, pediatrics, or public health, appointed for staggered terms of [TBD] years.

(b) CONFLICTS OF INTEREST.—No member may have a financial interest in a vaccine manufacturer or in litigation concerning vaccines, and all members shall file public conflict-of-interest disclosures.

(c) EVIDENCE STANDARD.—Recommendations shall be based on a systematic review of the evidence using a published, transparent framework.

(d) REMOVAL OF MEMBERS.—A member may be removed before the end of a term only for documented conflict of interest, misconduct, or neglect of duty, with written reasons provided to the Committees on Health, Education, Labor, and Pensions and on Energy and Commerce.

(e) SCHEDULE CHANGES.—A change to the recommended childhood or adult immunization schedule shall take effect only upon a recommendation of the Committee adopted under subsection (c).

SEC. 4. FUNDING RESTORATION. There is authorized for each of fiscal years [TBD] through [TBD] such sums as are necessary to restore funding for the Centers for Disease Control and Prevention and the National Institutes of Health to not less than the fiscal year 2019 levels, adjusted for inflation.

SEC. 5. VACCINES FOR CHILDREN. No funds made available for the Vaccines for Children program under section 1928 of the Social Security Act may be withheld or conditioned on criteria other than those established in that section.

SEC. 6. PUBLIC HEALTH WORKFORCE. There is authorized $[TBD] for each of fiscal years [TBD] through [TBD] for grants to State, local, tribal, and territorial health departments to recruit and retain public health workers.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Sec. 3 · Appointments and removal.** If the Committee's recommendations bind the schedule (3(e)) and members are protected from removal (3(d)), members are likely officers whose appointment and removal must satisfy Article II. Kennedy v. Braidwood Management (2025) held the members of a comparable preventive-services body to be inferior officers because the Secretary could remove them at will and review their recommendations. Recommended: keep the binding effect but give the Secretary published review authority, or

keep removal at will with written reasons to Congress. After Trump v. Slaughter, removal protection is the weaker design [Source 604].

- **Secs. 4 and 6.** Authorizations only; funding depends on appropriations Acts.
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the Department of Health and Human Services, and the Congressional Budget Office before introduction.

S-4 · AI Safety and Rights Framework

Reserved for human drafting. Legislation governing AI safety, liability, legal status, and human rights to AI access is held as a policy commitment without bill text, to be developed by human policymakers through public consultation and licensed legislative counsel rather than AI-assisted drafting. See Part V.

S-5 · Education Functions Restoration and Oversight Act

[TBD] CONGRESS · H. R. ____

To restore the statutory functions of the Department of Education and to ensure congressional oversight of education programs administered by other agencies; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Education Functions Restoration and Oversight Act".

SEC. 2. FINDINGS. Congress finds that—

(1) the Department of Education Organization Act vests specified functions in the Department of Education, which may be abolished or transferred only by Act of Congress; and

(2) as of June 2026, programs administered by the Department had been distributed to other agencies through 14 interagency agreements, covering 118 programs, without enabling legislation.

SEC. 3. STATUTORY FUNCTIONS. No function vested in the Department of Education or the Secretary of Education by statute may be transferred, delegated, or performed by another agency under an interagency agreement, except as expressly authorized by Act of Congress enacted after the date of enactment of this Act.

SEC. 4. EXISTING AGREEMENTS.

(a) REVIEW.—Not later than 90 days after enactment, the Secretary of Education shall submit to Congress each interagency agreement under which a statutory function or program of the Department is administered by another agency, with a description of staffing, funding, and performance.

(b) RESTORATION.—Unless Congress enacts legislation approving an agreement within [TBD] days after its submission, the function or program shall be restored to the Department, with a transition plan that protects continuity of services to students, families, and institutions.

SEC. 5. CIVIL RIGHTS AND SPECIAL EDUCATION. The Office for Civil Rights and the Office of Special Education and Rehabilitative Services shall be maintained within the Department with staffing sufficient to carry out their statutory responsibilities, as certified annually by the Inspector General of the Department.

SEC. 6. OVERSIGHT. The Comptroller General shall report to Congress annually on the administration of Federal education programs, including any program administered outside the Department, with measures of timeliness, accuracy, and service to students.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Constitutional basis.** Congress's power to create departments and assign their functions. Statutory functions may be moved only by statute, and the default restoration in Sec. 4(b) operates by law rather than by a one-House vote. Check pending litigation over the 2025–2026 transfers before introduction.
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the Department of Education, and the Congressional Budget Office before introduction.

S-6 · Social Security Solvency Act

[TBD] CONGRESS · H. R. ____

To restore the long-range solvency of the Social Security trust funds, to protect the benefits of current beneficiaries, and to establish a special minimum benefit for long-career workers; and for other purposes.

A BILL

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE. This Act may be cited as the "Social Security Solvency Act".

SEC. 2. FINDINGS. Congress finds that—

(1) the 2026 report of the Social Security Board of Trustees projects that the Federal Old-Age and Survivors Insurance Trust Fund will be unable to pay full scheduled benefits beginning in late 2032, and estimates the program's 75-year actuarial deficit at 4.42 percent of taxable payroll; and

(2) the Chief Actuary of the Social Security Administration estimates that applying the payroll tax to earnings above $250,000 would close approximately 57 percent of that deficit.

SEC. 3. SEPARATE TRUST FUND ACCOUNTING. Revenues and expenditures under this Act shall be credited to and paid from the Federal Old-Age and Survivors Insurance Trust Fund and the Federal Disability Insurance Trust Fund, and shall not be used to offset any other Federal expenditure.

SEC. 4. PAYROLL CONTRIBUTIONS ON HIGH EARNINGS. Sections 3101, 3111, 1401, and 3121(a)(1) of the Internal Revenue Code of 1986 are amended to apply the old-age, survivors, and disability insurance tax to wages and self-employment income in excess of $250,000, in addition to wages and income below the contribution and benefit base.

SEC. 5. BENEFIT PROTECTION.

(a) MINIMUM BENEFIT.—The Social Security Act is amended to establish a special minimum benefit for workers with long careers equal to not less than [TBD] percent of the poverty line.

(b) EARNED-BENEFIT COVENANT.—No provision of this Act shall reduce the benefit of any individual who is entitled to benefits on the date of enactment.

SEC. 6. ACTUARIAL CERTIFICATION. The Chief Actuary of the Social Security Administration shall certify the effect of this Act on long-range solvency before its effective date, and the Board of Trustees shall report annually on the remaining long-range actuarial balance.

SEC. 7. EFFECTIVE DATE. Section 4 shall apply to wages paid and self-employment income earned in taxable years beginning after December 31, [TBD], and in any event before the date on which the Trustees project the depletion of the Federal Old-Age and Survivors Insurance Trust Fund.

NOTES FOR COUNSEL · NOT PART OF THE BILL TEXT

- **Procedure.** Section 310(g) of the Congressional Budget Act bars changes to Social Security in reconciliation, so this is a standalone bill needing 60 votes.
- **Sec. 4.** Specify whether earnings above $250,000 earn benefit credit; the actuarial estimate of the deficit closed depends on it [Source 810].
- **Sec. 7.** Set a fixed effective year rather than one tied to a projection, and confirm with the Chief Actuary that it precedes the projected depletion date [Source 808].
- **Open items.** Every [TBD] amount, rate, threshold, cross-reference, and effective date requires resolution by the Office of Legislative Counsel, the Social Security Administration's Office of the Chief Actuary, and the Congressional Budget Office before introduction.

About this text. *The bills above are legislative scaffolds, not introduced legislation. They have not been reviewed by licensed legislative counsel and are not legal advice. Every item marked [TBD] — dollar amounts, rates, thresholds, code cross-references, and effective dates — requires resolution by the Office of Legislative Counsel, agency technical staff, and the Congressional Budget Office before introduction. Bill 15 is a consultation draft and is not to be introduced until tribal governments have shaped it.*

REFERENCE · PART X

The Scoring Methodology

The rubric used to evaluate every proposal, published so that anyone can check the work.

Why a Formal Methodology

Most governing agendas publish their proposals. This one also publishes the rubric used to evaluate them, so that readers can inspect the evidence behind each score, challenge the assumptions, and reproduce the results — or apply the same method to other platforms, as the last section of this Part does for Project 2025 and the 2024 Democratic platform.

Every one of the 112 proposals is scored on three independent axes. Proposal numbers are permanent identifiers and are not reused, so the numbering has gaps. The axes are deliberately orthogonal: each measures something the others do not. Where evidence is ambiguous, the rubric defaults to the lower score — optimism must be substantiated; pessimism does not require justification.

The Three Axes

GP — Global Precedent Has this policy approach been adopted and rigorously evaluated in comparable nations? GP is backward-looking. It assesses whether we are walking into territory others have successfully mapped, or building from theory. Scored against a defined pool of 16 primary comparator nations (OECD members, GDP/capita ≥ $30,000 PPP, functional welfare state and rule of law), assessed at the point of sustained implementation, not passage.

UT — US Transition Difficulty How difficult is the transition from the current US status quo to this policy operating at meaningful scale? Assessed across four sub-dimensions, each of which can independently cap the score: legislative and constitutional feasibility; implementation timeline; US precedent and scaling; and agenda synergy with other proposals. A higher score means a more achievable transition. UT does not measure benefit.

B — Benefit Score If the policy achieves its intended outcomes, how significant is the welfare benefit to the broad American population? Assessed conditional on success across population reach, per-beneficiary magnitude, and distributional equity. B is not a probability-weighted expected value — that is the role of UT.

The Aggregate Formula

Each axis is scored 1–5. The aggregate Priority Score is computed as **(GP + UT + B) ÷ 1.5**, placing the sum of the three axes on a 10-point scale. The minimum possible score is 2.0 (all axes at 1), the maximum 10.0 (all axes at 5), and scores are reported to one decimal place.

Evidence Quality Tiers

Tier	Meaning
A	High — peer-reviewed longitudinal studies, randomized policy evaluations, CBO-equivalent scoring
B	Moderate — well-documented program reports, controlled comparative analyses, established think-tank evaluations
C	Low — case studies, preliminary data, opaque modeling; insufficient to anchor a score above 2
D	Non-qualifying — opinion, advocacy, anecdote; zero evidentiary weight

Calibrated conservatism is the governing principle: where evidence is ambiguous, the rubric defaults to the lower score.

The Comparator Nation Pool

Tier	What It Is
Tier 1 — Primary Comparators	Sixteen nations qualifying on all criteria: Australia, Austria, Belgium, Canada, Denmark, Finland, France, Germany, Ireland, Japan, Netherlands, New Zealand, Norway, Sweden, Switzerland, United Kingdom. Evidence from this pool can anchor a high Global Precedent score.
Tier 2 — Secondary Comparators	Eleven high-income democracies with differing institutional contexts: Czech Republic, Estonia, Iceland, Israel, Luxembourg, Portugal, Singapore, Slovakia, Slovenia, South Korea, Spain. Evidence is valid but transferability to the US requires explicit justification.
Non-Comparable	Authoritarian states, low-income nations, and contexts whose institutional capacity is fundamentally incompatible with the US. Evidence from these contexts may appear as supporting material but cannot anchor a Global Precedent score.

A policy's comparator count is assessed at time of meaningful implementation and sustained operation — minimum three years — not at date of passage.

The Per-Axis Rubric

Global Precedent (GP)

Tier	Qualifying Criteria
5 — Overwhelming Precedent	At least 75% of Tier 1 comparators have adopted the policy at national scale and sustained it for ten years or longer, OR the approach is an international norm endorsed by OECD, WHO, ILO, or equivalent.
4 — Strong Precedent	Five or more Tier 1 comparators have adopted and sustained the policy, OR two or more with Tier A longitudinal evaluation showing consistent positive outcomes.
3 — Moderate Precedent	Three to four Tier 1 comparators have implemented the policy with generally positive but contested results, OR two or more with Tier B evidence.
2 — Emerging Precedent	One or two Tier 1 comparators with mixed or early results, OR three or more Tier 2 comparators without clear US applicability.
1 — No Meaningful Precedent	The policy has not been implemented in any Tier 1 or Tier 2 comparator at scale, or only in non-comparable contexts.

US Transition Difficulty (UT)

Tier	Qualifying Criteria
5 — Minimal Difficulty	Implementation achievable through existing statutory authority or simple-majority legislation; strong, directly relevant US precedent.
4 — Achievable	Implementation feasible under standard majority-governance conditions; no constitutional barriers; political contest is normal-course.
3 — Moderate Difficulty	Some friction — agency coordination, state-federal alignment, or limited political headwinds — but no structural blocker.
2 — High Difficulty	Significant structural barriers: 60-vote Senate threshold, multi-agency coordination, strong organized opposition.
1 — Extreme Difficulty	Fundamental constitutional, legal, or political barriers making full implementation unlikely even under optimistic conditions.

Societal Benefit (B)

Tier	Qualifying Criteria
5 — Maximal Benefit	At least 80% of Americans benefit directly with substantial per-beneficiary improvement; OR the policy is foundational infrastructure enabling much else.
4 — Substantial Benefit	60–80% benefit directly with significant improvement, OR 30–60% with transformative per-beneficiary impact.

Tier	Qualifying Criteria
3 — Meaningful Benefit	30–60% benefit directly with meaningful improvement, OR a narrower population with transformative impact; distributional pattern is broadly progressive.
2 — Limited Benefit	10–30% benefit directly with moderate improvement, OR a broader population with modest per-beneficiary impact.
1 — Narrow Benefit	Less than 10% benefit directly, or the policy is primarily institutional with diffuse welfare effects.

Why the Axes Don’t Collapse

The three axes are independent and genuinely orthogonal: each measures something the others do not. GP measures what has happened elsewhere; UT measures how hard it is to make it happen here; B measures what it is worth when it does. The pairwise comparisons each carry analytical weight. GP and UT together make the case that something has worked internationally and can work in the United States. GP and B together make the case that something has worked internationally and delivers real welfare improvement. UT and B together reveal the central policy tension: how difficult is implementation versus how valuable is the outcome. It is deliberate that UT does not measure benefit magnitude — that is the role of B.

Limitations and Intellectual Honesty

A scoring methodology that claims more precision than it possesses is less credible, not more. Five limitations apply:

1. **Cross-national comparison is bounded.** Even among Tier 1 comparators, the US differs in ways that affect policy outcomes — federalism and divided government, a healthcare and employment system built around private actors, a history of racial inequity that affects reach and distribution, a campaign-finance system with no close parallel.
2. **Forward-looking projections carry uncertainty.** UT requires projections about what will happen — a fundamentally uncertain enterprise. UT scores for Phase III proposals fifteen or more years from introduction carry higher uncertainty than scores for Phase I proposals with current modeling available.
3. **Welfare assessment is not value-neutral.** The B rubric weights distributional progressivity positively — a policy that primarily benefits the wealthy scores lower than one that benefits lower- and middle-income Americans at the same aggregate scale. This reflects the framework’s mission and is a defensible normative choice. Transparency is the answer, not false neutrality.
4. **The score is not an implementation order.** It compares precedent, transition difficulty, and benefit. When and in what order proposals are pursued is set by the implementation sequence and its dependency gates in Part IV, which also weigh cost and prerequisites.
5. **Interrater variance is real.** Two trained analysts applying this rubric to the same proposal may differ by one point on a single axis, which moves the aggregate score by about 0.7. Score rationale is documented per proposal rather than asserted.

The Re-Verification Rule

Scores are re-examined as the legislative, legal, and administrative landscape changes. A score moves only for one of four reasons: a verified change in a proposal's status, a change in its design, a consolidation with another proposal, or a correction to its evidence. Developments that cannot be verified are recorded but not applied. Every score in Part III is checked programmatically against the aggregate formula.

The Method Applied to Other Platforms

The same rubric scores the two other governing agendas of the period. For Project 2025 — the agenda of the current administration — US Transition reflects execution: a transition already carried out scores as achieved, and one struck down in court scores as blocked.

Metric	ARA	Project 2025	DNC 2024 Platform
Proposals scored	112	37	34
Avg Global Precedent /5	3.86	1.59	4.59
Avg US Transition /5	3.10	3.92	2.94
Avg Societal Benefit /5	4.13	1.27	4.26
Avg Priority Score /10 (±0.7 between raters)	7.39	4.52	7.86
Proposals scoring 8+	42	0	21

This is a structured comparative assessment, not a definitive ranking: the platforms differ in scope and specificity, and the same rubric applied to different units of analysis is a comparison, not a measurement. The 2024 Democratic platform averages slightly higher (7.86 vs 7.39), within the method's margin of error, because most of its proposals expand programs that already exist; its lead is in Global Precedent. This agenda covers far more ground (112 proposals to 34) and includes structural reforms that are newer in practice. Project 2025 averages 4.52: most of its clusters lack positive precedent among comparable democracies, and most concentrate benefit narrowly. Full tables are in the companion comparison documents.

REFERENCE · PART XI

The Source Register

On Sources and Evidence

Where Part X sets out how proposals are scored, this register shows the evidence the scores rest on. Every proposal carries axis-specific source citations in Part V, keyed to the numbered register below.

Every entry carries an evidence-tier rating: **A** authoritative non-partisan, **B** peer-reviewed or major think-tank with documented methodology, **C** use with caution, **D** partisan-aligned outlier cited only with explicit framing. These register tiers rate sources; they are distinct from the evidence-quality tiers used in scoring (Part X).

The register below lists each cited source by its permanent reference number, title, source type, and evidence tier, grouped by evidence domain. Gaps in the number sequence are intentional.

1. Taxation & Fiscal Policy (24 entries)

#	Source	Type	Tier
1	OECD, Tax Administration 2025 (13th ed.)	OECD	A
2	IRS Direct File Pilot Evaluation, TIGTA (2024)	Gov/Agency	A
3	IRS Publication 5869 (2024) — Tax Gap Report	Gov/Agency	A
4	Treasury, “Closing the Tax Gap” (2021)	Gov/Agency	A
5	Yale Budget Lab, IRS Staffing Analysis (April 2025)	Think Tank	B
7	National Taxpayer Advocate Annual Report (2022)	Gov/Agency	A
8	GAO, “Direct File Permanent Expansion” (December 2024)	Gov/Agency	A
9	CBO, TCJA Extension (2024)	Gov/Agency	A
11	CRFB, “Tax Cut Extensions Would Add $37T to Debt by 2054”	Think Tank	B
12	Penn Wharton Budget Model, 2024 Trump Campaign Proposals (August 2024)	Think Tank	B
13	Penn Wharton Budget Model, 2024 Harris Campaign Proposals (August 2024)	Think Tank	B
14	PWBM, Warren 2%/3% Wealth Tax Analysis (2021)	Think Tank	B
15	Saez and Zucman, UC Berkeley (2021) — Mark-to-Market Analysis	Peer Review	A
16	Mankiw & Weinzierl (2006, Journal of Public Economics)	Peer Review	A
17	Concord Coalition / Holtz-Eakin Statement (May 2025)	Think Tank	B
18	Gale-Haldeman, Brookings/TPC (2021) — TCJA Supply-Side Effects	Think Tank	B
19	Tax Justice Network (2024) — Offshore Evasion	—	C
20	Moore v. United States, 602 U.S. 572 (2024)	Law/Court	A
21	JCT 2024 — Employer Health Insurance Tax Expenditure	Gov/Agency	A
22	Tax Policy Center, TCJA Distribution (2024)	Think Tank	B
23	Tax Foundation Tariff Tracker (2026)	Think Tank	B
310	TIGTA Snapshot Report 2025-IE-R027 (July 2025)	Gov/Agency	A
316	Tax Policy Center, “Taxing Wealth in the United States: Issues and Challenges”	Think Tank	A
317	Balkir, Saez, Yagan & Zucman, NBER WP 34170 (Aug 2025)	Peer Review	A

2. Fiscal Modeling & Macroeconomics (33 entries)

#	Source	Type	Tier
25	Penn Wharton Budget Model, OLG Model Documentation	Think Tank	B
26	Auerbach-Gorodnichenko (NBER WP 17447)	Peer Review	A
27	Zandi/Moody's Analytics — Fiscal Multiplier Table	Think Tank	B
28	CBO WP 2012-08, Ramey — Infrastructure Multiplier	Gov/Agency	A
29	Blanchard-Leigh (2013, American Economic Review)	Peer Review	A
30	Irwin, "Peddling Protectionism" / "The Smoot-Hawley Tariff" (NBER)	Peer Review	A
31	PWBM, "Economic Effects of President Trump's Tariffs" (April 2025)	Think Tank	B
32	PIIE (Clausing-Lovely) — Tariff Consumer Cost	Think Tank	B
33	Amiti, Redding, and Weinstein (NBER, 2019)	Peer Review	A
34	CRFB, IRA Energy Cost Update (2024)	Think Tank	B
35	Moody's Analytics, IIJA Impact Analysis	Think Tank	B
36	CRFB, FY2025 Biden Budget Analysis (March 2024)	Think Tank	B
37	NBER, Sarin-Summers (WP26475) — IRS Enforcement ROI	Peer Review	A
38	Chodorow-Reich et al. — Medicaid/State Fiscal Aid Multipliers	Peer Review	A
300	CBO Working Paper 2026-01 — Key CBO Methods	Gov/Agency	A
301	Chodorow-Reich, Smith, Zidar & Zwick, "Tax Policy and Investment in a Global…"	Peer Review	A
302	JCT JCX-25-25 (May 14, 2025)	Congress	A
308	CBO Pub. 59972 (Feb 2024) — IRS enforcement ROI baseline	Gov/Agency	A
309	CBO Pub. 61172 (Jan 2025) — IRS rescission update	Gov/Agency	A
311	Yale Budget Lab, "A Weakened IRS Has Substantial Consequences" (2026)	Think Tank	B
328	CBO, "Estimated Budgetary Effects of Public Law 119-21" (Pub. 61570, July 2025)	Gov/Agency	A
329	CBO, "The Budget and Economic Outlook: 2026 to 2036" (Feb 2026)	Gov/Agency	A
330	CBO, "Distributional Effects of Public Law 119-21" (Pub. 61367, Aug 2025)	Gov/Agency	A
331	JCT JCX-36-25 / JCX-37-25 (July 29, 2025)	Congress	A
332	PWBM, "President Trump-Signed Reconciliation Bill…"	Think Tank	A
333	Tax Foundation, "One Big Beautiful Bill Act Tax Policies…"	Think Tank	B
334	Tax Policy Center, "Distributional Effects of the Tax Provisions in the 2025 Budget…"	Think Tank	A
335	Auerbach & Gale, "Then and Now: A Look Back and Ahead at the Federal Budget"	Peer Review	A
336	Brookings, Gale / Page / Patel / Pomerleau, "One Big Beautiful Bill?"	Think Tank	A
337	CRFB, "OBBBA Dynamic Score Comes In at $4.7 Trillion" (March 11, 2026)	Think Tank	B
338	Trump CEA OBBBA analysis — OUTLIER	Gov/Agency	D
358	CBO score, OBBBA Section 50003 (CFPB funding) — Pub. 61379	Gov/Agency	A
360	PWBM, "2024 Harris Campaign Policy Proposals" (Aug 26, 2024)	Think Tank	A

3. Healthcare & Social Programs (29 entries)

#	Source	Type	Tier
39	OECD, Health at a Glance (Annual editions 2021-2025)	OECD	A
40	Commonwealth Fund Mirror Mirror (2023)	Think Tank	B
41	Peterson-KFF Health System Tracker (March 2026)	Think Tank	A
42	OECD/UNICEF (2021) — Childcare Comparative Data	OECD	A
43	World Economic Forum, Childcare Costs (July 2023)	Think Tank	B
44	UNICEF Innocenti Report (2021) — Childcare & Development	UN/Intl	A

#	Source	Type	Tier
45	Pierre Fortin, Luc Godbout & Suzie St-Cerny (2013) — Quebec Universal Childcare	Peer Review	A
46	Baker, Gruber, Milligan (2008, Journal of Political Economy) — Quebec Childcare	Peer Review	A
47	CBO, BBB Childcare Score	Gov/Agency	A
48	Columbia Center on Poverty and Social Policy (2021) — CTC	Think Tank	B
50	Lancet (2020) — Abortion Laws and Safety	Peer Review	A
51	Endocrine Society (2023) — Gender-Affirming Care	NGO/Civil	B
52	CDC (2022) — Contraception Statistics	Gov/Agency	A
53	Turnaway Study, UCSF (Foster et al.) / Gerdts et al. (2016)	Peer Review	A
54	CDC (2026) — Measles Outbreak Data	Gov/Agency	A
56	Urban Institute — Choose Medicare Act Analysis	Think Tank	B
57	CBO, “Add a Public Plan to the Health Insurance Exchanges” (2013)	Gov/Agency	A
59	CBO, ACA Enhanced Premium Tax Credit Extension (September 2025)	Gov/Agency	A
60	Bureau of Justice Statistics (2023) — Incarceration Rate	Gov/Agency	A
61	Vera Institute (2022) — Private Prisons & Cash Bail	Think Tank	B
62	Social Security Administration Trustees Report (2024)	Gov/Agency	A
319	CBO Pub. 57020 (April 2021), “A Public Option for Health Insurance…”	Gov/Agency	A
320	CBO Pub. 61734 (Sept 2025), “Estimated Effects of Enacting Selected Health…”	Gov/Agency	A
321	Georgetown Center for Children & Families + KFF — OBBBA-enacted baseline	Think Tank	B
322	CBO/OMB on FY2025 President’s Budget childcare proposal	Gov/Agency	A
323	Yale Budget Lab — “Evaluating the Impacts of Federal…”	Think Tank	B
324	New Mexico ECECD & Legislative Finance Committee — First US universal childcare	Gov/Agency	B
367	KFF calculator (Oct 29, 2025) — ePTC expiration impact	Think Tank	A
368	Commonwealth Fund (Oct 2025) — ePTC expiration jobs / coverage analysis	Think Tank	B

4. Economy & Labor (20 entries)

#	Source	Type	Tier
64	Brookings Institution (2022) — Industry Concentration	Think Tank	B
65	Yale School of Management (September 2024) — Competition	Think Tank	C
67	De Loecker, Eeckhout, Unger (QJE 2020) — Corporate Markups	Peer Review	A
69	PIIE WP 18-4 (Furman-Orszag) — Competition & Growth	Think Tank	B
70	CBO (2021) — Federal Minimum Wage to $15	Gov/Agency	A
71	Federal Reserve Bank of San Francisco (2020) — Minimum Wage	Think Tank	A
72	Dube, Lester, Reich (Review of Economics and Statistics, 2010)	Peer Review	A
74	EPI (Economic Policy Institute, 2023) — Unionization & Wages	Think Tank	C
75	BLS (2024) — Union vs. Non-Union Wages	Gov/Agency	A
76	Farber et al. (NBER, 2021) — Union Decline & Inequality	Peer Review	A
77	EPI (2024) — Overtime Threshold	—	C
78	SBA (2024) — Small Business Jobs Data	Gov/Agency	A
79	Haltiwanger, Jarmin, Miranda (Review of Economics and Statistics, 2013)	Peer Review	A
80	KFF 2025 Employer Benefits Survey	Think Tank	A
81	ATD 2025 State of Industry — Workforce Training; OECD Getting Skills Right	NGO/Civil	B
83	Baicker & Chandra (2006, Health Affairs) — Healthcare Premiums and Wages	Peer Review	B
84	Partnership for Public Service / Federal News Network (April 2026)	NGO/Civil	B

#	Source	Type	Tier
312	De Loecker, Eeckhout & Mongey, “Quantifying Market Power and Business Dynamism…”	Peer Review	A
314	Benkard, Miller & Yurukoglu (2025) — Markup methodological challenge	Peer Review	A
315	United States v. Google LLC (D.D.C., Sept–Dec 2025)	Law/Court	B

5. Infrastructure, Energy & Technology (24 entries)

#	Source	Type	Tier
85	IEA World Energy Outlook (2024)	UN/Intl	A
86	Lawrence Berkeley National Laboratory (2024) — Energy Costs	Gov/Agency	A
89	Boston Consulting Group (2021) — Taiwan Supply Disruption	Think Tank	B
90	NBER WP 34625 (2025) — CHIPS Employment Effects	Peer Review	A
91	CBO, IRA Cost Estimate (Aug. 2022) + CRFB/Goldman Sachs Updated Projections	Gov/Agency	A
92	UIC High-Speed Rail Atlas 2024	UN/Intl	A
93	IPCC AR6 WGIII Chapter 10 (2022) — Transport Decarbonization	UN/Intl	A
94	IPCC AR6 WGII (2022) — Climate Damages	UN/Intl	A
95	Amtrak FY2024 Ridership Data	Gov/Agency	A
96	GAO, High Risk List (Annual)	Gov/Agency	A
97	AFL-CIO / EPI using BLS Occupational Data (2024) — OSHA Inspector Ratio	Think Tank	C
98	USPS (2024) — Fleet Age Data	Gov/Agency	A
99	FAA (2024) — Air Traffic Control Facilities	Gov/Agency	A
100	Resources for the Future (August 2025) — EPA Carbon Standards	Think Tank	B
101	American Lung Association (2024) citing EPA Retrospective Analysis — Clean Air Act	NGO/Civil	B
102	NOAA (2024) — Commercial Fisheries & Disasters	Gov/Agency	A
103	NOAA/USGS — Water Stress Projections	Gov/Agency	A
104	USBR (2023) — Desalination & Western Water	Gov/Agency	A
307	Global Infrastructure Hub meta-analysis of 3,000+ multiplier estimates	Think Tank	B
325	Ramey 2020, NBER WP 27625 — Infrastructure multiplier time-to-spend caveat	Peer Review	A
326	Peterson Foundation, “Energy Tax Policy Under the OBBBA”	Think Tank	A
327	CRFB IRA Cost Update (2024)	Think Tank	B
371	Energy Innovation, “Final Analysis: Economic Impacts of OBBBA Energy Provisions”	Think Tank	B
372	Rhodium Group Taking Stock 2025	Think Tank	B

6. Legal, Governance & Civil Rights (29 entries)

#	Source	Type	Tier
105	EU GDPR (2018) / UK Age Appropriate Design Code (2021)	Law/Court	A
106	American Privacy Rights Act (H.R. 8818, 2024)	Law/Court	A
108	Zuboff, “The Age of Surveillance Capitalism” (PublicAffairs, 2019)	Peer Review	B
109	Haidt, The Anxious Generation (Penguin Press, 2024); Twenge & Haidt	Peer Review	B
110	Haugen Congressional Testimony (2021) / Internal Meta Research	Gov/Agency	B
111	NYSRPA v. Bruen, 597 U.S. 1 (2022)	Law/Court	A
112	Maryland Shall Issue v. Moore, 4th Circuit en banc (2024), cert. denied (2025)	Law/Court	A
113	United States v. Rahimi, 602 U.S. 680 (2024)	Law/Court	A
114	CDC WISQARS (2023) — Firearm Death Statistics	Gov/Agency	A
115	Harvard T.H. Chan School of Public Health (2016, 2022)	Think Tank	B

#	Source	Type	Tier
116	RAND Corporation, Science of Gun Policy (2024)	Think Tank	A
117	OpenSecrets (2024) — Outside Spending	NGO/Civil	A
118	Gilens and Page (Perspectives on Politics, 2014)	Peer Review	A
119	Restore Trust in Congress Act (January 2026, Senators Moody and Gillibrand)	Law/Court	A
120	University of Maryland Program for Public Consultation — Stock Trading Poll	Think Tank	B
121	Harvard Journal on Legislation (November 2025) — STOCK Act	Peer Review	B
122	Campaign Legal Center (2025) — Stock Trading Conflicts	NGO/Civil	C
123	Brennan Center for Justice (2024) — Voting Access	NGO/Civil	C
124	GAO (2014) — Voter ID Laws	Gov/Agency	A
125	Levitsky & Ziblatt, “How Democracies Die” (Harvard, 2018)	Peer Review	B
126	Church Committee (1975) / 9/11 Commission Report	Gov/Agency	A
127	Williams Institute, UCLA School of Law (2021) — LGBTQ+ Economics	Think Tank	B
128	Trevor Project National Survey (2024)	NGO/Civil	C
129	Brennan Center (2021) — Mass Incarceration & GDP	NGO/Civil	C
130	Fix the Court (2024) / Norm Ornstein (AEI) — SCOTUS Term Limits	Think Tank	C
131	NIST AI Risk Management Framework (2023)	Gov/Agency	A
132	DHS OIG (2019–2024) — Detention Facilities	Gov/Agency	A
133	Harvard JCHS (2024) — Housing & Institutional Investment	Think Tank	A
134	NLIHC (2024) — Affordable Housing Shortage	Think Tank	B

7. Education (10 entries)

#	Source	Type	Tier
135	OECD, Education at a Glance (Annual editions)	OECD	A
136	OECD PISA (2023) — International Education Rankings	OECD	A
137	McKinsey Global Institute (2009) — Education Achievement Gap	Think Tank	C
138	UK Age Appropriate Design Code / EU Digital Services Act (2022)	Law/Court	A
139	NCES (2024) — US Tuition Data	Gov/Agency	A
140	Federal Reserve Bank of New York (2024) — Student Debt	Gov/Agency	A
141	Jackson, Johnson, Persico (QJE 2016) — School Spending & Wages	Peer Review	A
142	Quebec Consumer Protection Act §§248-249 (1980) / Irwin Toy v. Quebec (1989)	Law/Court	A
143	Chile Law 20.606 (2016) / Taillie et al. (PLOS Medicine 2020); Boyland et al.	Law/Court	A
145	UK Health and Care Act 2022 — HFSS Advertising Ban	Law/Court	A

8. Military & Defense (13 entries)

#	Source	Type	Tier
146	ASCE Infrastructure Report Card (2021)	NGO/Civil	B
147	BLS (2024) — Construction Workforce Gap	Gov/Agency	A
148	Commission on Wartime Contracting (2011)	Gov/Agency	A
149	Quincy Institute / Brown University Costs of War (2025)	Think Tank	C
150	GAO-23-106123 — DoD Service Contracts High Risk Analysis	Gov/Agency	B
151	CISA (2024) — Critical Infrastructure Cyber Attacks	Gov/Agency	A
153	Fortna (2004), “Does Peacekeeping Keep Peace?”	Peer Review	A
154	Bulletin of Atomic Scientists, Doomsday Clock (2024)	Think Tank	B

#	Source	Type	Tier
155	Arms Control Association Fact Sheet (2024)	NGO/Civil	B
156	Watson Institute Costs of War (2023)	Think Tank	B
157	Congressional Research Service (R42699, 2021) — War Powers	Congress	A
158	DoD Inspector General (2023) — Pentagon Audit	Gov/Agency	A
159	Planetary Society / BDO USA (2023) — NASA Economic Impact	NGO/Civil	B

9. Agriculture & Environment (10 entries)

#	Source	Type	Tier
160	GAO (2024) — Foreign Agricultural Land Ownership	Gov/Agency	A
161	National Academy of Sciences (2023) — Desalination Costs	Think Tank	A
162	FAO Food and Agriculture State Report (2023)	UN/Intl	A
163	NOAA Fisheries Stock Assessment (2024)	Gov/Agency	A
164	NIBS “Natural Hazard Mitigation Saves” (2019) / FEMA BRIC Program	NGO/Civil	A
165	Basel Convention Plastic Waste Amendments (Decision BC-14/12, 2021)	Law/Court	A
166	International Seabed Authority (2023)	UN/Intl	A
167	Reagan-Udall Foundation Independent Panel (2022) — FDA Reform	Think Tank	B
168	DOL Wage and Hour Division (2023) — Farm Labor Violations	Gov/Agency	A
169	Economic Policy Institute (2022) — Farm Worker Wage Theft	Think Tank	C

10. Foreign Affairs & Immigration (6 entries)

#	Source	Type	Tier
170	NAS, “The Economic and Fiscal Consequences of Immigration” (2016)	Think Tank	A
172	American Immigration Council (2023) — DACA Economic Contribution	NGO/Civil	B
173	NBER (Pope, 2016) — DACA Wage Effects	Peer Review	A
174	RAND Corporation (2020, 2023) — Alliance Networks	Think Tank	B
175	Ikenberry, “Liberal Leviathan” (Princeton University Press, 2011)	—	B
176	ILO Convention 138 / Convention 182 — Child Labor	UN/Intl	A

11. Pharmaceutical & Patent Policy (4 entries)

#	Source	Type	Tier
177	RAND Drug Price Comparison Report (2024)	Think Tank	A
178	CBO, Drug Negotiation	Gov/Agency	A
179	I-MAK, “Overpatented, Overpriced” (2022)	NGO/Civil	C
180	FTC Patent Assertion Entity Study (2016) / Pay-for-Delay	Gov/Agency	B

12. Democracy & Electoral Reform (5 entries)

#	Source	Type	Tier
181	Brennan Center for Justice (2022) — Gerrymandering	NGO/Civil	C
182	OMB/CBO (2019) — Government Shutdown Cost	Gov/Agency	A
183	Northwestern Medill Local News Report (2025)	Peer Review	A
184	Snyder & Strömberg (Journal of Political Economy, 2010)	Peer Review	A
185	Freedom House (2024) — Global Democracy	NGO/Civil	B

13–14. Healthcare Economics & Scoring Methodology Reference Sources (17 entries)

#	Source	Type	Tier
186	OECD SME Finance Scoreboard (2023)	OECD	A
187	ACOG and AMA (2024) — IVF Access	NGO/Civil	B
188	Himmelstein & Woolhandler (Annals 2020) — Admin Savings	Peer Review	B
189	Deming (Review of Economics and Statistics, 2009) — Head Start	Peer Review	A
191	Barnichon, Matthes & Ziegenbein (2018) — FRBSF Economic Letter	Gov/Agency	A
192	OECD, Health at a Glance (Annual)	OECD	A
193	OECD, Education at a Glance (Annual)	OECD	A
194	OECD, Tax Administration Series (Annual)	OECD	A
195	GAO, High Risk List (Annual)	Gov/Agency	A
196	Congressional Research Service (CRS) Reports — Various	Congress	A
197	World Bank, Governance Indicators	UN/Intl	B
198	RAND Corporation — Multiple Studies	Think Tank	B
199	OECD Social Expenditure Database (Annual)	OECD	A
303	Orchard, Ramey & Wieland, NBER WP 31584 (rev. October 2024)	Peer Review	A
304	Ramey, “Do Temporary Cash Transfers Stimulate the Macroeconomy?”	Peer Review	A
305	Auerbach, Gorodnichenko, McCrory & Murphy, “Fiscal Multipliers in the Covid-19…”	Peer Review	A
306	Jo & Zubairy, “State-Dependent Government Spending Multipliers,” AEJ Macroeconomics	Peer Review	A

15. Constitutional Law Architecture (11 entries)

#	Source	Type	Tier
200	NYSRPA v. Bruen, 597 U.S. 1 (2022) — Text-and-History Standard	Law/Court	A
201	Maryland Shall Issue v. Moore, 4th Cir. en banc (No. 21-2017, Aug. 23, 2024)	Law/Court	A
202	United States v. Rahimi, 602 U.S. 680 (2024) — Relevantly Similar Standard	Law/Court	A
203	Moore v. United States, 602 U.S. 572 (2024) — Realization Requirement	Law/Court	A
204	South Dakota v. Dole, 483 U.S. 203 (1987) — Spending Clause Conditions	Law/Court	A
205	Sorrell v. IMS Health, 564 U.S. 552 (2011)	Law/Court	A
206	Ruckelshaus v. Monsanto, 467 U.S. 986 (1984)	Law/Court	A
207	Speech or Debate Clause, Art. I, §6, cl. 1; IRC §§475, 1256, 1296	Law/Court	A
209	District of Columbia v. Heller, 554 U.S. 570 (2008)	Law/Court	A
210	McDonald v. City of Chicago, 561 U.S. 742 (2010)	Law/Court	A
318	Moore v. United States (same decision as Source 203; number retained for citation stability)	Law/Court	A

16–20. Additional Source Domains

Constitutional Law Research — Legislative Architecture (52 entries): Sources 214–271 cover Bruen/Rahimi firearms doctrine, Moody v. NetChoice, ERISA preemption, Spending Clause, campaign finance, redistricting, and Byrd Rule precedent including the OBBBA (Pub. L. 119-21, July 4, 2025).

UT Implementation Research (23 entries): Sources 272–297 cover FAA NextGen, USPS fleet modernization, California HSR, OPM time-to-hire, NASA/Artemis, NOAA aquaculture, ATF NFA processing, Maryland HQL implementation, FBI NICS data, and the Farber (2009) Election Day holiday turnout study.

Tariff & Trade Modeling (10 entries): Sources 339–348 cover Tax Foundation, CRFB, PWBM, Yale Budget Lab, PIIE, Federal Reserve, and NBER tariff impact research.

Federal Workforce & Regulatory Costs (17 entries): Sources 349–372 cover Partnership for Public Service Federal Harms Tracker, OPM workforce data, EPI federal layoffs analysis, GAO federal workforce changes, Resources for the Future EPA analysis, Federal Reserve Financial Stability Report, and PWBM/CRFB/Tax Policy Center platform analyses.

Tier legend: A authoritative non-partisan · B peer-reviewed or major think-tank · C use with caution · D partisan outlier.

16a. Additional Cited Sources (9 entries)

#	Source	Type	Tier
6	Bipartisan Policy Center, IRS Enforcement (2025)	Think Tank	B
49	American College of Obstetricians and Gynecologists, Reproductive Healthcare (2023, 2024)	NGO/Civil	B
55	CBO, Single-Payer Working Paper (pub. 56811, 2020)	Gov/Agency	A
58	RAND, Public Option Analysis (RR3153, 2020)	Think Tank	B
63	USDA Economic Research Service, Food Security in the U.S. (2024)	Gov/Agency	A
66	American Antitrust Institute (April 2020)	NGO/Civil	C
68	Council of Economic Advisers, Competition & Labor (2021)	Gov/Agency	B
82	OECD, Getting Skills Right (2019)	OECD	A
144	Boyland et al., Food Marketing Meta-Analysis, *JAMA Pediatrics* (2022)	Peer Review	A

Additional Source Domains

This register identifies **640 numbered sources**: 538 listed individually and 102 summarized by number range above. Sections 17–19 and 21–23 begin at 400, 600, 800, 900, 913, and 922; gaps in the numbering are intentional. The register is the project's research record, so it also lists sources that informed the work but are not cited in this volume.

17. Expanded Policy Domains — Labor, Justice, Housing, Consumer, Tribal, Governance, and Economic-Cycle Sources (121 entries, 400–520)

#	Source	Type	Tier
400	ILO Conventions 87/98	Mixed	A
401	BLS paid-leave-access tables	Mixed	A
402	OECD Family Database, parental leave	Mixed	A
403	FTC Non-Compete Clause Rule economic impact analysis, 2024	Mixed	A
404	Cornell ILR union density longitudinal series	Mixed	B
405	Council on Criminal Justice, First Step Act outcomes study	Mixed	A
406	DOJ First Step Act Annual Report, 2024	Mixed	A
407	Bhuller, Dahl & Løken, NBER — Norwegian labor-market reintegration	Mixed	A
408	Texas Public Policy Foundation / Right on Crime, Germany-Norway prison tour report	Mixed	B
409	Brennan Center, policing oversight comparative analysis	Mixed	B
410	Pretrial Justice Institute, cash bail outcomes	Mixed	B
411	Nolan Gray / Market Urbanism, Japan vs. US zoning comparative analysis	Mixed	B
412	Greenaway-McGrevy et al., Auckland Unitary Plan upzoning study	Mixed	A
413	Harvard Joint Center for Housing Studies, institutional investment in housing 2024	Mixed	A
414	NLIHC, affordable housing shortage 2024	Mixed	B
415	Oregon HB2001 / California SB9 legislative outcomes	Mixed	C
416	Ballotpedia, Alaska Repeal Top-Four RCV Initiative 2026 results	Mixed	A

#	Source	Type	Tier
417	FairVote, ballot measures tracker	Mixed	B
418	Alaska Beacon, RCV comparative analysis, Dec. 2025	Mixed	B
419	*Arizona Free Enterprise Club v. Bennett*, 564 U.S. 721 (2011)	Mixed	A
420	State AVR implementation data, Oregon (2015–present)	Mixed	B
421	HFEA Code of Practice, UK	Mixed	A
422	Colorado Donor-Conceived Persons and Families Protection Act, 2022	Mixed	A
423	BBC News, donor genetic-mutation case, 197 children/14 countries	Mixed	B
424	Donor Conception Network, "Why 50 Families Is Still Too Many"	Mixed	B
425	FDA Pediatric Advisory Committee meeting materials on AWT, 2023	Mixed	A
426	Romanis, "*Is 'Viability' Viable?*" — Journal of Law and the Biosciences	Mixed	A
427	*Dubay v. Wells*, 506 F.3d 422 (6th Cir. 2007)	Mixed	A
428	FTC Junk Fees Rule, 16 CFR Part 464 (2024)	Mixed	A
429	EU Consumer Rights Directive 2011/83/EU	Mixed	A
430	CFPB medical debt credit reporting rule, Jan. 2025, and subsequent vacatur	Mixed	A
431	Military Lending Act, 10 U.S.C. § 987	Mixed	A
432	*AT&T Mobility v. Concepcion*, 563 U.S. 333 (2011)	Mixed	A
433	FAIR Act, H.R. 963, House passage history	Mixed	B
434	USPS Office of Inspector General, postal banking pilot report, 2022	Mixed	B
435	La Banque Postale / Japan Post Bank comparative model	Mixed	B
436	Basel Committee, G-SIB assessment methodology	Mixed	A
437	EU Digital Markets Act, Article 3 designation criteria	Mixed	A
438	Economic Growth, Regulatory Relief, and Consumer Protection Act (S.2155, 2018) legislative history	Mixed	A
439	CBS News / American Banker, SVB lobbying and SIFI threshold reporting	Mixed	B
440	IRC §1563, controlled group aggregation rules	Mixed	A
441	Garicano, Lelarge & Van Reenen, French labor-threshold "bunching" literature	Mixed	A
442	GAO, IHS per capita spending analysis	Mixed	A
443	Health Affairs Forefront, "The Indian Health Service Is Chronically Underfunded," Sept. 2025	Mixed	A
444	*Becerra v. San Carlos Apache Tribe*, 599 U.S. ___ (2025)	Mixed	A
445	H.R. 7325 / S.761, Truth and Healing Commission on Indian Boarding School Policies Act, 119th Congress	Mixed	A
446	CBO cost estimate, S.761	Mixed	A
447	*Oliphant v. Suquamish Indian Tribe*, 435 U.S. 191 (1978)	Mixed	A
448	VAWA Reauthorization Act of 2022, P.L. 117-7	Mixed	A
449	Congressional Research Service, MMIP jurisdictional overview, R47010	Mixed	A
450	Chartis Group, 2026 Rural Health State of the State Report	Mixed	A
451	March of Dimes, "Nowhere to Go: Maternity Care Deserts Across the U.S.," 2026	Mixed	A
452	Center for Healthcare Quality & Payment Reform, "Stopping the Loss of Rural Maternity Care," 2026	Mixed	A
453	Rural Emergency Hospital designation, 42 U.S.C. § 1395x(kkk), enacted 2020	Mixed	A
454	One Big Beautiful Bill Act, Rural Health Transformation Program, 2025	Mixed	A
455	ITIF, "The Data Center Water Problem Is Soluble," July 2026	Mixed	A
456	Bureau of Reclamation, Lake Mead/Lake Powell 2026 shortage declarations	Mixed	A
457	NIDIS, 2026 drought monitoring data	Mixed	A

#	Source	Type	Tier
458	Appraisal Economics, "The Growing Wave of Water System Privatization," 2026	Mixed	B
459	Citizens Utility Board (Illinois), water privatization tracking	Mixed	B
460	Truthout / PA PUC testimony, Act 12 rate-increase data	Mixed	B
461	EPA Lead and Copper Rule Improvements, 2024	Mixed	A
462	Protecting Our Democracy Act, H.R. 5314 / S.2921, 117th Congress, House-passed text	Mixed	A
463	Brennan Center for Justice, "Reform Presidential Emergency Powers Before It's Too Late," 2022	Mixed	A
464	Brennan Center, "How to Fix the Insurrection Act"	Mixed	A
465	Insurrection Act Reform Act of 2025, Rep. Deluzio (D-PA), press materials	Mixed	B
466	American Law Institute, Insurrection Act reform principles	Mixed	A
467	UK Judicial Appointments Commission, statutory framework	Mixed	A
468	Germany, Basic Law Art. 87a, 115a–115l	Mixed	A
469	Weber & Wasner, "Sellers' Inflation, Profits and Conflict," Review of Keynesian Economics, 2023	Mixed	A
470	Groundwork Collaborative, windfall energy profits distributional analysis, 2024	Mixed	B
471	Hamilton Project / Washington Center for Equitable Growth, "Recession Ready," 2019	Mixed	A
472	GAO-25-106455, "Economic Downturns: Considerations for an Effective Automatic Fiscal Response," 2025	Mixed	A
473	GAO-26-108675, institutional investor single-family home ownership trends, March 2026	Mixed	A
474	Senate bill banning 350+ home institutional investors from further single-family purchases, 2026	Mixed	A
475	IRC automatic tax bracket indexing precedent, effective 1981	Mixed	A
476	Commonwealth Fund, "Consumers Still Face Surprise Bills for Ground Ambulances," Feb. 2026	Mixed	A
477	Advisory Committee on Ground Ambulance and Patient Billing (GAPB), federal recommendations, 2023	Mixed	A
478	SAFE Banking Act of 2026, S.4942 / companion House bill, bipartisan reintroduction	Mixed	A
479	EU Right to Repair Directive, 2024/1799	Mixed	A
480	New York Digital Fair Repair Act, 2022	Mixed	B
481	*Clinton v. City of New York*, 524 U.S. 417 (1998)	Mixed	A
482	Congressional Research Service, historical line-item veto and expedited rescission proposals	Mixed	B
483	Stateline/LegalClarity, EMS essential service designation tracking, 2025–2026	Mixed	A
484	National Conference of State Legislatures, EMS essential-service legislation tracker	Mixed	A
485	Colorado HB 26-1238, EMS essential service designation, 2026	Mixed	A
486	EMS1/HMP Global, national EMS turnover survey, 2024	Mixed	B
487	AP/PBS/ABC News, FEMA disaster declaration partisan disparity analysis, July 2026	Mixed	A
488	Congressional Research Service, "FEMA's Disaster Declaration Process: A Primer," R43784	Mixed	A
489	Revolving Door Project, disaster aid denial tracker, 2025–2026	Mixed	B
490	World Bank, Catastrophe Deferred Drawdown Option (CAT-DDO) program documentation	Mixed	A
491	Mexico FONDEN, national disaster fund structure	Mixed	B
492	FEMA National Risk Index	Mixed	A
493	Pay Teachers Act, S.2481, 119th Congress	Mixed	A
494	American Teacher Act, H.R.2021, 119th Congress	Mixed	A
495	NEA Teacher Salary Benchmark Report, 2026	Mixed	A
496	OECD, Education at a Glance — teacher pay comparative data	Mixed	A
497	FutureEd, 2026 State Teacher-Pay Legislative Tracker	Mixed	B
498	Kids Off Social Media Act (KOSMA), 2025, Cruz/Schatz	Mixed	A

#	Source	Type	Tier
499	FCC, E-Rate Program Review, 2026 open comment docket	Mixed	A
500	Children's Internet Protection Act, 47 U.S.C. § 254(h)	Mixed	A
501	Reuters/EdWeek, Department of Education dismantlement and Department of Labor K-12 transition reporting, 2025–2026	Mixed	A
502	Gavi, Pneumococcal AMC program evaluation	Mixed	A
503	NASA, Commercial Orbital Transportation Services (COTS) program history and outcomes	Mixed	A
504	Inflation Reduction Act, 26 U.S.C. §§ 45X, 45Y	Mixed	A
505	X Prize Foundation, Ansari X Prize investment-leverage analysis	Mixed	B
506	Operation Warp Speed, GAO program review	Mixed	A
507	In-Q-Tel / ARPA-E institutional model literature	Mixed	B
508	K-12 Dive / Washington Post Syndicate, DoE function transfer reporting, June 2026	Mixed	A
509	Government Executive, bipartisan former-official warnings on agency fragmentation, July 2026	Mixed	A
510	NAACP Legal Defense Fund, student loan transfer to Treasury statement, March 2026	Mixed	B
511	NEA, "How Dismantling the Department of Education Would Harm Students," Dec. 2025	Mixed	B
512	NCES/NCSES, PISA 2022 international comparison data	Mixed	A
513	NSF NCSES, STEM Talent international competitiveness report, Feb. 2026	Mixed	A
514	Tax Foundation, "Repeal the Stock Buyback Excise Tax" and related debt-equity bias analysis, 2026	Mixed	A
515	AEI, "Stock Buybacks and Tax Neutrality," 2026	Mixed	A
516	Belgium/Italy Allowance for Corporate Equity, comparative tax literature	Mixed	A
517	Pisano & Shih, "Producing Prosperity: Why America Needs a Manufacturing Renaissance," Harvard Business Review Press	Mixed	A
518	CHIPS and Science Act of 2022, domestic production conditions	Mixed	A
519	Germany, Berufsbildungsgesetz (Vocational Training Act) — dual apprenticeship system	Mixed	A
520	DOL, Registered Apprenticeship program data	Mixed	A

18. Current-Status Sources, 2025–2026 (92 entries, 600–691)

#	Source	Type	Tier
600	Treasury Direct File report (Oct 2025)	Mixed	A
601	Tax Notes, Nov 5, 2025	Mixed	B
602	GAO and TIGTA pilot evaluations	Mixed	A
603	OECD *Tax Administration* series on pre-filled returns	Mixed	A
604	*Trump v. Slaughter*	Mixed	A
605	Sidley and Steptoe analyses	Mixed	B
606	ICLE comments	Mixed	B
607	Basel Convention Secretariat	Mixed	A
608	EPA export rules	Mixed	A
609	CBO 61570	Mixed	A
610	JCT tax-expenditure estimates	Mixed	A
611	Tax Foundation analysis	Mixed	B
612	CRS LSB11449	Mixed	A
613	CBO minimum-wage analyses (2019/2021)	Mixed	A
614	OECD Side-by-Side Package	Mixed	A
615	BPC international tax brief	Mixed	B

#	Source	Type	Tier
616	*Moore v. US* (2024)	Mixed	A
617	Treasury sb0508	Mixed	A
618	Norway GPFG and Alaska Permanent Fund reports	Mixed	A
619	CRS IN12684 and R48982	Mixed	A
620	CRS IF13322	Mixed	A
621	Georgetown CCF	Mixed	B
622	OECD Family Database	Mixed	A
623	Quebec evaluations (Baker, Gruber & Milligan)	Mixed	A
624	IRS proposed rules (Mar 6, 2026)	Mixed	A
625	CT and DC baby-bond statutes	Mixed	A
626	BJS	Mixed	A
627	DOJ OIG (2016)	Mixed	A
628	CRS LSB11424	Mixed	A
629	Federal Register 2026-08176	Mixed	A
630	Ropes & Gray and Gibson Dunn	Mixed	B
631	CBO 61570 and Oct 2025 supplemental	Mixed	A
632	CRS R48633 and R48290	Mixed	A
633	KFF	Mixed	B
634	CRS LSB10919 (May 28, 2026)	Mixed	A
635	Pink Sheet, May 15, 2026	Mixed	B
636	2026 OASDI Trustees Report	Mixed	A
637	BPC explainer	Mixed	B
638	CBO Feb 2026	Mixed	A
639	CRS LSB11431	Mixed	A
640	*Callais* opinion	Mixed	A
641	CAP and Campaign Legal Center	Mixed	B
642	IDEA International turnout data	Mixed	A
643	CBO shutdown-cost reports	Mixed	A
644	Rescissions Act	Mixed	A
645	*Slaughter*	Mixed	A
646	Medill State of Local News	Mixed	B
647	DOJ memo (Feb 5, 2025)	Mixed	A
648	GAO	Mixed	A
649	§70436	Mixed	A
650	*Bruen*/*Rahimi*	Mixed	A
651	RAND Gun Policy in America	Mixed	B
652	IAPP state privacy tracker	Mixed	B
653	GDPR enforcement tracker	Mixed	B
654	Roll Call, July 22, 2026	Mixed	B
655	CNBC, Sept 30, 2026	Mixed	B
656	House roll call	Mixed	A
657	OGE disclosures	Mixed	A
658	DHS OIG	Mixed	A

#	Source	Type	Tier
659	appropriations riders guaranteeing member access	Mixed	A
660	Senate Banking minority statement	Mixed	A
661	Mayer Brown and Davis Polk	Mixed	B
662	Jones Day	Mixed	B
663	FDA OPDP	Mixed	A
664	WHO marketing-to-children guidance	Mixed	A
665	EO 14365	Mixed	A
666	Hunton and Epstein Becker	Mixed	B
667	Gibson Dunn (preemption challenges unlikely to succeed)	Mixed	B
668	FEC Record (July 1, 2026)	Mixed	A
669	CRS IF13270	Mixed	A
670	Skadden and Covington	Mixed	B
671	Opinions above	Mixed	A
672	Presidential Commission on the Supreme Court (2021)	Mixed	A
673	CRS R48727 and IF13075	Mixed	A
674	ED final rule, Federal Register 2026-08556	Mixed	A
675	*FSC v. Paxton*	Mixed	A
676	eSafety Commissioner	Mixed	A
677	OECD PISA 2022	Mixed	A
678	IRS IRB 2025-36	Mixed	A
679	IRS OBBB FAQs	Mixed	A
680	CRS IF12600	Mixed	A
681	USGS Mineral Commodity Summaries	Mixed	A
682	State Department agreements	Mixed	A
683	CRS R48585	Mixed	A
684	FAA BNATCS fact sheet	Mixed	A
685	CRS War Powers Resolution reports	Mixed	A
686	CRS LSB11468	Mixed	A
687	IRCC and Australian Home Affairs points-system data	Mixed	A
688	UN Secretary-General statement (Feb 4, 2026)	Mixed	A
689	Brookings	Mixed	B
690	UCS (Jan 2026)	Mixed	B
691	Belfer Center	Mixed	B

19. Fiscal Baseline Sources, October 2026 (34 entries, 800–833)

#	Source	Type	Tier
800	CBO, The Budget and Economic Outlook: 2026 to 2036 (Feb 2026)	Gov/Agency	A
801	CBO, Monthly Budget Reviews, July and August 2026	Gov/Agency	A
802	CBO, An Update About CBO's Projections of the Budgetary Effects of Tariffs (Mar 5, 2026)	Gov/Agency	A
803	CBO, Updated Budgetary Projections of Tariffs as of July 31, 2026 (Aug 20, 2026)	Gov/Agency	A
804	CBO, Estimated Budgetary Effects of Public Law 119-21 (pub. 61570)	Gov/Agency	A
805	CBO, Effects on Deficits and the Debt of Public Law 119-21 (pub. 61466)	Gov/Agency	A
806	CBO, Budget Rules of Thumb (Apr 2026, pub. 62257)	Gov/Agency	A

#	Source	Type	Tier
807	CBO, Alternative Budgetary Scenarios (Sept 2026, pub. 62758)	Gov/Agency	A
808	2026 Annual Report of the Social Security Board of Trustees	Gov/Agency	A
809	2026 Annual Report of the Medicare Boards of Trustees	Gov/Agency	A
810	SSA Office of the Chief Actuary, Provisions Affecting Payroll Taxes (Sept 21, 2026)	Gov/Agency	A
811	CBO Budget Option 60955, Increase the Maximum Taxable Earnings Subject to Social Security Payroll Taxes	Gov/Agency	A
812	JCT, Estimates of Federal Tax Expenditures for Fiscal Years 2025–2029 (JCX-45-25)	Congress	A
813	CBO/JCT, Permanent Extension of Enhanced Premium Tax Credits (Sept 2025)	Gov/Agency	A
814	CBO, Economic Effects of Expanding Subsidized Child Care and Providing Universal Preschool (2021, pub. 57630)	Gov/Agency	A
815	CBO, H.R. 1185, FAMILY Act (2020)	Gov/Agency	A
816	CBO, The Budgetary and Economic Effects of the Raise the Wage Act of 2023	Gov/Agency	A
817	CBO, How CBO Analyzes Proposals for a Single-Payer Health Care System (2020)	Gov/Agency	A
818	Urban Institute, cost estimates of single-payer designs (2019)	Think Tank	B
819	Mercatus Center (Blahous), The Costs of a National Single-Payer Healthcare System (2018)	Think Tank	B
820	Tax Policy Center, wealth tax revenue estimates (Feb 2025)	Think Tank	B
821	Treasury, General Explanations of the Administration's FY2025 Revenue Proposals (Greenbook)	Gov/Agency	A
822	CRS R48727, Updates to the Direct Loan Program	Congress	A
823	CRS IF13177, FY2026 Appropriations for EPA Water Infrastructure Programs	Congress	A
824	Tax Foundation, energy provisions of the 2025 reconciliation law	Think Tank	B
825	Resources for the Future, Projected Impacts of Repealing the 45Y and 48E Credits (2025)	Think Tank	B
826	CRS R48704, DHS FY2025 Reconciliation Funding in Context	Congress	A
827	National Tribal Budget Formulation Workgroup, FY2028 recommendations (via NCUIH, July 2026)	NGO/Civil	C
828	CRFB, JCT Projects Tax Expenditures Will Be $2.3T in 2026 (Feb 2026)	Think Tank	B
829	Federal Reserve H.15 / FRED DGS10, 10-year Treasury constant maturity yield	Gov/Agency	A
830	CRS IF12959, The Cybersecurity Information Sharing Act of 2015: Expiring Provisions (Sept 2026)	Congress	A
831	CRS R49354, The 21st Century ROAD to Housing Act (P.L. 119-101)	Congress	A
832	Bureau of Reclamation, Colorado River Post-2026 Operations Record of Decision (Aug 21, 2026)	Gov/Agency	A
833	Oregon Environmental Council v. IRS, No. 1:25-cv-04400 (D.D.C. June 6, 2026)	Law/Court	A

20. Updated Measurement Baselines and Citations

Some figures and rulings used in earlier research have since been replaced by newer data or decisions. Every figure and claim in this document uses the current source in the second column; the earlier source stays listed so that a reader comparing this document with earlier public reporting can see why a number or legal premise differs. The third column names the part of the document each change affects.

Earlier source	Current source used here	Affects
CBO January 2025 Budget & Economic Outlook	Source 800, plus 802–803	Part VI baseline and debt-service figures
CBO June 2025 estimates of the House-passed reconciliation bill	Sources 804–805	Part VI comparison with P.L. 119-21
2025 Social Security Trustees Report (OASI 2033)	Source 808 (OASI Q4 2032; OASDI Q3 2034)	P21; S-6 Social Security Solvency Act

Earlier source	Current source used here	Affects
Humphrey's Executor (1935)	*Trump v. Slaughter* (2026); *Trump v. Cook* (2026) for the Fed	Independent-agency proposals; Part VII
Allen v. Milligan and §2 redistricting literature	*Louisiana v. Callais* (2026); CRS LSB11431	Redistricting proposals; Bill 11 DIR Act
FEC v. Colorado Republican (2001)	*NRSC v. FEC* (2026)	Campaign-finance proposals; Part VII
ACA 2025 enrollment (~24M)	KFF 2026 effectuated enrollment (~17.5M)	Health-coverage proposals and baselines
IRS Notice 2025-42 as operative	Source 833 (vacated June 6, 2026)	Energy-credit provisions and fallbacks

21. Measurement Baseline Sources (13 entries, 900–912)

#	Source	Type	Tier
900	CDC National Center for Health Statistics, Health Insurance Coverage: Early Release of Estimates from the National Health Interview Survey, 2025 (May 2026)	Gov/Agency	A
901	U.S. Department of Labor, Women's Bureau, National Database of Childcare Prices (2024 update; 2022 prices)	Gov/Agency	A
902	U.S. Department of Labor, Office of Apprenticeship, registered apprenticeship data, FY2025	Gov/Agency	A
903	Chartis Center for Rural Health, 2026 Rural Health State of the State (Feb 2026)	Think Tank	B
904	Consumer Financial Protection Bureau, research on medical bills on credit reports (2024)	Gov/Agency	A
905	Bureau of Labor Statistics, National Compensation Survey — Employee Benefits in the United States, March 2025	Gov/Agency	A
906	U.S. Census Bureau, New Residential Construction, 2025 annual totals	Gov/Agency	A
907	Realtor.com, 2026 Housing Supply Gap Report (Mar 2026)	Industry Research	B
908	CDC National Center for Health Statistics, Provisional Drug Overdose Death Counts (Aug 2026 release)	Gov/Agency	A
909	Indian Health Service, Agency Profile (Oct 2024)	Gov/Agency	A
910	Lawrence Berkeley National Laboratory, Queued Up: Characteristics of Power Plants Seeking Transmission Interconnection (2025 edition; data through 2025)	Gov/Agency	A
911	Northwestern University Medill Local News Initiative, The State of Local News 2025 (Oct 2025)	Academic	B
912	U.S. Environmental Protection Agency, lead service line estimates and Lead and Copper Rule Improvements inventories	Gov/Agency	A

22. Public Support Evidence (9 entries, 913–921)

#	Source	Type	Tier
913	The Economist/YouGov Poll, May 22–26, 2026 — congressional stock trading	Polling	A
914	KFF Health Tracking Poll, Sept. 23–29, 2025 — extending the enhanced ACA premium tax credits	Polling	A
915	Navigator Research and Economic Security Project, free IRS-run tax filing survey (May 2023)	Polling	B
916	Data for Progress, Groundwork Collaborative, and Protect Borrowers, household debt survey of 1,202 likely voters (Aug. 2025)	Polling	B
917	National Academy of Social Insurance, Social Security at 90 public survey (Jan. 29, 2025)	Polling	B
918	First Step Act of 2018, Pub. L. 115-391 (Senate vote 87–12, Dec. 18, 2018)	Law/Court	A
919	Ballotpedia, 2024 minimum wage ballot measures (Missouri Proposition A; Alaska Ballot Measure 1)	Reference	B
920	Commission on Federal Election Reform (Carter–Baker), Building Confidence in U.S. Elections (Sept. 2005)	Gov/Agency	A
921	Brennan Center State Court Report, What 2026 Ballot Measure Results Tell Us (Nov. 2026)	NGO/Civil	B

23. Fiscal Review Sources (25 entries, 922–946)

#	Source	Type	Tier
922	CBO, Projections of Deficits and Debt Under Two Scenarios With Higher Interest Rates (pub. 62809, Oct 8, 2026)	Gov/Agency	A
923	Reuters, "US fiscal 2026 budget deficit rises to $1.99 trillion" (Oct 16, 2026), reporting the Treasury's September 2026 Monthly Treasury Statement	News	B
924	Reuters via The Wealth Advisor, Treasury yields after the 2026 midterm elections (Nov 5, 2026)	News	B
925	CRFB, Full Estimates of the House Build Back Better Act (Nov 2021): child care $270B and universal pre-K $110B as written	Think Tank	B
926	CRFB, CBO Estimates a Permanent Build Back Better (Dec 2021): permanent child care and pre-K $752B	Think Tank	B
927	CRS Insight IN12624, energy tax credit changes in P.L. 119-21, with JCT estimates (2025)	Congress	A
928	CBO cost estimate, S. 1664, Healthy Families Act (Sept 12, 2024)	Gov/Agency	A
929	CRFB, The Fiscal Impact of the Harris and Trump Campaign Plans (Oct 2024)	Think Tank	B
930	JCT estimate of the Billionaires Income Tax, as released by the Senate Finance Committee (2021)	Congress	A
931	Penn Wharton Budget Model, Senator Wyden's Billionaire Income Tax (Nov 2021)	Think Tank	B
932	OECD, Recommendation of the Council on Principles for Independent Fiscal Institutions (2014)	UN/Intl	A
933	UK Office for Budget Responsibility, policy costings and uncertainty ratings	Gov/Agency	A
934	Parliamentary Budget Office (Australia), Costing election commitments: report requirements and methodology (2025)	Gov/Agency	A
935	CPB Netherlands Bureau for Economic Policy Analysis, Charted Choices 2025–2028	Gov/Agency	A
936	CRFB, Analysis of the 2026 Social Security Trustees Report	Think Tank	B
937	CBO, Effects of the Immigration Surge on the Federal Budget and the Economy (July 2024)	Gov/Agency	A
938	CHIPS and Science Act, Pub. L. 117-167 (2022)	Law/Court	A
939	The Century Foundation, President Biden's free community college plan (2023)	Think Tank	B
940	Education Week, The push for a $60K base teacher salary (Jan.–Feb. 2023)	News	B
941	CBO cost estimate, H.R. 8294, National Apprenticeship Act of 2020	Gov/Agency	A
942	CRFB, Cory Booker's "Baby Bonds" Plan (2019)	Think Tank	B
943	Tax Foundation, Digital Services Tax revenue estimates (UK and France projections)	Think Tank	B
944	CBO, Options for Reducing the Deficit: 2025 to 2034 (Dec 2024)	Gov/Agency	A
945	CRFB, CBO's Medicare Savings Options (2025)	Think Tank	B
946	CRFB, CBO's Revenue Savings Options (2025)	Think Tank	B

Tier legend: A authoritative non-partisan · B peer-reviewed or major think-tank · C use with caution · D partisan outlier. Tiers in Sections 17–19 were assigned at registration; consultation outputs (e.g., Source 827) are rated C and used only with explicit framing.

REFERENCE · PART XII

A Note on Method and Authorship

Origins. The agenda was conceived and written by a private American citizen working independently, without institutional funding, a campaign, or a party. It is published under the name of the Reform Democrats of the New Commonwealth, a citizen think tank, and offered for public adoption through the American Renewal Initiative.

AI assistance. The work was developed with the assistance of AI systems: principally Claude, developed by Anthropic, used for research, drafting, structure, and editorial review; and GPT, developed by OpenAI, used for independent review. Policy choices, judgments, and final decisions were made by the human author. Two limits apply. Legislation governing AI safety, liability, or legal status is reserved for human drafting (S-4, Part IX). The one bill concerning the economics of AI — the AIPE Act, Bill 10 — carries a standing disclosure of the assistance used to draft it.

Status of the work. The policy framework is complete for this edition. The legislative and executive texts are drafts that require review by licensed counsel and scoring by the Congressional Budget Office before use. Corrections and criticism are welcome; scores change only under the re-verification rule in Part X.

Public use. The document is free to use, share, and adapt. Any candidate may run on this platform without permission, fee, or institutional relationship. Attribution is appreciated but not required. To keep public claims precise, adoption is described at four levels: full-framework adoption (the whole agenda, including the revenue that pays for it), core adoption (the twelve priorities of the Core Agenda in Part III), pillar adoption (one of the three pillars and its financing), and proposal adoption (individual proposals). A candidate who adopts spending proposals without their financing has adopted proposals, not the framework.

Glossary of Terms and Abbreviations

Abbreviations and terms used in this document.

Abbreviations

Abbreviation	Meaning
ACFM	Anti-Corruption & Fair Markets Act (Bill 3, Parts A and B)
ACIP	Advisory Committee on Immunization Practices
AIPE	American Innovation & Public Equity Act (Bill 10)
BBB	Build Back Better Act (2021), used as a cost benchmark in Part VI
BNATCS	Brand New Air Traffic Control System, the FAA modernization program
BWDS	Billionaire Wealth Gains & Digital Services Tax Act (Bill 5)
CDBG	Community Development Block Grant
CISA	Cybersecurity and Infrastructure Security Agency
COLT	Cost of Living Reduction & Tax Simplification Act (Bill 1)
CPB	Corporation for Public Broadcasting
CRFB	Committee for a Responsible Federal Budget, an independent budget watchdog that scores campaign platforms
DFC	U.S. International Development Finance Corporation
DIR	Democratic Institutions Reform Act (Bill 11)
DRDO	Digital Rights & Data Fiduciary Act (Bill 7)
DST	Digital services tax (the digital services levy in Bill 5)
E-1 to E-26	Model executive action texts in Part VIII
ECFA	Economic Cycle Fairness Act (Bill 16)
ERISA	Employee Retirement Income Security Act (1974)
FMCS	Federal Mediation and Conciliation Service
FSW	Family Stability & Workforce Investment Act (Bill 4)
HCI	Housing & Community Investment Act (Bill 8)
IHS	Indian Health Service
IIC	Infrastructure & Industrial Capacity Act (Bill 2)
IIJA	Infrastructure Investment and Jobs Act (2021)
IRA	Inflation Reduction Act (2022)
MMIW	Missing and murdered Indigenous women (and people)
NEPA	National Environmental Policy Act
NFSA	National Firearm Standards Act (Bill 12)
NOAA	National Oceanic and Atmospheric Administration
NTBFW	National Tribal Budget Formulation Workgroup
OBBBA	One Big Beautiful Bill Act — see Public Law 119-21 under Terms
POHE	Public Option Healthcare Expansion Act (Bill 6)
REAP	Rural Energy for America Program
RFF / TPC	Resources for the Future; Tax Policy Center (sources cited in Part VI)
RHTP	Rural Health Transformation Program
S-1 to S-6	Standalone measures: reproductive technology; Senate deliberation standard; public health integrity; AI safety and rights (reserved for human drafting); education functions; Social Security solvency

Abbreviation	Meaning
SCPS	Second Chance & Public Safety Act (Bill 14)
TSTR	Tribal Sovereignty & Trust Responsibility Act (Bill 15)
UCT	Universal Coverage Transition Act (Bill 9)
USPTO	U.S. Patent and Trademark Office
WFA	Workforce Fairness Act (Bill 13)

Terms

Term	Meaning
Advance appropriation	Funding enacted one fiscal year ahead of when it becomes available, so a program keeps operating if Congress misses a budget deadline.
Anti-commandeering	The constitutional rule that Congress may not order states or their officers to administer a federal program; it may offer funding conditions instead.
Apportionment	The constitutional requirement that a "direct tax" be divided among the states by population — practically impossible for a tax on wealth, which is why tax design matters.
Baseline	CBO's projection of spending and revenue under current law, against which proposals are measured. A "current-policy" baseline instead assumes expiring provisions continue.
Byrd rule	The Senate rule (2 U.S.C. §644) that lets any senator strike provisions of a reconciliation bill that are extraneous to the budget, most often those whose budget effect is "merely incidental" to their policy effect. Waiving it takes 60 votes.
Calibrated conservatism	This agenda's rule for evidence and estimates: where sources diverge, use the lower score, the higher cost, and the lower revenue.
CBO / JCT	The Congressional Budget Office and the Joint Committee on Taxation — Congress's nonpartisan scorekeepers for spending and tax legislation.
Cloture	The Senate vote, requiring 60 senators, needed to end debate on most legislation; the filibuster is the use of extended debate to block it.
Coercion doctrine	The limit, set in *NFIB v. Sebelius* (2012), on funding conditions so large that a state has no real choice but to accept them.
Commerce Clause	Congress's constitutional power to regulate commerce among the states (Art. I, §8, cl. 3).
Comparator pool	The sixteen high-income democracies against which Global Precedent is scored (Part X).
Consultation draft	Bill text offered as a starting point for government-to-government consultation with tribal nations, not to be introduced until they have shaped it (Bill 15).
Conventional score	A cost estimate that counts how people respond to a policy but not its effects on the whole economy; CBO's standard practice.
Conventional vs. dynamic score	A conventional estimate holds the size of the economy fixed; a dynamic estimate adds feedback from economic growth or contraction.
Debt service	Interest paid on the additional federal borrowing a policy causes.
Deemed realization	Treating an asset as sold at a specified event, such as death, so that accumulated gains are taxed.
Deferral charge	An interest charge on tax postponed by holding appreciated assets, calculated each year but collected only when the asset is sold, given, or bequeathed.
Direct spending / discretionary spending	Direct (mandatory) spending flows automatically under permanent law; discretionary spending must be provided in annual appropriations.
Elections Clause	Article I, §4, which lets Congress regulate the times, places, and manner of elections for the House and Senate.
Evidence tiers	Ratings of source quality: A authoritative non-partisan, B peer-reviewed or major research institution, C use with caution, D partisan outlier (Parts X and XI).
Executive action	Policy carried out by the President or agencies under existing law, without new legislation; model texts are in Part VIII.
FPL	Federal poverty level — the income guideline used to set eligibility for many programs.

Term	Meaning
Global Precedent (GP)	The first scoring axis: whether a policy has been adopted and sustained in comparable democracies.
Grant condition	A requirement a state or other recipient accepts as a term of receiving federal funds.
Interest arbitration	A process in which a neutral panel sets the terms of a contract the parties could not agree on.
Ledger cases	The three fiscal cases in Part VI: conservative (every cost high and every revenue low), central, and favorable (the reverse). The two outer cases are extremes; the likely range comes from the simulation.
Likely range	The range that holds 80 percent of the 20,000 simulated fiscal outcomes in Part VI (10th to 90th percentile).
Major questions doctrine	The rule that agencies need clear congressional authorization for actions of vast economic or political significance; it applies to agencies, not to statutes Congress writes itself.
Mark-to-market	Taxing the annual change in an asset's value whether or not it is sold.
Nondelegation	The principle that Congress may assign authority to agencies only with an "intelligible principle" to guide it.
Parliamentarian	The Senate's nonpartisan adviser on its rules, including the Byrd rule.
Phase I / II / III	The agenda's implementation stages: years 0–5 (foundation), 5–15 (structural expansion), and 15–30 (systemic transformation).
Priority Score	A proposal's aggregate score: (GP + UT + B) ÷ 1.5, on a scale from 2.0 to 10.0.
Public Law 119-21	The 2025 reconciliation law (often called the One Big Beautiful Bill Act) that enacted much of Project 2025's fiscal program.
Reconciliation	A budget procedure that lets the Senate pass budget-related legislation by simple majority, without a filibuster.
Removal protection	A statutory limit on the President's power to fire an official; substantially narrowed by *Trump v. Slaughter* (2026).
Shall-issue	A licensing system in which officials must issue a license to any applicant who meets objective criteria, with no discretionary judgment.
Societal Benefit (B)	The third scoring axis: how many Americans a policy helps, how much, and how equitably.
Speech or Debate Clause	Article I, §6, which shields members of Congress from liability for legislative acts and limits the use of those acts as evidence.
Spending Clause	Congress's power to tax and spend for the general welfare, including by attaching conditions to federal funds (Art. I, §8, cl. 1).
SRF	State Revolving Funds — the federal-state loan programs for drinking water and wastewater infrastructure.
Stage arrow (→)	In Part III, marks a proposal enacted in stages across more than one bill.
Taxing Power	Congress's power to lay and collect taxes (Art. I, §8, cl. 1), the basis for tax-funded programs.
[TBD]	A value in bill text — an amount, rate, threshold, or date — to be set by legislative counsel, agency staff, or CBO before introduction.
Uncertainty rating	A Low-to-Very-high rating on each fiscal line, covering its data, its model, and how people will respond; adapted from the UK Office for Budget Responsibility.
US Transition (UT)	The second scoring axis: how achievable a policy is in the United States from current conditions.

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The ideas belong to anyone willing to fight for them.